

Criminal Justice

Collection of Laws

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Disclaimer:

Please, note that the 'Collection of Criminal Justice Laws' contains several law texts elaborated or amended under the justice reform process. The laws, that were subject to amendments were consolidated; all laws were translated from Albanian into English.

The consolidated and translated texts constitute just an unofficial document and are intended to be used as documentation tools. EURALIUS does not assume any responsibilities for the content. They confer no rights and impose no obligations separate from those conferred or imposed by the legislation formally adopted and published in the Official Gazette. For legal purposes, please refer to the texts published in the Official Gazette.

The Code of Criminal Justice for Children is prepared with the assistance of UNICEF.

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LAW

No.7905, dated 21.3.1995

CRIMINAL PROCEDURE CODE OF THE REPUBLIC OF ALBANIA

*(Amended by Law no. 7921, dated 19.04.1995;
amended by Law no. 7977, dated 26.07.1995;
amended by Law no. 8027, dated 15.11.1995;
amended by Law no. 8180, dated 23.12.1996;
amended by Law no. 8245, dated 24.09.1997;
amended by Law no. 8460, dated 11.02.1999;
amended by Law no. 8570, dated 20.01.2000;
amended by Law no. 8602, dated 10.04.2000;
amended by Law no. 8813, dated 13.06.2002;
amended by Law no. 9085, dated 19.06.2003;
amended by Law no. 9187, dated 12.02.2004;
amended by Law no. 9276, dated 16.09.2004;
amended by Law no. 9911, dated 05.05.2008;
amended by Law no. 10054, dated 29.12.2008;
amended by Law no. 145/2013, dated 2.5.2013;
amended by Law no. 21/2014, dated 10.3.2014;
amended by Law no. 99/2014, dated 31.7.2014;
amended by Law no. 35/2017, dated 30.3.2017)*

Pursuant to Article 16 of Law no. 7491, dated 29.4.1991 “Law on main constitutional provisions”, upon the proposal of Council of Ministers,

THE ASSEMBLY

OF

THE REPUBLIC OF ALBANIA

DECIDED:

GENERAL PROVISIONS

Article 1

Scope of the criminal procedure legislation

1. Criminal procedure legislation must guarantee fair, equal and due legal proceedings to protect the freedoms and lawful rights and interests of citizens, to contribute for the strengthening of the legal order and for the implementation of the Constitution and State legislation.

Article 2

Compliance with procedural rules

(Amended by Law no. 35/2017, dated 30.03.2017, Article 1)

1. Procedural provisions determine the rules on the way to conduct criminal prosecution, investigations and trial of criminal offences, and the execution of judicial decisions. These rules are mandatory for parties in criminal proceedings, State authorities, legal persons and citizens.
2. Criminal procedure provisions shall apply also for minor defendants, unless otherwise provided by special legislation into force.

Article 3

Independence of the court

1. The court shall be independent and shall render decision in conformity with the law.
2. The court renders its decision based on evidence examined and verified in trial hearing.

Article 4

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(Amended by Law no. 35/2017, dated 30.03.2017, Article 2)

1. The defendant shall be deemed innocent until his guilt has been established by a final judgment of the court. Any doubts regarding the charge shall be evaluated in favour of the defendant.
2. The court shall issue a decision of conviction if the defendant is found guilty of the criminal fact attributed to him beyond any reasonable doubt.

Article 5

Restrictions of the personal freedom

1. The freedom of a person may be restricted by way of precautionary measures only in the cases and under the conditions defined by the law.
2. No one may be subjected to torture or humiliating punishment or treatment.
3. Persons convicted to imprisonment are ensured human treatment and moral rehabilitation.

Article 6

Right to defence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 3)

1. The defendant has the right to defend himself in person or through the legal assistance of a lawyer. If he has no sufficient means, he shall be guaranteed legal defence by lawyer, free of charge, in the cases provided for by this Code.
2. The lawyer shall assist the defendant to have his procedural rights guaranteed and his legitimate interests protected.

Article 7

Ne bis in idem

(Amended by Law no. 35/2017, dated 30.03.2017, Article 4)

1. No one can be judged more than once for a criminal fact for which he has been judged by a final decision of the court, except in the cases when the competent court has decided the revision of the case.

Article 8 **Use of Albanian Language**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 5)

1. Albanian language shall be used in all phases of the proceedings.
2. Persons who do not know the Albanian language shall use their own language and, through an interpreter, shall have the right to speak and be informed on the evidence, the documents and on the state of the proceedings. Deaf and mute people have the right to use the signs language.
3. Translation and interpretation costs shall be borne by the State.

Article 8/a **Evidence**

(Added by Law no. 35/2017, dated 30.03.2017, Article 6)

1. In criminal proceedings facts shall be proved with any evidence, provided that they do not violate human rights and fundamental freedoms.
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1. Persons who are prosecuted in violation of this Code or are unlawfully convicted shall be entitled to restitution and compensation for the damages suffered.

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(Added by Law no. 35/2017, dated 30.03.2017, Article 7)

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Article 10 **Application of international agreements**

1. Relationships with foreign authorities in the field of criminal law shall be governed by international agreements, recognized by the Republic of Albania, by generally accepted principles and provisions of international law and by the provisions of this Code.

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*(Amended by Law no. 9911, dated 05.05.2008, Article 1;
amended by Law no. 9911, dated 05.05.2008, Article 1;
amended by Law no. 35/2017, dated 30.03.2017, Article 8)*

1. Criminal offences shall be adjudicated in the first instance by judicial district courts and by the Anti-Corruption and Organized Crime Court, pursuant to the rules and responsibilities provided for by this Code.
2. The judicial district courts and the Anti-Corruption and Organized Crime Court of first instance rule, by a single judge, on:
 - a) the requests of the parties during the preliminary investigations;
 - b) the appeal against the prosecutor's decision on the non-initiation of the criminal proceeding or on the dismissal of the case, as concerns misdemeanours;
 - c) the request of the prosecutor to dismiss the charge or the case, as concerns crimes;
 - (ç the request of the prosecutor to send the case to trial;
 - d) the request of the prosecutor for the approval of the penal order;
 - dh) the requests related to the execution of the criminal decisions;
 - e) the requests on the reinstatement of time limits;
 - (ë the requests related to jurisdictional relations with foreign authorities pursuant to Title X of this Code;

- f) any other requests provided for by this Code or by special laws.
3. The judicial district courts examine, by a single judge, criminal offences that are sentenced with a fine or with imprisonment for, at maximum, not more than 10 years. The other criminal offences are examined by a panel composed of three judges.
- 3/1. The Anti-Corruption and Organized Crime Court rules with a judicial panel composed of three judges, unless provided otherwise by this Code. This court examines with a single judge the criminal charges against public officials, pursuant to Article 75/a of this Code, for criminal offences other than corruption and organized crime, punishable by fine or up to 10 years' imprisonment, in the maximum term.
4. Minors and young adults are adjudicated by the relevant court sections, established by law. These sections adjudicate also the adult defendants accused of criminal offences committed against minors.
5. Provisions of paragraph 4, of this Article, do not apply in the cases referred to in paragraph 1, of Article 80 of this Code.

Article 14

Courts of Appeal and their composition

*(Amended by Law no. 9085 of 19.06.2003, Article 1;
amended by Law no. 9276 of 16.09.2004, Article 2;
paragraph 2 repealed by Law no. 9911 of 05.05.2008, Article 2;
amended by Law no. 35/2017, dated 30.03.2017, Article 9)*

1. Courts of Appeal adjudicate in second instance, with judicial panels composed of three judges, on cases adjudicated by the judicial district courts.
2. Repealed
3. The Anti-corruption and Organized Crime Court of Appeal adjudicates in second instance, with judicial panels composed of three judges, on cases adjudicated by the Anti-Corruption and Organized Crime Court of first instance.
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(Amended by Law no. 35/2017, dated 30.03.2017, Article 10)

1. The High Court adjudicates on appeals in closed sessions with judicial panels composed of three judges, on the uniform interpretation and development of the judicial practice with judicial panels of five judges and on the revision of the judicial practice in joint colleges.

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(Amended by Law no. 35/2017, dated 30.03.2017, Article 11)

1. A judge who has issued [a decision] or taken part in preliminary hearings or has issued a decision in any of the instances of the proceedings, shall not exercise the judicial functions in the other instances, nor participate in the review or revision trial after the decision has been annulled.
2. A judge who has examined the requests of the parties during the preliminary investigations or the preliminary hearing for the same proceeding may not take part in the trial. The judge who examines the requests of the parties during the preliminary investigations may not exercise the judicial functions at the preliminary hearing of the same proceeding.
3. A person who, in the same proceedings, has acted as a prosecutor, or has carried out actions of judicial police, or has served as a lawyer, representative, guardian of one of the parties or has been a witness, expert, a victim or person who has lodged a criminal report or complaint, is barred from exercising the judicial function.

Article 16

Incompatibility on grounds of family, blood or in-laws relation

(Amended by Law no. 35/2017, dated 30.03.2017, Article 12)

1. Persons who, between them or to any of the parties in a trial, are spouses, cohabitants, close kinship (antecedents, descendants, brothers, sisters, uncles, aunts, nephews, nieces, children of sisters and brothers) or close in-laws (mother-in-law, father-in-law, son-in-law, daughter-in-law, sister-in-law, brother-in-law, stepson, stepdaughter, stepmother, stepfather) may not participate as judges in the same proceeding.

Article 17

Abstention

(Amended by Law no. 35/2017, dated 30.03.2017, Article 13)

1. A judge has the duty to abstain from the judgment of an actual case:
 - a) if he has a private interest in the proceedings or if any of the private parties or lawyers is a debtor or creditor to himself or to his spouse, cohabitant or his children;
 - b) if he is a legal guardian, a representative or employer of the defendant or of any of the private parties or if the lawyer or the representative of any of these parties is his own or his spouse's close kindred;
 - c) if he has given advice or expressed his opinion on the object of the proceedings;
(ç if there are disputes between him, his spouse or any of his close relatives with the defendant or any of the private parties;
 - d) if any of his own or his spouse's relatives has been harmed or damaged by the criminal offence;
 - dh) if any of his relatives or of his spouse's relatives performs or has carried out prosecutor's role in the same proceeding;
 - e) if any of the conditions of incompatibility referred to in Articles 15 and 16 exist;
(ë if any other important reasons for judge's partiality exist.
2. The abstention statement is submitted to the chairman of the court, who shall approve or reject it by reasoned decision.

3. Chairpersons of the hierarchically superior courts shall decide on the abstention statement of any courts' chairperson. A panel of the High Court composed of three judges shall decide on the abstention statement of the chairperson of the High Court.

Article 18

Disqualification of the judge

1. Parties may request the disqualification of a judge:

- a) in the cases referred to in Articles 15, 16 and 17 of this Code;
- b) if, in the exercise of his functions and prior to the issuance of the decision, he has expressed his opinion on the facts or circumstances object of the proceedings.

2. A judge may not issue or take part in the issuance of a decision until the decision declaring the inadmissibility or rejection of his disqualification request has been issued.

Article 19

Time limits and forms for requesting disqualification

1. The request for disqualification of a judge is made in the hearing immediately after establishing the legal standing of the parties.

2. When the ground for disqualification arises or is discovered after establishing the legal standing of the parties, the request must be made within three days of the discovery. If the ground has arisen or is discovered during the hearing, the request for disqualification must be addressed before the conclusion of the hearing.

3. The request shall contain the reasons and the evidence and is addressed in written form. It is submitted, along with the relevant documents, to the secretary of the competent court. A copy of the request is delivered to the judge whose disqualification is requested.

4. If not made personally by the parties, the request may be submitted by the lawyer or a special representative. The power of attorney should indicate the reasons for which the disqualification is requested, otherwise it shall not be accepted.

Article 20

Concurrence of abstention and disqualification

1. The request for disqualification is deemed as not made, when the judge, even after the request has been made, declares his abstention and it is accepted.

Article 21

Competence to decide on disqualification

(Amended by Law no. 35/2017, dated 30.03.2017, Article 14)

1. The request for disqualification of a judge is examined in closed sessions by another judge of the same court.

1/1. The judge whose disqualification is requested, may submit his opinion in writing on the request for disqualification.

2. The request for disqualification of a judge of the High Court shall be decided by a chamber of the same court, different from the one where the judge whose disqualification is required is sitting. The decision is final.

3. No request for disqualification shall be allowed against the judge designated to decide on a disqualification request nor the repetition of the request based on the same grounds.

Article 22

Decision on the request for disqualification

(Amended by Law no. 35/2017, dated 30.03.2017, Article 15)

1. When the request for disqualification is made by a person who was not entitled or has not observed the time limits or forms provided for by Article 19, or when the request of abstention from the judgment of a case is approved by the chairman, or when the reasons indicated are (not) based on the law, the court examining the complaint, declares it inadmissible by a decision.

2. The court may suspend temporarily any procedural activity or may limit it to the execution of the most urgent actions.

3. The court, once gathered the necessary information, decides on the request for disqualification within 48 hours of the submission of the request.

4. The decision issued in compliance with the abovementioned paragraphs shall be notified to the judge, whose disqualification has been requested, to the prosecutor, the defendant and private parties. An appeal may be made against the decision to the High Court.

Article 23

Rulings when abstention statement and request for disqualification are accepted

1. When the statement of abstention or the request for disqualification is accepted, the judge may not conduct any procedural activities related to the case.

2. The ruling accepting the abstention or the request for disqualification shall also establish whether and to what extent are valid any prior actions conducted by the judge who has abstained or has been subject to a request for disqualification.

3. Provisions on judge abstention and disqualification shall also apply to the [judicial] secretary of the hearing and to persons in charge of transcriptions or phonographic or audio-visual recording. The court that tries the case decides on their abstention or disqualification.

CHAPTER II PROSECUTOR

Article 24

Functions of the prosecutor

(Added by Law no. 8460, dated 11.02.1999, Article 1;

amended by Law no. 35/2017, dated 30.03.2017, Article 16)

1. The prosecutor exercises the criminal prosecution and represents the charge in the trial on behalf of the State, conducts and controls the preliminary investigations and the judicial police activity and conducts himself every investigatory action he evaluates as necessary, takes measures for the execution of the criminal decisions, supervises their execution and exercises the functions of the judicial cooperation with the foreign authorities pursuant to the rules stipulated in this Code.
2. The prosecutor has the right not to initiate the proceeding, to dismiss the charge or the case, to request the court the dismissal of the charge or of the case, and to request that the case is sent to trial, pursuant to the provisions of this Code.
3. The Prosecutor is entitled to enter into collaboration agreements, drafted pursuant to Article 37/a, of this Code, and to the special legal provisions on the protection of witnesses and collaborators of justice.
4. The prosecutor may reach an agreement on the conditions for pleading guilty and on the sanction imposed, pursuant to Article 406/d seq. of this Code.
5. The prosecutor may submit a request with the court for the approval of a penalty order pursuant to the provisions of this Code.
6. When the victim's criminal complaint is not required, the prosecution shall be exercised *ex officio*.

Article 25

Carrying out prosecutor's functions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 17)

1. Prosecutor's functions are carried out:
 - a) during preliminary investigations and first instance trials, by prosecutors attached to first instance courts;
 - b) during trials of appealed cases, by prosecutors attached to the courts of appeal and High Court.
2. The prosecutor is independent in the exercising of his functions. Rules on the manner regarding the exercising of the prosecutor's functions are provided by the law.
3. The functions under Article 24 of this Code shall be exercised by the prosecutors of the Special Prosecution Office in all instances for criminal offences referred to in Article 75/a of this Code.

Article 26

Abstention of the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 18)

1. A prosecutor has the duty to abstain if there exist grounds of partiality, in cases provided for by Article 17.
2. On the statement of abstention shall decide, based on their respective duties, the chairperson of the Prosecution Office attached to the first instance court, the chairperson of the prosecution office attached to the Court of Appeal, the General Prosecutor and the Chief of the Special Prosecution Office. The chairperson of the prosecution office of a higher instance shall decide on the [abstention of the] chairpersons of the [lower] prosecution offices.

3. By the decision accepting the abstention statement, the prosecutor shall be replaced with another prosecutor.

Article 27

Cases for substitution of a prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 19)

1. The chairperson of the prosecution office shall substitute the prosecutor when there are serious reasons related to his duty, pursuant to the law, as well as in the cases provided for by Articles 16 and 17, first paragraph, paragraphs “a”, “b”, “c”, “d” and “dh”. In other cases, the prosecutor is substituted only with his consent.

2. *Repealed.*

3. Rules prescribed for the abstention and substitution of the prosecutor shall also apply to the judicial police officer.

Article 28

Transfer of documents to another prosecution office

(Amended by Law no. 35/2017, dated 30.03.2017, Article 20)

1. If during preliminary investigations the prosecutor judges that the criminal offence is under the competence of a different court from the one where he carries out his functions, he shall promptly transfer the documents to the prosecution office attached to the competent court.

2. If the prosecutor who has received the documents judges that the prosecution office, which transferred the documents should proceed, he shall notify the General Prosecutor, who after examining the documents, shall establish which prosecution office must proceed and shall inform the prosecution offices concerned.

3. If the prosecutor deems that the criminal offence is under the competence of the Special Prosecution Office or is informed that this Prosecution Office is conducting investigation for the same fact and against the same person, he shall forward the acts to the Chief of the Special Prosecution Office, who after examining them, shall decide whether admitting the acts or resending them to the previous prosecution office. The latter has the obligation to accept the acts.

4. Investigative actions conducted before the transfer or the assignment, pursuant to paragraph 1 and 2, are valid and may be used in the cases and ways provided for by the law.

Article 29

Requesting documents from another prosecution office

(Amended by Law no. 35/2017, dated 30.03.2017, Article 21)

1. When a prosecutor is informed that preliminary investigations are being conducted by another prosecution office against the same person and for the same facts on which he is proceeding, he notifies without delay that prosecution office, requesting the transfer of documents.

2. If the prosecutor who has received the request does not agree with it, he shall inform the General Prosecutor, who, after receiving the necessary information, decides in conformity with the rules on the competence of the court, which prosecution office must carry on and shall notify the prosecution offices

concerned. The documents are promptly transferred to the assigned prosecution office by the other prosecution office.

3. If the prosecutor of the Special Prosecution Office is informed that preliminary investigations are being conducted against the same person and on the same fact he is proceeding with, without delays, he shall forward the acts to the Chief Special Prosecutor who pursuant to the rules on the competence, decides which Prosecution Office shall proceed. If he decides that the competence belongs to the Special Prosecution Office, he notifies the relevant Prosecution Office, which shall send the acts to him.

4. The preliminary investigations documents conducted by different Prosecution Offices are used in cases and manners provided by law.

CHAPTER III JUDICIAL POLICE

Article 30 Judicial police functions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 22)

1. Judicial police must also *ex officio*, get notice of criminal offences, prevent further consequences, search for their authors, conduct investigations and gather everything that serves the application of the criminal law.

2. Judicial police conducts every investigative action that has been ordered or delegated by the prosecutor.

3. The functions stipulated in paragraph 1 and 2 of this Article are conducted by the judicial police officers. The investigators of the National Investigation Bureau have the status of the judicial police officer.

Article 31 Services and sections of judicial police

(Amended by Law no. 35/2017, dated 30.03.2017, Article 23)

1. Judicial police functions are carried out:

- a) by judicial police officers belonging to authorities, which the law entrusts with the duty to conduct investigations from the moment they get notice of the criminal offence;
 - b) by judicial police sections set up in every district prosecution office and comprising judicial police personnel;
 - c) by the National Bureau of Investigation attached to the Special Prosecution Office;
- (ç by judicial police services as provided by law.

Article 32 Judicial police officers and agents

1. Judicial police officers are:

- a. chiefs, inspectors and other members of police of the Ministry of Public Order, to whom a special law recognizes this attribute;

- b. military police, financial police, forest police and any other police officers, to whom a special law recognizes this attribute;
2. Judicial police agents are:
- a. public order police personnel, to whom a special law recognizes this attribute;
 - b. military police, financial police and any other police personnel recognized by law, when on duty.
3. Persons, who are entitled by law to carry out the functions provided for by Article 30, within the boundaries of the service entrusted and pursuant to the respective attributes, are also judicial police officers and agents.

Article 33

Functional subordination of judicial police

(Amended by Law no. 35/2017, dated 30.03.2017, Article 24)

1. Judicial police shall respond in front of the prosecutor for the activity conducted during the criminal proceeding.
2. Judicial police shall execute the tasks assigned to them by the prosecutor and shall inform him immediately on their results.
3. The officers of the sections and of the services are not excluded from the activity of the judicial police, apart from the cases provided for in the law.
4. Courts and prosecution offices have under their direct control the sections' personnel and may make use of any judicial police service.

CHAPTER IV THE DEFENDANT

Article 34

Obtaining the defendant status

(Paragraph added to paragraph 1 by Law no. nr.8460, dated 11.02.1999,

Article 2;

amended by Law no. 35/2017, dated 30.03.2017, Article 25)

1. The person to whom a criminal offence is attributed shall obtain the defendant status with the notification of charge, which contains sufficient information [on the reasons] for taking him as a defendant. This document is notified to the defendant and to his lawyer.

If after taking a person as a defendant, new information arise that result in the modification of the charges or their completion, the prosecutor takes a decision [pursuantly] and notifies it to the defendant.
2. The defendant status shall be retained at any state and instance of the proceedings until the dismissal, acquittal or conviction decision has become final.
3. The defendant status is re-obtained if the dismissal decision is quashed or the court decides the annulment of the final decision and the review of the proceedings.

4. Repealed.

Article 34/a **Rights of the defendant**

(Added by Law no. 35/2017, dated 30.03.2017, Article 26)

1. The person under investigation or the defendant shall be entitled to:

- a) be informed in a shortest time possible in a language he understands, on the charge for which he is investigated as well as the grounds of the charges;
- b) use the language he speaks and understands or to use sign language as well as to be assisted by an interpreter, translator and facilitator in communication if his ability to speak and hear is limited;
- c) to remain silent or to introduce his defence freely as well as the right not to respond to certain questions;
(ç provide defence by himself or with the help of a defence lawyer elected by him;
- d) have a defence lawyer provided by the state if the defence lawyer is mandatory or he cannot afford one, pursuant to the provisions of this Code and the legislation into force on legal aid;
- dh) meet in private and to communicate with a defence lawyer representing him;
- e) have adequate time and facilities for the preparation of his defence;
- (ë right to access to the material of the case pursuant to the provisions of this Code;
- f) submit evidence supporting his defence;
- g) question witnesses, experts and other defendants during the trial;
- h) enjoy the other rights provided for in this Code.

2. Prior to the questioning for the first time or prior to the completion of the acts where his presence is mandatory pursuant to the law, the proceeding authority shall inform the defendant about the rights provided for in letters "a", "b", "c", "ç", "d", "dh" and "e", of paragraph 1 of this Article, providing him with the letter of rights in written form, duly signed by him.

3. The provisions and guaranties stipulated for the defendant shall also apply even to the person under investigation and to the person the criminal offences is attributed to, unless this Code provides otherwise.

Article 34/b **Rights of arrested or detained person**

(Added by Law no. 35/2017, dated 30.03.2017, Article 27)

1. The arrested or detained person, in addition to the rights provided for in letters "a", "b", "c", "ç", "d", "dh" and "e", of paragraph 1, of Article 34/a, of this Code, shall be entitled:

- a) to have a confidential meeting with his lawyer, before being questioned for the first time;
- b) to access the acts, necessary evidence and the grounds for his arrest or detention;
- c) to request a family member or another relative to be notified immediately about his arrest. If the arrested or the detained person is a foreign citizen, he shall be entitled to request the notification of the consular or diplomatic representation and, in case the person is without citizenship or a refugee, he shall be entitled to request the notification of an international organisation.
(ç to be promptly provided with the necessary medical care.

2. The proceeding authority shall notify the arrested or detained person promptly about the rights provided for in letters “a”, “b”, “c”, “ç”, “d”, “dh” and “e”, of paragraph 1, of Article 34/a, of this Code, providing him the letter of the rights in writing, duly signed by him. The person is entitled to keep the letter of rights.

Article 35

Assistance provided to a minor defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 28)

1. Legal and psychological assistance shall be provided to a minor defendant at any state and stage of the proceedings, in the presence of the parent, legal guardian or other persons requested by the minor and accepted by the proceeding authority.

2. The proceeding authority may carry out actions and draft documents, which require the presence of the minor, in absence of the persons stated in paragraph 1, when this is in the minor's interest or when the delay may seriously impair the proceeding, provided that it is always done in presence of the lawyer.

Article 36

Prohibition to use the defendant's statements as testimony

(Amended by Law no. 35/2017, dated 30.03.2017, Article 29)

1. Statements made by the defendant during the proceedings shall not constitute object of testimony.

Article 36/a

Statements of the collaborator of justice

(Added by Law no. 35/2017, dated 30.03.2017, Article 30)

1. A collaborator of justice shall be questioned as a witness. In case of false statements or testimony, he shall be held criminally liable pursuant to the law.

2. The statements of the collaborator of justice are evaluated pursuant to the criteria established by paragraph 3 of Article 152 of this Code.

Article 37

Self-incriminating statements

1. If a person who is not taken as a defendant makes statements before the proceeding authority, that raise suspicion of guilt against him, the proceeding authority shall interrupt the questioning and warn him that, following such statements, an investigation may be carried out on him, and advise him to appoint a lawyer. Statements previously made by the person cannot be used against him.

Article 37/a

Cooperation with justice

*(Added by Law no. 9276, date 16.09.2004, Article 3;
amended by Law no. 35/2017, dated 30.03.2017, Article 31)*

1. The defendant accused of a crime punishable not less than 7 years imprisonment, in the maximum term, committed in collaboration, or of any of the criminal offences referred to in letter “a” of paragraph 1, of Article 75/a, of this Code, may acquire the status of collaborator of justice, by signing the collaboration agreement with the prosecutor. The agreement, which contains the terms of collaboration may be stipulated at any stage or phase of the proceedings, even after the criminal decision has become final and is put into execution.
2. The agreement is stipulated if the defendant testifies, with no reserves or conditions, on all facts and circumstances that he is aware of, due to his participation in the criminal activity. His testimony must constitute a fundamental evidence of guilt as to the prove of the facts and of their authorship, as well as for the prevention of serious crimes and for repairing the damages caused by them. The defendant, in his testimony, shall identify all assets having a criminal origin, which are in his possession and of his collaborators. The above information shall be provided within 30 days from the date of signing the agreement.
3. The collaborator of justice is entitled to request special protection for himself and his family, pursuant to the legislation on the protection of witnesses and collaborators of justice.
4. In cases of collaboration with justice, the prosecutor shall request to the court the reduction of the penalty or the exclusion of the collaborator of justice from punishment. When the agreement is reached during the execution of the decision, the authority to review the request of the prosecutor shall belong to the court which issued the decision or to the court of the place of execution. The reduction or the exclusion from punishment shall be in proportion to the contribution given by the collaborator of justice regarding the facts and circumstances indicated in paragraph 2 of this Article. The provisions of paragraph 7 of Article 28 of the Criminal Code and the rules of paragraph 1 of Article 480 of this Code shall apply.
5. The collaboration agreement shall be revoked if the collaborator of justice breaches the terms of the collaboration agreement, conceals information on assets or facts of justice interest, or renders false statements or testimony. The rules of paragraph 1, of Article 480 of this Code shall apply *mutatis mutandis*.

Article 37/b

Content of the agreement

(Added by Law no. 35/2017, dated 30.03.2017, Article 32)

1. The agreement with the collaborator of justice shall contain:
 - a) the identity of the prosecutor and the personal data of the collaborator of justice;
 - b) the fact that the collaborator of justice has the obligation to testify in the witness capacity;
 - c) his obligation to provide full information, without any reserve or condition for all the facts and the circumstances set out in paragraph 2 of Article 37/a of this Code, no later than thirty days of the date of signing the agreement;
 - (ç the warning about the revocation of the agreement and the criminal liability in cases provided for in paragraph 5 of Article 37/a of this Code;
 - d) the right of the collaborator to request to reach a guilty plea agreement with the prosecutor and the imposing of the sentence, pursuant to the Articles 406/d seq. of this Code;

- dh) the obligation of the prosecutor to ask the court to reduce the sentence or his exclusion from punishment in proportion to the extent of his contribution in the collaboration with justice;
 - e) the right of the collaborator to request special protection pursuant to paragraph 3 of Article 37/a of this Code;
- (ë the signature of the prosecutor, collaborator of justice and lawyer, when present.
2. The declarations of the collaborator of justice along with the collaboration agreement shall be part of the preliminary investigation dossier.

Article 38

General rules for questioning

(Amended by Law no. 35/2017, dated 30.03.2017, Article 33)

1. The defendant, even if under precautionary detention measure or detained for any other reason, participates freely in the questioning, except in cases when measures must be taken to prevent the risk of escaping or violence.
2. Methods or techniques which may influence the freedom of determination or alter the capacity to recall and evaluate facts shall not be used, even with the consent of the defendant.
3. Prior to questioning, the defendant shall be asked expressly whether he has understood his rights, provided in written form, pursuant to Articles 34/a and 34/b of this Code. If the defendant is not informed, since the beginning, about his rights pursuant to the provisions of this Code, his statements may not be used.

Article 39

Questioning on the merits of the case

1. The proceeding authority shall clearly and precisely explain the defendant the fact attributed to him, communicate the evidence against him/her and, when this does not compromise the investigations, indicate him the sources [of evidence].
2. The proceeding authority shall invite him to explain everything he deems useful for his defence and asks him direct questions.
3. If the defendant refuses to answer, this shall be recorded in the minutes. The minutes shall also mention, if necessary, any physical characteristics and possible distinguishing marks of the defendant.

Article 40

Ascertainment of the personal identity of the defendant

1. When the defendant appears, the proceeding authority asks him to state his personal details and anything else which may be useful for his identification, warning him about the consequences in case of refusal or providing of false personal data, except when this statement implies self-incrimination.
2. Inability to attribute to the defendant his accurate personal details, does not prevent the proceeding authority to perform actions, when physical identity of the person is certain.
3. False personal details attributed to the defendant are corrected by a decision of the proceeding authority.

Article 41

Ascertainment of the age of the defendant

1. At any state and stage of the proceeding, when there are reasons to believe that the defendant is a minor, the proceeding authority makes the necessary ascertainment and when it is the case, orders expert examination.
2. When, after the verification and expert examination, there are still doubts on the age of the defendant, he is presumed a minor.

Article 42

Ascertainment on the character of a minor defendant

1. The proceeding authority gathers information on the living, family and social conditions of the minor defendant for clarifying his culpability and the degree of liability, to evaluate the social importance of the fact and also to impose appropriate criminal sanction.
2. The proceeding authority gathers information from persons who had relations with the minor and hears the experts' opinion.

Article 43

Ascertainment on the liability of the defendant

1. When there are reasons to believe that, because of mental disorder caused after the event, the defendant is not able to participate in the proceedings, the court orders expert examination, even *ex officio*.
2. During the expert examination, the court, upon request of the lawyer, acquires evidence that may lead to the acquittal of the defendant and, if delay may be prejudicial [for the evidence], any other evidence requested by the parties.
3. When the need to ascertain the criminal liability arises during the preliminary investigation, the prosecutor, either *ex officio* or on the request of the defendant or his lawyer orders expert examination. In the meanwhile, the prosecutor performs only those actions, which do not require the conscious presence of the defendant. If delay may be prejudicial [for the evidence], evidence may be acquired if circumstances of pre-trial admission of evidence exist.

Article 44

Suspension of proceedings due to defendant's lack of criminal liability

(Amended by Law no. 35/2017, dated 30.03.2017, Article 34)

1. When it is proved that the mental condition of the defendant is as such as to impede his intentional participation in the proceedings, the proceeding authority, decides the suspension of the proceedings, but always when no decision of acquittal or dismissal must be taken. The proceeding authority, in the decision of suspension, assigns to the defendant a special guardian, who is given the rights of a legal representative.
2. Repealed.
3. The suspension does not prevent the proceeding authority to acquire evidence that may lead to the acquittal of the defendant and, when delay poses danger, any other evidence required by the parties. The

special guardian has the right to participate in actions that must be performed about the character of the defendant as well as in those actions that the defendant is entitled to be present.

Article 45

Revoking the decision of suspension

1. The decision of suspension is revoked when it is proved that the mental condition of the defendant allows his conscious participation in the proceedings or when the defendant must be declared innocent or the case dismissed.

Article 46

Compulsory medical measures

1. In any case, when the mental condition of the defendant shows that he must be treated, the court decides, even *ex officio*, the hospitalization of the defendant in a psychiatric institution.

2. When it has been or should be decided a compulsory medical measure to be taken towards the defendant, the court orders that the defendant is held in a psychiatric institution.

3. During preliminary investigations, the prosecutor requests the court to decide on the hospitalization of the defendant in a psychiatric institution and, if delay may be prejudicial, orders the temporary hospitalization until the court takes a decision.

Article 47

Death of the defendant

1. When the death of the defendant is proved, the proceeding authority at any state and stage of the proceeding, after hearing the lawyer, decides on the dismissal of the case.

2. The decision does not prevent conducting criminal prosecution for the same facts and against the same person when later it is proved that he has not died.

CHAPTER V

THE DEFENDANT'S LAWYER

Article 48

Retained lawyer

1. The defendant is entitled to appoint up to two lawyers.

2. The appointment is made by means of a statement before the proceeding authority or by means of a document given to the lawyer or sent to him by registered mail.

3. The appointment of the lawyer of a person who is detained, arrested or convicted to imprisonment, may be done by his relatives in the forms provided by paragraph 2, unless he has appointed one by himself.

Article 49

Mandatory defence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 35)

1. The proceeding authority shall provide immediately a lawyer paid by the State to the defendant, who has not appointed or no longer has a retained lawyer, if he:

- a) is under eighteen years of age;
- b) is deaf and mute;
- c) has limited capabilities which hinder his ability to defend himself;
(ç is charged with a criminal offence, punishable by not less than 15 years' imprisonment, in the maximum term;
- d) is charged with a criminal offence pursuant to letters "a" and "b", of Article 75/a, of this Code;
- dh) has been declared escaped or in absentia upon a court decision;
- e) the arrested or the detained person is questioned;
(ë in the cases provided for by paragraph 5 of Article 205, or paragraph 1, of Article 296 of this Code;
- f) in every other case provided for by law.

2. If reasons for mandatory defence, exist, pursuant to this Article, the proceeding authority shall assign immediately a lawyer to the defendant. The lawyer shall assist the defendant during all phases of the proceedings, as long as the conditions provided in paragraph 1 of this Article exist.

3. The appointed lawyer, pursuant to this Article, is chosen by the proceeding authority out of the list made available by the Bar Association.

4. If the court, the prosecutor and the judicial police must carry out an action requiring the presence of a lawyer and the defendant does not have one, they shall inform the appointed lawyer on such action.

5. If the presence of the lawyer is required and the retained or appointed lawyer has not been provided, has not shown up or has withdrawn from the defence, the court or prosecutor shall apply paragraph 4 of Article 350 of this Code. If his absence is justified, the court or the prosecutor may appoint another lawyer in substitution, who shall exercise the rights and takes over the duties of the lawyer.

6. The assigned lawyer shall cease his functions if a retained lawyer is appointed.

7. When the defence cannot be secured pursuant to this provision and paragraph 3 of Article 49, it is guaranteed by the institutions providing free legal aid, pursuant to the legislation in force.

Article 49/a

The defendant without sufficient financial means

(Added by Law no. 35/2017, dated 30.03.2017, Article 36)

If instances for mandatory defence do not exist and the defendant who has no sufficient financial means requests a defence lawyer, the proceeding authority appoints the defence lawyer from the list made available by the institutions of free legal aid. The expenses of the defence shall be covered by the State.

Article 49/b

Incompatibility to act as a defence lawyer

(Added by Law no. 35/2017, dated 30.03.2017, Article 37)

A defence lawyer shall not be:

- a) the victim or her close relative pursuant to the Article 16 of this Code;
- b) the person called as a witness in the same proceeding;
- c) the person who is or was in the same proceeding a co-defendant, judge or prosecutor.

Article 50

Extension of the defendant's rights to the defence lawyer

1. The defence lawyer enjoys the rights the law recognizes to the defendant, except those preserved to the latter in person.
2. The defence lawyer has the right to communicate freely and in private with the detained, arrested or convicted person, to have prior notice of the investigative actions conducted in the presence of the defendant and to participate to them, to ask questions to the defendant, witnesses and experts, to have access to all the materials of the case at the conclusion of the investigations.
3. The defendant may, by an expressed statement, declare invalid an action performed by the defence lawyer, before the court has issued a decision in relation to such action.

Article 51

Replacement of the defence lawyer

1. The defence lawyer, in case of impediment and for as long as it lasts, may with the consent of the defendant, appoint a substitute defence lawyer.
2. The substituting defence lawyer exercises the rights and undertakes the duties of the defence lawyer.

Article 52

Guarantees for the defence lawyer

(Amended by Law no. 35/2017, dated 30.03.2017, Article 38)

1. Examinations and searches in the office of a defence lawyer are allowed only:
 - a) when he or other persons who constantly carry out their activity in the same office, are defendants and only for the purpose of proving the criminal offence attributed to them;
 - b) to discover traces or material evidence of the criminal offence or to search for items or persons specifically defined.
 - c) in cases when the defence lawyer is in the conditions of *flagrante delicti* or pursue of escaping, pursuant to paragraph 1 of Article 298 of this Code.
2. Prior to conducting an examination, search or a sequestration in the defence lawyer's office, the proceeding authority notifies the Directing Board of the Bar Association so that one of its members may have the possibility to be present in these activities. Except for cases of *flagrante delicto*, the proceeding authority shall postpone the examination, search or sequestration until the arrival of the assigned member, but no longer than two hours after the Bar Association has been informed. In any case, a copy of the act shall be sent to the Directing Board of the Bar Association.

3. Searches, examinations and sequestrations in the defence lawyers' offices, pursuant to letters "a" and "b" of the first paragraph of this Article, are performed by the judge in person, whereas during the preliminary investigations they are performed by the prosecutor, based on an authorizing decision of the court.
4. Interceptions of conversations or communications between defence lawyers and their assistants, or between defence lawyers and the persons they defend are not allowed.
5. Any form of inspection of the mail between the defendant and his defence lawyer is prohibited, except when they constitute material evidence of the criminal offence object of investigations.
6. Inspections, searches, sequestrations, or interceptions of conversations or communications carried out in violation of the provisions above mentioned may not be used.

Article 53

Defence lawyer interview with the defendant in pre-trial detention

1. The person arrested in flagrante or under detention has the right to speak with his defence lawyer immediately after arrest or detention.
2. The defendant under pre-trial detention has the right to speak with his defence lawyer since the moment of execution of the precautionary measure.

Article 54

The defence of the co-defendants by the same lawyer

1. The defence of more defendants may be undertaken by one defence lawyer, if there are no conflicts of interests among the co- defendants.
2. When the proceeding authority ascertains the existence of a conflicts of interest among the co-defendants, declares such conflict of interest by decision and makes the necessary [defence lawyer] substitutions.

Article 55

Refusal, withdrawal or revocation of the defence lawyer

1. The defence lawyer who does not accept the task he has been entrusted with or withdraws from it, promptly notifies the proceeding authority and the one who has appointed him.
2. Refusal is effective from the time when it is notified to the proceeding authority.
3. Withdrawal has no effects until the party is assisted with a new retained defence lawyer or with a defence lawyer assigned *ex officio* and until the time limit given to the substituting defence lawyer to examine the documents and evidence has expired.
4. Paragraph 3 is also applicable in the case of revocation.
5. The withdrawal of the representative of the civil plaintiff and civil defendant does not prevent the continuation of the proceedings.

Article 56

Responsibility for abandoning or refusing the defence

1. The proceeding authority refers to the Bar Association Directive Board cases of abandonment, refusal of the defence and defence lawyers' breaches of duty to be faithful and honest.
2. The Bar Association Directive Board has the right to take disciplinary sanctions in case of abandonment or refusal of the defence when assigned *ex officio*.
3. When the Bar Association Directing Counsel considers the abandonment or the refusal lawful on grounds of infringement of the defence rights, the disciplinary sanctions shall not be issued unless the court has found an infringement of the defence rights.

Article 57

Time limit for the substitute defence lawyer

1. In case of withdrawal, revocation and conflicts of interest among defendants, sufficient time shall be given to the new defence lawyer for the defendant or the one assigned as a substituting counsel to examine the documents and evidence.

CHAPTER VI

VICTIM, ACCUSING VICTIM, CIVIL PLAINTIFF AND CIVIL RESPONDENT

(Amended by Law no. 35/2017, dated 30.03.2017, Article 39)

Article 58

The rights of the victim of the criminal offence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 40)

1. The victim of a criminal offence has the right:
 - a) to require the prosecution of the perpetrator;
 - b) to seek medical care, psychological assistance, counselling and other services provided by the authorities, organizations or institutions responsible for assisting the victims of criminal offences;
 - c) to communicate in his or her own language and to be assisted by a translator and an interpreter of the language of signs or communication facilitator for people who are not able to speak and hear;
 - (ç to choose a defence lawyer and when it is the case to receive free legal aid pursuant to the legislation into force;
 - d) to seek at any time information about the status of the proceedings, and to be acquainted about the acts and evidence, without breaching the principle of investigatory secret;
 - dh) to require to receive the evidence and submit other requests to the proceeding authority;
 - e) to be informed about the arrest of the accused person and his release under the conditions stipulated in this Code;
 - (ë to be informed for the non-initiation of the proceeding, the dismissal of the case, the initiation and the completion of the adjudication;
 - f) to make an appeal in the court against the decision of the prosecutor for the non-initiation of the proceeding and the decision of the prosecutor or of the judge of the preliminary hearing to dismiss the charge or the case;
 - g) to ask a compensation for the damage and be accepted as a civil plaintiff in the criminal process;

- h) to be excluded, in the cases provided for by the law, from the payment of every expense for receiving the acts and judicial fee for the submission of the lawsuit connected with the status of the victim of the criminal offence;
 - i) to be summoned in the preliminary hearing and in the first hearing;
 - j) to be heard by the court even when none of the parties requires him to be summoned as a witness;
 - k) exercise other rights provided for by this Code.
2. The proceeding authority shall immediately notify the victim on the rights referred to in paragraph 1 of this Article and record the notification about it.
3. The victim who does not have legal capacity to act shall exercise rights through his/her legal representative or the legal guardian, unless this is not in the interest of the victim. When incompatibility is noticed between the interests of the victim and the ones of the legal representative or the guardian, the court appoints a special guardian in compliance with the provisions of the Family Code.
4. Heirs of the victim defined by this Code shall have the rights provided in paragraph one, letters: a), e), ë), f), gj) and k) of this Article. If the heir of the victim is a child, he shall be represented by the legal guardian.

Article 58/a

The rights of the minor victim

(Added by Law no. 35/2017, dated 30.03.2017, Article 41)

1. The minor victim of a criminal offence, besides the rights provided for in Article 58 and other provisions of this Code and the special legislation on the minors, shall have the right to:
- a) be accompanied by one person of his/her trust;
 - b) confidentiality of his/her personal data;
 - c) ask through the representative that the hearing takes place without the presence of the public.
2. The proceeding authority shall treat the minor victim of the criminal offence considering her age, character, and other circumstances, in order to avoid the harmful effects on her future education and development.
3. If there is the possibility that the victim is a minor and the age is unknown, he or she will be presumed to be a minor.
4. The minor victim shall be questioned without delay by people specialized for this purpose. When possible and appropriate, the conversation shall be recorded with audio-visual recording tools, pursuant to the provisions of this Code. This recording may be used as evidence in the criminal proceeding and shall be evaluated along with other evidence pursuant to the criteria provided by Article 361/a, paragraph 4 of this Code. When the minor victim is under 14 years of age, the conversation is held in premises adjusted for him.

Article 58/b

The rights of the sexually abused victim and human trafficking victim

(Added by Law no. 35/2017, dated 30.03.2017, Article 42)

1. Besides the rights provided for in Article 58 and 58/a of this Code, the sexually abused victim and the human trafficking victim shall also be entitled to:

- a) be heard without delay by a judicial police or prosecutor of the same gender;
- b) refuse to answer questions regarding his/her private life obviously not related to the criminal offence;
- c) request to be heard during the trial through audio-visual tools pursuant to the provisions of this Code.

Article 59

The accusing victim

(Amended by law no. 10054 dated 29.12.2008, Article 1;

amended by Law no. 35/2017, dated 30.03.2017, Article 43)

1. One who is aggrieved by the criminal offences provided for by Articles 90, 91, 92, 112, first paragraph, 119, 119/b, 120, 121, 122, 125, 127 and 254 of the Criminal Code, has the right to submit a request in the court and to take part in the trial as a party to prove the charge and claim the reimbursement of damages.
2. The prosecutor participates in the trial of these cases and, where appropriate, requests for the conviction or acquittal of the defendant.
3. If the accusing victim or his/her defence lawyer does not appear in the hearing without reasonable grounds, the court decides the dismissal of the case.
4. The accusing victim who has no legal capacity to act, shall exercise rights recognized by law through her/his legal guardian.
5. When some victims of the same case submit a request to the court pursuant to Article 59 of this Code, their requests are joined in one single adjudication."

Article 60

The request of the accusing victim

(Amended by Law no. 35/2017, dated 30.03.2017, Article 44)

1. The accusing victim request for trial is submitted to the court secretary. The request is invalid if it does not contain:
 - a) the personal data of the accusing victim and his/her correct address;"
 - b) personal data of the accused person and his address;
 - c) name and surname of the representative and the power of attorney;
 - (ç indication of the grounds that justify the request as well as the evidence where it is based on;
 - d) endorsement of the accusing victim or his/her representative.
2. Such request shall be notified to the person accused and to the prosecutor.

Article 61

Civil lawsuit in criminal proceedings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 45)

1. One who has suffered injury by the criminal offence or his/her heirs may file a civil lawsuit in the criminal proceedings against the defendant or the person liable to pay damages (defendant), claiming the restitution of the property and reimbursement of the injury.

Article 62

Time limit for the legal standing of the civil plaintiff

1. Legal standing of the plaintiff may be decided by the proceeding authority prior to commencing of the trial.
2. The time limit provided for by paragraph 1 may not be extended.
3. The court on the application of the parties or *ex officio* may order the severance of the civil lawsuit and its submission to the civil division (court), if its trial complicates or impedes the criminal process.

Article 63

Securing the civil lawsuit

1. Upon the request of the plaintiff, the proceeding authority may order the sequestration of assets of the defendant or of the person liable to pay damages, in order to secure the property restitution and reimbursement of damages. Such measure shall stay valid until the conclusion of the case.

Article 64

Withdrawal from the civil lawsuit

1. Withdrawal from the civil lawsuit may be done at any state and stage of the proceedings by means of a personal statement of the plaintiff or his/her representative in the hearing or through a written document filed to the court secretariat and notice served to other parties.
2. Failure of the civil plaintiff to submit his/her conclusions at the closing statement or to file a lawsuit before the civil court, is deemed as a withdrawal from the civil lawsuit.
3. In case of waiver of the civil lawsuit trial, as provided for by Article 1 and 2, the criminal court may not recognize the expenses and damage caused to the defendant and the person liable to pay damages from the intervention of the plaintiff. The lawsuit to claim them can be filed with the civil court.
4. The waiver does not prevent filing the lawsuit before the civil division court.

Article 65

Summoning of the civil plaintiff

1. The one who is liable in a civil trial for the offence committed by the defendant may be summoned in the criminal proceedings on the application of the civil plaintiff. The defendant who has been acquitted or whose case has been dismissed may be summoned as defendant for the offences of other co-defendants.
2. The application for summoning the person liable for damages must be made before the commencing of the trial.
3. The court issues summon.

Article 66

Voluntary intervention of the civil defendant

1. When the legal standing of the civil plaintiff is established, the party sued may voluntarily apply in writing to intervene in the proceedings prior to commencing of the trial. The court decides on the application after hearing the parties.
2. The time limit provided for by paragraph 1 may not be extended.
3. The intervention of the party sued loses effects when civil lawsuit is withdrawn.

Article 67

Representative of private parties

1. The accusing victim, the civil plaintiff and the civil defendant are entitled to be represented in the proceedings through a legal representative or a representative provided with a power of attorney.
2. For all procedural purposes, the address of the accusing victim, of the plaintiff and civil defendant is deemed to be that of his/her representative.
3. The representative, in case of impediment and for as long as it lasts, may assign, with the consent of the represented party, a substitute.

Article 68

Rulings on civil claim

1. The court, where appropriate, may accept the civil claim, in whole or in part, or may reject it.
2. If a decision of acquittal is issued based on the fact that the act is not provided as a criminal offence or when the criminal case is dismissed, the civil claim is not adjudicated.
3. If the civil claim is rejected during the criminal proceedings, it cannot be raised again before the civil court.

TITLE II

JURISDICTION AND COMPETENCE

CHAPTER I

JURISDICTION

Article 69

Criminal jurisdiction

1. Criminal jurisdiction is exercised by criminal courts pursuant to the rules provided for by this Code.
2. Criminal court hears everything that is necessary to take a decision and it decides pursuant to the rules provided by law.

Article 70

Consequences of a criminal decision to civil and administrative trial

1. A final criminal decision is mandatory for the court adjudicating the civil consequences of the offence only with regard to whether the criminal offence has been committed and whether it has been committed by the adjudicated person.
2. A criminal decision that incidentally settles a fact connected to a civil, administrative or criminal case has no mandatory consequences in any other proceedings.

Article 71

Consequences of civil and administrative proceedings to the criminal proceedings

1. A final civil court decision is mandatory for the court that tries the criminal case only pertaining to the fact whether the offence was committed or not, but not about the guilt of the defendant.
2. When the criminal decision depends on the settlement of a dispute pertaining to marital status or citizenship, on which proceedings have commenced before the competent court, the criminal court may even *ex officio* decide to suspend the trial until the disagreement is settled by a final decision. The suspension does not prevent the performing of urgent actions.

Article 72

Lack of jurisdiction

1. Lack of jurisdiction may be raised, even *ex officio*, at any state and instance of the trial. The court issues a decision and orders, where appropriate, the transfer of the documents to the competent authority.
2. When the lack of jurisdiction is raised during the preliminary investigations, the prosecutor of the case shall submit the documents to the competent court to rule on the matter.

Article 73

Conflicts of jurisdiction

(Amended by Law no. 35/2017, dated 30.03.2017, Article 46)

1. When there are conflicts of jurisdiction, the court that raises it takes a decision, which it, along with a copy of the necessary documents for its settlement, transfers to the High Court, indicating the parties and defence lawyers.
2. Provisions of section IV of Chapter II under this title shall apply. The High Court shall decide within 30 days from the arrival of acts.

CHAPTER II COMPETENCE

SECTION I SUBJECT MATTER COMPETENCE

Article 74

Competence of judicial district court

(Amended by Law no. 9911, dated 05.05.2008, Article 3;

amended by Law no. 35/2017, dated 30.03.2017, Article 47)

1. Judicial district court is competent to adjudicate criminal offences, except those which fall under the competence of Anti-corruption and Organised Crime Court.

Article 75

Military Court Competence

(Repealed by Law no. 9911 dated 05.05.2008, Article 4)

Article 75/a

Jurisdiction of the Anti-Corruption and Organised Crime Court

(Amended by Law no. 9276, dated 16.09.2004, Article 4;

amended by Law no. 9911, dated 05.05.2008, Article 5;

amended by Law no. 145/2013, dated 02.05.2013, Article 1;

amended by Law no. 21/2014, dated 10.03.2014, Article 1;

amended by Law no. 99/2014, dated 31.07.2014, Article 1;

amended by Law no. 35/2017, dated 30.03.2017, Article 48)

The Anti-Corruption and Organised Crime Court shall adjudicate:

- a) the crimes provided for by Articles 244, 244/a, 245, 245/1, 257, 258, 259, 259/a, 260, 312, 319, 319/a, 319/b, 319/c, 319/ç, 319/d, 319/dh, 319/e,
- b) any crime committed by structured criminal group, criminal organization, terrorist organization and armed gang pursuant to the provisions of this Code.
- c) criminal charges against the President of the Republic, Speaker of Parliament, Prime Minister, member of the Council of Ministers, judge of the Constitutional Court and the High Court, General Prosecutor, High Justice Inspector, Mayor, member of the parliament, deputy minister, member of the High Judicial Council and High Prosecutorial Council, and directors of independent and central institutions defined in the Constitution or in law.

(ç criminal charges against above former officials, when the offence was committed on duty.”

Article 75/b

(Amended by Law no. 35/2017, dated 30.03.2017, Article 49)

1. The High Court adjudicates appeals for violation of law, in order to ensure the uniform interpretation, the development and the revision of the judicial practice and exercises other competences, pursuant to the provisions of this Code.

2. Repealed.

SECTION II
TERRITORIAL JURISDICTION

Article 76

General rules

1. Territorial jurisdiction is determined, in order, by the venue where the criminal offence is committed or is attempted to be committed or the venue where the consequence has occurred.
2. If the venue indicated in paragraph 1 is not known, the jurisdiction belongs, in order, to the court of the residing place or the domicile of the defendant.
3. If the jurisdiction cannot be determined in this way, it belongs to the court where the prosecution office which recorded the criminal offence first, is placed.
4. Rules prescribed in the above paragraphs shall also apply during preliminary investigations.

Article 77

Jurisdiction for criminal offences committed abroad

1. If the offence is committed completely abroad, the jurisdiction is determined, in order, by the residing place, domicile, and place of arrest or surrender of the defendant. In case of several defendants, the proceedings shall be carried on by the court, which is competent for most of them.
2. If it cannot be determined in the ways stipulated in paragraph 1, the jurisdiction belongs to the court of the place where the prosecution office who has recorded the criminal offence for first is located.
3. If the criminal offence is partly committed abroad, the jurisdiction is determined pursuant to the general rules pertaining to territorial jurisdiction.

Article 78

Jurisdiction on proceedings against judges and prosecutors

1. Proceedings in which a judge or a prosecutor is a defendant or a victim of the criminal offence which, pursuant to the rules of this chapter, would fall under the jurisdiction of the district court where the judge or the prosecutor exercises his/her functions or did exercise them at the time when the offence was committed, are under the jurisdiction of the court which has territorial jurisdiction and which is located in the centre of another adjacent district, except when in this district the judge or the prosecutor has come afterwards to exercise his/her functions. In the latter case, another court, which is the closest in distance to the court where the judge or the prosecutor exercised his/her functions at the time when the criminal offence was committed, has the jurisdiction.

SECTION III

JURISDICTION AS A RESULT OF JOINDER OF CONNECTED PROCEEDINGS

Article 79

Joinder of proceedings cases

1. The proceeding organ may decide to join the proceedings:
 - a) when a criminal offence under investigation has been committed by several persons in collaboration among them or when several persons have independently caused the commitment of the criminal offence;

- b) when a person is accused of several criminal offences.
- c) when a person is accused of more offences, some of which are committed to accomplish or conceal others or to ensure to the perpetrator or other persons unlawful benefits or impunity.

Article 80

Joinder of proceedings under the jurisdiction of different courts

(Amended by Law no. 35/2017, dated 30.03.2017, Article 50)

1. In cases of linked proceedings, which cannot be severed, one or more of which are under the competence of Anti-Corruption and Organised Crime Court and other proceedings under the competence of the other first instance courts, the Anti-Corruption and Organised Crime Court shall be competent. This rule shall apply also in the case of minor defendants. In such a case, the court applies the rules of the adjudication for minors.”

2. Repealed.

Article 81

Boundaries on joinder of criminal offences committed by minors

(Amended by Law no. 35/2017, dated 30.03.2017, Article 51)

1. When some of the connected proceedings fall under the jurisdiction of the ordinary court, and the others under the relevant sections of court that tries cases against minors, the latter is competent for all the proceedings, except in cases when the court deems that they must be separated.

2. When defendant was an adult at the time of the trial, but he was a minor at the time when he committed one or more offences, the case is tried by the relevant sections that tries cases against minors.

Article 82

Territorial jurisdiction determined by the connection of proceedings

1. Territorial jurisdiction for connected proceedings, which several courts have the same subject matter jurisdiction, the competent court is the one which has jurisdiction over the most serious criminal offence and if offences are equally serious, to the competent court for the offence that was recorded first.

2. Crimes are considered more serious than misdemeanours. Amongst crimes or misdemeanours, is deemed as most serious the criminal offence which provides for the longest maximal sentence or, when maximum sentences are equal, the longest minimum sentence. If an imprisonment and fine sentence is provided, the fine sentence is taken into account only when imprisonment sentences are equal.

SECTION IV

RULINGS IN CASE OF LACK OF JURISDICTION

Article 83

Non-jurisdiction

1. Lack of subject matter jurisdiction may be raised, also *ex officio*, at any state and instance of the proceedings.

2. Lack of territorial jurisdiction, including the one resulting from joinder of connected proceedings, may be raised or challenged only before the initiation of the trial hearing.

Article 84

Non-jurisdiction declared during preliminary investigation

(Amended by Law no. 35/2017, dated 30.03.2017, Article 52)

1. When during the preliminary investigations or during their conclusion the prosecutor ascertains lack of jurisdiction for any reasons, he transfers the documents to the prosecutor attached to the competent court.
2. If the prosecutor declares the non-competence, he shall immediately inform both courts. The court shall, within three days upon receiving the prosecutor's notification, transmit to the competent court the acts of the preliminary investigation conducted until that moment before that court.

Article 85

Non-jurisdiction declared at the first instance trial

1. If at the first instance trial, the court deems that the proceeding is under the jurisdiction of another court, it declares by decision its non-competence for any reason and orders the transfer of documents to the competent court.

Article 86

Court of Appeal and High Court decision on competence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 53)

1. If the court of appeal ascertains that the court first instance had no subject matter competence, it quashes the appealed decision and transfers the case to the competent court.
2. The High Court decision on the competence is mandatory, except when new facts arise that lead to a different legal definition, which makes competent another court of a higher level.

Article 87

Evidence obtained by a non-competent court

(Amended by Law no. 35/2017, dated 30.03.2017, Article 54)

1. Failure to comply with the provisions on competence does not result in evidence non-utility.
2. Statements made before a court, which did not have subject matter competence, if repeated, may only be used to rebut the content of the deposition.

Article 88

Precautionary measure issued by a non-competent court

1. Precautionary measures issued by a court, which at the same time or afterwards is declared as a non-competent court on any ground, lose their effects, if the competent court does not decide on the precautionary measures within ten days of receiving the documents.

SECTION V

CONFLICTS OF JURISDICTION

Article 89

Cases of conflicts

(Amended by Law no. 35/2017, dated 30.03.2017, Article 55)

1. There is a conflict, in any state and instance of the proceedings, if two or more courts concurrently take or refuse to admit for adjudication the same charge attributed to the same person.
2. Conflicts among prosecution offices of the general jurisdiction during the phase of the preliminary investigations shall be settled by the higher-ranking prosecutor. In cases of conflicts during the preliminary investigations between the Special Prosecution Office and another prosecution office, the competence and the jurisdiction of the first shall prevail. The provisions of Articles 28 and 29 of this Code shall apply.
3. During preliminary investigations, no conflict of territorial jurisdiction because of connected proceedings may be raised.

Article 90

Presentation of the conflict

1. The conflict may be presented by the prosecutor before any of the courts in conflict or by the defendant and the private parties. A written and reasoned request is submitted to the secretary of any of the courts in conflict, to which all necessary documentation is attached.
2. The court which raises the conflict case takes a decision, by which it submits to the High Court a copy of the necessary documents for its settlement, indicating the parties and their defence lawyers.
3. The court that has issued the decision promptly notifies the court in conflict. expedition

Article 91

Settlement of the conflicts

1. The conflicts are settled by decision of the High Court. The court obtains all information, acts and documents that are deemed necessary.
2. Notice of the decision is immediately served to the courts in conflict, to the respective prosecution offices, to the defendant and the private parties.
3. Conflicts on subject matter competence within the same court are not allowed.

SECTION VI

JOINDER AND SEVERANCE OF CASES

Article 92

Joinder of cases

1. Cases which are before the same court and in the same state and instance may be joined, if this does not prejudice the expedition of their settlement:
 - a) in cases provided for by Article 79;

- b) in cases of criminal offences committed by more persons against each other;
- c) in cases when the evidence of a criminal offence or its circumstance impacts the evidence of another criminal offence or its circumstance.

Article 93

Severance of proceedings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 56)

1. The severance of the proceedings may be decided also *ex officio* only if this does not result in a prejudice to the proving of facts, in the following cases:
 - a) when proceedings have been suspended for a defendant or more, or for one or more charges;
 - b) when one or more defendants have not appeared in court because of the invalidity of the summoning, their inculpable lack of knowledge of the summons or because of lawful impediments;
 - c) Repealed;
 - (ç when the judicial examination for one or more defendants or for one or more charges is complete, whereas for the other defendants or for the other charges it is necessary to conduct other activities, exception made for the case of a charge for criminal offence in collaboration.
2. In addition to the cases provided for by paragraph 1, the severance of cases may also be decided with the consent of the parties, when the court deems it useful for the purposes of expedite trial.

SECTION VII

TRANSFER OF PROCEEDINGS

Article 94

Reasons for transferring

1. At any at any stage and instance of the proceedings, if the public security or the freedom of determination of any of the parties is impaired by serious local conditions, which may prejudice the hearing of the trial and are unavoidable in any other ways, the High Court, on the reasoned request of the prosecutor attached to the court at issue or on the request of the defendant, shall transfer the proceedings to another court.

Article 95

Request for transfer

1. The request for transfer is submitted, along with the related documents, to the secretary of the competent court and notice is served to other parties within seven days of submission.
2. The defendant's request is signed by him in person or by his/her special representative.
3. The court transfers the request immediately to the High Court, along with possible documents and remarks.
4. Failure to comply with the forms and time limits provided for by paragraphs 1 and 2 constitute grounds for request rejection.

Article 96
Consequences of the request

1. The submission of the transfer request does not suspend the trial, but the court may not conclude the case until a decision for the acceptance or the rejection of the request is issued.
2. The High Court may decide to suspend the trial. The suspension does not prevent the performance of any urgent activities.

Article 97
Decision on the request for transfer

1. The High Court, after obtaining the necessary information, decides on the request in closed session, without the participation of the parties.
2. The decision accepting the request shall be notified to the court, which was holding the trial and the one assigned to adjudicate it. The court, which was proceeding, transfers the documents immediately to the assigned court and orders that notice of the High Court decision is served to the prosecutor, to the defendant and private parties.
3. The court assigned by the High Court declares by decision whether and to what extent the actions performed will stay valid.

TITLE III
DOCUMENTS, NOTIFICATIONS AND TIME LIMITS

CHAPTER I
DOCUMENTS

SECTION I
GENERAL RULES

Article 98
Language of the documents

(Amended by Law no. 35/2017, dated 30.03.2017, Article 57)

1. Criminal procedural documents are drafted in Albanian language.
2. A person who does not speak Albanian shall be questioned in his/her native language or in another language he understands, selected by him. The minutes shall be kept in Albanian.
3. Breach of these rules results in documents invalidity.

Article 99
Signature of documents

1. If a document is required to be signed, handwriting at the end of the document of the signee's name and surname will suffice, unless otherwise provided by the law.
2. Signature by means of mechanical instruments or signs other than writing is not valid.

3. If the person is not able to sign, the official receiving a written document or recording an oral deed, makes sure about the identity of the person and reflects this fact at the bottom of the document, in the presence of a third person.

Article 100

Date of the documents

1. If law requires the date of a document, the documents shall indicate the day, month, year and the place where the document is drafted. Time indication is mandatory only when expressly required.
2. If a document's date is required under penalty of invalidity, this rule is valid only in case the date cannot be accurately determined based on the elements contained in the document itself or in any other related documents.

Article 101

Replacement of original documents

1. If an original procedural document is damaged, lost or has disappeared and for any reasons cannot be found, a certified authentic copy shall have the value of the original and shall be placed where the latter was.
2. To this purpose, the court, even *ex officio*, shall order by decision the person holding the copy to deliver it to the court secretary.

Article 102

Redrafting of documents

1. If a document cannot be replaced, the court even *ex officio* verifies the content of the missing document and orders if and how it should be redrafted.
2. If the concept of the missing document exists, such document is redrafted based on the concept, provided that one of the judges who has signed it certifies that it is the same as the concept.

Article 103

Prohibition to publish a document

1. It is prohibited to publish, even in part, of confidential documents related to proceedings or of their sole contents by means of press or mass media.
2. It is prohibited to publish, even in part, of non-confidential documents until the conclusion of the preliminary investigations.
3. It is prohibited to publish, even in part, trial documents when hearings are closed to public. Prohibition on publication is removed when the time limits provided for by the law on the State archives expire or after ten years of the date when the decision has become final, provided that such publication is authorized by the Minister of Justice.
4. It is prohibited to publish personal data and photographs of minor defendants and witnesses, accused or injured by the criminal offence. The court may allow the publication only when the interest of the minor requires so.

Article 104

Violation of the publication prohibition

1. Breach of the prohibition to publish by a State official or a public entity employee constitutes a disciplinary infringement, unless it constitutes a criminal offence. In this case, the prosecutor notifies the authority entitled to adopt disciplinary sanctions.

Article 105

Obtaining copies, extracts and certificates

(Amended by Law no. 35/2017, dated 30.03.2017, Article 58)

1. Whoever is interested may obtain on his/her own expenses, during proceedings and after its conclusion, copies, extracts or certificates of specific documents or audio and audio-visual recording.
2. The request is examined by the prosecutor, for the documents concerning preliminary investigation or by the court, which has issued the decision, for documents related to the trial.
3. Issuance of copies, extracts or certificates does not remove the prohibition on publication.

Article 106

Prosecutor's request to obtain copies of documents and information

1. When it is necessary for the purposes of the investigation, the prosecutor is entitled to request from the court copies of documents concerning other criminal proceedings under his prosecution, as well as written information regarding their content, even in cases where a confidential obligation exists.
2. The court, within five days, shall respond to the request or reject it by reasoned decision.
3. Provisions of paragraph 1 and 2 shall apply also to requests made by the Minister of Public Order and the Chief of the Intelligence Service, if they need copies of documents and information to prevent criminal offences.

Article 107

Participation of deaf, mute and deaf-mute person in the drafting of procedural documents

1. When a deaf, mute or deaf-mute person wishes or are required to give explanations, it is acted in this way:
 - a) questions and warning are given to the deaf person in writing and he answers orally.
 - b) questions and warnings are given to the mute person orally and he answers in writing.
 - c) questions and warning are given to the deaf-mute person in writing and he answers in writing.
2. If the deaf, mute or deaf-mute person does not know how to read or write, the proceeding authority shall assign one or more interpreters selected amongst persons who are used to communicate with them.

Article 108

Witnesses in procedural acts

(Amended by Law no. 35/2017, dated 30.03.2017, Article 59)

1. The following persons cannot testify on the contents of a procedural document:

- a) minors up to fourteen years old and persons who suffer from manifest mental disorders or who are in a serious state of drunkenness or intoxication by narcotic or psychotropic substances.
- b) Repealed.

Article 109

Power of attorney for certain procedural documents

1. When the law allows a document to be drafted through a special representative, the power of attorney is issued by a notary public or by a private written document, certified by the competent authorities, otherwise it is not accepted, and must contain, in addition to information specifically required by law, the determination of the subject for which it is granted and the facts it refers to. The power of attorney is attached to documents.

2. The power of attorney issued by State authorities must have the director's signature and the seal of the institution.

Article 110

Memoranda and requests of the parties

1. Parties and their representatives have the right, at any stage and instance of the proceedings, to present memoranda and written requests.

2. The proceeding authority shall render a decision within fifteen days, unless otherwise provided by this law.

Article 111

Statements and requests from persons in pre-trial detention

1. A defendant detained by way of precautionary measures is entitled to present complaints, requests and statements through the director of the institution, who issues a document to acknowledge their receipt. They are recorded in a special book and promptly communicated to the competent authority and have the same effect as if they were accepted directly by that body.

2. A defendant who is in house arrest or under supervision in a treatment facility is entitled to present complaints, requests and statements to the judicial police officer, who certifies their receipt and takes care to promptly send them to the competent authority.

3. These rules shall also apply to criminal reports, complaints, requests and statements presented by the private parties or the victim.

SECTION II

COURT'S DOCUMENTS

Article 112

Forms of court rulings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 60)

1. Court rules by decisions and orders.
2. Decision is given in the name of the Republic.
3. Decisions and orders must be reasoned, otherwise they are invalid.
4. Decision is taken in closed session, without the presence of the secretary and the parties.
5. If a member of the judicial panel votes against an intermediate decision, he shall reason his/her opinion in written form and such opinion shall be attached to the minutes of the hearing.
6. If a member of the judicial panel votes against a final decision, he shall reason his/her opinion in written form and the document remains in the judicial file.
7. Orders are issued without observing any particular formalities and, if not otherwise provided, they are also issued orally.

Article 113

Filing court documents

1. Original court documents are filed with the secretary within five days of their issuance. The prosecutor and the other persons entitled by law to appeal shall be notified about decisions that can be appealed.

Article 114

Correction of material errors

1. Correction of decisions and orders containing material errors may also be carried out *ex officio* by the court, which has issued the document. When against this document an appeal is made, and this is accepted, then the correction is made by a decision of the court that adjudicated the appeal, following which, a note is made in the original document.

SECTION III

RECORDING OF ACTIVITIES

Article 115

Minutes of the hearing

(Amended by Law no. 35/2017, dated 30.03.2017, Article 61)

1. When it is possible, the activities carried out during the hearing and any other activity conducted outside of it, shall be recorded by audio or audio-visual tools. Recording shall start and end simultaneously with the judicial hearing.
2. Recording of the hearing shall be carried out from the judicial secretary, under the instruction and supervision of the panel presiding judge.
3. If it is not possible to keep the minutes by means of audio or audio-visual recording, they shall be kept, in accurate summary form, by means of typewriting or handwriting, under the supervision of the presiding judge of the panel.
4. The minutes shall contain
 - a) the venue, year, month, day and time when it was started and terminated;

- b) the composition of the court;
 - c) the name of the prosecutor;
 - (ç the personal data of the defendant or other personal data which are useful to identify him, the personal data of the defence lawyers, of the accusing victim, private parties and of their representatives;
 - d) personal data of the persons who take part in the trial;
 - dh) if appropriate, the reasons for the absence of parties, of their representatives and persons summoned to participate in the court hearing.
5. The minutes shall describe any activity carried out during the hearing and shall reproduce in summary form:
- a) requests and claims of the parties;
 - b) the exact indication of the name of each submission, memoranda or final discussion submitted in writing by the parties, indicating also the number of pages;
 - c) questions and statements of the persons who take part in the trial, including witnesses and experts;
 - (ç evidence obtained;
 - d) decisions and orders issued by the court during the trial;
6. If the minutes are kept in a summary form by typewriting or handwriting and one of the parties requires to include in it, parts of its statements or statements of the other party, the court shall consider this request.
7. The written memoranda submitted by parties in support of their claims and conclusions, shall be attached to the minutes.
8. If the minutes are kept in a summary form typewriting or writing, they shall be signed at the end of each page by the secretary and the end of the document by the presiding judge of the jury. The minutes are a component of the judicial file and they are preserved for as long as the judicial file is preserved.
9. If kept by audio or audio-visual recording, the recording is preserved in the relevant electronic program for as long as the court file is preserved.
10. The parties shall be entitled at any time to obtain copies of the recordings and minutes kept by printing or handwriting by paying the respective fees."

Article 116

Transcript of minutes kept by means of audio or audio-visual recording

(Amended by Law no. 35/2017, dated 30.03.2017, Article 62)

1. The transcript of the minutes kept by means of audio or audio-visual recording shall be made by the court secretary or, under his/her supervision, by technicians contracted by the court to this purpose, reflecting accurately all the contents of the recording.
2. The transcript shall be signed by the judicial secretary and by the person who prepared it.
3. The transcript of the minutes shall be conducted when:
 - a) it is requested by the members of the judicial panel;
 - b) it is requested in writing by the parties at trial and this request is approved by the presiding judge, after the relevant fees for such purpose, as defined by order of the Minister of Justice, are paid. If the

transcript of the minutes is requested after the trial conclusion, the court chairman shall decide on this request.

4. The transcript of the recording can be carried out for all hearings of a proceeding, for specific sessions or for parts of them, upon the request of the party who asks for the transcript. If carried out during the trial, the transcript materials shall be attached to the court file and constitute part of it.

5. For documenting the procedural actions during the preliminary investigation the provisions above shall apply *mutatis mutandis*.

Article 117

Signature of the minutes

(Amended by Law no. 35/2017, dated 30.03.2017, Article 63)

1. The minutes, kept in written form, except for the ones kept during trial hearing, after being read, are signed at the bottom of each page by the person who kept them, the person who proceeds and the persons who have participated.

2. If any of the participants is not willing or is not able to sign it, a note is made indicating also the relevant reason.

Article 118

Transcription of records kept by stenographic means

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 64)

Article 119

Phonographic or audio-visual reproduction

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 65)

Article 120

Forms of recording in particular cases

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 66)

Article 121

Oral statements of parties

1. If the law does not require a document in written form, the parties may make personally or through special representatives, oral requests or statements. In this case, the court secretary drafts the minutes and records the statements. The power of attorney is attached, when the case is so, to the minutes.

2. A certificate or a copy of the statements rendered may be issued to the party that requests it, on its own expenses.

Article 122

Invalidity of the minutes and of the recording

(Amended by Law no. 35/2017, dated 30.03.2017, Article 67)

1. The minutes kept in typewriting or handwriting shall be null and void when there are doubts regarding the identity of the persons who have participated in it or the signature of the personnel who drafted it is missing.
2. Apart from paragraph 1 of this Article, the minutes kept by audio and audio-visual tools shall be invalid for the part in which the content of the recording is not understandable.

SECTION IV TRANSLATION OF ACTS

Article 123 **Interpreter appointment**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 68)

1. A defendant who does not know Albanian language, is entitled to be assisted by an interpreter, free of charge, to understand the charge and follow actions where he takes part. If the defendant declares that he knows Albanian language, he may waive from such right.
2. The proceeding authority shall also appoint an interpreter when a written document must be translated into a foreign language, as well as in the cases referred to in Article 107 of this Code.
3. An interpreter shall be appointed even if the court, the prosecutor or the judicial police officer, know the language to be translated.
4. The provisions on the appointment of the interpreter for the defendant shall also apply to the victim.

Article 124 **Incapacity and incompatibility of the interpreter**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 69)

1. The interpreter role may not be carried out by the following:
 - a) a minor, a person who is prohibited to interpret, a person whose legal capacity to act has been removed, a person mentally ill, a person who has been prohibited or suspended from the right to exercise public duties or a profession;
 - b) a person under precautionary measures;
 - c) a person who may not be questioned as a witness, a person who has been summoned as a witness and expert in the same or a joined proceeding. However, when a person who cannot hear, cannot speak or who cannot hear nor speak, is questioned, the interpreter may be one of his/her relatives, provided they do not have any incompatibility.

Article 125 **Request for interpreter's exclusion and withdrawal**

1. Parties are entitled to request the interpreter's exclusion for the reasons provided for in Article 124.
2. If there is a reason to request the exclusion or the withdrawal of the interpreter, he/she is obliged to declare such reason.

3. The request for exclusion or withdrawal must be submitted prior to the assignment of the tasks and, for reasons discovered afterwards, before the interpreter has completed his/her task.
4. The proceeding authority shall decide on the exclusion or withdrawal request.

Article 126

Assignment of the task to the interpreter

1. The proceeding authority shall verify the interpreter's identity and ask him whether there are grounds for his/her exclusion.
2. The interpreter shall be warned of his/her obligation to perform an accurate interpretation and to keep all the acts that are carried out in his/her presence confidential. He is then invited to fulfil the task.

Article 127

Time limits for written translations. Substitution of the interpreter

1. The proceeding authority shall assign a time limit to the translator in case a long time is required for the translation of written documents. The translator may be substituted if he does not present the written translation within the set time limit.
2. The substituted translator, after being summoned to present the reasons for failing to accomplish his/her task, may be sanctioned by the court with a fine of up to ten thousand AL.

SECTION V

INVALIDITY OF ACTS

Article 128

Invalidity of acts

(Amended by Law no. 35/2017, dated 30.03.2017, Article 70)

1. The procedural acts shall be invalid only in the cases expressly provided by this Code.

Article 128/a

Absolute invalidity

(Added by Law no. 35/2017, dated 30.03.2017, Article 71)

1. The procedural acts shall be absolutely invalid (null and void) when the provisions concerning the following are not observed:
 - a) requirements to be a judge in an actual case and the minimum number of judges to establish judicial panels pursuant to the provisions of this Code;
 - b) the prosecutor's prerogative to conduct the criminal prosecution and to participate in the proceeding;
 - c) summoning the defendant, victim or the presence of the defence lawyer when it is mandatory.
2. A procedural act qualified by law as absolutely invalid (null and void) cannot become valid.

Article 129

Relative invalidity

(Amended by Law no. 35/2017, dated 30.03.2017, Article 72)

1. Invalidities, other than those provided for by Article 128, may be declared upon the request of the parties.
2. If the party is present, the invalidity of an act must be challenged before it is performed and, when this is not possible, immediately after it has been performed.
3. Invalidity related to the acts of the preliminary investigations and of the acts concerning the pre-trial admission of evidence must be challenged in the preliminary hearing or in trial hearing, before the judicial examination starts, pursuant to Article 355 of this Code.
4. The invalidity ascertained during the trial may be challenged together with the appeal against the final decision.
5. Time limits to raise or challenge invalidity may not be extended.

Article 130

Evaluation of relative invalidity

(Amended by Law no. 35/2017, dated 30.03.2017, Article 73)

1. Unless otherwise provided by law, invalidity shall not be considered:
 - a) when the interested party has expressly withdrawn the invalidity request or accepted the consequences of the procedural act;
 - b) when the party has benefited from the right, the exercise of which the invalid act intends to protect;
 - c) when it is caused by the party itself, or when the party has no interest in raising it.
2. The invalidity of communications and notifications shall not be considered if the interested party has appeared or has refused to appear.
3. A party declaring that he/she has appeared only to raise the invalidity of a procedural act shall be entitled to a period, of not less than three days, to prepare the defence.
4. During preliminary investigations, the evaluation of the invalidity shall be done by the prosecutor, and if not done by the latter, it shall be evaluated by the judge of the preliminary hearing.

Article 131

Effects of invalidity declaration

1. The invalidity of a procedural act shall result in the invalidity of all subsequent acts, which depend on the one declared invalid.
2. The court which declares the invalidity of a procedural act shall order its repetition, when this is necessary and possible, charging the relevant expenses to the party who has intentionally or by serious negligence caused the invalidity.

NOTIFICATIONS

Article 132

Bodies and forms of notifications

1. Notifications of acts shall be served by the court dispatcher or by the postal service.
2. The judge, when he considers it necessary, may order the judicial police to serve the notifications.
3. If a copy of a document is delivered to the interested person by the court secretary, it shall have the value of a served notification. In such case, the court secretary shall make a note on the original document for the delivery and the date.
4. Notifications served by the court to the interested parties, in their presence, shall be recorded in the minutes.

Article 133

Special notifications and notifications with other technical means

(Amended by Law no. 35/2017, dated 30.03.2017, Article 74)

1. In situations of urgency, the court may order that the persons requested by the parties, except for the defendant, are served notification via telephone by the court secretary or the judicial police. On the original copy of the notification the requested telephone number, the name and job of the person who receives the notification, his/her relationship with the one the notification is addressed to, as well as the date and time of the telephone call shall be reflected.
2. The notification by telephone shall be valid since the moment is made, provided that its receipt is documented.
3. *Repealed.*
4. The court, when deems it appropriate, except for the defendant, may decide the notification of the person, by other technical means guaranteeing the notification, provided that their receipt is documented.
5. The notification of the witness with hidden identity, of the protected witness and of the collaborator of justice, shall be served by delivering a copy of the act to the prosecutor.

Article 134

Notification of the prosecutor's documents

1. Notification of prosecutor's documents during preliminary investigations shall be served by the judicial police or through the postal service, in the ways provided for by Article 133.
2. The delivery of a copy of a document to the interested person by the court secretary shall have the value of a served notification. The person delivering the document shall note in the original document its delivery and the date.
3. Oral notifications made by the prosecutor shall replace notifications, provided that such fact is reflected in the minutes.

Article 135

Notifications from private parties

1. Notifications from the parties may also be served by delivering a copy of the document through their representatives by registered mail with acknowledgment of receipt.

Article 136

Notification addressed to the prosecutor

1. Notifications to the prosecutor may also be directly served by the parties, their defence lawyers or representatives, by delivering a copy of the act to the secretary. The person receiving it, notes on the original act and on its copy the personal data and the date.

Article 137

Notifications to the victim and private parties

(Amended by Law no. 35/2017, dated 30.03.2017, Article 75)

1. Notifications to the victim of the criminal offence are served in the same way as done for the notification of the free defendant for the first time. If places mentioned in Article 140 are not known, notification shall be done by filing the document in the secretary. If documents indicate that his/her residence or domicile is abroad, he is invited by registered mail with acknowledgment of receipt, to declare or elect his/her domicile within the Albanian territory. If the statement or election of domicile is not made, within twenty days of receipt of the registered mail, notification shall be served by filing the document to the secretary.

2. Notification of the first summon to the civil defendant shall be served in the forms established for the first notification of a free defendant.

3. Notifications to the civil plaintiff and to the civil defendant shall be served to their representatives.

Article 138

Notifications through public announcement for the victims

(Amended by Law no. 35/2017, dated 30.03.2017, Article 76)

1. If the notification of the victims is difficult due to their number, to the inability of identifying some of them or when the notification is impossible because the places indicated in Article 140 are not known, the court may order that it is made through the public announcement at its posting corner and on the internet site. The notification shall stay posted for not less than 10 days.

2. The notification shall be deemed as served when court dispatcher submits to the secretary a copy of the act together with the documents proving the public announcement.

Article 139

Notification to the imprisoned defendant

1. Notification to the imprisoned defendant shall be served to the detention premises by handing him over the act.

2. If the defendant refuses to receive copy of the act or when the defendant is missing for justified reasons, the act shall be delivered to the person in charge of the institution who, in such case, shall notify the interested person with the fastest means.
3. The abovementioned provisions shall also apply in case the defendant is in pre-trial detention due to any other charge or is serving an imprisonment sentence.
4. If a detained person is released due to a change of the precautionary measure, he shall be obliged to declare or elect his/her domicile. This shall be noted in the release document and notified to the proceeding authority. If notification in the declared or elected domicile is not possible, the act shall be delivered to the defence lawyer.

Article 140

Serving the notification to a defendant in free state for the first time

(Amended by Law no. 35/2017, dated 30.03.2017, Article 77)

1. The notification for the first time to a defendant in free state is made by personally delivering to him a copy of the document along with the letter of rights pursuant to Article 34/a of this Code. When it cannot be delivered to him in person, the notification is served to his/her residence or working place, by delivering the document to a cohabitee or to a neighbour, or to a person who works with him. The notification act must indicate the personal data of the person receiving the notification and his/her relationship with the defendant.
2. Where the places mentioned in paragraph 1 are not known, the notice is served to the temporary residence of the defendant or to a venue where he frequently resides, by delivering it to one of the persons mentioned in paragraph 1.
3. The copy of the notification may not be delivered to a less than 14 year of age or to a person with manifest intellectual disabilities.
4. If the defendant is a minor, he shall normally be notified through his/her parents or his/her legal guardian, as well as pursuant to the special legislation on minors.
5. Where the persons mentioned in paragraph 1 are absent or are not suitable, or refuse to accept the document, then the defendant is searched in other places. If even in this way the notice cannot be served, the document is delivered to the administrative centre of the neighbourhood or village where the defendant lives or works. The notice of depositing [the act/document] is posted on the door of defendant's house or working place, on posting corner and on the website of the court. The court dispatcher notifies him on the depositing [of the act] through registered mail with acknowledgment of receipt. Effects of the notification start to run from the time of receipt of the registered mail.
6. Notification of the defendant who is serving in the military service is made by delivering him the document and if the delivery cannot be made, the document is notified to the command, which is obliged to promptly notify the concerned person.
7. By the act of notification for the first time, the proceeding authority shall invite the defendant to declare or elect the residence or domicile and the form of upcoming notifications for the purposes of proceedings. The defendant is obliged to notify in written form or declare before the proceeding authority any of their change.

Article 140/a

Notification of the legal entity as a defendant

(Added by Law no. 35/2017, dated 30.03.2017, Article 78)

1. The notification of the legal entity as a defendant shall be done at its registered office. The person who receives the notification shall note in the act of notification his/her identity, the function he is performing with the legal entity and the date of receipt of the notification.
2. If the notification pursuant to the paragraph above is not possible, it shall be done by posting the notification at the declared address of the registered office, at the posting corner of the court, on its webpage and through the announcement on the website of the Business National Centre in cases of the legal persons being registered in the commercial register.

Article 141

Serving notification to a defendant who cannot be found

1. In cases where notice cannot be served pursuant to the rules on serving notification to the defendant in free state, the proceeding authority shall order the conduct of a search operation for the defendant. If the search does not give any positive result, a decision of failure to find shall then be issued, by which after appointing a defence lawyer for the defendant, it shall be ordered that a copy of the notification is delivered to such defence lawyer. The person who cannot be found shall be represented by the defence lawyer.
2. The decision of not being found shall cease to have effects when the preliminary investigations are concluded or a ruling has been issued by the court.
3. The notification addressed to the defendant who is hiding or escaping shall be served by delivering a copy of the document to his/her defence lawyer and when he does not have a defence lawyer, the proceeding authority shall appoint a defence lawyer *ex officio*, to represent the defendant.

Article 142

Notification of a defendant abroad

(Amended by Law no. 35/2017, dated 30.03.2017, Article 79)

1. In cases where the defendant's domicile or residence abroad is known, the proceeding authority shall send him a registered mail with acknowledgment of receipt, by which he notifies him for the criminal offence he is charged with and asks him to state or choose a domicile in Albanian territory. If, after three days from receiving the registered mail, no domicile statement or election is made or is not so notified, the notification shall be served by delivery to the defence lawyer.
2. Where the defendant is notified pursuant to paragraph 1, he shall be invited to declare or to elect the domicile in the Albanian territory. The notification effected at the declared address shall be considered accomplished.
3. If it results that there is no sufficient information to act pursuant to paragraph 1, the proceeding authority, before issuing a decision of intractability, shall order that searches are conducted even outside of the territory of the State, pursuant to rules established in international agreements.

Article 142/a

Notification of foreign persons enjoying immunity

(Amended by Law no. 35/2017, dated 30.03.2017, Article 80)

1. Unless otherwise provided by international agreements, the notification of foreign persons enjoying immunity under the international law shall be done through the ministry responsible of foreign affairs.

Article 143

Invalidity of notifications

1. Notification shall be invalid:

- a) if the act has not been notified in full, except for the cases where the law allows for a service of notification through an extract;
- b) if in the copy of the notified document, the signature of the person who has served the notification is missing;
- c) if the specific provisions on the person to whom the copy shall be delivered, are breached;
(ç if the posting of the notification for the defendant in free state has not been carried out;
- d) if in the original copy of the notified document, the signature of the person who has undertaken the notification pursuant to Article 140, paragraph 1, is missing;
- dh) if the methods of notification by means of special technical instruments have not been observed and as a result the recipient of the notification did not receive the act.

**CHAPTER III
TIME LIMITS**

Article 144

General rules

- 1. The procedural time limits are established in hours, days, months or years.
- 2. The time limits are calculated pursuant to the regular calendar.
- 3. The time limit established in days when it expires on a non-working day or a public holiday, shall be postponed until the next working day or non-public holiday.
- 4. Unless otherwise provided by the law, the hour or day, in which the time limit starts to run, shall not be included in the calculation of the established time limit. The last hour or day shall be calculated.
- 5. The time limit for making statements, submitting documents or performing other actions at court shall be deemed expired when, pursuant to the rules, offices are closed to the public.

Article 145

Time limits which may not be extended

1. Time limits which may not be extended are those provided by law for specific cases. Such time limits may only be extended when the law provides so.

2. The party in whose favour a time limit has been established, may request or allow its reduction by submitting a statement to the secretary of the proceeding authority.

Article 146

Extension of time limits to appear

1.If the defendant's domicile, resulting from the acts, or the declared or elected residence is outside the district where the proceeding authority has its premises, the time limit to appear shall be extended for as many days as needed for travelling. In any case, the extension of time limits may not exceed three days. For the defendant residing abroad, the time limit extension shall be determined by the proceeding authority considering the distance and the means of communication to be used.

2. Such rules shall also apply regarding the time limits designated for the appearance of any other person to whom the proceeding authority has issued an order or a summons.

Article 147

Reinstatement in the time period

(Amended by Law no. 35/2017, dated 30.03.2017, Article 81)

1. The prosecutor, the defendant, the victim, the accusing victim and the private parties shall be reinstated in the time period if they prove that they were not able to observe the time period due to specific circumstances or force majeure.

2. The reinstatement in the time period is not permitted more than once for each party, for each instance of the proceeding.

3. The request for the reinstatement in the time period shall be submitted within ten days from the disappearance of the fact which constituted specific circumstance or force majeure. The proceeding authority at the time of submission shall decide on the request.

4. A complaint may be filed against the decision rejecting the request for reinstatement in the time period, within 5 days. The court shall examine the complaint in closed session within 10 days of the acts being obtained.

Article 148

Consequences of time limit reinstatement

(Amended by Law no. 35/2017, dated 30.03.2017, Article 82)

1. The court which has ruled for a time limit reinstatement shall, upon request of the party and to the extent possible, order the repetition of the actions in which the party was entitled to participate.

2. Repealed.

TITLE IV EVIDENCE

CHAPTER I GENERAL PROVISIONS

Article 149
Meaning of evidence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 83)

1. Shall be considered as evidence the information on the facts and circumstances related to the criminal offence, which are obtained from sources provided for by the criminal procedural law, as well as in compliance with the rules defined by it, and serve to prove whether the criminal offence was committed or not, its ensuing consequences, the guilt or innocence of the defendant the level of his/her accountability.
2. If evidence is requested and it is not regulated by law, the court may introduce it if it is deemed suitable to determine the facts and does not compromise the moral freedom of the person. After hearing the parties on the methods for gathering evidence, the court shall decide on the admission of evidence.

Article 150
Facts in issue

1. Facts concerning the accusation, the criminal liability of the defendant, the determination of precautionary measures, the punishment and the civil liability, as well as the facts on which the application of procedural rules depends are facts in issue.

Article 151
Gathering of evidence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 84)

1. During preliminary investigations, evidence shall be admitted by the proceeding authority, in compliance with the rules provided for by this Code.
2. In trial, evidence shall be admitted upon request of a party. The court shall promptly decide, excluding any evidence that is not allowed by law or manifestly irrelevant.
3. Evidence gathered in violation of the prohibitions set out by law shall not be used. The exclusion of evidence may be declared also ex officio at any stage and instance of the proceedings.

Article 152
Evaluation of evidence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 85)

1. No evidence shall have a value predetermined by law. After examining evidences in their entirety, the court shall evaluate their authenticity and proving value, specifying the reasons at the grounds of its judgement.
2. The existence of a fact cannot be inferred from circumstantial [indicia] evidence, unless such evidence is serious, precise and consistent.
3. The statements made by the co-defendant charged with the same offence or by a person accused in a joined proceeding shall be evaluated in unity with the other evidences confirming their reliability.

CHAPTER II TYPES OF EVIDENCE

SECTION I TESTIMONY

Article 153

Object and limits of testimony

1. The witness shall be questioned on the facts constituting the object of evidence. He shall not testify on the morality of the defendant, unless such testimony concerns facts that may be suitable for qualifying his/her character relating to the criminal offence and his/her social dangerousness.
2. The witness questioning may also be extended to relations of kinship and any interests that exist between the witness and the parties or other witnesses and to circumstances that need to be ascertained to assess his/her reliability. The testimony on the facts that may be useful in defining the victim's character shall be admitted only if the charge against the defendant must be evaluated relating to the victim's behaviour.
3. The witness shall be questioned on specific facts. He shall not testify on public rumours nor give his/her personal opinions, unless they are an inseparable part of the testimony on facts.

Article 154

Indirect (hearsay) testimony

1. If a witness refers to facts he has been told of by other persons, the court, upon request of a party or *ex officio*, shall order to summon these persons to testify.
2. Failure to comply with the provisions of paragraph 1, results in the non-usability of the statements related to the facts of which the witness has been informed by other persons, unless the questioning of these persons is impossible because they are dead, seriously ill or untraceable.
3. A witness shall not be questioned on facts heard from the persons who are obliged to keep their professional or state secret, unless the afore-mentioned persons have made statements on the same facts or have disclosed them in some other way.
4. The testimony of persons who refuse or are not able to indicate the person or source that informed them of the facts under questioning shall not be used.

Article 155

Capacity to testify

1. Every person has the capacity to testify, with the exclusion of those are not able to testify because of their mental or physical disabilities.
2. If the physical or mental suitability to testify needs to be assessed to evaluate one's statements, the court may order, also *ex officio*, the appropriate ascertainment.

Article 156

Incompatibility with the witness's role

(Amended by Law no. 35/2017, dated 30.03.2017, Article 86)

1. The following persons shall not be questioned as witnesses:

- a) persons who, due to physical or mental disabilities, are not able to render regular testimony;
- b) persons co-accused of the same offence or accused in joint proceedings, if a decision of non-initiation of the proceedings, dismissal or conviction has been issued against them, including the cases of plea bargaining and criminal order of conviction, except for the cases when the decision of acquittal has become final;
- c) the persons who in the same proceedings perform or have performed the function of judge or prosecutor;

(ç the civil defendant and the person with civil liability for the damages caused by the defendant.

2. The rule provided for under letter “b”, of paragraph 1, does not apply for the collaborator of justice, who is always questioned as a witness, pursuant to Article 36/a of this Code.

Article 157

Obligations of the witness

1. The witness is obliged to appear before the court, to observe its orders and answer truthfully to the questions addressed to him.

2. The witness shall not be obliged to testify on facts which may unravel his/her own criminal liability.

Article 158

Exemptions from the obligation to testify

(Amended by Law no. 35/2017, dated 30.03.2017, Article 87)

1. The following persons shall not be obliged to testify:

- a) the next of kin of the defendant, pursuant to definitions referred to under Article 16, unless they have submitted a criminal report or complaint or if they or one of their next of kin are the victims of the criminal offence;
- b) the spouse, in relation to the facts that were learnt by the accused person during marriage;
- c) the spouse separated from the defendant, in relation to the facts that were learnt by the accused person during marriage;
- (ç the cohabitee or former cohabitee of the defendant, even if not a spouse;
- d) the person who is related to the accused by adoption ties.

1/1. The exemption from the obligation to testify shall not apply if the persons listed under paragraph 1 of this Article, have submitted a report or a complaint or if they or a member of their family are the victims of the criminal offence.

2. The court shall inform the abovementioned persons of their right to abstain from testifying and ask them if they intend to exercise such right. Failure to comply with such rule shall result in the invalidity of the testimony.

Article 159

Protection of the professional secret

1. The following persons shall not be obliged to testify on information they know because of their profession, except in cases where they have a duty to report to proceeding authorities:

- a) representatives of religious entities, whose Articles of association do not conflict with the Albanian legal order;
- b) lawyers, legal representatives and public notaries;
- c) doctors, surgeons, pharmacists, obstetrics and anyone who performs a medical profession;
those who perform other professions, who are entitled by law to abstain from testifying on matters (ç related to professional secret.

2. If there are reasons to doubt that allegations made by these persons to avoid testimony are not grounded, the court shall order the necessary ascertainment. Where such allegations result to have no grounds, the court shall order the witness to testify.

3. Rules provided for in paragraph 1 and 2 shall also apply to professional journalists with regards to the names of persons they have received information from, during the exercise of their profession. However, if such is essential to prove the criminal offence and the truthfulness of such information can only be ascertained through the identification of the source, the court shall order the journalist to disclose the source of his/her information.

Article 160

Protection of the State secret

(Amended by Law no. 35/2017, dated 30.03.2017, Article 88)

1. State employees, public officials and persons in charge of a public service are prohibited to testify on facts which constitute state secret.

2. If a witness alleges that a fact constitutes state secret, the proceeding authority shall request a written confirmation from the competent state authority.

3. If the secret is confirmed and the evidence is not essential for the conclusion of the case, the witness shall not be questioned, whereas, if the evidence is essential, the proceeding authority shall suspend the case until the highest authority of the state administration provides an answer then the witness shall be obliged to testify.

4. If the competent state authority fails to confirm the State-secret status within thirty days of receiving notification of the request, the witness shall be asked to testify.

5. The judicial police officers and agents and members of the security intelligence services cannot be obliged to disclose the names of their informants. Information disclosed by them may not be acquired nor used if these officials are not questioned as witnesses in relation to such information.

6. If informants accept to testify, the testimony shall be taken observing the rules on the protection of the anonymity of their identity. The provisions of Articles 165/a and 361/b of this Code shall apply *mutatis mutandis*.

Article 161

Exclusion of secrecy

1. Information or documents concerning criminal offences aimed at subverting the constitutional order cannot have the state secrets status. The type of criminal offence shall be established by the proceeding authority.

2. If the exclusion of secrecy is not accepted, the competent state authority shall be informed.

Article 162

Gathering the testimony of the President of the Republic and of other high State officials

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 89)

Article 163

Gathering the testimony of diplomatic officials

1. If a diplomatic official or a consular officer of the State abroad need to be questioned while outside the Albanian territory, the request for questioning shall be transmitted through the Ministry of Justice to the Albanian diplomatic or consular authority, except when their appearance is deemed essential.

2. International treaties and customs shall be observed for gathering the testimony of the diplomatic officials of a foreign country accredited with the Albanian State.

Article 164

Forced accompaniment

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 90)

1. If a witness who has been duly summoned, does not appear at the established place, date and time, in absence of any legal impediment, the court may order his/her forced accompaniment or impose him a fine up to 30.000 ALL.

2. The court may revoke the decision issued under paragraph 1 of this Article or reduce the fine, if it proves that there are reasonable grounds.

3. The person subject to forced accompaniment shall not be held beyond the time necessary for his/her presence and, in any case, no longer than twenty-four hours.

4. The provisions of paragraphs 1, 2 and 3 of this Article shall also apply to experts and interpreters.

5. The provisions of paragraphs 1, 2 and 3 of this Article shall not apply to minor witnesses.

Article 165

Liability for false testimony or refusal to testify

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 91)

1. If during the questioning a witness makes contradictory or incomplete statements or statements which are in contrast with the evidence taken, the court shall note this fact, warning him of the criminal liability for false testimony.

2. The same warning is made by the court also to the witness refusing to testify. If the witness insists on his/her refusal to testify, the court shall request the prosecutor to proceed pursuant to the law.

3. If the witness refuses to testify on the grounds that he invokes protection measures or enrolment in a witness protection program, pursuant to the law, the prosecutor shall not register the criminal charge for false testimony until a decision on his/her request has been issued.

4. If by a final judgment, the court deems that the witness has made a false testimony, the court shall transmit the documents to the prosecutor to proceed pursuant to the law.

Article 165/a

Witness with hidden identity

(Added by Law no. 35/2017, dated 30.03.2017, Article 92)

1. Where giving testimony might put the witness or his/her family members in a serious risk for his/her life or health, and the defendant has been charged of any of the crimes provided for in Articles 230, 230/a, 230/b, 230/c, 230/ç, 231, 232, 232/a, 232/b, 234, 234/a, 234/b, 265/a, 265/b, 265/c, and the witness protection program is not applicable, the court may, upon the request of the prosecutor, decide the application of special questioning techniques pursuant to Article 361/b of this Code.

2. The request of the prosecutor shall be submitted to the presiding judge of the panel in a closed envelope, with the note: "Confidential: witness with hidden identity". In the request, the prosecutor shall present the reasons why the use of one or more of the special questioning techniques are needed.

3. In the envelope with the above note, the prosecutor shall insert also the sealed envelope containing the full identity of the witness with hidden identity. Only the presiding judge shall be entitled to know the real identity of the witness with hidden identity and he shall verify the capacity and incompatibility with the witness role pursuant to this Code. The date, name, signature and function of persons having opened the envelope and those becoming aware of the data contained in the envelope shall always be noted evidently on the envelope. Following the accomplishment of verifications, the envelope with the real identity of the witness with hidden identity shall be returned to the prosecutor.

4. The court shall examine the request of the prosecutor in closed session and decide by reasoned decision within forty-eight hours of the request submission.

5. The prosecutor may file a complaint against the court decision within forty-eight hours of the decision being notified. The appeal court shall examine the complaint in closed session and decide on the complaint within forty-eight hours of the file being obtained. This decision shall not be subject to appeal.

6. If the court admits the request of the prosecutor, it shall decide on the pseudonym of the witness and the procedures for hiding the identity, notification, appearance and participation in proceedings. The questioning of the witness shall be conducted pursuant to the rules referred to in Article 361/b of this Code.

7. The witness shall participate in all stages of the proceeding only with the pseudonym ascribed by the court, unless otherwise provided for in paragraph 8 of this Article.

8. The questioning of the person with hidden identity and the assignment of the pseudonym during the investigation shall be done by the prosecutor. The acts where he takes part shall be signed by his/her ascribed pseudonym."

SECTION II

QUESTIONING OF THE DEFENDANT AND OF THE PRIVATE PARTIES

Article 166

Request for questioning

1. The defendant and the civilly liable person shall be questioned if they make request or give their consent when asked to testify. The same applies to the civil party, unless he must be questioned as a witness.

Article 167

Questioning of a person accused in a joined proceeding

(Amended by Law no. 35/2017, dated 30.03.2017, Article 93)

1. Persons accused in a joined proceeding, who are being or were prosecuted separately, shall be questioned upon request of a party or *ex officio*.
2. They shall be obliged to appear before the court, which, if necessary, shall order their forced accompaniment. Provisions regulating summoning of witnesses shall apply.
3. Persons described in paragraph 1 shall be assisted by a retained lawyer and, in his/her absence, by an *ex officio* appointed lawyer.
4. Before questioning, the court shall inform the persons described in paragraph 1 that they are entitled to refuse answering.
- 4/1. If a person accused in a joined proceeding needs to be questioned and any of the conditions referred to in letter "b", of paragraph 1, of Article 156 of this Code exists, the court shall guarantee him defence against self-incriminating statements on the facts he has been prosecuted for. If he renders self-incriminating statements for any new facts, the court shall inform him about the rights provided for in Article 37 of this Code.
5. Provisions of the above paragraphs shall also apply during preliminary investigations regarding persons who are accused for a joined criminal offence.

Article 167/a

Distance questioning of a defendant in a joined proceeding or serving a sentence abroad

(Added by Law no. 9276 of 16.09.2004, Article 5)

The defendant in a joined proceeding, who is being prosecuted or is serving a sentence abroad for a different criminal offence, whose extradition has been denied, may be questioned in distance, by means of audio-visual link, pursuant to international agreements, provided that the foreign State ensures the presence of the defendant's lawyer in the venue of questioning.

Article 168

Questioning of private parties

(Amended by Law no. 35/2017, dated 30.03.2017, Article 94)

1. Provisions of Articles 153, 154, 157, paragraph 2 and 361 shall apply for the questioning of private parties.
2. If a party refuses to answer a question, such fact shall be reflected in the minutes.

SECTION III CONFRONTATIONS

Article 169

Grounds for confrontation

(Amended by Law no. 35/2017, dated 30.03.2017, Article 95)

1. Confrontations shall be allowed only between persons who have already been questioned and there are inconsistencies among their statements for certain facts or circumstances.
2. The confrontation of the adult defendant with the minor victim or minor witness is prohibited.

Article 170

Rules on confrontation

1. The proceeding authority, after reminding the persons to be confronted of their previous statements, shall ask them whether they confirm or alter them, inviting them, if needed, to make their respective objections.
2. The questions asked by the proceeding authority, statements made by the persons confronted and anything else which happened during the confrontation shall be recorded in the minutes.

SECTION IV RECOGNITION

Article 171

Recognition of persons

(Amended by Law no. 35/2017, dated 30.03.2017, Article 96)

1. When the need for proceeding with the recognition of a person emerges, the proceeding authority shall invite the one who is to make the recognition to describe the person indicating all the signs he remembers and ask him whether he has been called earlier to make the recognition and about the other circumstances that might have an impact on the authenticity of the recognition.
2. Noted down in the minutes shall be the actions provided for in paragraph 1 and the statements made by the person making the recognition. When possible, the recognition procedure shall be photographed or recorded.
3. Where the recognition is made by a minor or to a minor, the presence of the psychologist shall be mandatory. The proceeding authority shall carry out the recognition in such a way that the person to be recognised does not see or hear the minor.
4. The recognition shall occur at the presence of the defence lawyer.
5. Failure to observe the provisions provided for in this Article shall result in the invalidity of the recognition.

Article 172

Carrying out a recognition procedure

1. After taking away the person who will do the recognition, the proceeding authority shall ensure at least two persons resembling as much as possible to the person to be recognised. It invites the latter to choose his/her location in relation to the others, and ensuring that he is presented as much as possible, in the same conditions under which he would have been seen by the person called to make the recognition. After the person to make the recognition appears, the court shall ask him whether he knows anyone of those presented for recognition, and if yes, invites him to show the one he knows and to specify whether he is sure.
2. Where there are reasons to believe that the person being called to make the recognition might be intimidated or have other impacts from the presence of the person to be recognised, the proceeding authority shall order the procedure to be conducted without the latter seeing the former.
3. The recognition method is indicated in the minutes, under penalty of invalidity. The proceeding authority may order that the recognition procedure be documented also through pictures or video footages.

Article 172/a

Obligation to be involved in recognition

(Added by Law no. 35/2017, dated 30.03.2017, Article 97)

1. The persons being summoned shall be obliged to participate at the procedure of recognition.
2. The proceeding authority may order the forced escorting for the person summoned duly and not appearing at the venue, day and time set out for the recognition without having reasonable grounds.
3. The forced accompaniment of a minor is prohibited when proceeding pursuant to paragraph 3, of Article 171, of this Code.

Article 173

Recognition of items

1. When the recognition of material evidence or other items related to the criminal offence is needed, the proceeding authority shall act in compliance with the rules for recognition of persons to the extent they are applicable.
2. After finding out, where possible, at least two similar things to the one to be recognised, the proceeding authority shall ask the person called to make the recognition whether he recognises any of them and, if yes, invite him to state which of them he recognises and to specify whether he is sure.
3. The recognition method is indicated in the minutes, under penalty of invalidity.

Article 174

Other recognitions

1. In case where the recognition of voices, sounds or any other things that may be subject to perception by senses is ordered by the proceeding authority, it shall act in compliance with the rules on identification of persons to the extent they can be applied.

Article 175

Recognition of or by more persons

(Amended by Law no. 35/2017, dated 30.03.2017, Article 98)

1. If more persons are called to make the recognition of the same person or thing, the proceeding authority shall conduct actions separately, by prohibiting any communication between the one who has completed the recognition and those who must do it afterwards.
2. If a person must carry out the recognition of more persons or items, the proceeding authority shall order that the person or item to be recognised is placed among the different persons or items.
3. Provisions of Articles 171, 172, 172/a and 173 shall apply.

SECTION V

THE EXPERIMENT

Article 176

Requirements for the experiment

1. The experiment is admitted when it is necessary to be ascertained whether a fact did occur or could have occurred in a certain way.
2. The experiment consists of the reproduction, to the extent possible, of the situation in which a fact has occurred or it is believed to have occurred, by repetition of the way the fact itself occurred.

Article 177

Rules on conducting experiments

1. A ruling of the proceeding authority for conducting an experiment shall contain summarised information on its object including the day, time and venue where the actions will take place. In the same ruling or a later one, an expert may be assigned to perform the designated actions.
2. The proceeding authority shall adopt appropriate measures to conduct actions, including ordering the taking of photographs and video recordings, and to prevent any risks to the personal or public security.

SECTION VI

EXPERT EXAMINATION

Article 178

Scope of expertise

1. An expert examination shall be allowed where it is necessary to carry out researches or acquire information or evaluations which require special technical, scientific or cultural knowledge
2. Expert examinations to determine the level of competence in the commission of the criminal offence, the criminal orientations, the defendant's character and personality and in general, the psychical features which do not depend on pathological causes, shall not be allowed.

Article 179
Appointment of the expert

(Amended by Law no. 35/2017, dated 30.03.2017, Article 99)

1. The expert is designated among persons registered in the register kept for this purpose or among those who have special knowledge on a relevant topic. In case where the expertise is declared invalid or a new one is needed to be performed, the proceeding authority shall take measures, where possible, that the new task is entrusted to another expert.
2. The ruling of the proceeding authority to appoint an expert shall be served to the defendant or his/her defence lawyer, informing him about his/her right to ask for exclusion of the expert, to propose other experts, to participate in the expert examination, when possible, and to ask present questions to the expert.
3. Where the demands and the evaluations appear to be very complex or they require respective knowledge from different fields, the proceeding authority shall assign the accomplishment of the expertise to many experts. In specific instances, where the expertise cannot be provided from the list of experts registered with the court, the proceeding authority shall, after taking the opinion of the parties in advance, assign other, foreign or local, experts, from outside the list.
4. The expert shall be obliged to perform the entrusted task, except for the cases where grounds which exclude him from being an expert exists, or when he claims not to be competent or not to be able to carry out the expert examination and his/her request is accepted by the proceeding authority.

Article 180
Incompatibility with the expert status

1. The task of an expert may not be carried out by:
 - a) a minor, the one who is legally denied or whose legal capacity to act has been removed or the one who suffers from a mental illness;
 - b) the one who is suspended, even temporarily, from public duties or from practising a profession;
 - c) the one against whom personal precautionary measures have been ordered;
 - (ç the one who may not be questioned as a witness or taken as an interpreter or is entitled to decline to testify or interpret.

Article 181
Exclusion of the expert

1. The parties may request the exclusion of an expert in the circumstances foreseen by this Code for the judge disqualification.
2. In case where any reason for exclusion exists, the expert shall be obliged to declare it.
3. The declaration of the reasons for exclusion by the expert himself or the request for his/her exclusion by the parties may be set forth before the tasks have been assigned and in case the grounds have arisen on the spot or have become known later, before the expert has given his/her opinion.
4. The exclusion statement of the expert or the parties 'request for exclusion shall be resolved by the proceeding authority who has ordered the expert examination by means of an order.

Article 182

Rulings of the proceeding authority

1. The proceeding authority shall dispose of an expert examination by means of a reasoned decision, which shall contain the appointment of the expert, a summarized presentation of the case, the day, time and venue designed for the appearance of the expert.
2. The proceeding authority shall summon the expert and take the necessary measures for the appearance of persons subject to expert examination.

Article 183

Assignment of the tasks

1. After being ensured on the expert's identity, the proceeding authority shall ask him whether there are any grounds for expert exclusion, warn him on the obligations and responsibilities deriving from criminal law, elaborates the expert examination questions and invites him to make the following statement: "Aware of the moral and legal responsibility concerning the task I am undertaking, I shall perform it with honesty and fairness and keep the secrecy of all the actions related to the expert examination."
2. Remuneration for the expert shall be determined by the proceeding authority having disposed of the expert examination.

Article 184

Expert actions

1. To meet the requirements of the expert examination, the expert may be authorized by the proceeding authority to look into procedural acts, documents and everything else included in the prosecutor's or court file.
2. The expert may also be authorised to take part during the questioning of parties or collection of evidence.
3. In cases where the expert seeks information from the defendant, victim or other persons, such information shall be used only for expert examination purpose.
4. If for the expert report needs, the destruction or change of the substance of an item is indispensable, the experts, where possible, are obliged to preserve such part of the item, and to document the part used for the expert report, by informing the proceeding authority and the parties.

Article 185

Act of expertise

1. The opinion of the expert shall be provided in writing.
2. Where there is more than one expert being appointed and they have different opinions, each of them shall present his/her opinion in a separate report.
3. Where the facts are complex and the expert cannot give an immediate answer, the proceeding authority shall grant him a time period of time no more than sixty days. In case of need for especially complex verifications, such time period may also be extended for more than once for periods of time no more than thirty days, but at any case no more than the maximum time period of six months.

Article 186
Expert substitution

1. An expert may be substituted if he does not give his/her opinion within the determined time period or the request for time limit extension is not accepted or he performs his/her tasks with negligence.
2. An order of the proceeding authority for the expert substitution shall be issued only after the latter is heard. The substituted expert may be sanctioned up to a fine of 10.000 ALL.
3. An expert shall be substituted also in cases where a request for his/her exclusion is accepted.
4. The substituted expert shall be obliged to deliver to the proceeding authority the documents and results of the actions being performed.

SECTION VII
MATERIAL EVIDENCE

Article 187
Meaning of material evidence

(Amended by Law no. 9085 of 19.06.2003, Article 2)

1. Items which have served as tools for the commitment of the criminal offence, those on which traces are found or which have been the object of the defendant's actions, the products of the criminal offence and any other asset for which confiscation is allowed, pursuant to Article 36 of the Criminal Code, and any other item which may contribute to the clarification of the circumstances of the case, constitute material evidence.

Article 188
Collection of material evidence

1. Material evidence shall be described in detail in the minutes, and where possible photographed or video recorded and, with the order of the proceeding authority, is included into the judicial file.

Article 189
Preservation of material evidence

1. The material evidence which due to its perishable nature, if it is not possible to return to their possessors, shall be delivered to certain entities which are obliged to return them in the same state or return their corresponding value.

Article 190
Rulings on material evidence

1. In its final decision or decision for terminating the case, the court or the prosecution office shall also rule about what should be done with the material evidence, by ordering:
 - a) items which have served or were defined as a tool for committing a criminal offence as well as the items constituting proceeds or compensation given or promised for its commission shall be taken over

and transferred to the state, except for cases where they belong to persons who have not been involved in the commission of the criminal offence;

- b) items whose possession or circulation is prohibited shall be delivered to the relevant entities or shall be destroyed;
 - c) items which do not have any value shall be destroyed;
 - d) other items shall be returned to the persons they belong to and, where a dispute exists regarding their ownership, they shall be kept until that issue is resolved by the court.
2. The physical evidence may also be returned to the persons whom they belonged prior to the conclusion of the proceedings, provided this does not jeopardise the solution of the case.

SECTION VIII DOCUMENTS

Article 191 **Taking of documents**

1. The collection of documents which represent facts, persons or items through picturing, filming, recording or any other means shall be permitted.
2. In cases where the original copy of a document is destroyed, lost or vanished, its copy may be obtained.
3. Documents which constitute material evidence must be acquired, despite the person producing or keeping them.

Article 191/a **Obligation to disclose computer data**

(Added by Law no. 10054 of 29.12.2008, Article 2)

1. When trying IT related criminal cases, the court, upon request of the prosecutor or the accusing victim, shall order the one keeping or supervising them to hand over the computer data stored in a computer-system or in another means of storage.
2. In such proceedings, the court shall also order the service provider to disclose any information on the subscribers and on the services provided by it.
3. When there are grounded reasons that delay may result in a serious impairment for the investigations, the prosecutor, by a reasoned resolution, shall order the obligation to disclose the computer data as defined in paragraphs 1 and 2 of this Article and immediately notify the court. The court shall evaluate the prosecutor resolution within 48 hours from notification.

Article 192 **Documents on personality**

1. The collection of criminal record certificates and final court decisions with the purpose of evaluating the defendant's or victim's personality, when the fact being examined is to be assessed in relation to their conduct or moral qualities shall be permitted.
2. Such documents may also be obtained to assess the reliability of a witness.

Article 193
Collecting minutes from other proceedings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 100)

1. The minutes of evidence from other criminal proceedings may be collected, if they concern pre-trial admission of evidence or evidence administered during the trial.
2. The minutes of evidence taken in a civil trial for which a final decision has been issued can be collected.
3. In the cases referred to in paragraphs 1 and 2, the minutes of the statements may be used against the defendant only if the lawyer has taken part during their collecting.
4. Records of unrepeatable actions may be collected, including defendant's statements, if it is proved the objective impossibility of their taking, unforeseeable at the time when the action took place.
5. Except for the cases provided for in the above paragraphs, the minutes of evidence may be used in the trial only if the defendant gives his/her consent. If this is not the case, they may be used for the challenges provided for in Articles 362 and 365 of this Code.
6. The parties are entitled to request the questioning of the persons, whose statements have been taken under the provisions of this Article.
7. The final decisions may be collected as evidence of the existence of the facts, and shall be evaluated together with the other evidence.

Article 194
Anonymous documents

1. Documents which constitute anonymous notifications shall be neither acquired nor used, except for cases where they constitute material evidence or are created by the defendant.

Article 195
False documents

1. When the court considers that a document which is already acquired is false, it shall, after the conclusion of the proceedings, inform the prosecutor as well as deliver him such document.

Article 196
Translation of documents

1. When a written document has been acquired in a foreign language, the proceeding authority shall order for its translation.
2. When necessary, the proceeding authority shall also order for the transcription of the magnetic tape.

Article 197
Issuing of copies

1. In case the acquisition of a document has been decided, the proceeding authority, upon request of an interested party, shall be allowed to authorise the secretariat to issue certified copies of that document.

CHAPTER III TOOLS FOR SEARCHING EVIDENCE

SECTION I EXAMINATIONS

Article 198

Cases and forms of examination

1. Examination of persons, places and items shall be decided by the proceeding authority when it is necessary to discover the traces and other material effects of a criminal offence.
2. Where the criminal offence has left no traces or material effects or when those have been destroyed, lost, altered or moved, the proceeding authority shall describe their state and, where possible, verify the state they were prior to changes as well as take measures to ascertain the method, time and causes for the changes which might have possibly occurred.
3. The proceeding authority may order photography or video recording and or any other technical act.

Article 199

Examination of persons

(Amended by Law no. 35/2017, dated 30.03.2017, Article 101)

1. The examination shall be conducted in appropriate locations, observing, to the extent possible, the personal dignity and integrity of the person being examined.
2. Before the examination takes place, the person to be examined shall be notified about his/her right to request the presence of a person of his/her trust, provided that he can be found immediately and be suitable.
3. The examination may be accomplished by a doctor with the consent of the person. In such a case, the proceeding authority may not take part in the examination. If the consent is not granted or the person is a minor, the examination shall be conducted following the procedure provided for in Article 201/a of this Code.

Article 200

Examination of corpses

1. The examination of a human corpse shall be carried out by the proceeding authority in presence of a forensic doctor.
2. With the purpose of carrying out the examination of a dead body, the judge or prosecutor may order for its exhumation, by informing a member of the dead person's family to participate, except for when the participation may harm the purpose of the examination.

Article 201

Examination of places and items

(Amended by Law no. 35/2017, dated 30.03.2017, Article 102)

1. Initially, a copy of the ruling ordering for an inspection shall be provided to the defendant, when present, and to the one possessing the place where the examination is to be performed or the item to be examined.

2. In case of examination of places, the proceeding authority may order, for motivated reasons, that the persons present do not leave before the examination is completed and use coercion to prevent them from leaving.

Article 201/a

Forced taking of biological samples or conducting forced medical procedures

(Added by Law no. 35/2017, dated 30.03.2017, Article 103)

1. Forced taking of biological samples from the defendant or any other persons, or forced medical procedures shall take place only pursuant to the provisions of this Article.

2. The prosecutor may, after obtaining the consent of the defendant or other persons, seek taking of biological samples to the effect of establishing the DNA profile. The same provision shall be implemented for the accomplishment of the medical procedure.

3. The consent of the person shall be provided in writing. The person who is going to be taken the sample or subject to a medical procedure shall sign a statement before the prosecutor, that he grants the consent and confirming that he has been notified with regard to the reason the biological samples being taken or the medical procedure being conducted.

4. For the minor, the consent shall be provided by the parent or the legal guardian.

5. Based on the request of the prosecutor, the court may decide that the taking of biological samples or the medical procedure be conducted without the consent of the person, if it is necessary, and by way of restricting his/her freedom, if health is not impaired and if it is indispensable for proving facts in the proceedings. No medical procedures can be conducted if they pose a risk to the life of the person, his/her physical integrity and health, which may harm the unborn child or, pursuant to the medical protocols, may cause unjustified pain.

6. The court decision on taking the biological sample or the medical procedure shall contain:

- a) the personal data of the person subject to the taking of biological sample or to a medical procedure or necessary information for his/her identification;
- b) the criminal offence whereof the proceeding has started and a summarised description of the respective facts;
- c) a detailed description of the type of biological sample to be taken or of the medical procedure which shall be conducted as well as the reasons why the evidence cannot be taken in another way;
- (ç the right of the person being subject to the biological sample taking or other medical procedure to be assisted by a defence lawyer or a person of his/her trust;
- d) the venue, date, time and accurate way of taking the biological sample or conducting the other medical procedure;
- dh) notification that the person subject to the taking of biological sample or the other medical procedure is obliged to appear and the warning for forced accompaniment, if he does not appear without legitimate reasons;

- e) where the defendant or the person having granted the consent for the biological sample taking or medical procedure, the prosecutor shall enclose the written consent to the file.
7. At least three days prior to the taking of biological sample or conduct of medical procedure, the decision provided for in the paragraph 5 of this Article shall be notified to the respective person.
8. When the person being subject to the biological sample taking or to the medical procedure is the defendant or the victim, the decision shall be notified to the defendant, the defence lawyer and the victim. If the person is not the defendant or the victim, the decision shall be notified to the person, the defendant, the victim and his/her defence lawyer. In case the person is a minor, the decision shall be notified to the parents or his/her legal guardian.
9. If the person being subject to the above procedures does not appear at the appropriate venue without legitimate reasons, the prosecutor may immediately request the court to order his/her forced accompaniment and decide taking of sample or accomplishment of the medical procedure. The judicial police shall enforce the court order.
10. In urgent cases, where there is reason to believe that the delay may cause the loss or harm to the authenticity of the evidence, the decision shall be taken by the prosecutor, who may order the forced accompaniment of the person.
11. Within 48 hours of the action being carried out, the prosecutor shall ask the court to validate the orders issued under paragraph 9 of this Article. The court shall validate the prosecutor's actions, within 48 hours, notifying the prosecutor and the defence lawyer.
12. In the event of taking a biological sample or conducting the medical procedure on the suspect or defendant, the presence of the defence lawyer shall be obligatory.
13. In the event of taking a biological sample or conducting the medical procedure on the minor, the presence of the parent, legal guardian or a person of his/her trust shall be mandatory.
14. The outcome of the biological samples tests or medical procedure taken in defiance of the provisions of this Article are non-usable.

Article 201/b
Destruction of biological samples

(Amended by Law no. 35/2017, dated 30.03.2017, Article 104)

1. The biological samples shall be preserved as long as they serve the purposes of proceedings. Their destruction shall occur pursuant to the rules of this Code.
2. Where the defendant is acquitted by final decision, the court shall order the destruction of biological samples taken from him.
3. The prosecutor, the victim or the legal representative of the victim may, within 60 days of the acquittal, request the court to order the maintenance of the biological samples taken from other persons, other than the defendant, as long as the samples shall be used in another criminal case. Otherwise, the court shall order the destruction.
4. Where the defendant is convicted, the biological samples taken from him shall be preserved for 20 years from the date the decision has become final.

5. The court may order the maintenance of the samples up to 40 years as long as the defendant has been declared guilty of criminal offence whereof the Criminal Code provides for an imprisonment sentence of not less than 10 years maximum.
6. The profiles of DNA samples taken at the crime scene and which are not attributed to a certain person shall be kept until prescription of the time limits for criminal prosecution is completed.
7. If the taking of samples is carried out in defiance of the provisions of this Code, the proceeding authority shall order their destruction.
8. The way of conservation of the samples, the procedure and the competent body for their destruction, shall be established by a joint instruction of the minister responsible for public security and minister responsible for health.

SECTION II SEARCHES

Article 202

Conditions for conducting searches

(Amended by Law no. 35/2017, dated 30.03.2017, Article 105)

1. When there are reasonable grounds to believe that someone is concealing material evidence of the criminal offence or items belonging to the criminal offence in his/her body, the court shall issue a body search warrant. When these items are located at a certain place, the place or house search warrant shall be issued.
2. The court which has issued the search warrant may act itself or order judicial police officers, specified in the search warrant, to conduct the search.
3. In case of flagrancy or chasing of a person fleeing, where it is not possible to obtain a search warrant, the judicial police officers shall conduct a search of a person or place, in compliance to the rules provided for in Article 298.

Article 202/a

Decision for permitting the search

(Added by Law no. 35/2017, dated 30.03.2017, Article 106)

1. The decision permitting the search shall indicate the type of search, the person being searched and his/her personal data, location or residence being bound to control, exhibits or things being searched, reasons permitting the search, as well as the authority to perform it.
2. Where there are grounded reasons that the data, information, IT programs or their traces are in an IT or telematics system, and this is protected by precautionary measures, the court shall make a decision on the search, by way of ordering the appropriate technical measures, which ensure the preservation of the original data and do not allow their modification. The decision imposing the search shall determine the type of information being required and the way of obtaining it.

3. The court shall make a substantiated decision in closed session, within 24 hours of the request of the prosecutor being filed. Against the decision rejecting the search request, a direct complaint may be filed with the appeal court within 24 hours. The appeal court shall decide within 48 hours of the acts being taken.

4. The search has to be completed within 72 hours from the moment the decision for its accomplishment has been made.

Article 203

Request for handing over

(Amended by Law no. 35/2017, dated 30.03.2017, Article 107)

1. Where a certain asset is being required, the proceeding authority may seek the handover. If the thing is handed over, the search shall not occur, except for the cases where behind the handover of the item there are reasonable grounds to believe that the search may discover trails or other things connected to the criminal offence.

2. To determine the items which could be sequestered or verify certain circumstances necessary for the investigation, the proceeding authority or its authorized judicial police officers shall be permitted to search bank operations, documents or correspondence.

Article 204

Search of persons

(Amended by Law no. 35/2017, dated 30.03.2017, Article 108)

1. Prior to conducting a body search, a copy of the search warrant shall be provided to the person subject to the search, informing him for the right to request the presence of a trusted person of him, provided that he can be found immediately and is appropriate.

2. The search shall occur abiding by the personal dignity of the person being searched. The search of the person shall be conducted by a person of the same gender, except in cases when this is not possible due to the circumstances.

Article 205

Search of places

(Amended by Law no. 35/2017, dated 30.03.2017, Article 109)

1. The defendant, if the latter is present, and the person possessing the premises, shall be handed over the search decision, while making them aware of the right to seek the presence of a person of their trust, who is there and appropriate under Article 108 of this Code, or his/her defence lawyer.

2. Where the defendant seeks the presence of the defence lawyer while conducting the search, the proceeding authority shall postpone the conduct of the search to the moment of arrival of the defence lawyer, however, not more than 2 hours from the moment that the defence lawyer has been informed about the search. During this period, the proceeding authority may restrict the movement of the interested person or other persons being at the location where the search shall be conducted.

3. The postponement of the search, under paragraph 2 of this Article, shall extend the respective time period provided for in paragraph 4 of Article 202/a of this Code.

4. The proceeding authority may search the persons being present, upon deeming that they may hide the exhibit or the things belonging to the criminal offence. It may order the persons being present not to leave prior to the search being completed and get those leaving coercively turned back.

5. Where the owner or the possessor of the item is not found, the proceeding authority shall carry out the search at the obligatory presence of the defence lawyer being appointed ex officio.

Article 206

Time for house searches

1. The search of a house or in closed places next to it cannot begin before 07:00 hours nor after 20:00 hours. In urgent cases, the proceeding authority can order in writing that the search is conducted outside these limitations.

Article 207

Sequestration during searches

(Amended by Law no. 35/2017, dated 30.03.2017, Article 110)

1. Items found out during a search shall be seized, provided that they are indicated in the decision authorizing the search.

2. Other items found during the search and not included in the respective decision, yet, connected to the same criminal offence, may be seized abiding by the provisions regulating sequestration.

3. When during the search items are discovered bearing no connection with the criminal offence wherefore the search decision has been issued, however, connected to another criminal offence being prosecuted ex officio, the discovered items shall be seized.

4. Regarding the sequestration carried out under the conditions of paragraphs 2 and 3 of this provision, the criteria of Article 301 of this Code shall apply.”

SECTION III SEQUESTRATIONS

Article 208

Scope of the sequestration

(Amended by Law no. 35/2017, dated 30.03.2017, Article 111)

1. A judge, or prosecutor, shall order by reasoned decision the sequestration of material evidence and items related to the criminal offence, when they are needed for evidencing the facts.

2. Sequestration shall be carried out by the person who has issued the sequestration order or the judicial police officer authorised by the same order.

3. A copy of the sequestration decision shall be delivered to the interested person.

Article 208/a

Sequestration of computer data

(Added by Law no. 10054, dated 29.12.2008, Article 3;

amended by Law no. 35/2017, dated 30.03.2017, Article 112)

1. In cases of proceedings against crimes concerning information technology, the court upon request of the prosecutor, shall order the sequestration of computer data or systems. With the same decision, the court shall establish the right to access, search and take computer data from the computer system as well as the prohibition to perform further actions or the securing of the computer data or system.
2. If there are reasonable grounds to believe that the computer data have been stored in another computer system or in any parts of it, and such data may be legally obtained by, or in the availability of, the initial computer system being controlled, the court upon request of the prosecutor shall immediately order the search or access to such computer system.
3. In executing the court decision, the prosecutor or the judicial police officer authorized by the prosecutor shall adopt measures:
 - a) to prevent any further action being taken or to secure the computer system or part of it or of another data storage device;
 - b) to take out and obtain copies of computer data;
 - c) to prevent the access to computer data, or to remove such data from accessible computer systems;(ç to ensure the inviolability of the relevant stored data.
4. For the executions of such actions, the prosecutor may order the summoning of an expert who is competent in the field of computer system functioning or the measures applied for the protection of the computer data. The summoned expert may not refuse to conduct the tasks assigned to him without reasonable grounds.

Article 209

Sequestration of correspondence

(Amended by Law no. 9085, dated 19.06.2003, Article 3)

1. When the court has grounded reasons to think that in the postal or telegraphic offices there are letters, securities, envelopes, parcels, telegrams and other items of correspondence which have been sent by or to the defendant, even under another name or through another person, it shall order for their sequestration.
2. When sequestration is performed by a judicial police officer, he must deliver to the judicial authority the correspondence items sequestered without opening and without having access to their content in any other way.
3. The sequestered items which do not classify as correspondence which may be sequestered shall be returned to their possessor and may not be used

Article 210

Sequestration at bank offices

(Amended by Law no. 9085, dated 19.06.2003, Article 4)

1. The court may order the sequestration of banks documents, securities, amounts deposited in current accounts and any other things, even if they are in safety boxes, when there are grounded reasons to think that they are connected to the criminal offence, even when they do not belong to the defendant or are not under his/her name. In urgent cases, such decision may be taken by the prosecutor.

Article 211

Obligation to hand over and maintain secrecy

(Amended by Law no. 35/2017, dated 30.03.2017, Article 113)

1. Persons bound to maintain professional or State secrecy must immediately hand over to the proceeding authority acts and documents, even in the original copies, and anything else being kept by them because of their duty, service or profession, except when they declare in writing that it is a State secret or a secret related to their duty or profession. In the latter case, the necessary verifications shall be conducted and, when it results that the declaration is groundless, the proceeding authority shall order for the sequestration.

2. When the competent authority confirms the state secrecy status, the proceeding authority shall inform the competent authority asking for confirmation to be given, and evidence is crucial to the solution of the case, the proceeding authority shall decide to acquire the evidence.

3. When within thirty days from the request the competent authority does not confirm the secrecy status, the proceeding authority shall order the sequestration.

Article 211/a

Sequestration at the offices of the intelligence services

(Added by Law no. 35/2017, dated 30.03.2017, Article 114)

1. Where it is necessary to perform sequestrations of documents, acts or other items at the offices of the intelligence services, the activity of which is connected to the national security, the court shall, in the reasoning of the sequestration decision, indicate in a detailed manner as possible, the acts or items being subject to sequestration.

2. The court shall authorise the prosecutor for examining the documents, acts and items to be sequestered, who he shall take only those which are indispensable for the purposes of the investigation.

3. Where there are reasonable grounds to believe that the documents, acts or items are not made available or are not complete, the court shall inform the competent body, which shall proceed to the delivery of the documents, acts or other items or to confirm their absence.

4. Where the need emerges for obtaining the original or the copy of the document, act or item created by a foreign intelligence service, having been given on the condition of non-dissemination, the examination and handover shall be suspended. In this case, the competent authority is promptly notified to communicate with the foreign authority for deciding on the further maintenance of secrecy. Within 60 days, the competent body shall authorise the handover of the document, act or item, or confirm the need to preserve the State secrecy.

5. If the competent body does not respond within the time limit provided for in paragraph 4, of this Article, the court shall order the taking of the document, act or item subject to sequestration.

Article 212

Challenging the sequestration decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 115)

1. The defendant, the person whose items have been sequestered and the one who has a claim on them, may lodge a complaint at the court, which rules by reasoned decision within 10 days.
2. An appeal may be proposed against the court decision within 5 days. The court of appeal shall issue a reasoned decision within 10 days of the receipt of the relevant acts.
3. The appeal does not suspend the execution of the decision.

Article 213

Copies of the sequestered documents

1. The preceding authority may order the issuing of copies of the sequestered acts and documents, returning the original copies and, when the original copies must be retained, order the secretariat to issue certified copies.
2. In any case, the person or office where the sequestration took place shall be entitled to hold a copy of the minutes of the sequestration.
3. If the sequestered document is part of a book or register from which it cannot be separated, and the proceeding authority needs the original document, the book or register shall remain at the disposal of the proceeding authority. The secretary of the proceeding authority shall issue to the interested persons upon their request, copies, extracts or certificates of parts of the book or register which have not been sequestered.

Article 214

Custody of sequestered items

1. Sequestered items shall be kept in custody at the secretariat. When this is not possible or appropriate, the proceeding authority shall order for them to be kept in custody in another place, specifying the manner of custody.
2. During the delivery, the person in charge shall be warned on the obligation of custody and presentation of items when requested by the proceeding authority as well as the punishment envisaged in the criminal law for violation of custody duty.

Article 215

Sealing of sequestered items

(Amended by Law no. 35/2017, dated 30.03.2017, Article 116)

1. Sequestered items shall be secured with the seal of the proceeding authority or, depending on the nature of the items, with other adequate means which indicate that they are kept for justice needs.

2. The proceeding authority shall issue copies of the documents and pictures or other reproductions of sequestered items which might change or are difficult to be preserved, which shall be attached to the documents and orders that they are filed with the secretariat.
3. For items which might change, the proceeding authority shall order, where appropriate, their transfer or destruction.
4. Upon the request of proceeding authority, the court may order the destruction of items that are prohibited to be produced, possessed, kept, traded when their safeguarding is difficult, especially costly, or is risky for the public security, public health or hygiene. In this case, the court orders the taking of samples and their preservation for proceeding purposes.
5. The proceeding authority informs the retained or *ex officio* appointed defence lawyer of the place and date when the samples will be taken, at least 24 hours in advance. Failure of the defence lawyer to attend the taking of samples does not prevent the proceeding authority from their taking.
6. The procedure for the destruction of the sequestered items, the time limit and the competent authority shall be established by a joint instruction of the Minister responsible for public order and security and the Minister of Justice. When possible, actions shall be documented by means of audio-visual tools and in any case minutes shall be kept, a copy of which shall be sent to the prosecution office at the court deciding the destruction.

Article 216

Opening and closing of seals

1. The proceeding authority, when it wants to open seals, verifies whether they are damaged and if it ascertains any changes, it shall record that in minutes. After the action which required the opening of seals is performed, the sequestered items shall be re-sealed, providing the date of intervention close to the seal.

Article 217

Return of sequestered items

1. When keeping the sequestration is not necessary any more for any evidence purpose, the sequestered items shall be returned to the one they belong to, even before a final decision is issued. When necessary, the proceeding authority shall order that such returned items are re-brought again at its disposal.
2. The court may also rule that the sequestered items are not returned if upon request of prosecutor or civil plaintiff the sequestration must be retained to secure the civil claim.
3. After the decision issued becomes final, the sequestered items shall be returned to the person they belong to, unless a confiscation order has been issued on them.

Article 218

Rules on returning of sequestered items

1. The court shall rule for the return the sequestered items where there is no doubt regarding their belonging.

2. When items are sequestered from a third party, their return may not be ordered in favour of other parties, without the third party being heard by the court.
3. During the preliminary investigations, the return of sequestered items shall be ordered by the prosecutor. Interested parties may appeal against such order at court.

Article 219

Disposal in case of non-restitution

1. If in a year from the day the decision becomes final the restitution request has not been filed or has not been admitted, the court which issued the decision shall order for the money or securities to be deposited in a bank, in a special account. Regarding the items, an order for their sell out shall be issued, while those which have a scientific or artistic value shall be transferred to the relevant institutions.
2. The sale may be ordered also before the time period indicated in paragraph 1, when the items may not be preserved without incurring the risk of being perished or with considerable expenses.
3. The amounts raised as a result of the sale shall be deposited in a special bank account.

Article 220

Expenses related to sequestered items

1. Expenses needed for maintaining sequestered items, shall be covered by the state, which shall have priority over any other creditor towards the amounts deposited from the non-returned items and values.

SECTION IV INTERCEPTIONS

Article 221

Limits of authorisation

(Amended by Law no. 9187, dated 12.02.2004, Article 2;

amended by Law no. 35/2017, dated 30.03.2017, Article 117)

1. Interception of communications of a person or of a telephone number, by means of telephone, fax, computer or any other kind of means, the secret interception by technical means of conversations in private place, the interception by audio and video in private places and the recording of incoming and outgoing telephone numbers, shall be allowed only where there is a proceeding:
 - a) for crimes committed by intent, punishable by not less than seven years' imprisonment, in the maximum term;
 - b) for each intentional criminal offence, if committed by telecommunication means or with the use of information or telematics technology;
 - c) for criminal offences referred to in letter »a of ,«paragraph 1, of Article 75/a, of this Code;
2. The secret photographic, film or video recording of persons in public places or the use of tracing means of the location is allowed only for the intentional criminal offences, punishable by not less than three years' imprisonment, in the maximum term.

3. An interception may be ordered against:

- a) a suspect for a criminal offence;
- b) a person who is believed receiving or transmitting communications to the suspect person;
- c) a person who takes part in transactions with the suspect;
- (ç a person whose surveillance may lead to the discovery of the location or the suspect identity.

4. The result of the interception is valid towards all persons involved in the communication.

5. Preventive interceptions shall be regulated by special law. The results of preventive interceptions cannot be used as evidence.

Article 222

Decision for authorisation of interception

(Amended by Law no. 9187, dated 12.02.2004, Article 3;

amended by Law no. 35/2017, dated 30.03.2017, Article 118)

1. Upon the request of the prosecutor, in the instances conceded in paragraph 1 of Article 221, the court shall authorise the interception upon a grounded decision, as long as it is indispensable for continuing with the initiated investigation and where a reasonable doubt exists against the person and based on evidence that he has committed a criminal offence.

2. When there are reasonable grounds to believe that the delay may bring a serious damage to investigations and the conditions of paragraph 1 of this Article, are met, the prosecutor shall establish the interception, by a reasoned act, and shall inform the court immediately, but not later than twenty-four hours of the decision taken. When the validation is not done within the due time limit, the interception cannot continue and its outcome cannot be used.

3. If any of the two persons to be intercepted is available to carry out and register the relevant action, pursuant to the agreement with the judicial police officer, such action can be carried out upon authorised by the prosecutor.

4. In the cases provided for in paragraphs 1, 2 and 3, of this Article, the court shall rule by reasoned decision in closed session within 24 hours of the submission of the prosecutor's request. Against the decision for the rejection of the interception's request, a special appeal may be lodged with the court of appeal within 24 hours. The appeal court shall decide within 48 hours of the receipt of acts. Submission of the request for the validation of interception does not result in its suspension.

5. The interception decision shall indicate the method and time limit for their execution, which cannot exceed fifteen days. Such time limit can be extended by the court for a period of 15 days, upon the reasoned request of the prosecutor, whenever it is necessary, provided that conditions provided for in paragraph 1 of this Article exist and the outcome of the interception dictate the need for extending the time period.

6. In the court decision on the secret photographic or video interception or on the interception of conversations in private locations, the judicial police officer or the qualified specialist may be authorised to access these locations secretly, acting in accordance with the decision. This authorisation shall be implemented within 15 days.

7. Any acts ordering, authorising, validating or extending interceptions, as well as the initiation or ending of any interception action shall be indicated in the register kept at the prosecution office.

8. In the cases referred to in Article 221, paragraph 2, the action is authorised by the prosecutor.

Article 222/a

Appeal against the decision authorising the interception

*(Added by Law no. 9187, dated 12.02.2004, Article 4;
amended by Law no. 35/2017, dated 30.03.2017, Article 119)*

1. An appeal may be made against a decision authorising an interception within ten days from the date the interested party learns about the interception, on the grounds of violation of the criteria referred to in Article 221.

2. The appeal shall be examined in closed session by the court of appeal. If the appeal is found grounded, the appeal court shall revoke the decision authorising the interception and order to erase all materials obtained through the interception.

Article 223

Actions of interception

*(Amended by Law no. 9187, dated 12.02.2004, Article 5;
amended by Law no. 35/2017, dated 30.03.2017, Article 120)*

1. The interception actions may be performed only through equipment installed in designed locations, authorised and controlled by the prosecutor. The interception and the transcript minutes shall be done by the judicial police officers, under the direction and supervision of the prosecutor of the case.

1/1. If any of the interception requirements no longer exists, the judicial police officer shall immediately notify the prosecutor, who shall order the interruption of the interception and inform the court, if the interception order has been issued by it.

2. Intercepted communications shall be recorded and minutes shall be kept for all actions carried out. The minutes shall include transcription of the contents of intercepted communications.

3. The minutes and the recordings shall be immediately handed over to the prosecutor and within five days of the conclusion of the actions, they shall be submitted to the secretary alongside with the rulings which have ordered, authorised, validated and extended the interception. When such submission may impair the investigations, the court shall authorise the prosecutor to postpone the submission until the conclusion of the preliminary investigations.

4. Defence lawyers or representatives of the parties shall immediately be informed on the submission with the secretary and on their right to examine the documents and to listen to the recordings. The court, after hearing the prosecutor and the defence lawyers, shall decide to remove the recording and minutes, whose use is prohibited.

5. The court shall order the full transcription of the recordings that need to be obtained. Such transcriptions shall be inserted in the judicial file. Defence lawyers can make copies of the transcriptions.

Article 224
Custody of documents

(Amended by Law no. 9187, dated 12.02.2004, Article 6)

1. Minutes and recordings shall be kept under the custody of the prosecution office which has ordered the interception until the decision becomes final, except for those of which use is prohibited. But, when these documents are not necessary, the interested persons may request their destruction. The court which has made the interception validation shall decide on such request. The destruction shall be made under the control of the judge and for the action performed minutes shall be kept.
2. When the prosecutor decides to terminate the case, he shall inform the court in writing on this decision. The court shall decide for destroying the minutes and recording within the time designated by it and inform the intercepted person. Upon the request of the prosecutor, such notification may not be served if there is a danger to the life or health of others or when a commenced investigation is endangered.

Article 225
Use of interception results in other proceedings

1. Interception results may be used in other proceedings only if they are indispensable for the investigation of crimes. In these cases, the minutes and recordings of the interception shall be filed with the other proceeding authority.

Article 226
Prohibition of use

1. The interception results may not be used when they are made outside of the cases permitted by law or if the provisions of this section have not been observed.
2. Interception of conversations or communications of those who are obliged to keep the secrecy because of their profession or duty may not be used, except when such persons have already testified on the same facts or have disclosed such information in any other way.
3. The court shall order the destruction of the documents of interceptions which are prohibited to be used, except when they constitute material evidence.

TITLE V
PRECAUTIONARY MEASURES

CHAPTER I
PERSONAL PRECAUTIONARY MEASURES

SECTION I
GENERAL PROVISIONS

Article 227
Classification of personal precautionary measures

1. Personal precautionary measures are classified in coercive and interdicted measures.

Article 228

Requirements for the application of personal precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 121)

1. No one may be subjected to personal precautionary measures unless there exists a reasonable suspect against him, based on evidence.
2. No measure can be applied if there are reasons for impunity or extinction of the criminal offence or of the penalty.
3. Personal precautionary measures shall be adopted:
 - a) when important reasons exist that put in danger the obtainment or the authenticity of evidence, based on factual circumstances that must be expressly set out in the reasoning of the decision;
 - b) when the defendant has fled or there is a risk that he might do so;
 - c) when, by reason of the particular circumstances of the fact and of the defendant's character, there exists the risk that he would commit serious criminal offences similar to the one he is being prosecuted for.

Article 229

Criteria for establishing personal precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 122)

1. In establishing any precautionary measures, the court shall consider the suitability of each of them with the level of precautionary needs in the actual case.
2. Each measure must be proportionate to the seriousness of the facts and to the sanction foreseen for the concrete criminal offence. The continuity, repetition and as well as mitigating or aggravating circumstances provided for by the Criminal Code shall also be considered. A pre-trial detention measure cannot be ordered if the court deems that, for the crime committed, a conditional sentence could be issued.
3. If the defendant is a minor, the court shall consider his/her highest interest and the request for an uninterrupted concrete educational process.

Article 230

Special criteria for establishing the pre-trial detention

(Amended by Law no. 35/2017, dated 30.03.2017, Article 123)

1. Pre-trial detention may be ordered only when all other measures are found inadequate because of the particular danger of the criminal offence and of the defendant.
2. Pre-trial detention cannot be ordered against a woman who is pregnant or has a child under the age of 3 years living with her, a person being in a particularly serious health state or who is older than seventy years or a drug-addicted or alcoholic person, who is undergoing a therapeutic programme by a special institution.
3. In the cases referred to in paragraph 2, pre-trial detention may be ordered only where there are reasons of a special importance and for crimes, which are punishable not less than ten years' imprisonment in the maximum term.

4. Minors accused of a criminal misdemeanour may not be arrested.

Article 231

Replacement or joining of personal precautionary measures

1. In case of breach of the obligations concerning a precautionary measure, the court may order its replacement or joining with another more severe precautionary measure, considering the seriousness, reasons and circumstances of the breach. For the breach of obligations related to an interdicted measure, the court may decide its replacement or joining with a coercive measure.

SECTION II

COERCIVE MEASURES

Article 232

Types of coercive measures

1. Coercive measures are:

- a) prohibition to expatriate;
- b) duty to appear at the judicial police;
- c) prohibition and duty to reside in a certain place;
(ç bail;
- d) house arrest;
- dh) precautionary detention in prison;
- e) temporary hospitalisation in a psychiatric hospital.

Article 233

Prohibition to expatriate

1. By a decision prohibiting to leave the country the judge shall order the defendant not to leave the Albanian territory without his/her authorization.
2. The court shall establish the necessary duties to ensure the enforcement of the decision and prevent the use of a passport and any other identifying documents valid for expatriation.

Article 234

Duty to appear at the judicial police

1. By a decision to appear before the judicial police, the court shall order the defendant to appear to a designated judicial police office.
2. The court shall determine the days and hours for appearance, taking into account the job and residence of the defendant.

Article 235

Prohibition and obligation to reside in a certain place

(Amended by Law no. 35/2017, dated 30.03.2017, Article 124)

1. By a decision prohibiting to reside, the court shall order the defendant not to reside in a certain place and not to go there without its authorization.
2. By a decision ordering the obligation to reside, the court shall order the defendant not to leave the municipality territory where he usually resides without its authorization. When, due to the character of the defendant or the landscape conditions, residing in such location does not satisfy the security needs, the obligation to reside another municipality territory may be ordered to.
3. When ordering the obligation to reside, the court shall also indicate the police authority where the defendant must appear without delay and declare the location where he will elect his/her residence. The court may order the defendant to declare to police authorities, the timing and places where he may be found each day.
4. Police authority shall be informed on court orders in order to supervise their observance and to report to the prosecutor any breach.

Article 236

Bail

(Amended by Law no. 35/2017, dated 30.03.2017, Article 125)

1. When the precautionary measure of pre-trial detention or house arrest has been established because of an escape risk, the court may decide its replacement, ordering the release of the person, if a bail has been offered by the person himself or another person to guarantee that he/she will not escape until the conclusion of the proceedings.
2. The court shall accept the bail at the conditions set out in the above paragraph even if the precautionary measure of pre-trial detention or house arrest must be imposed to the person due to the existence of a risk of escape, thus allowing him to be in free state.
3. The bail amount shall be determined by the court after hearing the opinion of the parties, based on the real securing needs, the personal and familiar conditions of the defendant, as well as on his/her financial situation.
4. When accepting the bail request, the court shall determine the amount to be deposited and the time within which the deposit should be done and, if deemed appropriate, it shall impose also one of the coercive measures provided for in letters "a", "b" and "c" of Article 232 of this Code. The defendant shall be held under the precautionary measures of pre-trial detention or house arrest until the bail amount is deposited. The prosecutor shall be notified immediately on the depositing.
5. Immediately after the depositing notice and, in any case no later than 24 hours of the notification for the depositing of the bail amount, the prosecutor shall verify the relevant documentation, ordering as appropriate the immediate release of the defendant or confirming the precautionary measure of pre-trial detention or house arrest.
6. If the defendant infringes the bail conditions, the court shall order the confiscation of the amount deposited as bail and establish the precautionary measure of pre-trial detention.

Article 237

House arrest

(Amended by Law no. 35/2017, dated 30.03.2017, Article 126)

1. By the decision of house arrest, the court shall order the defendant not to leave his/her residence or a certain location where he is domiciled, is being cured or taken care of.
2. When ordering this measure, the court establishes also the procedure for its execution and supervision.
3. The prosecutor and the judicial police shall supervise the observance of the orders issued to the defendant.
4. The duration of the house arrest shall be subject to the rules applicable to the precautionary detention in prison.
5. The period of stay under house arrest shall be calculated as part of the imposed sentence.

Article 238

Precautionary detention in prison

1. By a decision for the precautionary detention in prison, the court shall order the judicial police to get the defendant and immediately bring him to the precautionary detention premises to be held at the disposal of the proceeding authority.
2. The period of precautionary detention in prison shall be calculated as part of the imposed sentence.

Article 239

Temporary accommodation in a psychiatric institution

(Amended by Law no. 35/2017, dated 30.03.2017, Article 127)

1. When the person who must be arrested is mentally ill and by this reason his capacity to understand or express his/her will is totally lost or diminished, the court, in lieu of the precautionary detention in prison, may order his/her temporary accommodation in a psychiatric institution, establishing the necessary measures to prevent his/her escape.
2. Hospitalisation may not continue when it results that the defendant is no longer mentally ill.
3. Provisions of paragraph 2, of Article 238 of this Code shall apply.

SECTION III

INTERDICTIVE MEASURES

Article 240

Types of interdicted measures

1. Interdicted measures are the following:
 - a) the suspension from exercising a public duty or service;
 - b) the temporary prohibition to practice certain professional or business activities.

Article 241

Conditions for the application of interdicted measures

1. Interdicted measures may only be applied in proceedings concerning criminal offences punishable by law by more than one year imprisonment, in the maximum term.

Article 242

Suspension from carrying out a public duty or service

1. By a decision ruling the suspension from carrying out a public duty or service, the court shall impose to the defendant the total or partial prohibition to conduct activities related to such duties or services.
2. Such precautionary measure shall not apply to persons elected pursuant to the electoral law.

Article 243

Temporary prohibition of carrying out certain professional or business activities

1. By the ruling disposing of the prohibition to carry out certain professions or managing duties in legal entities, the court shall totally or partially prohibit the defendant temporarily, to carry out activities connected to them.

CHAPTER II

ISSUANCE AND ENFORCEMENT OF PRECAUTIONARY MEASURES

Article 244

Request for application of a precautionary measure

(Amended by Law no. 35/2017, dated 30.03.2017, Article 128)

1. Precautionary measures shall be ordered upon request of the prosecutor who presents to the competent court the reasons supporting his/her request. The decision shall be taken in closed session and issued in reasoned form.
2. Even if the court declares its lack of competence for any reason, in case the conditions and urgent need for the adoption of a precautionary measure exist, the court shall order the adoption of such precautionary measure and transfer the acts to the competent court.
3. The court cannot establish a precautionary measure that is more severe than the one requested by the prosecutor.

Article 245

Court decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 129)

1. The decision establishing a precautionary measure shall contain, under penalty of invalidity:
 - a) the personal data of the person subject to the precautionary measure or anything else suitable to identify him and, where possible, indication of the place where he is;
 - b) a summary description of the facts, indicating the legal provisions considered as violated;
 - c) presentation of the specific reasons and data legitimating the precautionary measure;

- presentation of the reasons for not accepting defence claims and, in case any of the coercive (c) precautionary measures referred to in Articles 237, 238 and 239 of this Code has been adopted, presentation of the reasons for deeming inadequate the other precautionary measures;
- d) determination of the measure duration, when it has been ordered to ensure the collection or the securing of evidence;
- dh) the date and signature of the presiding judge, those of the assisting secretary and the seal of the court.
2. Where the criminal offence has been committed by two or more persons, the court shall rule by the same decision, providing reasons for the conditions and criteria for each of them.

Article 246

Enforcement of the precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 130)

1. The police officer or agent entrusted with the execution of an arrest decision shall deliver copy of the relevant decision to the person subject to such measure and shall promptly inform him on the letter of rights, pursuant to paragraph 2, of Article 34/b of this Code. The judicial police shall keep minutes for all actions performed. Such minutes shall be then sent to the court which has issued the decision and to the prosecutor.
2. In case there is a doubt on the authenticity of the decision ordering the precautionary measure or the real identity of the person subject to such measure, the responsible judicial police officers and agents shall not execute it.
3. Decisions on other precautionary measures are notified to the defendant by the court.
4. After their notification or execution, decisions are filed with the secretary of the court, which has issued them. Defence lawyers are also notified on the filing.
5. A copy of the decision establishing an interdictive measure is sent to the authority that is competent to decide on the establishment of such a measure in the regular cases.
6. Every two months starting from the execution of an arrest decision, the prosecutor shall inform in writing the court establishing the precautionary measure on the conducted investigation activity and the security needs. The information shall contain data on the status of the proceedings, on the questioning of the defendant and other persons, a description of the information obtained and shall be accompanied by copies of the file's acts. If the prosecutor fails to provide information in due time, the court shall verify the security needs upon request of the defendant or *ex officio*. The court, after hearing the parties, decides to continue the application of, or to replace or revoke the precautionary measure. Provisions of Articles 248 and 249 of this Code shall apply.

Article 247

Search of the person who cannot be found

(Amended by Law no. 35/2017, dated 30.03.2017, Article 131)

1. When the person against whom a measure has been issued is not found, the judicial police officer or agent shall keep minutes to indicate the searches conducted and shall send it to the court that has issued the decision.

2. When the court believes that the searches are complete, declares the person escaped.
3. With the act declaring the person escaped, the court assigns a defence lawyer to the escaped person and orders that a copy of the decision applying the enforced measure, be filed with the secretary.
- 3/1. Escaped person shall be considered whoever, despite being aware, voluntarily avoids the execution of the precautionary measures referred to in Articles 233, 235, 237 and 238 of this Code, or of the imprisonment sentence.
- 3/2. The procedural consequences of the escape shall operate only within the proceedings wherein it has been declared. The escape state shall be preserved until the precautionary measure has been enforced, revoked or has lost its effects, or when the criminal offence or penalty for which such measure was adopted has been extinguished.
4. The person leaving the place where he is being held under custody, shall be considered equal, for all purposes, to the escaped person.
5. To facilitate the search of the escaped person, the court may order the interception of telephone conversations and other forms of communication.

Article 248

Questioning of the arrested person

(Amended by Law no. 35/2017, dated 30.03.2017, Article 132)

1. Not later than three days of the execution of the measure, the court shall question the person held in house arrest or pre-trial detention. The court shall proceed with the questioning within five days of the execution of the measure in case of other coercive or interdicted precautionary measures. The defence is entitled to be informed on the acts and obtain copies thereof.
2. The court shall, by way of questioning, verify the requirements and criteria for the application of the measure and the security needs provided for in Articles 228, 229 and 230 of this Code. If these conditions do not exist, the court decides to revoke or replace the measure. Otherwise, the court decides the continuation of its application. The court shall deposit its reasoned decision within 48 hours.
3. During the questioning of the arrested person, the prosecutor and defence lawyer shall take part, notified by the court secretary.
4. In the course of the judicial trial, the parties shall be entitled to submit evidence, except testimony evidence.
5. When the questioning of the arrested person must be made in the court of another district, the court shall ask that the questioning be made by a judge of such other court.
6. The prosecutor may not question the arrested person before the court has proceeded pursuant to paragraph 1 of this Article.

Article 249

Appeals against precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 133)

1. Against the decision of the court for the application of a precautionary measure, under Article 244 of this Code, an appeal may be lodged within five days of the notification of the court decision.

1/1 The prosecutor, the defendant and his/her defence lawyer may file an appeal against the court decision for the continuation, revocation or replacement of the precautionary measure under Article 248 of this Code within five days.

2. For the defendant who has escaped, the time limit starts to run from the date of the notification rendered pursuant to Article 141.

3. The appeal is filed with the secretary of the court that issued the decision, which is obliged to deliver the documents to the court hearing the appeal, within 3 days of the notifications.

4. The prosecutor, defendant and his/her defence lawyer are notified on the date of the hearing at least 3 days in advance.

5. The appeal shall be examined within ten days of the acts being received.

6. The court decides, as appropriate, the annulment, amendment or approval of the decision, even on different grounds from those presented or indicated in the reasoning part of the decision. The court shall deposit its reasoned decision within 10 days.

7. When the decision is not announced or enforced within the set time limit, the act based on which the coercive precautionary measure has been issued becomes void.

8. Against the decision of the court of appeal, an appeal may be lodged before the High Court on the grounds of law infringement, within its competence.

9. After six months of the execution of the arrest decision, the defendant and his/her defence lawyer may file and appeal to the court of appeal concerning to the duration of the precautionary detention in prison.

10. The court of appeal shall decide within fifteen days of the receipt of the acts.

Article 250

Calculation of time limits for the duration of measures

1. The effects of the precautionary detention in prison shall start to run from the moment of the arrest or detention.

2. If the defendant is held in pre-trial detention for another criminal offence, the effects of the measure shall start to run from the day on which the decision is notified.

3. The effects of the other measures shall start to run from the moment in which the decision is notified.

4. When against a defendant more decisions have been issued which establish the same measure for the same fact, the time limits shall start to run from the day on which the first decision has been executed or notified.

CHAPTER III

ARREST IN *FLAGRANTE DELICTO* AND DETENTION

Article 251

Arrest in *flagrante delicto*

1. Judicial police officers and agents shall arrest on a mandatory basis whoever is caught in *flagrante delicto* committing or attempting to commit a crime with intent, punishable by law by not less than five years' imprisonment in the maximum term.
2. Judicial police officers and agents shall be entitled to arrest whomever is caught in *flagrante delicto* committing or attempting to commit a crime with intent, punishable by law not less than two years' imprisonment as a maximum term or committing a criminal offence by negligence punishable by law not less than ten years' imprisonment as a maximum term.
3. In case of necessity, due to the importance of the fact or danger posed by the offender, substantiated by a separate document, judicial police officers and agents shall be entitled to arrest anyone in *flagrante delicto*, even if the requirements under paragraph 2 are not met.
4. In the cases provided for under paragraph 1, any person is authorised to arrest in *flagrante delicto* for crimes subject to prosecution *ex officio*. The person who has carried out the arrest shall immediately deliver the arrested to the judicial police, who shall keep the delivery minutes and provide a copy thereof.

Article 252

State of *flagrante delicto*

1. A person shall be considered in a state of *flagrante delicto* when caught in the act of committing a criminal offence or who immediately after committing the offence is chased by the judicial police, the injured person or other persons or who is caught with items and evidence from which it is appears that he has committed the criminal offence.

Article 253

Detention of the suspect of a crime

(Amended by Law no. 35/2017, dated 30.03.2017, Article 134)

1. When founded reasons exist to believe that there is a risk of escape, the prosecutor shall order the detention of the person suspected of having committed a crime, punishable by law by not less than four years' imprisonment, in the maximum term.
2. The judicial police shall perform the detention *ex officio*, in cases where, due to urgency reasons, it is not possible to wait for the prosecutor's order.

Article 254

Prohibition of arrest or detention under certain circumstances

1. No arrest or detention shall be allowed if according to the circumstances of the fact it appears that the action was carried out during the execution a duty or the exercise of a legitimate right or an impunity reason exists.

Article 255

Duties of the judicial police in case of arrest or detention

(Amended by Law no. 35/2017, dated 30.03.2017, Article 135)

1. The judicial police officers and agents who performed the arrest or detention or had the arrested person delivered into their custody must promptly inform the prosecution office of the place where the arrest or detention was carried out. They shall immediately inform the arrested or detained person that he/she is not obliged to make statements and if he/she decides to speak, everything he/she might say, shall be used against him/her in trial. The judicial police officers and agents shall inform the detained or arrested person of the right to choose a defence lawyer and shall then promptly notify the retained lawyer or, as appropriate, the one appointed by the prosecutor. The date, hour and the name of judicial officer that carried out the arrest or detention shall be noted in the minutes.
2. The judicial police officers and agents shall immediately place the arrested or detained person in the availability of the prosecutor, in the precautionary detention premises, as soon as possible, by sending the relevant minutes.
3. When the arrested or detained person is ill or a minor, the prosecutor may order that he is kept under custody at his/her house or in another surveilled place. If the letter of rights has not been provided to the arrested or detained person yet, he/she shall receive it immediately upon arrival at the pre-detention premises. If the arrested or detained person cannot read, one of the persons present shall read to him/her the letter of rights. This fact shall be recorded in the minutes and a signature shall be affixed.
4. Judicial police, with the consent of the arrested or detained person, shall promptly notify their family members. In cases when the arrested or detained person is a minor, the parent or legal guardian shall be notified, and the provisions of the code for minors shall apply.

Article 256

Questioning of the arrested or detained person

(Amended by Law no. 35/2017, dated 30.03.2017, Article 136)

1. The prosecutor shall question the arrested or detained person in the presence of his/her retained or *ex officio* - appointed defence lawyer. He shall inform the arrested or detained person on the facts he is being prosecuted for and the reasons for his questioning, indicating any information against him/her and, when this does not compromise the investigations, also the sources [of such information].
2. The prosecutor shall firstly ask the arrested or detained person whether he/she has been provided with the letter of rights and shall ensure that they have understood their rights. When the arrested or detained person has not been provided with the letter of rights, the prosecutor shall provide them with it prior to their first questioning and shall explain their rights.
3. Statements made by the arrested or detained person prior to receiving their letter of rights or prior to meeting with their defence lawyer, cannot be used.

Article 257

Cases of immediate release of the arrested or detained person

1. When it clearly appears that the arrest or detention was performed because of a mistake concerning a person's identity or in infringement of the law requirements or when the arrest or detention order have already lost their effect due to expiry of the time limit for the request of court validation, the prosecutor shall order, by reasoned decision, that the arrested or detained person be immediately released. In such

cases, the release shall also be ordered by the judicial police officer, who immediately notifies the prosecutor of the place where the arrest or detention took place.

Article 258

Request for the validation of the arrest or detention

1. When not ordering the immediate release, the prosecutor, no later than forty-eight hours of the arrest or detention, shall request the validation of the precautionary measure to the court of the place where the arrest or detention was carried out. Failure to comply with such time limit shall result in the invalidity of the arrest or detention.
2. The court shall schedule the validation hearing as soon as possible and shall notify the prosecutor and the defence lawyer.

Article 259

Validation hearing

(Amended by Law no. 35/2017, dated 30.03.2017, Article 137)

1. The validation hearing shall be conducted with the necessary presence of the prosecutor and defence lawyer. When the retained lawyer or the ex officio - appointed defence lawyer has not been found or has not appeared, the court shall appoint a substitute defence lawyer.
2. The prosecutor shall indicate the grounds for the arrest or detention. The court then hears the arrested or detained person and his/her defence lawyer, or only the latter, if the arrested or detained person has refused to appear. Evidence obtained in such hearing shall be considered as obtained during the trial, but, upon request of the parties, it may be subject to trial hearing, during the examination of the merits of the case.
3. When it appears that the arrest or detention has been carried out illegally, the court shall issue a decision on its validation. When there is a request by the prosecutor, the court shall assign a precautionary measure. An appeal may be filed against the decision of the court pursuant to Article 249 of this Code.
4. When the arrest or detention has not been lawfully conducted, the court shall order the immediate release of the arrested or detained person. An appeal may be filed by the prosecutor against such decision pursuant to Article 249 of this Code.
5. The arrest or detention shall lose its effect, if the court decision for the validation is announced within forty-eight hours of the submission of the prosecutor's request to the court.

CHAPTER IV

REVOCATION, REPLACEMENT AND EXTINCTION OF PRECAUTIONARY MEASURES

(Amended by Law no. 35/2017, dated 30.03.2017, Article 138)

Article 260

Revocation, replacement and joining of precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 139)

1. Precautionary measures shall be immediately revoked if it results that the requirements and criteria for their application do not exist.
2. If the security needs are mitigated or when the implemented measure is no longer respondent to the seriousness of the facts or to the sentence that might be issued, the court shall replace the measure with a less severe one.
3. If the security needs increase or the person infringes the obligations related to the precautionary measure, the Court, upon request of the prosecutor, may replace it with a more severe measure or order an additional coercive or interdictive precautionary measure. If obligations related to an interdictive measure are violated, the court may replace it with a coercive measure or impose an additional interdictive measure.
4. The request of the prosecutor or defendant for the revocation, replacement or joining of precautionary measures is adjudicated by the court where the acts were submitted, within five days of their filing. When appropriate, the court shall decide also ex officio on the revocation or replacement of the precautionary measure, during the questioning of the arrested person, pursuant to Article 248 of this Code, and in the cases referred to in paragraph 6 of Article 246, during the hearing for the pre-trial admission of evidence, the preliminary hearing or the trial hearing.

Article 261

Extinction of precautionary measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 140)

1. Precautionary measures cease their effect:
 - a) when, for the same act and against the same person, the case has been dismissed or a decision of acquittal has been issued;
 - b) when the sentence is declared extinct or suspended on condition;
 - c) when the period served in precautionary detention in prison is longer than the sentence issued;
 - (ç when after the expiry of the time limit provided for under letter “d”, of paragraph 1, of Article 245, of this Code, a repetition has not been ordered within the limits provided for under Articles 264 and 267.
2. Precautionary detention in prison that is ordered during preliminary investigations shall cease its effects if the court does not proceed with the questioning within the time limit provided for under Article 248.
3. The request for the extinction of the precautionary measure shall be presented together with relevant documents to the court where the acts are, at the moment the request is filed. The court shall decide on the request within 48 hours, after notifying the parties. Failure of the parties to appear, without any founded reason, shall not prevent the court from taking a decision in their absence. Time limits for decision reasoning and appeal, shall be subject to the rules set out under Articles 248 and 249 of this Code.
4. Extinction of the precautionary measures does not prevent the court or any other authority to exercise the rights attributed to them by the law for the enforcement of the supplementary punishments or of the other interdictive measures.

Article 262

Consequences of the extinction of precautionary measures

1. When a precautionary detention measure ceases to have effects, the court shall order the immediate release of the person subject to such measure.
2. In cases when other precautionary measures cease to have effect, the court shall decide their immediate removal.

Article 263

Time limits for the precautionary detention in prison

(Amended by Law no. 35/2017, dated 30.03.2017, Article 141)

1. Precautionary detention in prison ceases to have effect, if from the beginning of its execution, the following time limits have lapsed without the acts being filed to court:
 - a) three months, when proceeding for criminal contraventions;
 - b) six months, when proceeding for crimes punishable by up to ten years' imprisonment, in the maximum term;
 - c) twelve months, when proceeding for crimes punishable by not less than ten years' imprisonment, in the maximum term, or with life imprisonment.
2. Precautionary detention in prison ceases to have effect, if from the date of submission of the documents to court, the following time limits have lapsed without a conviction decision being issued in the first instance:
 - a) two months when proceeding for criminal contraventions;
 - b) nine months, when proceeding for crimes punishable by up to ten years' imprisonment, in the maximum term;
 - c) twelve months, when proceeding for crimes punishable by not less than ten years' imprisonment, in the maximum term, or with life imprisonment.
3. Precautionary detention in prison ceases to have effect, if from the date of issue of the sentence in the first instance, the following time limits have lapsed, without a decision being issued in the court of appeal:
 - a) two months, when proceeding for criminal contraventions;
 - b) six months, when proceeding for crimes punishable by up to ten years' imprisonment, in the maximum term;
 - c) nine months, when proceeding for crimes punishable not less than ten years' imprisonment, in the maximum term, or life imprisonment.
4. In case where the decision is quashed by the High Court and the case is returned to the court of first instance or court of appeal as well as when the decision is quashed by the court of appeal and returned to the court of first instance, time limits provided for each instance of the proceedings start to run again from the day of issuance of the decision of the High Court or the court of appeal.
5. In case where the defendant under precautionary detention in prison escapes, time limits start to run again from the moment he is placed in detention in prison again.
6. The entire time period for the precautionary detention in prison, taking also into account the extension provided for under Article 264, paragraph 2, shall not exceed the following time limits:
 - a) ten months, when proceeding for criminal contraventions;

- b) two years, when proceeding for crimes punishable by up to ten years' imprisonment, in the maximum term;
 - c) three years, when proceeding for crimes punishable by not less than ten years' imprisonment, in the maximum term, or life imprisonment.
7. When at the end of the time limit for the precautionary detention in prison, the prosecutor notified to the defendant a new charge, which provides for longer precautionary detention time limits, he/she asks the court to assign a new time limit for the precautionary detention in prison. The court shall decide in judicial hearing, after hearing the parties.
8. When the new charge relates to a new fact, which was unknown at the beginning of the proceedings, the court shall assign a new time limit, which starts to run from the beginning, whereas in cases where only the legal qualification of the offence changes, the court shall apply the precautionary measure, and the time limit shall start to run at the same moment of the previous precautionary measure.

Article 264

Extension of the precautionary detention in prison

1. At any stage and instance of the proceedings, when the examination of the defendant's mental state has been ordered, the time limits for the precautionary detention in prison shall be extended for the time assigned to conduct the examination. The extension is decided by the court, upon request of the prosecutor, and after hearing the defence lawyer. Against the decision of the court, an appeal at the court of appeal or directly at the High Court may be filed.
2. During preliminary investigations, the prosecutor may request the extension of the time limits of the precautionary detention in prison, that are expiring, when there are serious security needs and special complex verifications which render such extension indispensable. The court shall take a decision after hearing the prosecutor and defence lawyer. Extension may be done only once for a period of time not exceeding three months.
3. The time limits for precautionary detention in prison may not exceed half of the maximum punishment provided for the criminal offence under proceeding.

Article 265

Suspension of time limits for the precautionary detention in prison

1. Time limits provided for under Article 263 may be suspended by a court decision subject to appeal:
 - a) for the time the judicial hearing is suspended or postponed because of the unjust acts or requests of the defendant or his defence lawyer, except in cases where the request is made to obtain evidence;
 - b) for the time the judicial hearing is suspended or postponed by reason of the non-appearance or withdrawal of one or more defence lawyers, who leave one or more defendants without legal assistance.

Article 266

Decisions in case of release from prison

1. When the defendant has been released from prison because of the expiry of the time limits, the court, if the reasons under which the precautionary detention in prison was ordered still exist, shall establish another precautionary measure, provided the required conditions exist.
2. Precautionary detention in prison, when necessary, may be renewed:
 - a) when the defendant has intentionally breached the orders issued relating to a precautionary measure adopted pursuant to paragraph 1, but always when the security needs exist;
 - b) with the conviction decision, when the security needs provided for under Article 228, paragraph 3, exist.
3. With the renewal of the precautionary detention in prison, the time limits start to run again but, for the purposes of the calculation of the total precautionary detention period, the time served under the previous precautionary detention measure is also taken into account.
4. The judicial police officers and agents may arrest a defendant who has escaped, infringing the orders related to a precautionary measure issued pursuant to paragraph 1 of this Article. Provisions on the detention of a suspect for committing a criminal offence shall be apply, *mutatis mutandis*.

Article 267

Maximum time limits for other precautionary measures

1. Coercive measures other than precautionary detention in prison shall cease to have effect, when a period corresponding to twice the length of the time limits provided for under Article 263 has lapsed, from the time of their execution.
2. Interdictive measures cease to have effect, when three months have lapsed since they started to be executed. When they have been issued to preserve the evidence, the court may order their renewal up to the limits provided by paragraph 1.

CHAPTER V

COMPENSATION FOR UNJUST IMPRISONMENT

Article 268

Requirements for application

1. Whoever is declared innocent by a final decision is entitled to compensation for the precautionary detention served in prison, except in the cases when it is proven that the wrongful decision or failure to discover the unknown fact in due time, is caused, wholly or in part, by the person himself.
2. The same right belongs to a convicted person, who has been placed in precautionary detention in prison, when it is proven by a final decision that the act by which the precautionary measure was established, has been issued in absence of the requirements provided for by Articles 228 and 229.
3. Provisions of paragraphs 1 and 2 shall also apply in favour of the persons whose cases have been dismissed by the court or the prosecutor.

4. When it is proven by a court decision that the act is not provided under the law as a criminal offence, due to the abrogation of the relative provision, the right of compensation is not recognized for the part of precautionary detention in prison served before the abrogation.

Article 269

Request for compensation

1. The request for compensation must be submitted, under penalty of inadmissibility, within three years of the day in which the judgment of acquittal or dismissal has become final.
2. The compensation amount, the method for its calculation, and the cases of house arrest compensation, are established by special law.

CHAPTER VI

PROPERTY PRECAUTIONARY MEASURES

SECTION I

PROPERTY SEQUESTRATION ORDER

Article 270

Conditions and effects of the order

1. When there are founded reasons to believe that there no guarantees exist for the payment of a fine sentence, of the proceedings expenses and of any other obligation to the State property, the prosecutor shall request the conservative sequestration of the defendant's movable or immovable assets, or of the sums of money or items that others owe him, within the limits allowed by the law for their sequestration.
2. The plaintiff may request the conservative sequestration of the property of the defendant or of the civil defendant, when the conditions provided for by paragraph 1 exist.
3. The sequestration established upon the request of the prosecutor is also valid for the civil plaintiff.

Article 271

Court decision on sequestration

1. Conservative sequestration is established by decision of the competent court.
2. When the decision has been issued by the first instance court, the sequestration is executed before documents are sent to the court of appeal.
3. The sequestration is executed by the court bailiff pursuant to the rules established by the Civil Procedure Code.
4. The sequestration ceases its effects when the decision of acquittal or dismissal of the case becomes final.

Article 272

Offer to secure the obligation

1. When the defendant or the civil defendant offers a suitable legal means to guarantee the obligation (pawn, guarantee, deposit, mortgage), the court shall not order the conservative sequestration or shall revoke it and establish the method for fulfilling the obligation.

2. When the offer is proposed with the appeal, the court shall revoke the sequestration if it deems that the guarantee offer is proportionate to the value of the sequestered items.

Article 273

Execution of the sequestration order

1. The conservative sequestration is converted into enforceable sequestration when the fine sentence or the decision for the obligation of the defendant and of the civil defendant to compensate damages become final.

2. Mandatory execution of the sequestered property is carried out pursuant to the rules provided for under the Civil Procedure Code. The proceeds of sale of the sequestered property and of the instruments offered to guarantee the obligation shall be used to pay off, in order, the amounts due to the plaintiff as compensation for damages and legal expenses, fine sentences, proceedings expenses and any other amounts in favour of the State.

SECTION II

PREVENTIVE SEQUESTRATION

Article 274

Object of the preventive sequestration

(Amended by Law no. 9085, dated 19.06.2003, Article 5)

1. When there is a danger that free possession of an item related to the criminal offence may aggravate or prolong its consequences or facilitate the commission of other criminal offences, the competent court, upon request of the prosecutor, shall order its sequestration by reasoned decision.

2. Sequestration may also be ordered for items, proceeds of the criminal offence and for any other kind of property that can be confiscated under Article 36 of the Criminal Code.

3. When the conditions for its implementation change, the court, upon request of the prosecutor or interested persons, shall remove the sequestration.

Article 275

Cessation of sequestration

1. The court or prosecutor that issues the decision of acquittal or dismissal of the case, orders the return of sequestered items to the one to whom they belong, unless they [the items] must be confiscated because they have served or were assigned to commit a criminal offence or because they are a product or profit of the criminal offence.

2. When a decision of conviction has been issued, the sequestration shall continue its effects if the confiscation of the sequestered items has been ordered.

3. The sequestered items are not returned if the court decides to maintain the sequestration to guarantee the receivables.

Article 276

Appeal against the decision

1. Whoever has an interest may appeal against the issuance or rejection of the sequestration order.
2. The appeal may be filed within ten days from the issuance of the decision or from the day the interested person receives notice of the sequestration.
3. The appeal is filed with the secretary of the court which has issued the decision.
4. The appeal does not suspend the execution of the order.
5. The court of appeal rules on the appeal within fifteen days from receiving the documents.
6. The court decides, as appropriate, the annulment, amendment or approval of the appealed decision.

PART II

TITLE VI

PRELIMINARY INVESTIGATIONS

CHAPTER I

GENERAL PROVISIONS

Article 277

Authorities entrusted with the preliminary investigations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 142)

1. The prosecutor and the judicial police conduct, within their respective competences, the necessary investigations in relation to the criminal prosecution.
2. The prosecutor leads the investigations and shall have judicial police at his/her disposal.
3. Repealed

Article 278

Competences of the first instance court during preliminary investigations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 143)

1. During preliminary investigations, in cases provided for by the law, the Court shall rule on the requests of the prosecutor, the defendant, the victim and private parties.
2. Requests of parties during the preliminary investigations, pursuant to paragraph 1 of this Article, shall be adjudicated by the same judge.

Article 279

Obligation to keep secrecy

(Amended by Law no. 35/2017, dated 30.03.2017, Article 144)

1. Investigation documents are secret until the defendant has not received any information about them. When it is necessary for the continuation of the investigations, the prosecutor may order that particular documents be kept secret until the conclusion of the investigation.

2. The prosecutor may allow, by reasoned decision, the publication of particular documents or parts thereof. The documents made public are filed with the prosecutor's secretary office.

3. Even when the acts are no longer bound by secrecy, pursuant to paragraph 1 of this Article, in cases when this is necessary for the continuation of the investigations, the prosecutor may rule, by reasoned decision:

- a) the obligation to preserve secrecy on specific acts, when the defendant gives his/her consent or when the content of the act might jeopardise investigations against other persons;
- b) the prohibition of the publication of the contents of specific acts or data related with certain investigative actions.

Article 279/a

Victim's right to information

(Amended by Law no. 35/2017, dated 30.03.2017, Article 145)

1. For legitimate reasons, the victim, its legal representative or defence lawyer, are entitled to request information on the state of the proceedings, and to have access and receive copies of acts and evidence contained in the prosecutor's file.

2. The prosecutor may refuse the request if:

- a) the interest of preserving the secrecy of the investigation exceeds the victim's interest;
- b) the interest of the defendant exceeds the victim's interest;
- c) the victim has not yet been examined as a witness.

3. The victim, its legal representative or defence lawyer are entitled to request information concerning the application, extension, replacement or revocation of precautionary measures against the defendant, unless the notice on these facts could endanger the life or health of the defendant.

CHAPTER II

RECEIVING NOTICE OF THE CRIMINAL OFFENCE

Article 280

Receiving notice of the criminal offence

1. The prosecutor and the police receive notice of criminal offences on their own initiative and upon notice made by others.

Article 281

Criminal report by public officials

1. Public officials, who during the course of their work or because of their functions or service, receive notice of a criminal offence that is prosecuted ex officio, are obliged to lodge a written criminal report even if the person to whom the criminal offence is attributed is not identified.
2. The criminal report is presented to a prosecutor or judicial police officer.
3. If, during a civil or administrative proceeding, an act which constitutes a criminal offence prosecuted ex officio is discovered, the relevant body files a criminal report with the prosecution office.
4. The criminal report shall contain the essential elements of the act, the sources of evidence, personal data, address and anything else which serves to identify the person whom the act is attributed to, the victim and those who are able to clarify the circumstances of the act.

Article 282

Criminal report from medical personnel

1. The medical personnel that is legally obliged to lodge a criminal report, must present it within forty-eight hours and send it to the prosecutor or any judicial police officer of the place where he/she has intervened or provided the medical assistance and, when the delay may result in a danger, to the nearest judicial police officer.
2. The criminal report filed by the medical personnel shall provide information as to the person to whom the assistance was given and, when it is possible, his/her personal data, residence and anything else that serves to identify him, the circumstances of the act, the means used to commit it and its consequences.
3. When several persons have provided their medical assistance in the same case, all of them are obliged to file a criminal report and being entitled to draft and sign one single document.

Article 283

Criminal report from citizens

(Amended by Law no. 35/2017, dated 30.03.2017, Article 146)

1. Any person that has received notice of a criminal offence which is prosecuted ex officio must lodge a criminal report of it. In cases specified by law, lodging of a criminal report is compulsory.
2. The criminal report shall be lodged in oral or written form to the prosecutor or to a judicial police officer, in person or through a representative.
3. Anonymous criminal reports cannot be used, except in cases provided for by Article 194. The content of the anonymous criminal report may be verified by the prosecutor or the judicial police in order to ensure elements of evidence which corroborate their truthfulness.

Article 284

The criminal complaint

*(Paragraph 1 amended by Law no. 8813 of 13.06.2002;
amended by Law no. 35/2017, dated 30.03.2017, Article 147)*

1. For the criminal offences referred to in Articles 84, 89, 102 paragraph 1, 105, 106, 130, 148, 149, 243, 254, 264, 275, 290, paragraph 1, and 318 of the Criminal Code, prosecution shall commence only upon complaint of the victim, who may withdraw it at any stage of the proceedings.
2. The complaint shall be lodged by the victim to the prosecutor or the judicial police by means of a declaration expressing, either personally or through a special representative, the will to proceed in relation to an act provided for by the law as criminal offence.
3. If the complaint is made orally, the minutes kept for this purpose shall be signed by the complainant or his representative.
4. The person who receives the complaint ensures about the identity of the complainant and submits the documents to the prosecutor.
5. In the cases referred to in Article 59, the complaint is submitted at the court by the accusing victim.

Article 285

Waiver of the right of complaint

1. Waiver of the right to lodge a complaint is made personally or through a representative, by means of a signed or oral statement before the prosecutor or a judicial police officer, who keeps minutes, to be mandatory signed by the person making the statement.
2. Provisional or conditional waiver is not valid.
3. The same statement may also contain the waiver in respect of the civil claim.

Article 286

Withdrawal of the complaint

1. The withdrawal of a complaint is made personally or through a representative by means of a statement submitted to the proceeding authority.
2. The withdrawal of a complaint may be made at any stage of the proceedings, until the court decision has become final.
3. The proceedings expenses shall be borne by the person who withdraws the complaint, except when the withdrawal statement provides, by agreement, that they shall be borne, in whole or in part, by the one against whom the complaint has been lodged.

Article 287

Recording a notice of criminal offence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 148)

1. The prosecutor shall enter into the register every notice of criminal offences brought to him or received by him upon his own initiative and, simultaneously or since the moment it is found out, the name of the person to whom is attributed the criminal offence.
2. When, during preliminary investigations there are changes in the legal qualification or any circumstances related to the criminal offense, the prosecutor shall order their registration, pursuant to paragraph 1 of this Article.

3. It is prohibited to make public these registrations, until the person to whom is attributed the criminal offence is taken as a defendant.

CHAPTER III PROCEEDING REQUIREMENTS

Article 288

(Amended by Law no. 35/2017, dated 30.03.2017, Article 149)

1. The prosecutor shall file a request for authorisation with the Parliament if any of the precautionary measures of pre-trial detention or house arrest, any restriction of personal freedom in any form, or a personal or house search, must be established against a member of Parliament.
2. The request for authorisation shall be filed when the legal requirements provided for in the Criminal Procedure Code are met, for carrying out the actions foreseen in paragraph 1 of this Article. The request shall be supported by a reasoned report, accompanied by the evidence supporting his request.
3. If a member of the Parliament has been arrested in *flagrante delicto*, the Chief of the Special Prosecution Office shall immediately notify the Parliament. If the Parliament decides to revoke the order of arrest in *flagrante delicto*, the member of the Parliament shall be immediately released.

Article 289

Permission to carry out actions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 150)

1. Failure to obtain authorization, pursuant to Article 288 of this Code, shall not prevent the prosecutor from requesting another precautionary measure, pursuant to Article 244 nor to proceed against him/her or other persons under investigation for the same act.
2. In case the needs for precautionary measures aggravate or when new facts or circumstances result from investigations, the prosecutor may request to the Parliament an authorisation, pursuant to paragraph 1 of Article 288, of this Code.
3. The revocation of the measure of arrest in *flagrante delicto*, pursuant to paragraph 3 of Article 288, of this Code, shall not prevent the prosecutor from filing a request for authorisation with the Parliament, pursuant to paragraph 1 of Article 288.

Article 290

Circumstances that do not allow the initiation of proceedings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 151)

1. Criminal proceedings shall not commence when:
 - a) the person has died;
 - b) the person has no criminal responsibility or has not reached the criminal liability age;
 - c) the complaint of the victim is lacking or he/she withdraws the complaint;
(ç the act is not provided by law as a criminal offence or when it is clearly proven that the act does not exist;
 - d) the criminal offence has been extinct;

- dh) an amnesty has been issued;
- e) in all other cases provided for by the law.

Article 291

Decision not to initiate proceedings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 152)

1. When the circumstances that do not allow the initiation of proceedings exist, the prosecutor issues a reasoned decision not to initiate the proceedings, within 15 days of the filing of the criminal report.
2. Notice of the decision is served promptly to those who have lodged a criminal report or a complaint, to the victim or the victim's heirs, who may file a complaint with the court, within 10 days of the notification of the decision.
3. The judge who adjudicates on the requests of the parties during preliminary investigations, shall examine the complaint within 30 days of its submission. The complaint shall be examined in a trial hearing, however failure of the parties to appear, without reasonable cause, will result in the court deciding without their presence.
4. When the complaint is found to be grounded, the court orders the obligation of the prosecutor to register the proceeding and to carry out the necessary investigations, indicating also their direction.
5. The parties may lodge a complaint with the court of appeal against the decision within 10 days. The court of appeal shall decide within 30 days of the receipt of the acts.

Article 292

Resumption of investigations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 153)

1. The decision to not initiate or dismiss the proceedings, issued due to lack of a complaint, shall not prevent the conduction of investigations for the same act and against the same person, if a complaint is subsequently lodged.

CHAPTER IV

EX OFFICIO ACTIVITIES OF THE JUDICIAL POLICE

Article 293

Reporting a criminal offence to the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 154)

1. Upon receiving notice of a criminal offence, the judicial police shall, without delay, but not later than 72 hours, report in writing to the prosecutor the essential elements of the act and the other elements gathered until that moment, indicating the sources of evidence, the actions taken, and makes available to the prosecutor, for evaluation, all acts and evidence collected.

2. In urgent cases and for serious crimes, the report is made immediately, also orally, which does not exclude the obligation to report in writing.
3. Judicial police also indicates in the report the date and time when they received notice of the criminal offence.

Article 294

Preserving sources of evidence

(Amended by Law no. 9276 dated 16.09.2004, Article 6;

amended by Law no. 35/2017, dated 30.03.2017, Article 155)

1. The judicial police, even after a report of a criminal offence, shall continue to perform the functions provided for under Article 30, gathering and recording every element valid for the reconstruction of the fact and for identifying the perpetrator. In particular, it proceeds:
 - a) in searching for and recording items and traces of the criminal offence, as well as in preserving them and the crime scene for as long as this is necessary;
 - b) in searching for and questioning the persons who can indicate the circumstances of the act.
 - c) in performing the actions provided for in the following Articles.
2. After the prosecutor has intervened, the judicial police shall carry out all actions ordered or delegated specifically by the prosecutor and shall carry out by initiative any other necessary investigative action and obtain new sources of evidence.
3. When performing actions which require special technical knowledge, on its own initiative or delegated by the prosecutor, the judicial police may engage experts, who cannot refuse the assigned tasks, without legitimate reasons.

Article 294/a

Simulated actions

(Added by Law no. 9187 of 12.02.2004, Article 7;

amended by Law no. 35/2017, dated 30.03.2017, Article 156)

1. A judicial police officer or an authorized person, may be engaged to make a simulated purchase of items that are prohibited to be produced, owned, held or traded, or items that derive from a crime or the simulation of a corruptive act or to carry out other simulated acts, in order to detect and collect evidence on persons suspected of committing a crime, by concealing the cooperation with the police or their duty as police employees.
2. These actions are carried out with the authorization and under the supervision of the prosecutor, overseeing the investigations, or of the prosecutor who has territorial competence on the place where the action will take place. After carrying out such actions, the judicial police must submit to the prosecutor all the evidence collected and a summary report.
3. A criminal act should not be provoked, by abetting a person to commit a crime, which he would not have committed, if police had not intervened. Where provocation is proven, the results cannot be used.

Article 294/b

Infiltration in criminal groups

*(Added by Law no. 9187 of 12.02.2004, Article 7;
amended by Law no. 35/2017, dated 30.03.2017, Article 157)*

1. For the purposes of detecting serious crimes, a judicial police officer or agent may, with the authorization and under the supervision of the prosecutor, be infiltrated into a criminal group in order to identify the members of the group and collect information necessary for the investigation, concealing his cooperation with the police or his duty as police employee.
2. The infiltrated judicial police employee should not provoke a criminal act that would not have been committed without his intervention. When provocation has been proven, the results cannot be used.
3. The authorization of the prosecutor must specify the time period of the infiltration, which may be extended by the prosecutor for up to six months and the permitted scope of the infiltrated employee, indicating, as appropriate, the illegal actions that he may commit, without endangering the life of others.
4. The infiltrated judicial police employee may be questioned as a witness. If the testimony received from infiltrated persons is essential to resolving the case, the testimony shall be taken by observing the rules on the preservation of anonymity of the informant. When the latter are not summoned as witnesses, information provided by them cannot be used.

Article 294/c

Controlled delivery

(Added by Law no. 35/2017, dated 30.03.2017, Article 158)

1. Controlled delivery shall be authorised by the prosecutor directing the preliminary investigations, upon request of competent authorities.
2. Controlled delivery may be authorized in the following cases:
 - a) when the persons suspected of being involved in the transportation of narcotic substances, weapons, stolen items, nuclear or explosive materials, radioactive materials, amounts of money or other proceeds [which are] products of a criminal offence, or items used to commit criminal offenses, cannot be identified or arrested by other means, or when their identification or arrest would harm investigations or would jeopardize the safety of persons or [cause] the damage or loss of the items being transported;
 - b) when the detection of criminal offences and obtaining of evidence is impossible or extremely difficult to carry out by other means.
3. Controlled delivery is made according to conditions set by the prosecutor, who orders it by a reasoned act after ensuring that the authorities of foreign countries:
 - a) have given their consent for illegal or suspected items to enter, transit or exit from their territory;
 - b) guarantee constant supervision of the entry, transit or exit of items from their territory;
4. Prosecutor's order authorising controlled delivery should contain:
 - a) the name of the suspect or defendant, if known;
 - b) evidence proving the illegal nature of the items that need to enter, transit or exit the territory of the State and the way their control or supervision shall be carried out.

5. Where appropriate, the prosecutor's order shall be attached to the act authorising the full or partial replacement of illegal items and the place where the samples received are placed.
6. Controlled delivery shall be executed by the judicial police, under the supervision and control of the prosecutor.

Article 295

Identification of the person under investigation and of other persons

(Amended by Law no. 35/2017, dated 30.03.2017, Article 159)

1. Judicial police shall identify the person under investigation as well as persons who may provide useful data for the reconstruction of facts.
2. Judicial police shall carry out all necessary actions for the identification of the person under investigation, including fingerprints, photographic and anthropometric examinations.
3. When the identification includes the collection of biological samples, the judicial police shall proceed pursuant to Article 201/a of this Code.
4. When the person refuses to identify himself or presents personal data or identity cards that are suspected to be false, judicial police shall accompany him/her to its offices and hold him there for as long as it is indispensable for his identification, but not longer than twelve hours.
5. The prosecutor shall be immediately informed on the person's accompaniment or release as well as on any action taken pursuant to this Article.

Article 296

Information from the person under investigation

(Amended by Law no. 35/2017, dated 30.03.2017, Article 160)

1. Judicial police officers shall collect information from the person under investigation in the mandatory presence of his lawyer, except in the cases of a person arrested in flagrante delicto or placed under temporary detention, who shall be questioned following the rules provided for by Article 256. If the defence lawyer has not been found or has not appeared, the judicial police shall require the prosecutor to appoint another lawyer. In any case, before proceeding with the questioning, he shall be provided with the letter of rights. Rules provided for by Articles 34/a and 38 of this Code shall apply.
2. At the crime scene or immediately after the offence has been discovered, judicial police officers may, even in the absence of the defence lawyer, obtain information from the person under investigation, necessary for the continuation of the investigation, even if he/she is arrested in flagrante delicto or under detention. The obtained information shall not be documented and their use as evidence is prohibited.
3. If the person under investigation appears and requests to provide statements, the judicial police shall proceed by receiving them. Their use is not allowed at trial, except when used to rebut a statement made before the court.

Article 297

Gathering other information

(Amended by Law no. 35/2017, dated 30.03.2017, Article 161)

1. Judicial police shall gather information from persons who may indicate useful circumstances for the purposes of investigation.
2. Provisions of Articles 155 to 160 shall apply.
3. If information needs to be obtained from a minor, the parent or legal guardian or an adult person, chosen by the minor, as well as a psychologist, should be present.

Article 298

Searches

(Amended by Law no. 35/2017, dated 30.03.2017, Article 162)

1. In the cases of *flagrante delicto* or pursue of a person escaping, the judicial police officers shall perform a search on the person or premises when they have reasonable grounds to believe that the person conceals items or traces of a criminal offence, which may disappear or be lost or that these items or traces are in a certain place or where the person under investigation or escaping is located.
2. When a detention must be carried out, an arrest or sentence by imprisonment decision be executed, the judicial police officers may carry out a search of the person or premises, where there exist the conditions stipulated in paragraph 1 and there are particular reasons of urgency that does not permit the issue of a search decision. When delay may compromise the successful conclusion of investigations, the house search may be carried out even outside the time limits provided for under Article 206.
3. In cases of *flagrante delicto* or pursuit of an escaping person or when a detention must be carried out, or an arrest decision or a sentence by imprisonment must be executed, judicial police shall take all technical measures aimed at ensuring the preservation of the original computer data and preventing their loss, damage, and alteration and shall carry out all further searches of computer data, when there are reasonable grounds [to believe] that they contain information, software or traces of the criminal offence.
4. The minutes of the acts carried out shall be sent immediately, but not later than forty-eight hours, to the prosecutor of the place where the search was conducted, who, within the next forty-eight hours, shall proceed pursuant to the Article 301 of this Code.

Article 299

Acquiring of boxes/parcels and correspondence

1. When it is necessary for the purposes of proceedings to obtain sealed parcels or parcels closed in any other way, judicial police officers shall send them intact to the prosecutor for any eventual sequestration. If there are reasonable grounds to believe that the parcels contain information that may be lost because of delay, the judicial police officer shall inform, by the fastest means, the prosecutor who may authorize the immediate opening (of parcels).

2. In cases of letters, envelopes, parcels, monetary and property values, telegrams or other means of correspondence that are allowed to be sequestered, judicial police officers, in urgent cases, shall order the person at the postal service to suspend dispatching. If within forty-eight hours from judicial police order, the prosecutor does not order the sequestration, the correspondence objects are dispatched to their destination.

Article 299/a

Accelerated preservation and computer data maintenance

(Added by Law no. 10054 of 29.12.2008, Article 4)

1. The prosecutor may order the accelerated preservation of certain computer data, including data traffic, in cases where there are sufficient reasons to believe that the data might get lost, damaged or changed.
2. In the case where the computer data are in possession or control of a person, the prosecutor may order such person to preserve and maintain such computer data for a period up to 90 days with the aim of uncovering and extracting them. Such term may be extended only once for founded reasons.
3. The person in charge for the computer data preservation and maintenance is obliged to keep secrecy on the procedures and actions carried out, as per paragraph 2 of this Article until the end of the investigations.

Article 299/b

The accelerated preservation and partial uncover of the computer data

(Added by Law no. 10054 of 29.12.2008, Article 4)

1. The person in charge of the accelerated preservation of the data traffic is obliged to take all necessary measures, in order to ensure that the preserved data are valid, regardless of whether one or more service providers have been involved in the transmission of the communication, as well as to provide to the prosecutor or the authorized judicial police officer the uncover of a sufficient amount of data traffic in order to enable the identification of the service provider and the gate throughout which the communication has been transmitted.

Article 300

Immediate on-site verifications

1. Judicial police officers and agents take measures so that traces and items pertaining to the criminal offence are recorded and preserved and the crime scene and items are not altered until the prosecutor intervenes, when he/she has confirmed his participation.
2. When there is a risk that traces and items might alter or get lost and the prosecutor may not intervene urgently, judicial police officers shall conduct the indispensable investigation actions and, if it is the case, shall sequester the material evidence and items connected to the criminal offence.

Article 301

Sequestration validation

(Amended by Law no. 35/2017, dated 30.03.2017, Article 163)

1. When carrying out a sequestration pursuant to Article 300, the judicial police shall indicate the relevant reasons in the minutes and give a copy of the act to the person whose items were sequestered. The minutes are sent without delay, in any case, not later than forty-eight hours, to the prosecutor of the place where the sequestration was enforced.

2. The prosecutor, within the next forty-eight hours, shall validate the sequestration by reasoned decision, if the conditions exist, or decide the return of the sequestered items. A copy of the decision is notified immediately, but not later than 72 hours, to the defendant, the prosecutor and to the person whose items were sequestered. Against such decision, an appeal may be lodged at the court, within ten days, by the defendant and his defence lawyer, by the person whose items were sequestered and by the one who has a right to their return. The appeal does not suspend the execution of the sequestration.

Article 302

Assistance of the defence lawyer

1. The defence lawyer of the person under investigation has the right to attend, without the right of prior notice, to searches and urgent verifications on site, except in cases of immediate opening of parcels authorized by the prosecutor.

Article 303

Records of judicial police activities

1. The judicial police shall keep records, even summarily, of all activities that they have carried out.

2. The judicial police shall keep minutes of the following:

- a) reports and complaints submitted orally;
- b) summary information and statements provided by the person under investigation;
- c) information obtained from persons who may provide useful circumstances for the purposes of investigation;
- (ç inspections, recognitions, searches and sequestrations;
- d) acts for the identifications and recognition of the person under investigation, the obtaining of parcels or mail, and for orders of sequestration;
- e) investigation actions delegated by the prosecutor.

3. The records of the judicial police activities, the material evidence and items connected to the criminal offence shall be made available to the prosecutor.

CHAPTER V

ACTIVITIES OF THE PROSECUTOR

Article 304

Investigation activity of the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 164)

1. The prosecutor directs the investigation activities and carries out personally all investigation action that he deems necessary. He/she carries out investigations also to ascertain any facts and circumstances in favour of the person under investigations.

2. He/she may request the judicial police to carry out actions specifically delegated, including questioning of the defendant and confrontations, in the presence of the defendant and his defence lawyer. In such a case, the judicial police shall follow the provisions regulating the appointment and participation of the defence lawyer in investigative actions.

3. In case of particular actions to be carried out in another district, when the prosecutor does not proceed personally, he/she can delegate, as per the relevant subject matter competence, the prosecutor of such other district. In urgent cases or for serious reasons, the delegated prosecutor has the right to carry out by his own initiative any action indispensable for the purposes of the investigation.

Article 305

Taking over of investigations

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 165)

Article 306

Relations between different prosecution offices

1. Prosecution offices proceeding in connected investigations coordinate the work between them. For this purpose, they exchange documents and information and notifications on the instructions provided to the judicial police. They may also proceed jointly in carrying out special actions.

2. Investigations of two different prosecution offices are deemed to be connected:

- a) in case of joinder of proceedings or in respect of criminal offences committed by more persons against each other;
- b) when the evidence of a criminal offence or of any circumstances, impacts the evidence of any other criminal offence or any other circumstance;
- c) when the evidence of more criminal offences arises, even in part, from the same source.

Article 307

Spontaneous appearance to make statements

(Amended by Law no. 35/2017, dated 30.03.2017, Article 166)

1. Anyone knowing that an investigation is being conducted against him, shall be entitled to appear before the prosecutor and make statements.

2. If the person appearing spontaneously rebuts the fact for which he is being prosecuted and is allowed to present his exculpations, such activity shall correspond to a questioning.

3. Articles 34/a and 38 of this Code shall apply.

4. The spontaneous appearance shall not interfere with the application of precautionary measures.

Article 308

Invitation to appear

(Amended by Law no. 35/2017, dated 30.03.2017, Article 167)

1. The prosecutor invites the person under investigation to appear when he/she intends to question him or carry out actions that require his presence.
2. The invitation to appear contains:
 - a) the personal data or any other personal information suitable for his identification;
 - b) the day, hour and venue for appearing;
 - c) the type of action for he/she is being invited;
(ç the warning that the prosecutor may order his forced accompaniment, in case of non-appearance without lawful impediments.
 - d) the written letter of rights pursuant to Article 34/a of this Code.
3. The invitation to appear contains also a summary of the facts resulting from the investigations carried out up to that moment.
4. The invitation to appear is notified at least three days prior to the set day of appearance, except in urgent cases.

Article 309

Appointment and assistance of the lawyer

(Amended by Law no. 35/2017, dated 30.03.2017, Article 168)

1. The defendant who does not have a lawyer shall be informed by the prosecutor that he shall be assisted by a lawyer appointed *ex officio*, as per the cases provided for by this Code.
2. The retained lawyer or the *ex officio*-assigned lawyer shall be informed, at least twenty-four hours in advance, when proceeding with questioning, examination or confrontation. If the delay may compromise investigations, the lawyer shall be promptly informed.
3. The minutes of the activities performed by the prosecutor and the judicial police, in which the defence lawyer has the right to intervene, shall be submitted with the secretary of the prosecution office within three days of the date of execution of the activity, with the right of the lawyer to review them and make copies.

Article 310

Notification of the defendant to take part in searches and sequestrations

1. The prosecutor, when proceeding to carry out a search or sequestration, notifies the defendant to be present together with his retained lawyer and, if he does not have one, shall appoint him a lawyer *ex officio*.
2. If the defendant and his defence lawyer have been duly notified, but are not present without any reasonable cause, a lawyer shall be appointed *ex officio*. This fact is reflected in the relevant minutes.

Article 311

Questioning of the defendant in a joined proceeding

1. The person who is a defendant in a joined proceeding shall be questioned by the prosecutor in the forms provided for by Article 167.

Article 312

Obtaining of information

(Amended by Law no. 35/2017, dated 30.03.2017, Article 169)

1. The prosecutor receives information from the victim and from those who can indicate circumstances useful for the purposes of the investigation, observing the rules established for the assumption of testimony.
2. These persons are summoned by means of an order, which contains:
 - a) the personal data of the person;
 - b) the day, time and the venue for appearing;
 - c) the warning that the prosecutor may order the forced accompaniment in case of non- appearance without lawful impediments.
3. The prosecutor orders in the same way the summons of the interpreter and expert.
4. The summons is served at least three days prior to the day of appearance, except in urgent cases.

Article 313

Identification of persons and items

1. The prosecutor, if necessary, proceeds with the identification of persons, items or anything else, which can be subject to sense perceptions.
2. Persons, items and other objects shall be visually presented or shown to the person that must make the identification.
3. When there are founded reasons to believe that the person summoned to make the identification may be hesitant or influenced by the presence of the person under identification, the prosecutor takes measures for carrying out such activity without being seen by the one under identification.

Article 314

Assignment of the expert

(Amended by Law no. 35/2017, dated 30.03.2017, Article 170)

1. The prosecutor, when proceeding with actions that require technical knowledge, may appoint an expert, pursuant to Article 179 of this Code. The expert cannot refuse this assignment, without lawful reasons.
2. The expert may be authorized by the prosecutor to participate in specific investigation actions.
3. When technical verifications concern persons, items or places, the state of which has changed, the prosecutor shall notify the defendant and defence lawyer, the victim and his representative about the date, time and venue, where such action will take place.

Article 315

Recording of the prosecutor's acts

1. The prosecutor shall keep minutes:

- a) of reports and complaints submitted orally;
- b) of examinations, searches and sequestrations;
- c) of questionings and confrontations involving the defendant;
(ç of any information gathered from persons who provide useful circumstances for the purposes of investigation;
- d) of ascertainment regarding persons, items or places, the state of which has been subject to modifications.

2. The activities shall be minuted either while they are being carried out or immediately afterwards, if the simultaneous drawing up of the minutes is hindered by insuperable circumstances.

3. The document containing the *notitia criminis* and the documentation pertaining to the investigations, such as orders and instructions addressed to the judicial police, requests at the court, notices, etc. shall be kept in a special file at the secretary of the prosecution office, together with the acts sent by the judicial police.

CHAPTER VI PRE-TRIAL ADMISSION OF EVIDENCE

Article 316

Cases of pre-trial admission of evidence

1. During the preliminary investigations, the prosecutor and the defendant may request that the court proceed with the pre-trial admission of evidence in the following cases:

- a) to the assumption of the testimony of a person, if there are reasonable grounds to believe that he may not be questioned at the trial hearing, because of an illness or any other serious impediment;
- b) to the assumption of a testimony of a person, if there are reasonable grounds to believe that he may be subject to force, to threats, to promise of money or other utilities, in order for him not to testify or make false testimony;
- c) to the questioning of the defendant on facts concerning the liability of others, when one of the circumstances provided for by letters “a” and “b” exists;
(ç to the confrontation between persons who have rendered conflicting statements before the prosecutor, when one of the circumstances provided for by letters “a” and “b” exists;
- d) in an expert report or judicial test/simulation, if evidence concerns a person, an item or a place, the state of which is subject to unavoidable modification. The expert report may also be requested when, if done during the trial, it would result in the suspension of the trial for more than sixty days.
- dh) to an identification, when the act may not be postponed to the trial hearing date, due to specific reasons.

Article 317

Request for pre-trial admission of evidence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 171)

1. The request for pre-trial admission of evidence shall be submitted within the time limits set for conclusion of the investigations or at the opening of the preliminary hearing and shall contain:

- a) the evidence to be obtained and [the reasons for] its importance for the trial decision;
 - b) the persons being prosecuted for the facts in issue;
 - c) the circumstances that prevent the deferral of evidence to the trial stage.
2. The request submitted by the prosecutor shall also indicate the defence lawyers of the interested persons under paragraph 1, letter “b”, the victim and his lawyer.
 3. The provisions of paragraphs 1 and 2 must be observed under penalty of inadmissibility.
 4. The prosecutor may decide an extension of the time limit for investigations for the purposes of the pre-trial admission of evidence.

Article 318 **Request of the victim**

1. The victim may request from the prosecutor to request the pre-trial admission of evidence.
2. The prosecutor, when not accepting the request, shall take a reasoned decision and notify the victim, who may appeal in the court.
3. The accusing victim may request from the court to proceed with the admission of evidence before the start of the trial.

Article 319 **Submission of the request**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 172)

1. The request for pre-trial admission of evidence shall be filed with the court secretary office together with other possible items and documents. The notice shall be served to the parties and interested persons by the one who has submitted the request.
2. Within two days from serving the notice on the request, the prosecutor and the defendant may present their arguments pertaining to the merits of the request, to submit items and documents, as well as provide other facts that should constitute subject of proof and other interested persons, pursuant to letter “b” of paragraph 1, Article 317 of this Code.
3. The prosecutor may request from the court to postpone the time determined for pre-trial admission of the evidence requested by the defendant, when such an action would damage the investigations. The court rules on the request, after hearing the defendant and his defence lawyer. The request to extend the time limit shall not be granted when it can compromise the gathering of evidence.

Article 320 **Rulings on the request for pre-trial admission of evidence**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 173)

1. Within two days from the reply confirming the service of notice on the request for pre-trial admission of evidence, the court rules on whether accepting or rejecting the request for pre-trial admission of evidence. This decision is not appealable.

2. By the decision accepting the request the court determines:

- a) the subject of proof and the persons who are interested in obtaining it, pursuant to Article 319 of this Code;
- b) repealed;
- c) the date of the hearing, which shall not exceed a period of ten days from the date of the rendering of the decision.

2/1. The Court shall notify the prosecutor, the defendant, the victim and their defence lawyers at least two days before the date of the hearing and shall inform them of the right to review and receive copies of the statements to be secured.

3. When the defendant, whose presence is necessary for the admission of evidence, fails to appear without a legitimate reason, the court orders his forced accompaniment.

4. When there are urgent reasons and the admission of evidence may not be carried out in the district of the competent court, the latter must delegate the district court, where the evidence can be obtained.

Article 321 **Taking of evidence**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 174)

1. The hearing on the taking of evidence shall be held with the compulsory participation of the prosecutor and defence lawyer of the defendant. The representative of the victim has also the right to participate.

2. The defendant and the victim have the right to participate when a witness or another person must be questioned. In other cases, they may participate with the prior authorisation of the court.

3. Evidence is taken pursuant to the rules provided for trial examination, by the same court that will adjudicate the case. Except for cases provided for by Article 321/1, the taking of evidence on facts pertaining to persons who are not represented by defence lawyers in the hearing, is prohibited.

4. The minutes, items and documents obtained to secure evidence, shall be sent to the prosecutor. The defence lawyers have the right to review and make copies of them.

Article 321/1 **Extension of admission of evidence**

(Added by Law no. 35/2017, dated 30.03.2017, Article 175)

1. When the prosecutor or the defendant's defence lawyer request that the taking of evidence be extended over facts pertaining to persons not represented by defence lawyers in the hearing, whenever possible, the court shall make the notifications and shall postpone the hearing, if necessary, but not longer than three days. The request shall not be accepted if the postponement of the hearing would harm the taking of evidence.

Article 322
Use of obtained evidence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 176)

1. Evidence obtained under the rules of this chapter may be used in trial only against the defendants, whose defence lawyer have participated in taking the evidence.
2. The decision issued based on evidence obtained under the rules of this chapter, in which the victim has been not able to participate, does not produce effects in a civil or administrative trial, unless the victim himself has accepted it even tacitly.

CHAPTER VII
TIME LIMITS FOR COMPLETION OF INVESTIGATIONS

Article 323
Time limit of preliminary investigations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 177)

1. Within the time limit set for the termination of investigations, the prosecutor shall decide pursuant to paragraph 6, of Article 327, of this Code.
2. The time limit for termination of investigations is three months, from the date that the name of the person whom the criminal offence is attributed to has been written in the register of notification of criminal offences, and six months for criminal offences provided for in letters “a” and “b” of Article 75/a of this Code.

Article 324
Prolongation of time limit

(Amended by Law no. 8460, dated 11.02.1999, Article 3;

amended by Law no. 35/2017, dated 30.03.2017, Article 178)

1. A prosecutor may prolong the period of investigations up to three months. For the Special Prosecution Office, this time limit is up to six months.
2. Further prolongations, each of them not more than three months, may be done by the prosecutor in case of complex investigations or when it is objectively impossible to terminate them within the prolonged period. The period for the preliminary investigations may not exceed two years. Beyond the period of two years, for organized crime and for crimes that are adjudicated by a judicial panel, the term of the investigations may be prolonged only with the approval of the Prosecutor General or Chief of Special Prosecution Office, up to one year, not more than three months for every prolongation, without prejudice to the time limits of the precautionary detention in prison.
3. The decision to prolong the time limits of investigations shall be notified to the defendant and to the victim.
4. Evidence taken after the expiry of the time limit, cannot be used.

Article 325

Request for prolongation of investigation time limits

(Amended by Law no. 35/2017, dated 30.03.2017, Article 179)

1. The defendant and the victim are entitled, within ten days of notification, to appeal the decision of the prosecutor prolonging the investigations in the district court.
2. The Court, after hearing the defendant, the defence lawyer, the victim and the prosecutor, shall, within ten days, decide upon the appeal.
3. If the court accepts the appeal and the investigations must not continue, the court shall order the Prosecutor to complete investigations within a time limit of 15 days.
- 3/1. When the appeal is accepted, but investigations must continue, the court orders the prosecutor to conclude them within a time limit established by the same court. Evidence collected within this time limit may be used.

Article 326

Suspension of investigations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 180)

1. In case the defendant is unknown, or when the defendant suffers from a serious illness which prevents further investigations, the prosecutor shall decide the suspension of investigations.
2. Suspension of investigations shall be decided after all possible actions have been carried out.
3. The reasoned decision shall be notified to the victim or the person who has lodged the criminal report, who may submit an appeal within 10 days of notification before the judge of preliminary hearing. The appeal is examined in closed session within 30 days. The decision is not subject to appeal.
4. Where the complaint is accepted, the court shall decide on resuming the investigation.
5. Except the case provided for in paragraph 4 of this Article, the suspended investigation shall be resumed upon prosecutor's decision.

CHAPTER VIII

COMPLETION OF INVESTIGATIONS

Article 327

Actions of judicial police and prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 181)

1. After carrying out the necessary investigation actions, the judicial police shall send the acts to the prosecutor, together with an explanatory report on the act and evidence, as well as his/her suggestions on the conclusion of investigations.
2. The prosecutor shall, within the time limit provided for in Article 324 of this Code, notify the defendant, their defence lawyer, as well as the victim or their heirs, when their identity and domicile result from the proceedings acts, of the termination of the preliminary investigations.

3. The notice shall consist of a summarized description of the criminal act under proceedings, the time and location it has been committed, its legal qualification, the notice for depositing acts with the secretary and their right to access the acts and receive copies.

4. The defendant shall also be notified of their right to submit information and documents, within ten days, to request the prosecutor to carry out additional investigations, to make statements or ask to be questioned. In cases when the defendant asks to be questioned, the prosecutor has an obligation to proceed with their questioning.

5. When the prosecutor accepts the defendant's request to carry out additional investigations, they should be completed within 30 days from the date the request was submitted. This time limit may be extended only once, and no more than 2 months, but in any case, without exceeding the overall investigation time limits. When the request of the defendant is not accepted, the prosecutor issues reasoned decision, pursuant to paragraph 2, of Article 110, of this code.

6. Upon termination of preliminary investigations, the prosecutor shall proceed as follows:

- a) decide on dismissing the charge or case in the instances provided for in paragraph 1 of Article 328, or shall request the court to dismiss the charge or case, in the instances provided for by Article 329/a of the Code;
- b) request the court to send the case to trial, when it does not proceed under Articles 400, 406/a and 406/dh of this Code.

Article 328

Dismissal of charge or case

(Amended by Law no. 8460, dated 11.02.1999, Article 4;

amended by Law no. 35/2017, dated 30.03.2017, Article 182)

1. Upon termination of preliminary investigations, where it is proceeded against criminal misdemeanours, the prosecutor shall decide on dismissing the charge or case when:

- a) it is clear that the fact does not exist;
- b) the fact is not provided for by law as a criminal offence;
- c) the victim has not lodged a complaint or waives it, in cases where the proceedings are initiated on his request;
- (ç the person cannot be taken as defendant or he may not be punished;
- d) there exists a reason that extinguishes the criminal offence or for which the criminal proceedings should not be initiated or continued;
- dh) it is proven that the defendant has not committed the offence or it is not proven that the defendant has committed the offence;
- e) the defendant has been adjudicated by a final court decision for the same act;
- (ë the defendant dies;
- f) in other cases provided for by the law.

2. The prosecutor shall, within 5 days of the decision on dismissal being made, notify the defendant, his defence lawyer, the victim and their heirs, when their identity and domicile results from the proceeding

acts, as well as the person having filed the criminal report or complaint, thus making known the right to get to know the acts, to take copies thereof and to file an appeal before the court.

Article 329

Appeal against the decision for the dismissal of charge or case

(Amended by Law no. 8460, dated 11.02.1999, Article 5;

amended by Law no. 35/2017, dated 30.03.2017, Article 183)

1. The decision of dismissal of charges or case can be appealed to the judge of the preliminary hearing, within 10 days of being noticed. In cases where the prosecutor has filed a request to send the case to trial, but he/she has decided to dismiss one or more of the charges, the appeal against the decision of dismissal shall be reviewed together with the request to send the case to trial.
2. Copies of all acts and evidence contained in the preliminary investigation file, shall be deposited with the secretary of the court, including decisions issued by the judge of preliminary investigations, as well as material evidence, except in cases when they are stored elsewhere.
3. The appeal shall be examined in closed session, within 15 days of receiving the acts. The court shall decide, as appropriate, on:
 - a) upholding the decision of dismissal when it considers that the conditions laid down in paragraph 1 of Article 328 of this Code, exist;
 - b) turning the acts back to the prosecutor to continue with investigations, when it deems that investigations are incomplete, determining directions of further investigations and, where appropriate, the actions to be performed, and sets a deadline within which investigations must end;
 - c) returning the acts to the prosecutor, ordering the prosecutor to formulate the charges and file a request for the case to be sent to trial, when it considers that investigations are complete and it turns out that there is sufficient evidence to support the accusation in court.
4. The court cannot order the prosecutor to compile charges for other persons, whose names are not registered pursuant to Article 287 of this Code. When from the acts emerges information for other criminal offenses, prosecuted *ex officio* or against other persons, the court may decide to carry out investigations, even in cases when it decides pursuant to letter “c”, of paragraph 3, of this Article.
5. In the cases provided for in paragraph 3, letters “b” and “c”, and paragraph 4 of this Article, the chairperson of the prosecution office shall also be notified on the decision.
6. Against the decision of the judge of the preliminary hearing, under letter a) of paragraph 3 of this Article, an appeal can be filed to the court of appeal by the defendant and the victim, while under letters “b” and “c” of paragraph 3, of this Article, an appeal can be filed by the prosecutor.
7. The court of appeal shall examine the appeal in closed session within 15 days from the date of receiving the acts.
8. When accepting the appeal of the defendant, the court of appeal shall decide on changing the dismissal decision with a more favourable formulation to him. When it accepts the appeal of the victim, the court shall order the investigations be continued or the case be sent to trial. When it accepts the appeal of the prosecutor, the court decides on upholding the dismissal decision.

Article 329/a
Request for dismissal of a charge or case

(Added by Law no. 35/2017, dated 30.03.2017, Article 184)

1. Upon termination of the preliminary investigations, when it is being proceeded for crimes and when any of the cases provided for in paragraph 1 of Article 328 of this Code occurs, the prosecutor asks the judge of the preliminary hearing to dismiss the charge or the case.
2. In cases where the prosecutor has filed a request to send the case to trial, the request for dismissal of the charge or case, shall be adjudicated jointly with the request for sending the case to trial.
3. All acts and documents contained in the investigation file shall be attached to the request of the prosecutor, including also the acts carried out before the judge of preliminary investigations, as well as material evidence, unless they are stored in another location.
4. The request is notified to the defendant, their defence lawyer, the victim or their heirs, when their identity and residence emerge from proceedings acts, as well as to the person who has filed the criminal report or the complaint. They have the right to have access to the acts and evidence, and to take copies of them.

Article 329 / b
Examination of the request

(Added by Law no. 35/2017, dated 30.03.2017, Article 184)

1. Within ten days of filing of the request, the court shall inform the defendant, their defence lawyer, the victim or their heirs, when their identity and residence emerge from proceedings acts, as well as the person who has filed the criminal report or the complaint on the date and time of trial.
2. The request shall be adjudicated by the judge of the preliminary hearing, in closed session, in the presence of the parties. When a party fails to appear, although duly notified, or refuses to appear without submitting reasonable cause, the trial shall take place without their presence.
3. When there exist the conditions provided for in paragraph 1 of Article 328, the court shall decide on dismissing the charge or the case. Otherwise, the court shall decide pursuant to the provisions of letter “b” or “c” of paragraph 3 of Article 329 of this Code.
4. If the court decides pursuant to letter “b” of paragraph 3 of Article 329 of this Code, it sets a deadline to the prosecutor for conducting investigations.
5. Where appropriate, the rules provided for in paragraph 4, of Article 329 of this Code shall apply.
6. The decision of the preliminary hearing judge may be appealed to the court of appeal. The rules provided for under Article 329 of this Code shall apply, mutatis mutandis.

Article 329 / c
Revocation of the dismissal decision

(Added by Law no. 35/2017, dated 30.03.2017, Article 184)

1. Where after the decision to dismiss the charge or case, new information or evidence is discovered, which show that the decision was not founded, it can be revoked by the preliminary hearing judge, at the request of the prosecutor. The request, along with new acts and evidence, shall be filed with the secretary of the court.
2. The request shall be accompanied with new evidence, under penalty of inadmissibility.
3. The request is examined in closed session. When deciding to accept the request, the court revokes the dismissal decision and turns the acts to the prosecutor, who decides on resuming the investigation.
4. Upon termination of investigations, when failing to act pursuant to Articles 328, 329/a, 406/a or 406/dh of this Code, the prosecutor shall submit to the court a request to send the case to trial.

Article 329 / ç
Appeal against decision

(Added by Law no. 35/2017, dated 30.03.2017, Article 184)

Against the decision of inadmissibility or the rejection of the request for revocation of the dismissal decision, the prosecutor, the victim or his/her heirs, have the right to file a complaint to the court of appeal, which examines the appeal in closed session.

Article 330
Charging complainant with the expenses and damages

1. When the case is dismissed because the fact does not exist, the injured person whose criminal complaint has initiated the proceedings, shall be charged with the payment of the proceedings expenses made by the State.
2. The complainant shall be charged with the expenses made by the defendant and the civil defendant as well as with the compensation for damages, when they have requested it.
3. When the case has been dismissed because of withdrawal of the complaint, the expenses shall be charged to the complainant, except when the act of withdrawal has foreseen, by agreement, that they are, entirely or partly, to be charges to the person against whom the complaint has been filed.
4. Expenses and damages amounts shall be set by the prosecutor. Against such decision an appeal may be filed to the court by the victim, the defendant and the civil defendant.

Article 331
Request to send the case to court

(Amended by Law no. 35/2017, dated 30.03.2017, Article 185)

1. When not proceeding pursuant to Articles 328, 329/a 400, 406/a or 406/dh of the Code, the prosecutor shall request to send the case to trial.
2. The request to submit the case to court is invalid if provisions of paragraphs 2, 3 and 4 of Article 327 of this Code are not complied with.
3. The request to send the case to trial shall contain:

- a) the personal data of the defendant and the victim, when possible, as well as any other element useful to identify them;
 - b) description of the criminal act and the legal qualification of the criminal offense;
 - c) sources of evidence and the facts they refer to;
 - (ç the request that the preliminary hearing judge decides to send the case to trial;
 - d) the date and the signature of the prosecutor.
4. All acts and evidence contained in the investigation file shall be attached to the prosecutor's request, including acts conducted before the judge of preliminary investigations, as well as material evidence, unless they are stored elsewhere.

CHAPTER IX PRELIMINARY HEARING

(Added by Law no. 35/2017, dated 30.03.2017, Article 186)

Article 332 **Scheduling a preliminary hearing**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 187)

1. Within 5 days of the submission of the request to send the case to trial, the preliminary hearing judge shall schedule a date for the hearing. In cases when the defendant has not chosen a defence lawyer, provisions of Article 49 of the Code shall apply.
2. A period of no longer than 10 days shall pass from the date of the submission of the request to send the case to trial until the date of the hearing.
3. The court shall decide on the request to send the case to trial within 30 days from the filing of the request.

Article 332/a **Preparatory actions**

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. The preliminary hearing judge shall notify the defendant and the victim or victim's heirs, when their identities and domiciles are known because of proceeding acts, informing them about the date, time and location where the hearing will take place. The judge shall also warn the defendant that the hearing will take place in their absence, if they fail to appear.
2. The hearing date shall also be notified to the Prosecutor and the defence lawyer of the defendant, informing the latter of the right to be acquainted with the deposited acts, as well as to submit information or documents. The prosecutor shall be invited to deposit all acts carried out after submitting the request to send the case to court.
3. The notifications pursuant to paragraphs 1 and 2 shall be made at least 10 days before the hearing date.

Article 332/b **Verification of attendance of parties**

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. The hearing will take place in closed session, with the obligatory participation of the Prosecutor and defence lawyer of the defendant.
2. The Court shall verify that parties are present and shall order the notifications to be repeated if the parties have not been notified or when the notification is dubious or has been declared invalid.
3. When the defendant's defence lawyer is not present, the Court shall decide pursuant to paragraph 5, of Article 49 of this Code.
4. In cases when the defendant who is in free state or under precautionary detention in prison, has failed to appear despite having received notification or refuses to appear, the Court shall declare through a decision his absence. In these cases, the defendant shall be considered present, provided that he is represented by his defence lawyer. A defendant shall also be considered present when, after appearing, he/she leaves the hearing or only appears for one hearing and not for the subsequent ones.
5. The decision to declare the defendant absent may also be revoked ex officio when the defendant appears.
6. In cases when the failure of the defendant to appear for the hearing is the result of a legitimate reason, the Court, even ex officio, shall postpone the hearing and shall order that notifications be repeated.
7. Rules provided for in Article 265 of this Code shall apply.

Article 332/c

The hearing

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. After verifying the attendance of the parties, the court declares the judicial trial open.
2. The prosecutor presents briefly the results of the preliminary investigations and the evidence on which the request for sending the case to the trial is based on.
3. The defendant may submit requests for the invalidity of the acts of the preliminary investigations, the non-usability of evidence, the need to obtain new evidence, request for abbreviated trial and can make all statements he deems necessary or request to be questioned, applying the rules provided for in Articles 38 and 39 of this Code.
4. After the defendant, the victim and other private parties, when present, shall present their claims.
5. The parties may submit agreements on the conditions for plea bargaining and the determination of the sentence, and the request for pre-trial admission of evidence or the civil lawsuit in the criminal process.
6. When the parties submit a request for the pre-trial admission of evidence, the judge of the preliminary hearing decides on obtaining such evidence and, in case of acceptance of such request, he/she shall transmit it to the competent court and establish the date of the new hearing.
7. When the parties do not have other requests or claims concerning additional evidence, the court declares the judicial trial closed.
8. The parties shall submit their discussion on the value of the evidence and the request of the prosecutor for sending the case to the trial.

Article 332/ç
Decision to complete investigations

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. When preliminary investigations are deemed to be incomplete, the court orders their completion, determining the relevant direction and, as appropriate, the acts that must be conducted. When finding out invalid acts or non-usable evidence, the court shall declare them by means of a decision and, when possible, shall order their repetition. The court determines the time limit within which investigations must be completed and the date of the new hearing.
2. The decision shall be notified to the chairperson of the prosecution office.

Article 332/d
Changing the charge in the preliminary hearing

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. If during the preliminary hearing, the fact appears to be different than it is described in the request to send the case to trial, if another criminal offence is ascertained, pursuant to letter “b”, of paragraph 1, of Article 79, or if an aggravating circumstance emerges, which had not been mentioned, the prosecutor shall modify the charge and shall communicate this to the present defendant. When the defendant is not present, the new charge is communicated to his/her defence lawyer who is given not more than 10 days to communicate with the defendant.
2. If during the preliminary hearing, a new criminal fact emerges against the defendant which had not been mentioned in the request to send the case to trial and for which a proceeding must be carried out *ex officio*, the court shall allow the communication of the charge for the new fact, when the prosecutor submits a request and the defendant consents. Otherwise, the court returns the acts concerning the new charge to the prosecutor and notifies the chairperson of the prosecution office.
3. If during the preliminary hearing, it appears that the legal qualification of the fact is wrongful, or that the charge has not been clearly and accurately formulated, the court shall invite the prosecutor to make the necessary corrections or clarifications. If the prosecutor does not take action, the court shall decide to return the acts. Such decision is notified to the chairperson of the prosecution office.

Article 332/dh
Decision of the preliminary hearing judge

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. After hearing the discussions of the parties, the court decides to:
 - a) accept the request of the prosecutor and send the case to trial when it considers that there is sufficient evidence supporting the charge;
 - b) send the case to the competent court, when the parties submit agreements on the conditions for plea bargaining and the determination of the penalty;
 - c) sends the case to the competent court, when the defendant has presented a request for abbreviated trial, after ascertaining the state of the acts, pursuant to Article 332/c of this Code;

(ç dismiss the charge or the case, in case the conditions under paragraph 1 of Article 328 of this Code, exist.

2. The decision shall be submitted to the secretary within 10 days of its announcement. Parties are entitled to take copies of it.

3. The trial procedure in the preliminary hearing does not replace the judgment of the case on the merits nor does prejudice its final decision.

Article 332/e
Elements of the decision

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. The decision to send the case to court shall contain:

- a) the personal data of the defendant and other personal data useful for his/her identification, as well as personal data of private parties and their defence lawyers;
- b) the personal data of the victim, if he/she has been identified;
- c) a description of the criminal fact and its circumstances, indicating the relevant provisions of the law;
(ç the sources of evidence and facts they refer to;
- d) the dispositive, indicating the competent court to adjudicate the case;
- dh) the address of the defendant, the victim or the victim's heirs and other parties in the proceeding, to the effect of further notifications;
- e) the date and signature of the judge and of the hearing secretary.

2. The decision shall be invalid if the defendant is not identified accurately, or the requirements provided for under letter "c", paragraph 1 of this Article are missing or are insufficient.

Article 332/ë
Trial file

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. When the Court decides to send the case to trial, it shall, after hearing the parties, determine the acts that the trial file must contain.

2. The trial file shall contain:

- a) acts related to conditions for carrying out the prosecution and the requests for accepting the civil lawsuit;
- b) minutes of unrepeatable actions, carried out by the judicial police and the prosecutor;
- c) minutes of the actions carried out for the pre-trial admission of evidence and those performed abroad in execution of the letterrogatory;
- (ç criminal records and other documents related to the character of the defendant and his/her identity;
- d) material evidence and items pertaining to the criminal offence, unless they must be safeguarded elsewhere;
- dh) minutes of searches, examinations, recognitions and investigation experiments;
- e) expertise acts;

(ë minutes of evidence from other connected proceedings;

f) minutes and recordings of interception of conversations and communications;

g) any other act, which is important for the trial.

3. Copies of such acts and other evidence obtained during the preliminary investigations shall remain in the prosecutor's file.

4. In the cases provided for under letters "b" and "c" of paragraph 1, of Article 332/dh, the file contains all acts carried out during preliminary investigations and those conducted in the preliminary hearing.

Article 332/f

Filing of the trial file

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

The decision to send the case to trial, together with the trial file and the acts concerning precautionary measures shall be filed without delay and, in any case, no later than 10 days, with the secretary of the competent court.

Article 332/g

Prosecutor's file

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

Acts which are not included in the trial file, together with the acts and the minutes of the preliminary hearing shall be sent to the prosecutor.

Article 332/gj

Appeal

(Added by Law no. 35/2017, dated 30.03.2017, Article 188)

1. No appeal is allowed against the decision for sending the case to the trial.

2. The prosecutor, the defendant and the victim or the victim's heirs may lodge an appeal with the appeal court against the decision for the dismissal of the charge or case.

TITLE VII

THE TRIAL

CHAPTER I

PRE-TRIAL ACTIONS

Article 333

Establishment of the hearing date

1. Within ten days of the submission of the request of the prosecutor or of the accusing victim, the presiding judge of the panel designated to adjudicate the case, shall establish the hearing date.

2. The date of the hearing is notified to the prosecutor, defendant, defence lawyer, victim, the private parties and their representatives at least ten days before the date set for the trial hearing.

Article 334

Request for expedite trial

1. When the requirements provided by law exist, the prosecutor may request the summary trial, the approval of the penalty order or the plea bargaining, while the defendant the abbreviated trial.
2. In such cases, the rules of this Code regulating special trials shall apply.

Article 335

The rights of the parties

1. Up to the date set for trial hearing, the parties, the victim, their defence lawyers and representatives have the right to view the sequestered items, to examine at the secretary all acts and documents collected contained in the trial file and also to make copies thereof.

Article 336

Urgent actions

1. In cases when securing of evidence is necessary, the [court] chairperson, upon request of the parties, shall order the obtaining of evidence whose obtainment might be compromised at a later moment, by observing the rules provided for court trial.
2. The day, the hour and place for obtaining of evidence are notified, at least twenty-four hours before, to the prosecutor, the defendant, the victim and the defence lawyer.
3. The minutes of the carried-out actions are inserted in the trial's file.

Article 337

Summons of witnesses and experts

1. The parties that request the questioning of witnesses and experts must deposit in the secretary of the court, at least five days before the date set for trial hearing, their roll-call.
2. The presiding judge orders, even *ex officio*, the summons of the expert appointed during preliminary investigation for the pre-trial admission of evidence.

Article 338

Efforts for reconciliation

1. In case of criminal offences prosecutable on request of the accusing victim, the court summons the victim and the one subject to the request for trial, proposing them the solution of the case by consent. In case the accusing victim withdraws the request and the accused accepts this, the court dismisses the case. In the opposite case, the court shall establish the date of the hearing and inform the parties on their right to be assisted by defence lawyers.

CHAPTER II THE COURT TRIAL

SECTION I GENERAL RULES

Article 339 **The publicity of the hearing**

1. The judicial hearing is public, otherwise it shall be null and void.
2. Minors aged under sixteen years of age and those who are drunk, intoxicated or mentally disordered shall not be allowed in the hearing.
3. It is prohibited the presence of armed persons in the hearing, except members of public order forces.

Article 340 **Cases of closed hearings**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 189)

1. The court decides to hold the judicial trial or any of its actions with closed doors:
 - a) when the publicity may damage the social morality, or may divulge data which must be kept secret for the interest of the State, if this is requested by the competent authority;
 - b) in case of behaviours which impair the normal performance of the hearing;
 - c) when it is necessary to protect the witnesses or the defendants;
(ç when necessary during the questioning of minors as witnesses;
 - d) when a victim, as defined in the Article 58/b, asks that the hearing be held with closed doors.
2. The hearing shall always be held with closed doors in cases of:
 - a) adjudication of minors;
 - b) adjudication of adult defendants who are charged for offences committed against minor victims, regardless of the age of the victim during the adjudication proceedings;
3. The decision of the court for holding the hearing with closed doors is revoked when the reasons supporting such decision cease to exist.
4. The presiding judge of the panel shall inform the persons attending a closed doors trial that they are obliged to keep confidential all information they learnt at the trial hearing.

Article 341 **Directing the hearing**

(Added by Law no. 35/2017, dated 30.03.2017, Article 190)

1. The hearing is directed by the panel presiding judge. His/her orders to maintain silence and order during the hearing are binding for the parties and all participants to trial.
2. The presiding judge is obliged to take measures to guarantee respect for court dignity and solemnity of adjudication and security in the courtroom and to avoid any insult, threat or attack against other parties and other participants in the trial.
3. When the defendant, the defence lawyer, the victim, the witness, expert or interpreter do not observe the court orders to maintain order and silence, offend the dignity of the court or act in a way that threatens the

solemnity of adjudication, the presiding judge shall warn them of the consequences. Where the person continues to break the order and silence and fails to obey, the court may impose him a fine up to 30,000 ALL. The repetition of such breach shall constitute grounds for the removal from the courtroom.

4. A written appeal may be submitted against the above order within 3 days. The appeal is reviewed in closed session by the same court. When the court considers it reasonable, the court may decide to revoke the fine. No appeal is allowed against the decision for the revocation of the fine.

5. The order to impose a fine constitutes an executive title.

6. The court shall notify the bar association, or the relevant institution or entity on the improper behaviour of experts and interpreters.

7. When the prosecutor with his/her actions infringes the rules of the court hearing, the court shall warn him/her and, in case of repetition, notify the chairperson of the prosecution office.

8. In case of other participants at a court hearing, who do not obey to court orders for maintaining order and silence or offend the dignity of the court, the presiding judge shall warn them and, if they do not observe the court order, the presiding judge shall order them to leave the hearing and, when he/she deems it necessary, shall impose them a fine up to 30.000 ALL.

Article 342

Uninterrupted trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 191)

1. When the court examination may not terminate in a sole hearing the court decides to continue it the next working day.

2. The court may interrupt the court examination, up to fifteen days, only under particular circumstances.

3. The postponement and interruption of the court examination are declared by the presiding judge in the hearing. The announcement is equal to notification for the ones who are present or who must deem to be present.

4. When due to the lawful reasons, the trial panel changes, the new member must become acquainted with the content of the judicial process, except in cases when he/she requests that the case be examined from the beginning. When more three members of a trial panel consisting of five judges changes, the trial starts from the beginning.

Article 343

The suspension of the court trial

1. When the solution of the criminal case depends on the solution of a civil or administrative dispute for which a trial is being held, the court may decide the suspension of the court examination until the case is resolved by a final decision.

2. The decision of the suspension is subject to appeal to the High Court.

3. When the administrative or civil trial does not terminate within six months the court may revoke the decision of the suspension even ex officio.

Article 344

The presence of the defendant in the hearing

(Amended by Law no. 35/2017, dated 30.03.2017, Article 192)

1. The defendant participates in the hearing as a free person even when he is detained, except when it is necessary to take measures indispensable to prevent the risk of escaping or of violence.
2. When a defendant with his behaviour hinders the regular performance of the hearing, despite the measures taken under paragraph 3 of the Article 341 of the Code, the court may order the removal of the defendant from the courtroom for a definite period of time. If, even after returning to the court room, the defendant continues to obstruct the regular performance of the hearing, the court may order that he is removed until the decision is announced.
3. When possible, the defendant removed, pursuant to paragraph 2 of this Article, shall attend the hearing through audio and/or video links.
4. The defendant expelled from the hearing in compliance with paragraph 2 of this Article shall be considered to be present and shall be represented by the defence lawyer. He/she can be readmitted into the courtroom at any time.
5. The absence of the defendant who has left the courtroom and who has not accepted to have a defence lawyer, does not prevent the hearing to be held. In this case a defence lawyer is assigned ex officio and the trial continues. The defendant or the defence lawyer chosen by him may be admitted in the courtroom at any time.

Article 345

The minutes of the hearing

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 193)

Article 346

The content of the minutes

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 194)

Article 347

Requests of the parties regarding the minutes

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 195)

SECTION II

PRELIMINARY ACTIONS

Article 348

Verification of the presence of the parties

(Amended by Law no. 35/2017, dated 30.03.2017, Article 196)

1. Before the start of the court examination the presiding judge makes sure of the presence of the parties. If the parties are not present, the presiding judge shall verify whether the summons were duly notified and whether absence is justified.

2. When the defence lawyer appointed ex officio is not present, paragraphs 5 and 6 of Article 49 of this Code shall apply.

3. If the prosecutor does not appear at a trial the court shall postpone the hearing and shall notify the chairperson of the prosecution office.

Article 349

The repetition of summons

1. The court, even ex officio, orders the repetition of the summons for trial when it results that the defendant or the person subject to request for trial of the accusing victim has not received any notification or the notification is uncertain.

Article 350

The absence of the defendant or of the defence lawyer

(Amended by Law no. 35/2017, dated 30.03.2017, Article 197)

1. When the defendant, even if held under precautionary detention in prison, or the person subject to request for trial of the accusing victim does not appear at the hearing and it results that the absence is caused by force majeure or any other impediment which exempts him from liability, the court even ex-officio postpones or suspends the judicial trial, established the date of the new hearing and orders the repetition of the summons.

2. The reading of the decision fixing the new hearing is equal to the notification for all of them who are or must be considered as present.

3. The court shall decide pursuant to paragraph 1 of this Article even when the defence lawyer is absent and such absence is caused by force majeure, unless when the defendant requests to be adjudicated in absence of the defence lawyer and his presence is not mandatory. When the defendant is assisted by two defence lawyers and the obstacle to appear concerns only to one of them, the summons is considered valid and the trial shall be held in the presence of one of the defence lawyers.

4. When a duly summoned defence lawyer fails to appear in the hearing and there exist no impediments exempting him from the responsibility to appear, or if the defence lawyer leaves the hearing without any permission, the court may impose a fine from 5.000 ALL to 100.000 ALL and order him/her to pay the expenses of the hearing.

5. The abovementioned decision may be appealed in written form within 3 days. The appeal shall be reviewed in closed session by the same court. The court, when deems it appropriate, shall decide to revoke the fine. No appeal is allowed against the decision revoking the fine.

6. When the notification has not been duly made, the court decides the postponement of the trial hearing and orders the repetition of the notification.

Article 351

Absence of or voluntary abandonment by the defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 198)

1. When the defendant in free state or under precautionary detention in prison fails to appear in the hearing, despite being notified, and has no legitimate reasons for not appearing, the court shall postpone the hearing and order his forced accompaniment, unless he has declared, before a notary public or before the competent State authority, his will not to attend the trial. In this event, the trial shall continue in his absence.
2. If the defendant who is present at the hearing, expressly renounces from his right to participate to trial, the trial shall continue in his absence.
3. In cases provided for by paragraphs 1 and 2 of this Article, the defendant shall be considered present, provided that the trial is conducted with the presence of the defence lawyer.
4. The same rule shall apply if the defendant leaves at any moment of the judicial trial or during its intervals.

Article 352 Trial in absentia

(Amended by Law no. 35/2017, dated 30.03.2017, Article 199)

1. When the defendant in free state, despite the searches pursuant to Articles 140-142 of this Code, fails to appear in the hearing and it turns out that he has not been personally informed of the trial, the court shall decide its suspension and shall order the judicial police to continue the search of the defendant. After one year from the date of suspension of the trial for this reason and, at any time, when there is information on the location of the defendant, the court shall resume the trial, by ordering the repetition of the notification. The court shall declare the absence of the defendant if, even after the newly conducted searches, the defendant is not found. In this event, the trial shall be held in the presence of the defence lawyer.
2. The court shall declare absence of the defendant, if it is proved that the defendant is escaping from. In this event, trial shall be held in the presence of the defence lawyer.
3. The court shall declare absence even when it is proven that the defendant is abroad and it is impossible to extradite him.
4. The decision declaring absence is invalid when it is proven that such absence is due to his/her the absolute impossibility to appear.
5. When the defendant appears after the decision declaring his absence has been announced, the court shall revoke it. When the defendant appears after the judicial trial is declared closed, he may ask to be questioned. All actions performed before this moment shall remain valid, but if the defendant requests and the court deems it necessary for the decision to be taken, it may decide the re-opening of the judicial trial and the obtaining of the evidence requested by the defendant or the repetition of procedural actions.
6. Trial in absentia shall not be held in the case of a minor defendant. In such event, the court, after conducting the searches pursuant to Articles 140-142 of this Code, shall decide the suspension of the trial. The rules of paragraph 1 of this Article shall apply, to the extent they are compatible.

Article 353
Forced accompaniment of the defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 200)

1. The court may order the forced accompaniment of the defendant or of the person subject to a request for trial from the accusing victim, when he has failed to appear or has renounced from participation in trial, pursuant to Article 352 of this Code, provided that his presence is indispensable for the taking of the evidence but not for his questioning.

Article 354
Preliminary requests

(Amended by Law no. 35/2017, dated 30.03.2017, Article 201)

1. The request dealing with jurisdiction, competence, joinder or separation of the proceedings, with the legal standing of the plaintiff and of the civil defendant, may not be presented later, if they have not been raised immediately after the legal standing of the parties, except when the possibility to raise them arises only during the court trial.

2. Before the court trial is declared open, parties have the right to file requests for the declaration of invalidity of certain acts, or the non-usability of evidence.

3. The court rules on the preliminary requests, by decision, immediately after hearing the parties. The court, where deemed necessary, may postpone the decision-making until the next hearing.

Article 355
Announcement of the opening of court examination

1. After carrying out the actions indicated in the above Articles, the presiding judge declares the judicial trial open.

Article 356
Opening statement and the request for evidence

1. The prosecutor or the accusing victim exposes in summarised form the facts subject to accusation and indicates the evidence to be examined, describing the relation of each criminal act with its supporting evidence.

2. The defence lawyer of the defendant, the representatives of the plaintiff and of the civil defendant, in this order, shall indicate the facts they intend to prove and request the obtaining of evidence.

3. The obtaining of the evidence which have been not requested before shall be permitted when the requesting party claims not having been able to request them.

Article 357
Court rulings concerning evidence

1. After hearing the parties, the court renders decision on the obtaining of evidence.

2. During the court trial, parties may present claims in relation to the obtaining of evidence. The court may revoke by decision the obtaining of evidence which is not necessary or accept the obtaining of evidence which have been refused.

Article 358

Statements of the defendant

1. The presiding judge informs the defendant that he has the right to make, at any stage of the court trial, the statements he considers appropriate. When, during the rendering of statements, the defendant does not limit his declarations to the object of the charge, the presiding judge shall warn him and, if he continues, shall deprive him from the right to speech.
2. The statements of the defendant are reproduced in full by the secretary, unless the panel presiding judge orders that the minutes are kept in a summarized form.

SECTION III

OBTAINING OF EVIDENCE

Article 359

Order of obtaining evidence

1. The court trial starts by obtaining the evidence requested by the prosecutor or the accusing victim and continues by taking those, which are required by the defendant, the defence lawyer and other parties.

Article 360

Appearance and oath of the witness

1. Before starting the questioning, the presiding judge warns the witness on his legal obligation and liability to say the truth-
2. The secretary of the court reads the witness' oath:
"I swear that I shall say the truth, all the truth and I shall say nothing which is not true. After this, the witness declares: "I swear" and provides his personal details.
3. Failure to observe the provisions of paragraphs 2 and 3 shall render the performed actions null and void.

Article 361

Questioning of witnesses

*(Amended by Law no. 9276 dated 16.09.2004, Article 7;
amended by Law no. 35/2017, dated 30.03.2017, Article 202)*

1. The questioning of the witnesses is made initially by the prosecutor or the defence lawyer or representative who has requested the questioning. Then, the questioning continues by the parties, in order.
2. The one who has requested the questioning may ask questions even after the other parties have terminated theirs.

3. The party requesting the questioning shall not be allowed to make questions that influence negatively on the impartiality of the witness or that intend to suggest the answers.
4. The presiding judge may allow the witness to look at the documents prepared by the witness in order to help his memory.
5. Repealed
6. During the questioning of the witness, the presiding judge may ask questions and, when appropriate, intervene to insure orderly questioning, truthfulness of the answers, the accuracy of questions and objections, as well as to guarantee respect for the person.
7. The witness may be questioned at distance, within the country or abroad, through audio-visual links, in compliance with rules provided by international agreements and provisions of this Code. The person authorized by the Court shall remain at the witness's location, certifies his/her identity, and ensures the correct process of questioning and of the implementation of protective measures. These actions are reflected in the minutes.
8. The victims of the sexual criminal offences, trafficking or other domestic violence offences, upon their request, may be questioned as witnesses through audio and audio-visual tools.

Article 361/a

Questioning of the minor witness

(Added by Law no. 9276, dated 16.09.2004, Article 8;

amended by Law no. 35/2017, dated 30.03.2017, Article 203)

1. A minor witness under the age of 14 is questioned without the presence of the judge and the parties, at the premises where the minor is located, when possible, by means of audio-visual tools. Questioning is conducted through a psychologist, an educator or another expert and, if this is not contrary to the interests of the trial or interests of the child, the parents or the legal guardian may be present during the questioning. The parties may request and the court may decide *ex officio* that the minor be questioned by the judge in the presence of an expert. The minor may be questioned again only in specific cases and at the same way.
2. The questioning of a minor witness aged 14 to 18 years is conducted by the panel presiding judge. During the questioning, special care is given to avoid harmful consequences on his mental health, especially if the minor is a victim of the criminal offence. In compliance with the circumstances, the questioning may be conducted as foreseen in paragraph 1 of this Article.
3. The panel presiding judge, when questioning a minor witness up to 14 years of age, shall not observe the rule on the warning on the obligation and legal responsibility of the minor to tell the truth. This exemption shall apply also to other minor witnesses, if the presiding judge deems that he is not capable of understanding the consequences of oath-taking. In such cases, the panel presiding judge shall give to the minor the possibility to tell the truth and the court shall proceed with the hearing of the minor's testimony.
4. When the minor is heard during investigations and his statements are recorded, pursuant to paragraph 4 of Article 58/a of this Code, they are used as evidence in trial, if the defendant and the defence lawyer give their consent. The statements of the minor may be used as evidence even if the defence lawyer has been

allowed to question the minor through experts and the expert deems that the repetition of questioning may harm the psychological conditions of the minor.

Article 361/b

Special techniques for questioning

(Amended by Law no. 35/2017, dated 30.03.2017, Article 204)

1. The questioning of collaborators of justice, infiltrated or undercover persons, protected witnesses and witnesses with hidden identity is conducted under special measures for their protection, which are determined by the court, *ex officio* or upon the request of parties. When technical means are available, the court may determine that the questioning is conducted at distance, via audio-visual links, pursuant to the rules provided for in paragraph 7 of Article 361.
2. When the modification of identity of the person to be questioned has been decided, the court shall order appropriate measures to be taken to enable that the voice and face of the person to be unrecognizable by the parties. If the recognition of identity or the examination of the person is indispensable, the court orders the summoning of the person, or his forced accompaniment for the fulfilment of this act. In this case the court orders necessary measures to be taken to avoid the distinct appearance of the face of the person whose identity is modified.
3. The court shall not allow that the witness, pursuant to paragraph 1 of this Article, is asked questions that may reveal his identity.

Article 362

Rebuttal of testimony

1. In order to rebut, in whole or in part, the contents of the testimony or when the witness refuses to testify, the parties may use the statements previously made by the witness before the prosecutor or judicial police and which are part of the prosecutor's file, but only after the witness has already testified on the facts and circumstances which are being rebutted.
2. Such statements shall not constitute evidence in itself regarding the facts declared by it, but may only be taken into consideration by the court to determine the reliability of the person examined and shall be included in the trial's file.
3. Statements given in front of the prosecutor or the judicial police, may be evaluated as evidence, if they are related to other evidence which corroborate their truthfulness.
4. Previous statements, already included in the trial's file, pursuant to paragraph 2 of this Article, are evaluated as evidence even if it is proven that the witness, even during his questioning at trial hearing, is subject to violence, threat, promise for money or other benefits, with the purpose that he refuses to testify or make false testimony as well as if other circumstances that have impaired the authenticity of his answers have occurred.

Article 363

Expert questioning

(Amended by Law no. 9276 dated 16.09.2004, Article 9)

1. For the questioning of experts, rules on the questioning of witnesses apply, to the extent they are applicable.
2. The expert is entitled in any case to access the documents, annotations and publications, which may be obtained also *ex officio*.
3. The expert may be questioned in distance by following the rules provided in paragraph 7 of Article 361 of this Code.

Article 364

Questioning of witnesses and experts in their houses

1. In case of absolute impossibility to appear, upon request of the parties, the court may decide that the questioning of a witness or expert is performed in the places where they are located, notifying the day, hour and venue for the questioning. The questioning may be also made by one member of judicial panel, in the presence of the parties.
2. The questioning is made in the form provided for in the above Articles without the presence of the public. The defendant and the private parties are represented by the defence lawyer and their representatives. The court may allow the intervention of the defendant during questioning.

Article 365

Questioning of private parties

1. The questioning of the private parties shall start by the one who has requested it and shall continue with the questions by the prosecutor, the defence lawyers, the representatives of the parties and of the defendant. The party who has started questioning may pose questions also after the other parties.
2. The content of the testimony may be challenged by using the statements made by the questioned party during preliminary investigations and which are contained in the prosecutor's file, provided that the party has already testified on the facts and circumstances to be challenged.

Article 366

Ruling on expertise during trial

1. In case the court, *ex officio* or upon the request of the parties, rules the conduct an expertise, the expert is immediately summoned and must express his opinion in the same hearing. If this is not possible, the court shall interrupt the court review and shall establish the date of the new hearing, not later than thirty days.

Article 367

Obtaining new evidence

1. After obtaining the requested evidence, the court, if necessary, may ask additional questions and rule, even *ex officio*, the obtainment of additional evidence. In case it is not possible to proceed during the same hearing, the trial is suspended and the date of the new hearing is established.

Article 368

Minutes for obtaining new evidence

1. The minutes for obtaining of evidence shall indicate the personal data of the witnesses, experts and interpreters, and the warning made to them for saying the truth and for the liability they have in case of giving false testimony, expertise or interpretation.
2. The court secretary reproduces the questions made by the parties and the presiding judge, and the answers by the questioned persons.
3. In case the court decides for the minutes to be held in a summarized form, the control of its accuracy is made by the presiding judge.

Article 369
Allowed readings

(Amended by Law no. 35/2017, dated 30.03.2017, Article 205)

1. The court, even *ex officio*, decides that documents which are contained in the court trial file are read, in whole or in part.
2. Upon request of the parties, the court may rule that documents acquired during preliminary investigations are read when, due to unpredictable circumstances, they cannot be repeated.
3. The reading of statements made by an Albanian or foreign citizen, residing abroad, can be made if such person is summoned and has failed to appear or he is not found, despite the searches conducted by the judicial police, and when he/she refuses to testify. In such case the act is evaluated together with other evidence.
4. The judicial police officer or agent, who is questioned as a witness, may use the documents of the judicial police to help his memory.
5. Instead of reading, the court, even *ex officio*, may show the documents that are allowed to be used for rendering the decision. Showing such acts shall be held equal to reading them.

Article 370
Reading of statements made by the defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 206)

1. In order to rebut, in whole or in part, the content of the defendant's statements, the parties may use the statements previously made by him and which are in the prosecutor's file, provided that he has already spoken about the facts and the circumstances that are being challenged.
2. In case the defendant is declared in absentia or refuses to answer on statements rendered in the presence of his/her defence lawyer, pursuant to paragraph 3 of Article 38 of this Code, the court decides that the minutes of the statements made by him during preliminary investigations, be read.
3. In case the statements are made by persons taken as defendants in a joined proceeding, the court orders their forced accompaniment. When the presence of the person who has rendered a statement cannot be secured, the court, after hearing the parties, decides the reading of the minutes containing such statements.

Article 371
Insertion of the acts in the court's file

1. The minutes and acts which have been read, and the documents presented by the parties and accepted by the court are inserted, along with the minutes of the trial hearing, into the court file.

SECTION IV NEW ACCUSATIONS

Article 372

Amendment of the charge

1. When during the trial, the fact turns out to be different from what is described in the request for trial and its adjudication is under the competence of the same court, the prosecutor amends the charge and continues with the relevant charge.

Article 373

Charge for another criminal offence

1. When during the trial, another criminal offence connected to the offence under trial, pursuant to the Article 79, letter “b”, or when an aggravating circumstance which is not stated in the trial application emerges, the prosecutor communicates to the defendant the criminal offence or the circumstance, provided that the trial is not under the competence of a superior court.

Article 374

The accusation for a new fact

1. When during the court trial a new fact emerges against the defendant, which has not been mentioned in the request for trial and for which must be proceeded ex officio, the prosecutor proceeds in the usual forms, by taking back the dossier to continue the preliminary investigations. However, if the prosecutor so requests, the court may allow the review during the same hearing when the defendant gives his consent and expedite proceedings are not compromised.

Article 375

Amending the legal qualification of the offence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 207)

1. In its final decision the court may give to the fact a different definition from that given by the prosecutor or the accusing victim, provided that the criminal offence is under its competence.

2. When at the end of the judicial trial, the court deems that the fact of which the defendant is accused may have a judicial qualification that is more severe from the one made by the prosecutor or the accusing victim, the court shall notify the parties on this probability and provide them sufficient time for defence. The parties are entitled to submit new evidence.

3. When trial is held in the absence of the defendant, pursuant to Article 352 of this Code, the court implements the rules provided for by paragraphs 1 and 2 therein.

Article 376

Rights of the parties

(Amended by Law no. 35/2017, dated 30.03.2017, Article 208)

1. In cases provided by Articles 372, 373, and 374 and 375 the presiding judge informs the defendant that he may request a period of time for his/her defence. When the defendant requests such period, the presiding judge suspends the court trial for an appropriate time, but not later than ten days. The other parties may also request the obtaining of new evidence.

2. The presiding judge orders the summons of the victim, within a time limit not less than five days.

3. When the defendant is adjudicated in absentia, pursuant to Articles 351 and 352 of this Code, the prosecutor requests to the court to insert the new accusation in the minutes of the court trial and to send the extract of such minutes to the defendant. In such a case, the presiding judge suspends the court trial and establishes another hearing, observing the time limits provided for by paragraph 1.

Article 377

Returning the acts to the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 209)

1. When the prosecutor withdraws from the charge and in the state of evidence it is proved that the defendant is not guilty or any of the instances for case dismissal exists, the court shall decide the defendant's acquittal or case dismissal.

SECTION V

CLOSING DISCUSSION

Article 378

Holding the discussion

(Amended by Law no. 35/2017, dated 30.03.2017, Article 210)

1. After the obtaining of evidence, the prosecutor, the defendant's defence lawyer and the representatives of the other parties shall prepare and present the relevant conclusions.

2. The civil defendant shall present conclusions in written form, which must include, when the compensation for damages has been requested, also the determination of the missed profit.

3. The prosecutor, the defence lawyers and the representatives of the parties can replicate.

4. In any case, the defendant and the defence lawyer must present the final speech, if they request it.

5. Repealed

6. Repealed

Article 378/a

Request to re-open the judicial trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 211)

1. After the judicial trial has been terminated, no other evidence may be admitted.

2. The judicial review may be re-opened upon request of the parties, when they request the obtaining of newly emerged evidence or evidence which has been impossible to be taken earlier by them.

3. The court shall admit the request upon evaluation of their importance for the settlement of the case.

CHAPTER III THE DECISION

SECTION I DECISION-MAKING

Article 379

Simultaneous decision-making

(Amended by Law no. 35/2017, dated 30.03.2017, Article 212)

1. Decision is taken immediately after the final discussions of parties.
2. The taking of the decision may not be postponed, except in cases of absolute impossibility. Postponement is decided by the chairperson by reasoned order.

Article 380

Evidence that may be used for decision making

1. In taking the decision the court may not use evidence other than those which are obtained or verified during the judicial trial.

Article 381

Collegial decision making

(Amended by Law no. 35/2017, dated 30.03.2017, Article 213)

1. The judicial panel, led by the presiding judge, decides separately for each case connected with the fact and the law, with the execution of the precautionary measures, punishments and civil liability.
2. The judges expose their opinion and vote for each issue. The presiding judge collects the votes, starting from the judge who has less experience and votes himself for last.
3. The decision shall be signed by all members of the judicial panel. The judge, who is in minority, signs the decision, by noting "against".

Article 382

Drafting the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 214)

1. After being issued, the decision shall be reasoned based upon the evidence and criminal law and it shall be signed by all the members of the panel.
2. When the decision is announced in a summary form, it shall be reasoned in full within 30 days from its announcement. This time limit may be extended for another period of 30 days if the case is adjudicated by the Anti-Corruption and Organized Crime Court.

3. If the sentenced person is under a personal precautionary measure, pursuant to Article 237 and 238 of this Code, the decision shall be reasoned within 15 days from the date of announcement or within 30 days where tried by the Anti-Corruption and Organized Crime Court.

4. The period foreseen to reason the decision in writing pursuant to paragraph 2 and 3 of this Article may be extended in exceptional cases due to the justified grounds. The chairperson of the court has to be notified thereof.

Article 383

Elements of the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 215)

1. The decision shall contain:

- a) the court which has issued it;
- b) the personal data of the defendant or other personal data which are useful for his identification and also the personal data of the other private parties;
- c) the charge;
(ç the summarized exposition of the circumstances of the fact and the evidence on which the decision is based as well as the reasons why the court considers unacceptable the contrasting evidence;
- d) the dispositive, indicating the applied Articles of the law;
- dh) the date and the signature of the judges.

2. The decision is invalid if the dispositive or the signatures of the members of the judicial panel are missing, and if there are obvious/manifest contradictions between the reasoning and the disposition.

Article 384

Pronouncing the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 216)

1. The decision is announced in the hearing by the presiding judge or a member of the panel, by reading its dispositive.

2. After the dispositive, the presiding judge reads the reasoned decision. The reasoning of the decision may be given in writing also in a summary form, indicating the main grounds on which the decision is based. In such case, the court delivers to the parties in the hearing, a summary of the decision in writing.

3. The annunciation of the decision, pursuant to this Article, shall be deemed as notification for the parties who are present in the hearing.

Article 385

Correction of the decision

1. The court even ex officio, proceeds with the correction of the decision when it must correct any material error.

Article 385/a

Completion of the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 217)

1. Each of the parties, within 30 days from the announcement of the decision, if they were present, or from the day they were informed in case the decision was announced in their absence, may request its completion [of the decision] in case the court did not rule on all requests concerning the obtaining of evidence.
2. The court shall examine the request with the same judicial panel, upon summoning the parties.
3. Special appeal may be filed against this decision.

Article 386
Filing the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 218)

1. The decision is filed with the secretary immediately after the reasoning, within the time limits foreseen in Article 382 of this Code. The assigned clerk signs and indicates the date of the filing.
2. The decision is notified to the parties who have not been present during its announcement, to the address declared by them. The notification shall be considered completed if served to the address declared by the parties.

SECTION II
DECISION FOR DISMISSAL OF THE CASE AND ACQUITTAL

Article 387
Decision dismissing the case

(Amended by Law no. 35/2017, dated 30.03.2017, Article 219)

1. When the criminal prosecution should not have started or should not continue, pursuant to the cases provided for in letters "c", "ç", "e" and "ë", of paragraph 1 of Article 328, of this Code, or when the criminal offence is extinguished and the defendant does not request for acquittal, the court shall decide dismissal of the case, by indicating also relevant reason.
2. Repealed

Article 388
Acquittal decision

1. The court shall issue a decision of acquittal if:
 - a) the fact does not exist or it is not proved that it exists;
 - b) the fact does not constitute a criminal offence;
 - c) the fact is not provided by law as a criminal offence;
(ç the criminal offence is committed by a person who cannot be charged or punished;
 - d) it is not proved that the defendant has committed the offence he is accused of;
 - e) the act has been committed in presence of a legitimate reason or an exculpatory reason and when there is doubt about their existence.

Article 389

Rulings on precautionary measures

1. By a decision of acquittal or dismissal the court orders the release of the defendant placed under precautionary detention and declares the withdrawal of any other precautionary measures. When the decision is conditionally suspended, it is proceeded in the same way.

SECTION III

CONVICTION DECISION

Article 390

Conviction of the defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 220)

1. The court issues a conviction decision, when the guilt of the defendant is proven beyond any reasonable doubt, and establishes the type and measure of penalty.
2. The court cannot base the conviction decision only on statements made by persons, who, out of their own free choice, have always voluntarily avoided undergoing questioning by the defendant or his lawyer in all stages of the proceedings.
3. The court cannot base the conviction decision only or mainly on the statements of the co-defendant or the testimonies obtained through special techniques for hiding the witness identity, pursuant to Article 361/b of this Code.
4. When the defendant has committed more criminal offences, the court shall establish the sanction for each of them and shall apply the rules on the unification of criminal offences and sanctions.

Article 391

Declaration for forgery of documents

1. Forgery of an act or a document certified by a court decision, is declared in the [decision] dispositive, which orders, as appropriate, the deletion, in whole or in part, restatement, reproduction or amendment of the act or document, determining also the way it must be done.
2. Declaration of forgery may be appealed in conjunction with the final decision.

Article 392

Obligation to pay the fine

1. When the convicted person does not have income or assets that are allowed be sequestered, the court charges the person civilly liable for the defendant's obligations to pay an amount equal to the fine.

Article 393

Obligation for the expenses

1. The convicted person is charged with the payment of the procedural expenses connected with the criminal offences to which the sanction refers to.

2. Persons convicted for the same criminal offence or for connected criminal offences are jointly obliged to pay expenses in proportion with the degree of guilt or the offence committed. Persons convicted in the same trial for criminal offences which are not connected among them are jointly obliged only for the common expenses related to the criminal offences for which the sanction has been issued.

Article 394

The liability of the civil defendant

1. With the conviction decision, the court rules also on the requests for the return of the item and the compensation for damages, and on the method of payment of the obligation.
2. In case the liability of the civil defendant is accepted, he is obliged jointly with the defendant to return the item and compensate damages.

Article 395

Evaluation of the damage

1. When the obtained evidence does not allow for the exact evaluation of the damage, the court rules on the right for compensation of damages, in general, and transfers the act to the civil court.
2. Upon request of the civil plaintiff, the defendant and the civil defendant may be obliged to pay an amount approximately equal to the damage which is deemed to be proved. This obligation is executed immediately.

Article 396

Temporary execution of the civil obligation

1. Upon the request of the civil plaintiff, when there are lawful reasons, the obligation for the return of the item and the compensation of damage is declared temporary enforceable.

Article 397

The obligation of the private parties to pay procedural expenses

1. With the decision accepting the request for the return of an item or the compensation of damages, the court obliges jointly the defendant and the civil defendant to pay the procedural expenses in favour of the civil plaintiff, except when it deems that it must decide their entire or partial compensation.
2. When the request is rejected or the defendant is found not guilty, except when he has no criminal liability, the court obliges the civil plaintiff to pay the procedural expenses made by the defendant and the civil defendant in relation to the civil lawsuit, but in any case, when there are no reasons for the complete or partial compensation. When it is proved the gross negligence, the court may also charge with the compensation of the damages caused to the defendant or the civil defendant.

Article 398

The obligation of complainant to pay the expenses and damages

1. When the court decides that the defendant is not guilty for a criminal offence which is proceeded on complaint, because the fact does not exist or the defendant has not committed it, the complainant is charged with the payment of the expenses for the proceedings made by the State, and with the expenses and the compensation of the damage in favour of the defendant and the civil defendant.

Article 399

The publication of the decision compensating moral damages

1. Upon the request of the civil plaintiff, the court decides the publication of the conviction decision, as a method of re-instating of the moral damage arising out of the criminal offence.
2. The publication of the decision is made, in full or summary form, in the newspapers indicated by the court, with the expenses of the defendant or civil defendant.
3. If the publication is not made within the set time limit, the civil plaintiff may act personally, with the right to request expenses from the convicted person.

CHAPTER IV SPECIAL TRIALS

SECTION I DIRECT TRIAL

Article 400 Cases of direct trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 221)

1. When the defendant is arrested in *flagrante delicto* and is being investigated for the commission of a criminal offence which is tried by a single judge, the prosecutor within forty-eight hours of his arrest submits to the court the request for validation and his direct trial, if he deems that no further investigation is needed.
2. If the arrest is deemed lawful and there is no need for further investigations, the court proceeds immediately with the trial, whereas when it is not found grounded, the acts are returned back to the prosecutor. In the latter case, if the defendant and the prosecutor give their consent, the court shall proceed with the direct trial.
3. When the defendant has been arrested in *flagrante delicto* and the arrest is considered lawful, and also when the court imposed one of the precautionary measures provided for by Articles 237, 238 or 239 of the Code, the prosecutor shall file a request with the court for a direct trial no later than 30 days from the date of arrest, unless further investigation must be carried out.
4. When the criminal offence, for which the direct trial is requested, relates to other criminal offences for which the conditions for this type of trial are not met, the procedure is carried out separately for those other offences and other defendants, except when the separation prejudices the investigations. When the joining is indispensable, the rules of the default judgement shall apply.

Article 401
Preparation of the direct trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 222)

1. Upon procedure of a direct trial the prosecutor orders the appearance at the hearing of the defendant arrested in *flagrante delicto* or under the precautionary measure provided for by Articles 237, 238 or 239 of this Code. When the defendant is in free state, the time limit to appear may not be shorter than three days.
2. The order shall contain, under penalty of invalidity, the data provided for by letters “a”, “b” and “c” of Article 332/e and the indication of the place, date and the time to appear and the warning that if the defendant fails to appear, he will be forcibly accompanied, as well as the date and signature of the prosecutor.”
3. The defence lawyer shall be notified without delay by the prosecutor on the date of the trial. He has the right to read and make copies of the documentation related to the investigations having been carried out.
4. The order and the case file shall be sent to the court. In the case provided for by Article 400, paragraph 3, the prosecutor shall be notified at least 10 days in advance of the date and the time of the trial as well as of the court that will try the case.

Article 402
Conduct of the direct trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 223)

1. During the direct trial the provisions of the chapter for the court examination shall apply.
 - 1/1. The victim and the witnesses shall be notified by the Judicial Police also verbally. In the case foreseen by Article 400, paragraph 1, the prosecutor may notify the arrested person of the charge during the court hearing.”
2. The prosecutor, the defendant and the civil plaintiff, may present other witnesses during the court examination, even if they have not been summoned before by the Court.
3. The Court shall inform the defendant on the right to request an abbreviated trial or to ask for a judgement upon agreement. The defendant shall also be informed on the right to request a time limit of up to five days to prepare the defence. In that case, the judicial examination shall be postponed until a new hearing is scheduled after the termination of this time limit.
4. When a direct trial is requested in other cases than those foreseen by Article 400 of this Code, the court shall return the acts to the prosecutor.
5. The defendant may request a abbreviated trial. The court, after hearing the prosecutor and finding the request founded, shall decide to continue the trial following the rules of a abbreviated trial. If it decides otherwise, it shall continue with the direct trial.

SECTION II
ABBREVIATED TRIAL

Article 403
Request for abbreviated trial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 224)

1. The request for abbreviated trial shall be submitted by the defendant or his/her defence lawyer upon special power of attorney during the preliminary hearing or the court hearing pursuant to Article 400, paragraph 3 and Article 406/ç of this Code, otherwise it shall not be admitted.
2. The request for abbreviated trial for criminal offences punishable with life imprisonment shall not be allowed.

Article 404
(Repealed by Law no. 35/2017, dated 30.03.2017, Article 225)

Article 405
Abbreviated trial hearing

(Amended by Law no. 35/2017, dated 30.03.2017, Article 226)

1. When the defendant or the defence lawyer, with special power of attorney, have requested abbreviated trial in the preliminary hearing, in compliance with provisions of Article 332/c of this Code, the court hearing shall be held in the presence of the prosecutor, the defendant, the defence lawyer, the victim or his/her heirs, when their identity and place of residence are known from the acts of the proceedings, and also the private parties.
2. The court makes the verifications connected with the legal standing of the parties.
3. In case the defence lawyer of the defendant fails to appear, and the defence is mandatory pursuant to the criteria determined in this code, the court appoints another defence lawyer as substitute.
4. When the defendant fails to appear in the hearing because of legitimate excuses, the court shall set the date of the new hearing and shall order that the defendant is notified.
5. After hearing the parties on the preliminary requests, the court shall read the request for abbreviated trial and ask the defendant if he sticks to it. When the defendant states that he upholds the request, the court declares the judicial examination open and gives the floor to the prosecutor to briefly present the results of the preliminary investigation.
6. After hearing the submissions of the prosecutor, in the same hearing the court shall decide on the admissibility of the request for the abbreviated trial if it deems that the case may be resolved under the existing state of the acts. Otherwise it shall refuse the request and shall continue with the ordinary trial. The decision may be appealed together with the final decision.
7. The request for abbreviated trial shall not be admitted if the defendant or his defence lawyer raise claims on the validity of the acts or usability of the evidence collected during the preliminary investigation or when new evidence is required to be taken in trial. The request for abbreviated trial shall not be admitted if the Court *ex officio* finds an absolute invalidity or non-usability of evidence, as a result of which it deems that the case may not be resolved under the existing state of the acts. In this case, in its decision refusing the request, the court shall also identify the acts which are absolutely invalid or the pieces of evidence which

are non-usable in trial. This rule shall not apply if evidence concerning the character of the defendant, or his personal, family or economic conditions is requested.

8. When the court admits the request for abbreviated trial, it invites the parties to submit the final discussions.

9. The civil claim shall not be examined if the court admits the request for abbreviated trial.

Article 406

Decision

(Amended by Law no. 145/2013, dated 02.05.2013, Article 2;

amended by Law no. 35/2017, dated 30.03.2017, Article 227)

1. In case a conviction decision is issued, the court reduces the fine or the prison term by one third.

2. Repealed

3. The prosecutor, the defendant, the victim and civil plaintiff may appeal against the decision of the court.

4. The provisions of chapter III of this title shall be applicable, as long as they are compatible.

SECTION III

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

Article 406/a

Request for approval of the penalty order

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. When the defendant is accused for committing a misdemeanour, the prosecutor, within three months from the registration of the name of the person to whom the criminal offence is attributed, shall issue a reasoned penalty order determining the punishment and request its approval by the court, if he deems that a prison sentence shall not apply.

2. In the penalty order, the prosecutor shall determine a fine as main punishment. Where appropriate, he may also impose one or more supplementary punishments. Depending on the economic status of the defendant, the prosecutor may order that the fine shall be paid in instalments, by determining the time limits to pay them.

3. A punishment by fine may not exceed half of the maximum provided for this type of punishment by the Criminal Code.

4. At the end of the investigations, the request for approval of the penalty order shall be deposited with the secretary office of the court, together with the acts of the preliminary investigation file. The request for approval of the penalty order shall be notified to the defendant. The provisions of Article 327 paragraph 2 and following of this Code shall not apply.

Article 406/b

Decision approving the penalty order

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The Court shall examine the request in closed session and decide within ten days after it has been filed. The decision approving the penalty order shall be reasoned in summary form and it shall contain:

- a) personal data of the defendant;
- b) submission of the fact and the legal qualification of the criminal offence;
- c) sources of evidence and facts to which they refer to;
(ç amount of the fine, modalities of its execution and type of the supplementary punishment established;
- d) the right of the defendant to challenge the decision of the court and the time limit within which such decision may be challenged;
- dh) rulings on material evidence and items related to the criminal offence;
- e) date and signature of the judge.

2. The court may not change the punishments established in the penalty order by the prosecutor, but by assessing the circumstances of the economic status of the defendant, in the stage of execution, upon request of the sentenced person, it may apply the provisions of Article 34 paragraph 8 and following of the Criminal Code.

3. The decision approving the penalty order shall not cause the consequences foreseen in Article 70 of this Code. It may not charge the sentenced person with the payment of the expenses of the proceedings.

4. The punishment imposed shall not be entered in the criminal record certificate unless the sentenced person is a recidivist.

Article 406/c

Decision to refuse the approval of the penalty order

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The court shall refuse the approval of the penalty order if:

- a) one of the grounds of dismissal of the charge or of the case exists;
- b) the defendant is accused of a criminal offence for which the law does not allow the application of the penalty;
- c) the prosecutor has asked for a punishment by fine or one or more inappropriate supplementary punishments;
(ç it is convinced that the case may not be resolved in the state of the preliminary investigative acts that are attached to the request for approval.

2. In the cases foreseen in letter "a" paragraph 1 of this Article, the court shall decide to dismiss the case, whereas in other cases it shall decide to return the acts to the prosecutor. This decision shall be notified to the prosecutor and the defendant.

Article 406/ç

Challenging the decision of the court

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The decision of the court approving the penalty order shall be notified to the defendant and the person civilly liable for the damage caused by him, who have the right to challenge it before the same court within ten days from the day they have been notified.
2. The challenge cannot be refused, except in cases where it is submitted by an illegitimate person or after expiry of the time limits.
3. When the court proceeds according to paragraph 2 of this Article, it sets the date of the trial and notifies the parties and their defence lawyers. The court proceeds with the ordinary trial if the defendant fails to submit the request for an abbreviated trial. In such case, the provisions of Article 333 and following of this Code shall apply.

SECTION IV JUDGMENT UPON AGREEMENT

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

Article 406/d

Content of the agreement

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. From the registration of the name of the person to whom the criminal offence is attributed until the beginning of judicial review, the prosecutor, the defendant or his special representative may propose to reach an agreement on the conditions of admission of guilt and setting punishment.
2. In the negotiation for reaching an agreement, the presence of the defence lawyer of the defendant is mandatory. The conclusion of the agreement shall be allowed for criminal offences for which the law provides for a maximum punishment of not more than 7 years of imprisonment. This restriction shall not apply in the case of the justice collaborator.
3. The agreement shall be made in writing and contain, under penalty of invalidity:
 - a) accurate description of the criminal fact for which the defendant is charged and its legal qualification;
 - b) a statement of admission of guilt by the defendant;
 - c) type and extent of the main criminal sanction, supplementary sanction and the manner of its execution, agreed upon by the parties;
 - (ç rulings on material evidence and items related to the criminal offence, and on confiscation of the means and proceeds of the criminal offence, pursuant to Article 36 of the Criminal Code;
 - d) if the civil plaintiff is legitimated, his written consent on the amount of the damage compensation to be paid by the defendant;
 - dh) amount of procedural expenses;
 - (ë signature of the parties and the defence lawyers.
4. The prosecutor, after signing the agreement, shall notify the victim or his/her heirs, whose identity and place of residence is in the acts of the proceedings, by sending copies thereof.
5. The conditional agreement for the partial admission of charges is inadmissible.

Article 406/dh

Court examination

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The prosecutor, when reaching an agreement, shall send it to the court for approval, together with all the acts of the preliminary investigation. When the agreement is submitted in the preliminary hearing, the court shall decide according to the provisions of paragraph 4 of Article 332/c of this Code.
2. The Court examines the request in a court hearing within thirty days after its submission. The presence of the prosecutor, defendant and defence lawyer in the hearing is mandatory. The victim shall be notified and has the right to participate. Failure of the victim to participate does not preclude the examination of the case.
3. The court, after verifying the appearance of the parties, shall declare the judicial examination open and invites the prosecutor to submit, in summary form, the outcomes of the agreement reached. The defence lawyer takes the floor, if he requests so.
4. The court shall ask the defendant specifically about the following:
 - a) whether he has entered into the agreement of his own free will;
 - b) whether he has been represented by the defence lawyer in the negotiations on reaching and signing of the agreement;
 - c) whether he understands the agreement and its content;
 - (ç whether he understands the consequences of the approval of the agreement;
 - d) whether he consents to the approval of the agreement and its execution.
5. The court, if the victim is present, shall invite him/her to give an opinion on the content of the agreement.

Article 406/e

Approval of the agreement

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The court, unless it decides to dismiss the case or to return the acts to the prosecutor, shall decide to approve the agreement.
2. The decision shall contain, in summary form, under penalty of invalidity:
 - a) the personal data of the defendant and other personal information needed for his identification and the personal data of the victim, if present;
 - b) the fact that the defendant has been represented and the identity of his defence lawyer;
 - c) the fact that the defendant has understood the content of the agreement and its consequences and has signed it upon free will;
 - (ç the fact that the legal qualification of the offence and its circumstances, the appropriateness of the imposed punishment and also the lack of grounds for impunity or extinction of the criminal offence, have been properly assessed by the prosecutor;
 - d) the declaration of the defendant's guilt, the sanction imposing and other rulings, pursuant to the content of the agreement;
 - dh) date and signature of the decision.

3. If the agreement on civil damage is reached, it shall be part of the content of the court decision.

4. The court may not change the terms of the agreement reached by the parties.

Article 406/ë

Refusal of the agreement

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. The court shall refuse the approval of the agreement when:

- a) the defendant withdraws his consent;
- b) it is proven that the will of the defendant is flawed;
- c) the defendant who has been duly summoned, does not attend the hearing, without legitimate reasons;
(ç one of the grounds for non-initiation of the proceedings or dismissal of the charge or the case exist;
- d) evidence in the investigation file contradict the admission of the defendant to have committed the criminal offence;
- dh) the legal qualification of the criminal offence and the circumstances of its commission are wrong;
- e) the punishment set in the agreement is inappropriate in relation to the committed offence and the character of the defendant.

2. The decision for refusing approval of the agreement shall be reasoned. In the case foreseen by letter “ç”, paragraph 1, of this Article, the court shall decide to dismiss the case, whereas in all other cases it shall decide to return the acts to the prosecutor. When the court refuses to approve the agreement, the filing of a new request is not allowed.

3. Statements of the defendant during the hearing may not be used against him.

Article 406/f

Appeal against the court decision

(Added by Law no. 35/2017, dated 30.03.2017, Article 228)

1. No appeal is allowed against the decision of the court.

2. The prosecutor may file an appeal only against the decision of the court to dismiss the case.

3. For the appeal, Articles 407 and following of this Code shall apply, to the extent compatible.

TITLE VIII

APPEALS

CHAPTER I

GENERAL RULES

Article 407

Cases and means of appeal

1. The law provides for the cases in which the decisions and orders of the court may be appealed, as well as the means for appealing.

2. The appeal against the orders of the court, unless the law provide otherwise, may be filed along with the appeal against the decision.
3. The means for appealing are: the appeal to the court of appeal, the appeal to the High Court and the request for revision.
4. A person has the right to appeal, when it is expressly acknowledged by the law. If the law does not differentiate among the parties, each of them has the right to appeal.
5. If the appeal is filed with an incompetent court, it shall transfer the acts to the competent court.

Article 408

Appeal by the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 229)

The prosecutor may file an appeal with the higher court, in cases foreseen by this code.

Article 409

Appeal by the accusing victim

1. The accusing victim may appeal, personally or through his representative, both for criminal or civil effects. He may withdraw the appeal filed by the representative.

Article 410

Appeal by the defendant

*(Paragraph 2 amended by Constitutional Court Decision No. 15,
dated 17.04.2003;
amended by Law no. 35/2017, dated 30.03.2017, Article 230)*

1. The defendant may appeal personally or through his defence lawyer. The legal guardian of the defendant may file any appeal that the defendant is entitled to.
2. The decision issued *in absentia* may be appealed by the defence lawyer, only if he is specifically authorised by the defendant, by means of a power of attorney, issued in the forms provided for by the law, or by statement made in the hearing.
3. The defendant may withdraw the appeal made by his defence lawyer, but if he is legally incapable to act, the consent of the legal guardian shall be obtained.
4. An appeal by the defendant against the conviction or acquittal includes an appeal against the part of the decision on the obligation of restitution of property, compensation for damage and payment of court procedure expenses.

Article 411

Appeal by victim, civil plaintiff and civil defendant

(Amended by Law no. 35/2017, dated 30.03.2017, Article 231)

1. The accusing victim and the civil plaintiff may appeal against the points of the convicting decision connected with the civil lawsuit and, in case of acquittal, only against the effects of civil liability.
2. The victim and civil plaintiff may appeal against the parts of the decision regarding the liability of the civil defendant for the restitution of the property, the compensation for the damage and procedural expenses.

Article 412

Form of appeal

1. The appeal shall be filed in writing, indicating the appealed decision, its date, the court having issued it as well as the points of the decision challenged, the reasons for appealing and the requests.

Article 413

Filing of the appeal

1. The appeal is submitted to the secretary of the court, which issued the appealed decision. The secretary of the court notes down on the appeal the day of receipt and the name of the person submitting it, attaches it to the acts and, if requested, issues an acknowledgement of receipt.
2. The private parties, the defence lawyers and the representatives may submit the appeal also to the secretary of the court of the place of their residence or to a consular official. In these cases, the act is immediately sent to the secretary of the court having issued the decision.
3. The appeal may be sent by registered mail to the secretary of the court having issued the decision. The secretary of the court notes down the day of its reception on the envelope and attaches it to the acts. The complaint is considered as submitted on the date in which the act is sent by registered mail.

Article 414

Notification of the appeal

1. The appeal shall be notified to the prosecutor, the defendant and the private parties by the secretary of the court having issued the decision.

Article 415

Time limits for the appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 232)

1. Unless provided otherwise by this Code, the time limit to file an appeal is fifteen days.
2. The person having filed an appeal is entitled to submit to the secretary of the court which shall examine the case, other grounds connected with the complaint, up to five days before hearing,
3. The time limits provided for by this Article may not be extended, except for the cases provided for by law.

Article 416

Scope of appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 233)

1. The appeal filed by one defendant, if not based only on personal grounds, also applies to the other defendants.
2. The appeal filed by the defendant also applies to the civil defendant.
3. The appeal of the civil defendant applies also to the defendant for criminal effects.

Article 417

Suspension of execution

(Amended by Law no. 35/2017, dated 30.03.2017, Article 234)

1. The execution of the appealed decision is suspended until the conclusion of adjudication in the appeal court, unless provided for otherwise by the law.
2. Appeals against decisions concerning personal freedom do not have suspending effect.

Article 418

Withdrawal of appeal

1. The prosecutor who has filed an appeal may withdraw it until the court examination starts, whereas the withdrawal of the prosecutor before the court reviewing the appeal may be done until the start of the final discussion.
2. The defendant and the private parties may also withdraw the appeal through the defence lawyer or the representative.
3. The statement of withdrawal is made in the form and manner provided for the submission of the appeal, where appropriate, at the court having issued the decision or at the court reviewing the appeal.

Article 419

Transmitting of documents

(Amended by Law no. 35/2017, dated 30.03.2017, Article 235)

1. The court having issued the decision shall send the acts of proceedings and the appeal to the court which has to examine the case, within five days after notification, unless the appeal has been withdrawn.

Article 420

Non-admission of the appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 236)

1. Except the cases when inferred in the hearing, the appeal is not admitted in closed session:
 - a) when it is made by who is not legitimated;
 - b) when the decision is not subject to appeal;
 - c) when the provisions regarding the form, submission, sending, notification and the time limits of appeal have not been respected;
 - (ç when the appeal has been withdrawn during the trial;

- d) there is no longer a subject matter of appeal.
2. The non-admission may be declared, also ex officio, in any state or stage of the proceedings.
3. The decision of non-admission is notified to the one who has filed the appeal, and it is subject to appeal to the High Court, within its competence.
4. When the court decides the non-admission of the appeal, the decision shall be considered as not appealed for execution purposes.

Article 420/1

Reinstatement of time limits to appeal

(Added by Law no. 35/2017, dated 30.03.2017, Article 237)

1. The parties shall be reinstated in the time limit to appeal if they prove lack of possibility to meet the time limit, because of force majeure or event of fate. The request of re-instatement shall be accompanied by the appeal, otherwise it shall not be admitted.
2. When the trial is held according to the provisions of Article 351 of this Code, the defendant may request reinstatement of the time limits to appeal if he proves that he has not been informed of the decision.
3. The request for reinstatement shall be submitted within 10 days from the disappearance of the fact constituting an event of fate or force majeure, whereas in cases foreseen in paragraph 2, it shall be submitted from the day the defendant has been informed effectively of the decision. Re-instatement shall not be allowed for more than once for each party in any stage of the proceedings.
4. If the appellant fails to appear in the hearing, without any justified ground, despite having been duly notified of the date and time or withdraws the request, the court shall decide the non-admission of the request.
5. When the request is admitted and the decision for which time limits reinstatement is allowed is an imprisonment sentence decision that has been executed, the execution of the sentence shall be suspended. The court shall order the immediate release of the defendant unless he has been detained because of the precautionary measure of arrest.
6. The court shall reason the decision within 5 days from its announcement.
7. The decision allowing reinstatement of time limits may be appealed against together with the final decision.
8. The decision refusing the request for reinstatement of time limits may be appealed against within 5 days. The court of appeal shall examine the appeal in closed session within 15 days from the date of receiving the acts.

Article 421

Charging of expenses

1. Upon the decision rejecting or declaring the appeal inadmissible, the private party who has filed it is charged with the expenses of the proceedings.
2. The co-defendants having participated in the trial are charged with the expenses jointly with the defendant who has filed the appeal.

3. In appeal trials only for civil interests, the expenses shall be charged to the private party losing the trial.

CHAPTER II APPEAL

Article 422 The right of appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 238)

1. The prosecutor, the defendant and the civil plaintiff and the civil defendant are entitled to file an appeal against decisions of the first instance court.

Article 423 Counter appeal

1. The party not having filed an appeal within the time period may file a counter appeal within five days from the day he received the notification of the appeal of the other party.

2. The counter appeal is submitted and notified according to the general rules on appeals.

3. The counter appeal of the prosecutor does not have any effect on the co-defendant who did not file an appeal.

4. The counter appeal loses its effect if the appeal of the other party is not admitted or it is withdrawn.

Article 424 Competent court

(Paragraph 3 amended by Law no. 9085, dated 19.06.2003, Article 6;

paragraph 2 repealed by Law no. 9911, dated 05.05.2008, Article 6;

amended by Law no. 35/2017, dated 30.03.2017, Article 239)

1. The Court of Appeal shall decide on appeals against decisions of the District Court.

2. Repealed

3. The Anti-Corruption and Organised Crime Court of Appeal shall decide on appeals against the decisions of the Anti-Corruption and Organised Crime Court.

Article 425 Limits of case review

(Amended by Law no. 35/2017, dated 30.03.2017, Article 240)

1. The court of appeal reviews the case within the grounds presented in the appeal. For the questions of law to be reviewed *ex officio*, and for the grounds presented in the appeal which are not based on personal motivation, the court of appeal shall review also the part related to co-defendants who have not filed an appeal.

2. If the prosecutor or the accusing victim file an appeal, the Court of Appeal:

- a) may give the fact a more severe legal qualification, change the type or raise the punishment sentence, change the precautionary measures and impose any other measure provided for or allowed by the law;
 - b) may convict a person who has been acquitted, acquit him under a ground different from what has been admitted in the appealable decision, impose the measures indicated in the letter “a”;
 - c) may apply, change or exclude supplementary or alternative sentences.
- (ç give the fact a more severe legal qualification than the one requested by the prosecutor, if the case falls within its subject matter competence. In this case, the court shall reopen judicial examination and apply the provisions of paragraph 2, of Article 375, of this Code.
3. If only the defendant appeals, the court may not impose a more severe sentence, a more severe precautionary measure, acquittal on less favourable grounds than that of the appealed decision, nor give the fact a more severe legal qualification.

Article 426

Preliminary actions of the trial

1. The presiding judge of the chamber of court of appeal orders the summons of the defendant, civil plaintiff and the civil defendant, as well as the defence lawyers and their representatives. The time limit may not be less than ten days.
2. The summons order is invalid if the defendant has not been precisely identified or when the place, the day and the hour of appearance are not precise.

Article 426/a

Judicial examination in the Court of Appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 241)

1. Before the judicial examination starts, the presiding judge of the judicial panel verifies whether the parties are present. If the parties fail to appear, the presiding judge shall verify whether they have been duly notified and whether their absence is justified.
2. After the verification of the parties and their legal standing, the court shall announce the judicial panel and declare the discussion open.
3. The presiding judge or a member of the panel shall report in a summary form on the court file and the grounds raised in the appeal.
4. If only one of the parties filed an appeal, it shall take the floor first. If both the prosecutor and the defendant have filed an appeal, the prosecutor shall take the floor first.
5. When examining the case at appeal instance, the provisions on the court procedure at first instance shall apply to the extent possible.
6. The court may order the parties to submit their claims in a summary form, by also specifying the considered sufficient time limit. In the hearing, the parties may not submit grounds beyond those raised in the appeal.

Article 427

Retrial

(Amended by Law no. 35/2017, dated 30.03.2017, Article 242)

1. If a party in the act of appeal or in its completion, requests the re-obtaining of the evidence allowed during the court examination at first instance or obtaining of new evidence, the court, if it deems that it cannot decide in the current state of acts, repeats the trial.
2. Evidence found after trial at the court of first instance or of those appearing on the spot is subject to the court decision which, where appropriate, orders whether it shall be taken or not.
3. The repetition of the trial is also decided ex officio when the court deems it indispensable.
4. When the defendant has been declared innocent, the court of appeal may not declare him guilty based only on a different evaluation of the evidence obtained at the first instance trial. In this case the court of appeal shall repeat the trial.
5. For the repetition of the trial, decided pursuant to the above paragraphs, the procedure begins immediately, and, when this is not possible, the court examination shall be postponed for a period not longer than ten days.

Article 428

Decision of the Court of Appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 243)

1. The Court of Appeal, after examining the case, decides:
 - a) to uphold the decision;
 - b) to change the decision;
 - c) to quash the decision and dismiss the case when there are grounds not permitting the initiation and continuation of the proceedings;
 - ç) to quash the decision and return the acts to the first instance court, if the provisions regarding the conditions to be a judge in the concrete case, the number of judges necessary for constituting the chambers, as defined in this Code, the exercise of the prosecution by the prosecutor and his participation in the proceedings, the participation of the defendant, of his defence lawyer or of the representative of the accusing victim, the violation of the provisions for the introduction of new charges are not respected and also in any case when specific provisions foresee the nullity of the decision.
2. A copy of the decision shall be immediately notified to the first instance court.

Article 429

Returning the documents to the first instance court

(Amended by Law no. 35/2017, dated 30.03.2017, Article 244)

1. In case of a decision according Article 428, letter ç), the court of appeal shall order to transmit the acts to another chamber of the same court.
2. When appeal to the High Court has not been filed, the file with the documents is transmitted to the court that has issued the decision.

Article 430

Rulings on the execution of a civil obligation

1. Upon request by the civil plaintiff, the Court of Appeal may decide on the temporary execution of the obligation, if the first instance court has not expressed its opinion or has refused the request. It may also decide on the suspension of the execution of the obligation to prevent serious and non-repairable damage which may occur.

Article 430/1

Announcing and filing the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 245)

1. The presiding judge or a member of the panel announces the decision in the hearing by reading the dispositive of the decision.
2. After the dispositive, the presiding judge reads the reasoned decision. The reasoning of the decision may be given in writing and in a summary form, indicating the main grounds on which the decision is based. In this case, the court delivers the summary form of the decision in writing to the parties in the hearing.
3. The decision shall be deposited immediately with the court secretary immediately after its announcement. The assigned employee shall sign and write the date of the deposition.
4. When the decision is announced in a summary form, it shall be reasoned within 30 days from its announcement. This time limit may be extended for another 30 days if the case is tried by the Anti-Corruption and Organized Crime Court.
5. The period foreseen to reason the decision in writing, pursuant to paragraph 4 of this Article may be extended in exceptional cases due to justified grounds. The chairperson of the court must be notified thereof.

CHAPTER III

APPEAL TO THE HIGH COURT

SECTION I

GENERAL RULES

Article 431

Direct appeal to the High Court

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 246)

Article 432

Appeal against decisions of the Court of Appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 247)

1. Appeal to the High Court against decisions issued by the Court of Appeal may be filed for the following reasons:

- a) non-compliance with or improper application of substantive or procedural law, which is important for uniform interpretation or development of the judicial practice;
 - b) non-compliance or wrong application of procedural law, having as consequence the invalidity of the decision, absolute invalidity of acts or non-usability of evidence;
 - c) the decision subject to appeal is contrary to the practice of the Criminal Chamber or Joint Chambers of the High Court.
2. When it deems it necessary, the Court shall request written memoranda from the parties.

Article 433

Non-admissibility of appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 248)

1. The appeal is not admitted if it is filed for reasons different from the ones allowed by the law and if the High Court deems that the case must not be reviewed by it, pursuant to the provisions of paragraph 1, Article 432, of this Code.
2. A judicial panel of three judges shall decide on the inadmissibility of the appeal in closed session.

Article 434

Limits of review by the High Court

(Amended by Law no. 35/2017, dated 30.03.2017, Article 249)

1. The High Court reviews the case within the limits of the grounds raised in the appeal.
2. If the appeal is admitted for review, the High Court also has the right to decide on questions of law identified *ex officio*.

Article 435

Filing of the appeal

(Amended by Law no. 35/2017, dated 30.03.2017, Article 250)

1. The appeal must be submitted in writing within 45 days from the day following the announcement of the Court of Appeal decision.
2. The recourse and the memoranda should be signed by the defence lawyer, under penalty of inadmissibility. When the defendant has no selected defence lawyer, the President of the Chamber appoints a defence lawyer *ex officio* and notifies the defendant thereof.

SECTION II HEARING IN THE HIGH COURT

Article 436

Preliminary actions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 251)

1. The Chairman of the High Court designated the relevant chambers to review appeals.

2. The President of the Chamber fixes the date of the review of the appeal.
3. The court secretary notifies the parties on the time and date of the hearing at least 30 days in advance by posting on the notification corner and on the official website. If the parties have electronical addresses declared or recognized, the secretariat shall also notify to these addresses.

Article 437
Judicial review

(Amended by Law no. 35/2017, dated 30.03.2017, Article 252)

1. The High Court shall review the cases with the composition as provided in Article 14/a of this Code.
2. The provisions related to publicity, the rules of the hearing and the right to debate in the first and second instance trial shall also apply to the High Court, to the extent possible.
3. The defendant and the private parties are represented by the defence lawyers.
4. The President of the Chamber verifies the legitimation of the parties and the correctness of the notifications.
5. The assigned judge reports the case. After the pleading of the prosecutor, the defence lawyers and the representatives of the private parties plead. A reply is not permitted.

Article 438
Modification of the judicial practice

*(Amended by law 8813, dated 13.06.2002;
amended by Law no. 35/2017, dated 30.03.2017, Article 253)*

1. The High Court, ex officio or upon request of the parties, shall, when the need to change the case law arises, send those cases for review from the Criminal Chamber to the Joint Chamber.
2. The taking of cases to joint chambers is made by decision of the chairperson of the High Court or of the Criminal Chamber.
3. The Joint Chamber shall adjudicate pursuant to the rules established for the chamber when at least two thirds of all High Court members are attending.
4. The decision of the criminal chamber and of the Joint Chambers is binding for all courts when adjudicating similar cases.

SECTION III
DECISION

Article 439
Taking the decision

1. The decision is issued immediately after the termination of the hearing, except for cases when the chairperson of the Chamber deems it necessary to postpone the rendering of the decision as long as necessary, due to the complex nature or the importance of the case.
2. The decision is signed by all members of the Chamber and is announced in the hearing being read by the presiding judge or one of the judges.

Article 440

Mandatory application of the requirements of the decision

1. The requirements and the conclusions of the High Court are binding to the court, re-examining the case.

Article 441

High Court decisions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 254)

1. After reviewing the case, the Criminal Chamber or the Joint chamber of the High Court shall decide in the hearing:
 - a) to uphold the decision;
 - b) to quash the decision of the Court of Appeal and uphold the decision of the court of first instance;
 - c) to quash the decision and return the acts for re-examination;
 - (ç to quash the decision and dismiss the case without returning it for re-examination.

Article 442

Quashing the decision and resolving the case without returning for re-examination

(Amended by Law no. 35/2017, dated 30.03.2017, Article 255)

1. The High Court decides to quash the decision and to resolve the case without sending it back for re-examination if:
 - a) the fact does not constitute a criminal offence, the criminal offence is extinct or the criminal proceedings should not have been initiated and continued;
 - b) Repealed;
 - c) Repealed;
 - (ç the decision appealed against and another previous decision connected with the same person and with the same criminal offence, issued by the same or another criminal court, contradict each other;
2. In the case foreseen by letter "a" the Court decides to dismiss the case, whereas in the case foreseen by letter "ç" it decides that the decision imposing a less severe punishment shall be enforced.

Article 443

Quashing the decision and returning the documents for re-examination

1. Except for the cases provided for by Article 442, the High Court, when quashing a decision, shall send the acts to the court that has issued the decision quashed.

2. If not all parts of the decision are quashed, the High Court shall declare in the dispositive of its decision which parts are quashed.

Article 444

Quashing the decision only in respect to civil effects

1. If the High Court quashes only the holdings or the parts related to the civil lawsuit, or if it sustained the recourse of the civil plaintiff against the decision to acquit the defendant, the High Court sends the relevant acts to the competent civil court.

Article 445

Correction of errors

1. Legal errors in the reasoning of the decision or wrong reference to the law shall not result in the quashing of the appealed decision unless they had decisive influence on its dispositive. However, the Court shall specify in its decision the errors and the corrections.

Article 446

Effects of the decision on precautionary measures

1. If the continuation of detention or of a supplementary punishment or a precautionary measure must cease, on the basis of a decision by the High Court, the secretary shall immediately notify the dispositive to the prosecutor near the relevant court.

Article 447

Retrial after quashing

1. During the retrial, a debate on the competence recognized by the quashing decision shall not be permitted.
2. The retrying court shall respect the decision of the High Court for any issue of law it has decided upon.
3. The invalidities having occurred in previous trials or during preliminary investigations may not be presented in the retrial.
4. The quashing of the decision also applies to the defendant who has not filed an appeal, except if the reason of quashing is personal.

Article 448

Appeal against the decision after retrial

1. The decision of the retrying court is subject to appeal to the High Court, if it is issued by the court of appeal, and subject to appeal to the Court of Appeal, if it is issued by the first instance court.
2. The decision of the retrying court may be appealed only for grounds not connected to the issues already decided by the High Court or due to non-observance of Article 447, paragraph 2.

Article 448/1

Announcing and filing the decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 256)

1. The presiding judge or member of the panel announces the decision in the hearing by reading the dispositive.
2. After the dispositive, the presiding judge reads the reasoned decision. The reasoning of the decision may be issued in writing and in a summary form, indicating the main grounds on which the decision is based.
3. The decision shall be filed immediately with the secretary after its announcement. The assigned employee shall sign and note down the date of the filing.
4. When the decision is announced in a summary form, it shall be reasoned within 60 days from its announcement. This time limit may be extended for another period of 30 days if the case is tried by the Joint Chambers.
5. The time limit set for reasoning the decision in writing, pursuant to paragraph 4 of this Article, may be extended in exceptional cases due to justified grounds. In this case, the chairperson of the Court is notified.

CHAPTER IV REVISION

Article 449

Decisions subject to review

(Amended by Law no. 35/2017, dated 30.03.2017, Article 257)

1. The revision of final judgments is allowed at any time in the cases and under the conditions provided for by this Code, even if the sanction has been executed or is extinguished.
2. The revision of the final judgment of acquittal or conviction is not allowed when it aims at aggravating the position of the convicted person.

Article 450

Revision cases

(Amended by Law no. 35/2017, dated 30.03.2017, Article 258)

1. The revision may be requested:
 - a) if the facts stated in the merits of the decision are not compatible with those of another final judgment;
 - b) if the decision is based on a civil or administrative court decision, which has been revoked subsequently;
 - c) if, after the decision, new evidence appeared or has been discovered which solely or along with the ones already evaluated prove that the decision is wrong;
 - (ç if it is proven that the decision was issued as a result of the falsification of the acts of the trial or of another fact provided by law as a criminal offence.
 - d) if the ground for the revision of the final decision results from a European Court of Human Rights judgment making the re-adjudication of the case indispensable. The request shall be filed within 6 months from the notification of that decision;
 - dh) if the extradition of a person tried in absentia is granted on the explicit condition that the case be re-tried. The request for re-trial may be submitted within 30 days from the date of extradition of the person. The request submitted within that time limit may not be refused.

- e) if the person is tried in absentia pursuant to Article 352 of this Code and requests the case to be retried. The request shall be filed within thirty days from the date he is informed. The request submitted within that time limit may not be refused.

Article 451

Request for revision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 259)

1. The following persons may request the revision:

- a) the convicted person, the defence lawyer specifically authorised by him or his legal guardian, and, if the convicted person has died, his heir or relative;
- b) the prosecutor attached to the court having issued the decision.

Article 452

Form of the request

(Amended by Law no. 35/2017, dated 30.03.2017, Article 260)

- 1. The request for revision shall be filed personally or through the representative. It shall contain the evidence legitimating it and shall be submitted, eventually along with documents, to the secretary of the first instance court having issued the decision.
- 2. In the cases provided for by Article 450, paragraph 1, letters "a", "b" "ç", "d" and "dh", the request shall be accompanied by certified copies of the acts referred to.
- 3. In case of the death of the person tried after submission of the request for revision, the court appoints a legal guardian, who exercises the rights that in the revision procedure would have pertained to the tried person.

Article 453

Examination of the request

(Amended by Law no. 35/2017, dated 30.03.2017, Article 261)

- 1. The request of revision is examined by the first instance court having issued the decision.
- 2. If the request is submitted based on grounds other than those provided for by Article 450, or if it is submitted by those who are not entitled, or if it is manifestly not grounded, the Court decides to reject it.
- 3. If the request is admitted, the Court decides to send the case to another panel of the same court for retrial. This decision is not subject to appeal.
- 4. Until a decision is issued by the revising court, according to Article 456 of this Code, the convicted person shall keep the same procedural status.

Article 454

Suspension of the Execution

(Amended by Law no. 35/2017, dated 30.03.2017, Article 262)

- 1. The court receiving the request may decide to suspend the enforcement of the conviction.

2. Against such decision, the parties may file an appeal to the Court of Appeals, whose decision is subject to appeal.

3. Upon request of the civil defendant, the court in charge of the re-trial of the case may order the suspension of execution of civil obligations for the duration of the trial.

Article 455 **Revision trial**

1. The retrying court shall set the date of the judicial hearing and order the summoning of the parties.

2. The provisions of the first instance trial shall apply within the limits of the grounds presented in the request for review.

Article 456 **Decision**

1. The decision shall be issued pursuant to the provisions regulating the rendering of decisions by the first instance court.

2. If the request for revision is accepted, the court shall quash the decision. The decision may not be issued by only making a different evaluation of the evidence taken in the previous trial.

3. If the request is refused, the court charges the expenses to the person having submitted it, and if the suspension is ordered, the court shall decide on the reinstatement of the execution of the decision or of the precautionary measure.

4. Upon request of the interested person, the acquitting decision shall be posted in a summary form in the district where the decision has been issued and in the last residence of the convicted person. The chairperson of the court may order that such decision is announced in a newspaper.

Article 457 **Rulings in case of acceptance of the request**

1. When rendering an acquitting decision, the court orders the return of the amounts paid for the execution of the fine, for the expenses of the court proceedings, the cancellation of property precautionary measures, as well as the compensation for damages in favour of the civil plaintiff who has participated in the revision trial. It shall also order the restitution of the confiscated items, unless their production, use, transportation and detention constitutes a criminal offence.

Article 458 **Appeal against the decision**

1. The decision issued in the revision trial is subject to appeal.

Article 459 **Compensation for unlawful conviction**

1. The person acquitted during the revision, who has not contributed intentionally or by gross negligence to cause the judicial error, is entitled to compensation in proportion with the duration of the sentence and personal and familiar consequences deriving from the sentence.

2. The compensation is made by payment of an amount of money or by providing living means.
3. The request for compensation shall be filed, under penalty of inadmissibility, within two years from the day the decision of revision has become final and is submitted to the secretary of the court that issued the decision.
4. The request shall be communicated to the prosecutor and all interested persons.
5. The decision of compensation is subject to appeal.

Article 460

Compensation in case of death

1. If the convicted person dies, even before the revision trial, his heirs have the right to compensation. Unworthy heirs shall not have this right.

Article 461

Consequences of inadmissibility and rejection of the request for revision

1. The decision of inadmissibility or rejection of the request for revision does not prejudice the right to submit a new request based on other evidence.

TITLE IX

EXECUTION OF DECISIONS

CHAPTER I

EXECUTION OF DECISIONS

Article 462

Enforceable decisions

(Amended by Law no. 35/2017, dated 30.03.2017, Article 263)

1. The sentence of the court is brought for enforcement immediately after becoming final.
2. The decision of acquittal, exclusion of the tried person from punishment and the one for the dismissal of the case are brought for enforcement immediately after their announcement.
3. The following are final decisions:
 - a) the first instance court decision when it is not appealed by the parties within the legal time limit, when it is non-appealable or when the appeal is not admitted for the reasons provided for in Article 420 of this Code. In cases with co-defendants, the decision shall become final for the defendant who has not filed an appeal, notwithstanding the appeal of other co-defendants, provided that the prosecutor has not filed an appeal. When the prosecutor has not filed an appeal and the case is examined on the basis of the appeal of other co-defendants, the decision shall become final for the defendant who has not filed an appeal in a trial with co-defendants, notwithstanding the appeal filed with by the other co-defendants;
 - b) the decision of the appeal court, when it finally settles the case, pursuant to letters "a", "b" and "c" of paragraph 1, of Article 428 of this Code;
 - c) the decision of the High Court in the cases of extradition and transfer of the sentenced persons.

4. The way of execution of the criminal decisions is regulated by special law.

Article 462/a

Execution of decisions against minors

(Amended by Law no. 35/2017, dated 30.03.2017, Article 264)

1. The prosecutor and the juvenile section of courts in judicial district courts are competent to take measures and review requests related to the execution of decisions issued towards minors.
2. The manner of execution of measures and any decision issued towards minors shall be governed by special law.

Article 463

Actions of the prosecutor

1. The prosecutor at the first instance court which has issued the decision takes measures for the execution of the decision. He makes requests to the competent court and intervenes in all actions concerning execution.
2. The decisions of the prosecutor are notified, within thirty days, to the defence lawyer elected by the interested person or, when there is no such, to the one appointed by the prosecutor.
3. When necessary, the prosecutor may request that the execution of special actions be carried out by a prosecutor of another district.
4. When the execution starts, the prosecutor notifies in writing the court, which has issued the decision.

Article 464

Execution of imprisonment sentences

1. In order to execute an imprisonment decision, the prosecutor issues an order of execution.
2. The order of execution contains the personal data of the convicted person, the dispositive of the decision and the necessary rulings on execution.
3. When the convicted person is under precautionary detention in prison, the order is sent to the State authority that administers the prisons and is notified to the interested person, whereas when the convicted person is not under precautionary detention in prison, his/her imprisonment shall be ordered.
4. It is proceeded in the same way in cases of the enforcement of decisions of compulsory hospitalisation in medical or educational institutions.

Article 465

Calculation of the precautionary detention in prison and of sentence served

1. When imposing the length of imprisonment, the prosecutor shall calculate the period of precautionary detention in prison already served for the same offence or for another criminal offence, the served period of punishment to imprisonment for another criminal offence when the punishment is revoked or when for the criminal offence has been awarded amnesty or pardon.

2. In any case, the calculation shall comprise only the period of precautionary detention in prison or the punishment served after the commission of the criminal offence subject to the imposition of the punishment to be executed.

3. After making the calculation the prosecutor issues the order which is notified to the convicted person and his defence lawyer.

Article 466

Execution of the precautionary measures issued by the court

1. The precautionary measures ordered by the court are executed by the prosecutor in the court that has issued the decision.

Article 467

Execution of a fine decision

1. Decisions containing a fine penalty are executed by the bailiff's office.

2. When it is proven the impossibility to execute a fine penalty, in whole or in part, the prosecutor files a request to the court that has issued the decision to make the conversion. Upon request of the convicted person, the court may postpone the conversion up to six months. Such period is not calculated in the prescription time limits.

3. The decision of conversion is subject to appeal, which suspends its execution.

Article 468

Execution of supplementary punishments

1. For the execution of the supplementary punishment, the prosecutor sends the extract of the conviction decision to the judicial police authorities and to other interested authorities.

Article 469

Execution of several decisions

1. When a single person is sentenced for various criminal offences the prosecutor in the court of the last decision demands from the court to determine which sentence shall be executed, observing the rules regarding the joinder of sentences.

2. The request of the prosecutor is notified to the sentenced and his defence lawyer.

CHAPTER II

HEARINGS BY THE COURT OF CASES RELATED TO THE EXECUTION OF DECISIONS

Article 470

Competent court for execution

(Amended by Law no. 35/2017, dated 30.03.2017, Article 265)

1. The court of the place of execution shall be the competent court to examine the requests and allegations related to its execution.

2. Repealed

Article 471 **Court procedure**

(Amended by Law no. 35/2017, dated 30.03.2017, Article 266)

1. The court proceeds with the request of the prosecutor, the interested person or defence lawyer.

2. When the request is evidently groundless or the repetition of a rejected request, based on the same grounds, the court, after hearing the prosecutor, declares it non-admissible by decision, which is notified within five days to the interested person. The decision is subject to appeal.

3. Except for cases provided by paragraph 2, the court establishes the date of the hearing and notifies the parties and defence lawyers at least ten days before the hearing.

4. The hearing is held in the necessary presence of the prosecutor and of the lawyer. The interested party can be heard personally or through letters rogatory.

5. If the requesting party fails to appear at the hearing without a reasonable cause, despite having been duly notified of the date and time, withdraws the request, or changes its object, the Court shall declare it non-admissible.

6. The court renders a decision, which is notified to the parties and defence lawyers. The decision is subject to appeal, but it does not suspend the execution, except when the court that has issued it decides otherwise.

Article 472 **Doubt on the physical identity of the imprisoned person**

1. In case of uncertainty on the identity of the person arrested in order to enforce the sentence, the court questions him, performs the investigations necessary for his identification and takes decision which is notified to the interested person.

2. When it ascertains that he is not the person to be subjected to execution, the court orders his immediate release. In case the identity remains uncertain, it decides the suspension of the execution, the release of the prisoner and notifies the prosecutor to complete further investigations.

3. In case the error on the identity of the person is certain, the prosecutor orders his release and sends immediately the acts to the court.

Article 473 **Mistaken name**

1. When a person is sentenced instead of another person because of error relating to the name, the court decides the correction only in case the person who should be subjected to proceedings is summoned as a defendant also with another name to appear in trial. To the contrary, it is decided the review of the case pursuant to the Article 450, paragraph 1, letter "c". In any case, the execution against the person who is convicted by mistake is suspended.

Article 474

Several decisions on the same fact

1. In case several decisions are issued against the same person for the same fact, the court orders the execution of the decision by which is expressed the lightest punishment, declaring the others as non-enforceable. In case the main punishments are equal, the supplementary punishment shall be considered.
2. In case there are some decisions of dismissal or acquittal, the interested person indicates the decision to be executed and if he does not do this, the prosecutor in case of dismissal and the court in case of acquittal, order the enforcement of the most favourable decision.
3. In case of a decision of acquittal and of a conviction decision, the court orders the execution of the decision of acquittal, revoking the conviction decision, whereas in case of a decision of non-initiation issued by the prosecutor and of a decision issued [by the court] in trial, the court orders the execution of the decision issued in trial.

Article 475

Joinder of sentences

1. In case of more decisions, taken in various proceedings against the same person, the convicted person or the prosecutor may request from the court to follow the rules of joinder of sentences.

Article 476

Postponing the execution of decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 267)

1. The court which has issued the conviction decision, upon request of the convicted person, the defence lawyer or of the prosecutor, may decide the postponement of the execution of the decision in the following cases:
 - a) when the convicted person suffers an illness, which constitutes an obstacle for the execution of the decision. The execution shall be postponed until the convicted person is recovered;
 - b) when the convicted person is pregnant or she has a baby under one year old. The execution shall be postponed until the child reaches the age of one year;
 - c) when the immediate serving of the punishment may bring serious consequences to the convicted person or his family. The postponement of the execution in these cases may not exceed six months;(ç in any other case evaluated by the court as particular, in which case the execution is postponed up to three months.
2. Upon submission of the request, the court has the right to suspend the execution of the decision until that is examined.
3. The court shall reason the decision within 5 days. The decision may be appealed within 5 days. The court of appeal shall decide on the appeal within 10 days from the date of receipt of acts.

Article 477

Conditional release

1. The court of the place of the execution orders the conditional release and the revocation of the conditional release, pursuant to the criteria provided by the Criminal Code.
2. The request may not be repeated before six months have passed from the day the decision rejecting the request has become final.

Article 478

Release of prisoner

(Repealed by Law no. 35/2017, dated 30.03.2017, Article 268)

Article 479

Revocation of the decision because of abrogation of the criminal offence

(Amended by Law no. 35/2017, dated 30.03.2017, Article 269)

1. In case of abrogation or declaration of unconstitutionality of the criminal provision, the court revokes the conviction decision, declaring that the fact is not provided as a criminal offence. It is proceeded in the same way, when a non-initiation or acquittal decision has been issued by reason of the extinction of the criminal offence.
2. The request shall be immediately examined and in any case not later than 24 hours from the moment of filing of the request by the court where it is submitted, even if the latter has no territorial jurisdiction.

Article 480

Other powers

1. In the execution phase, the court is competent to decide on the extinction of the criminal offence after conviction, on the extinction of the punishment, on supplementary punishments, on the confiscation or on the restitution of sequestered items, as well as on any case provided by law.
2. In case is ascertained the extinction of the criminal offence or of the punishment, the court declares it, also ex officio, by taking the relevant measures.

CHAPTER III

CRIMINAL RECORDS

Article 481

Criminal records office

(Amended by Law no. 35/2017, dated 30.03.2017, Article 270)

1. In the criminal records office, at the Ministry of Justice, there are deposited the extracts of the decisions for persons tried for criminal matters.
2. The court of first instance shall send to the office of the judicial register an extract of the punishment decision within 10 days from the date of the decision becomes final, when it is not appealed, and within 10 days from the date of receipt of acts, when the decision is appealed.

Article 482
Entries in the criminal record book

1. In the criminal record there are registered by extracts:

- a) the conviction decisions, once they become final;
 - b) the decisions issued by the court in the execution phase;
 - c) the decisions related to the execution of supplementary sentences;
- (ç decisions of acquittal and dismissal of the case.

Article 483
Cancellation of records

(Amended by Law no. 35/2017, dated 30.03.2017, Article 271)

1. The records in the register are cancelled after the reception of the official notification of the death of the person to whom the records refer or when he reaches the age of eighty.

2. The records shall also be cancelled when they are related to:

- a) decisions revoked due to revision or abrogation of the criminal offence;
 - b) the decisions of acquittal or dismissal, on expiry of ten years from the date on which the decision has become final;
 - c) decisions of punishment for misdemeanours when a fine penalty has been issued, on expiry of ten years from the day when the decision has been executed.
- (ç measures and punishment decisions on misdemeanours committed by minors, when they reach 21 years of age.

Article 484
Criminal record certificates

1. Justice and State administration bodies and entities in charge with public services are entitled to take a certificate of the records of a certain person, when the certificate is necessary for the execution of their functions.

2. The prosecutor may request the above certificate for the defendant or the convicted person and, by authorisation of the court, he and the defence lawyer may also request certificate for the victim and witnesses.

3. The person subject to the note in the criminal record is entitled to take the respective certificate and he has no obligation to explain the reasons in the request.

CHAPTER IV
PROCEDURAL EXPENSES

Article 485
Expenses suffered by the state

1. The criminal procedural expenses are paid in advance by the state, except those related to the acts requested by the private parties.
2. The procedural expenses include the expenses during all stages of the proceedings for examinations, experiments, expertise, notifications, for the defence lawyers appointed ex officio and any other expenses duly recorded.
3. In the final decision the court defines the obligation to pay the expenses paid in advance by the State.

Article 486

Payment of the procedural expenses

1. The obligation to pay procedural expenses are executed by the bailiff's office.
2. In case of insolvency, the bailiff's office informs the financial police, which obtains data on the real financial situation of the obligated person and on any changes of it.

Article 487

Settlement of complaints on expenses

1. Complaints related to procedural expenses are subject to decisions of the court which has issued the decision, which acts pursuant to the rules provided for by Article 471.

CHAPTER I EXTRADITION

SECTION I EXTRADITION ABROAD

Article 488

Meaning of extradition

1. The transfer of a person to a foreign country to execute an imprisonment decision or the delivery of an act, which proves his proceedings for a criminal offence, can be made only by means of extradition.

Article 489

Request for extradition

1. The extradition is permitted only upon request submitted to the Ministry of Justice.
2. The request for extradition are attached:
 - a) the copy of the imprisonment conviction decision or of the proceedings' acts;
 - b) a report of the criminal offence in charge of the person subject to extradition indicating the time and the place of the commission of the offence and its legal qualification;
 - c) the text of legal provisions to be applied, indicating whether for the criminal offence subject to extradition the law of the foreign country provides death penalty;
 - c) personal data and any other possible information which is useful to define the identity and the citizenship of the person subject to extradition.

3. When more requests for extradition concur, the Minister of Justice sets the order of review. He takes into consideration all the circumstances of the case and, particularly the date of the reception of the request, the importance and the place where the criminal offence is committed, the citizenship and the domicile of the person subject to request, as well as the possibility of a re-extradition by the requesting country.

4. In case for a sole offence the extradition is requested simultaneously by several countries he/she shall be transferred to the country subject to the criminal offence or to the country within which territory has been committed the criminal offence.

Article 490

Conditions on extradition

(Words added by Law no. 99, dated 31.7.2014)

1. The extradition is allowed under the express condition that the extradited person shall not be prosecuted, shall be not convicted nor he/she shall be transferred to another country for a criminal offence which has occurred before the request for extradition and which is different from the one for which extradition is granted.

2. The requirements of paragraph 1 shall be not considered:

- a) when the extraditing party gives express consent that the extradited is prosecuted even for another criminal offence and the extradited does not oppose;
- b) when the extradited, although he/she was able, has not left the territory of the country to which he/she has been transferred, after forty-five days from his release or when after leaving it, he/she has returned voluntarily.

3. The Ministry of Justice may impose even other conditions which it considers as appropriate, without exceeding the provisions of the international acts to which Albania is part of and the reservations and legal declarations.

Article 491

Non-admissibility of the request for extradition

(Amended by Law no. 35/2017, dated 30.03.2017, Article 272)

Extradition may not be granted:

- a) for an offence of political nature or when it results that it is requested for political reasons;
- b) when there are grounds to think that the requested person shall be subject to persecution or discrimination due to race, religion, sex, citizenship, language, political belief, personal or social state or cruel, inhuman or degrading punishment or treatment or acts which constitute violation of fundamental human rights;
- c) when the requested person has committed a criminal offence in Albania;
(ç when the proceeding is initiated or tried in Albania, although the offence is committed abroad;
- d) when the criminal offence is not foreseen as such by the Albanian legislation;
- dh) the Albanian State has issued an amnesty for this criminal offence;
- e) when the requested person is Albanian citizen and there is no agreement providing otherwise;
(ë when criminal prosecution or the punishment is prescribed under the law of the requested state.

- f) when the requested person is tried in absentia, except in case the requesting State provides safeguards for the revision of the decision.

Article 492

Actions of the prosecutor

(Amended by Law no. 35/2017, dated 30.03.2017, Article 273)

1. Unless the Ministry of Justice refuses a request for extradition sent by a foreign State, it shall, within 10 days, forward the acts to the prosecutor attached to the competent court, through the Prosecutor General.
2. The prosecutor, after receiving the request, orders the appearance of the interested person in order to identify him and to obtain his eventual consent for the extradition. The interested is explained the right to be assisted by a defence lawyer.
3. The prosecutor, through the Minister of Justice, requests from the foreign authorities the documents and the information which he considers necessary.
4. Within three months from the date on which the request for extradition has arrived, the prosecutor submits the request to the court for examination.
5. The request of the prosecutor shall be deposited in the secretary of the court along with the acts and sequestered items. The secretary office shall take care of the notification of the person subject to extradition, his defence lawyer and the possible representative of the requesting country who, within ten days, have the right to access to the documents and to issue copies of them as well as to examine the sequestered items and to present memoranda.

Article 493

Coercive measures and sequestrations

(Amended by Law no. 35/2017, dated 30.03.2017, Article 274)

1. Upon request of the Ministry of Justice, presented through the prosecutor, coercive measures and sequestration of the material evidence and of the items related to the criminal offence for which extradition is requested, may be imposed against the person subject to extradition.
2. The imposing of the coercive measures shall be regulated by the provisions of the title V of this Code, *mutatis mutandis*, keeping in consideration the requirements to guarantee that the person for whom extradition has been requested shall not escape from transferring.
3. The coercive measures and the sequestration shall be not imposed when there are reasons to believe that the requirements to provide a decision in the favour of extradition do not exist.
4. The coercive measures are revoked when within three months from the start of their execution it has not terminated the proceedings before the court. Upon the request of the prosecutor the time period can be prolonged, but not longer than one month, when necessary to make particularly complex verifications. If an appeal is filed with the Court of Appeal or the High Court, the coercive measure shall be revoked if trial has not been finalized within 3 months from the receipt of acts respectively for each court.
5. The competent court to render a decision pursuant to the above paragraphs, is the district court or, during the proceedings before the court of appeal, the latter one.

6. The court examining the request for imposition of a coercive measure shall also examine the request for extradition. In any case, upon request of the Ministry of Justice, the court shall revoke the precautionary measure it has imposed.

Article 494

Temporary execution of coercive measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 275)

1. Upon request of the foreign country, presented by the Minister of Justice through the prosecutor in the competent court, the court may impose temporarily a coercive measure before the request for extradition arrives.

2. The measure may be imposed when:

- a) the foreign country has declared that the person has been subjected to a measure restricting his personal freedom or to a sentence by imprisonment and that it is going to present request for extradition;
- b) the foreign country has presented detailed information on the criminal offence and sufficient elements for the identification of the person;
- c) there exists a risk for him to escape.

3. The competency to impose the measure shall belong, respectively, to the district court in whose territory the person has the domicile, residence or the house or the court of the district where he is. In case the competence cannot be determined in the manners defined above, competent shall be the court of the judicial district of Tirana.

4. The court may also order the sequestration of the material evidence and of the items pertaining to the criminal offence.

5. The Ministry of Justice gives notice to the foreign country of the temporary execution of the coercive measure and of the possible sequestration.

6. The coercive measures are revoked if, within eighteen days after the arrest and anyhow in a maximum of forty days after the arrest, the request for extradition and the documents enclosed do not arrive to the Ministry of Justice.

Article 495

Arrest by the judicial police

(Amended by Law no. 35/2017, dated 30.03.2017, Article 276)

1. When an international arrest warrant is issued, the judicial police shall carry out the temporary arrest of the person.

2. The authority which has carried out the arrest shall immediately inform the prosecutor and the Minister of Justice. The prosecutor, within forty-eight days, shall make the arrested available to court of the territory where the arrest has taken place, sending also the relevant documents.

3. The court, within forty-eight hours from the submission of the request, shall validate it and impose a coercive precautionary measure, if the relevant requirements are met, or shall order the release of the

arrested person. When the arrested person is an Albanian citizen and there is no bilateral agreement on extradition of citizens with the State where the arrest warrant was issued, the court shall order his immediate release. The decision issued by the court shall be notified to the Minister of Justice.

4. The arrest shall be revoked in case the Ministry of Justice does not request, within ten days from the approval, its continuance.

5. The copy of the decision issued by the court regarding the coercive measures and sequestrations, pursuant to these Articles, shall be notified to the prosecutor, interested person and his defence lawyers, who may file an appeal to the court of appeal.

Article 496

Hearing of the person under coercive measure

(Amended by Law no. 35/2017, dated 30.03.2017, Article 277)

1. In case a precautionary measure is imposed, the court, as soon as possible and, anyway, not later than three days from the execution of the measure, shall make sure of the identity of the person and takes its possible consent to extradition, reflecting this in the minutes.

2. The court informs the interested person on the right to a defence lawyer and, in absence of the latter, appoints him a defence lawyer *ex officio*. The defence lawyer must be notified, at least twenty-four hours before for the abovementioned actions and has the right to participate to them.

Article 497

Hearing the extradition request

1. After the reception of the request of the prosecutor, the court fixes the hearing and notifies, at least ten days in advance, the prosecutor, the person subject to request for extradition, his defence lawyer and the eventual representative of the requesting state.

2. The court collects data and makes the necessary verifications and hears the persons summoned to appear before the trial.

Article 498

Court decision

(Amended by Law no. 35/2017, dated 30.03.2017, Article 278)

1. The court renders a decision in favour of the extradition when there are serious indications of guilt, or when there is a final conviction decision. In such case, when there is a request of the Minister of Justice, presented through the prosecutor, the court orders the precautionary detention in prison for the person who should be extradited and who is in free state, as well as the sequestration of the real evidence and items which belong to the criminal offence.

2. The court renders the decision rejecting the extradition in cases provided for the non-acceptance of the request for extradition.

3. When the court renders the decision against extradition, the extradition cannot be executed.

4. The decision against the extradition prohibits the rendering of any subsequent decision in the favour of the extradition due to a new request submitted for the same facts by the same State, except when the request is based on elements that have not been evaluated by the court.
5. The decision of extradition regarding the request for extradition may be appealed to the court of appeal by the interested person, his defence lawyer, the prosecutor within 10 days.

Article 499

Rulings on extradition

(Amended by Law no. 35/2017, dated 30.03.2017, Article 279)

1. The Ministry of Justice decides on the extradition within thirty days from the date the decision of the court has become final. After the expiration of this time period, even in case the decision is not issued by the Minister, the person for whom extradition is requested shall be released, if the requested person is subject to a coercive measure.
2. The person shall be released even in case the request for extradition is rejected.
3. The Ministry of Justice communicates the decision to the requesting State and, when this is favourable, the venue of person's handing over, and the date by which it is expected to start. The time period of the person's handing over is fifteen days from the fixed date and, upon motivated request of the requesting State, it may be also extended to fifteen other days. For reasons that do not depend on the parties it can be set another day for handing over, but always within the time limits established by this paragraph.
4. The extradition decision shall lose its effects and the extradited shall be released in case the requesting State does not proceed with the taking over of the extradited person, within the set time limit.

Article 500

Suspension of handing over

1. The execution of extradition is suspended when the extradited should be tried in the territory of Albanian State and must serve a punishment for criminal offences committed before or after that subject to extradition. But the Ministry of Justice, after listening the competent proceeding authority of the Albanian State or the one of the execution of sentence, might order the temporary handing over in the requesting State of the person subject to extradition, defining the time periods and the way how to operate.
2. The Ministry may agree that the rest of the punishment is served in the requesting State.

Article 501

Extending extradition and re-extradition

1. In case of new request for extradition, submitted after the handing over of the extradited person for a criminal offence occurred before the handing over, different from the one for which extradition was granted, the provisions of this chapter shall apply, to the extent applicable. Statements of the extradited, made before the judge of the requesting State for the extension of the extradition shall be attached to the request.
2. The court proceeds in absentia of the extradited.

3. There shall not be any trial in case the extradited has accepted the extension of the extradition, by the statements provided for in paragraph 1.

4. The above provisions shall also apply in case the State, to whom the person has been handed over, requests the consent for re-extradition of the same person in another State.

Article 502

Transiting

1. The transit through the territory of the Albanian State of an extradited person from a State to another, is authorised, upon request of the latter, by the Ministry of Justice, if the transfer does not impair the sovereignty, the security or other State interests.

2. The transit is not authorized:

- a) when the extradition is granted for facts which are not provided as criminal offences by the Albanian law;
- b) in the cases provided for by Article 491, paragraph 1;
- c) when it is about an Albanian citizen, for whom the extradition in the State requesting the transit, would not be given.

3. The authorization is not required in case the transit is made by air ways and no landing in the Albanian territory is foreseen. But, when a landing occurs, the provisions regulating the precautionary measure shall apply, to the extent compatible.

Article 503

The costs of extradition

1. The expenses done in the Albanian territory are covered by the Albanian party, when there is no other agreement.

SECTION II

EXTRADITION FROM ABROAD

Article 504

Request for extradition

(Amended by Law no. 35/2017, dated 30.03.2017, Article 280)

1. The Ministry of Justice is competent to request to a foreign State the extradition of a person under proceedings or convicted, against whom a measure restricting the individual freedom must be executed. To this purpose, the prosecutor at the court in whose territory the proceedings take place or the conviction decision is issued, makes a request to the Ministry of Justice, sending the necessary acts and documents. When the Ministry does not accept the request, it notifies the authority which has made it.

2.The Ministry of Justice is competent to decide on the conditions possibly imposed by the foreign country to grant the extradition, when they are not contrary to the main principles of the Albanian juridical order.The proceeding authority is obliged to respect the accepted conditions.

3.The Ministry of Justice may decide, for the purpose of extradition, the searching abroad for the proceeded or sentenced person and his temporary arrest.

4. Precautionary detention in prison served abroad, as a consequence of a request for extradition submitted by the Albanian State, shall be calculated as part of the imposed sentence, pursuant to the rules provided in Article 57 of the Criminal Code.

CHAPTER II

INTERNATIONAL ROGATORY LETTERS

SECTION I

ROGATORY LETTERS FROM ABROAD

Article 505

Competencies of the Ministry of Justice

1. The Ministry of Justice decides to proceed with the letter rogatory of a foreign authority concerning communications, notifications and the obtaining of evidence, except when it deems that the requested actions impair the sovereignty, the security and important interests of the State.

2. The Ministry does not proceed with the letter rogatory when it appears clearly that the requested actions are expressly prohibited by law or when they are contrary to the fundamental principles of the Albanian judicial order. The Ministry does not proceed with the letter rogatory when there are founded reasons to believe that the considerations regarding race, religion, sex, nationality, language, political beliefs or the social state may cause a negative influence on the performance of the process.

3. In cases when the letter rogatory has as object the summons of a witness, an expert or a defendant before a foreign judicial authority, the Ministry of Justice shall not proceed with the letter rogatory when the requesting State does not give sufficient guarantees for the inviolability of the summoned person.

4. The Ministry has the right not to proceed with the letter rogatory in case the requesting State does not give due guarantee for reciprocity.

Article 506

Judicial proceedings

(Amended by Law no. 99, dated 31.7.2014, Article 2)

1. The foreign letter rogatory cannot be executed before a favourable decision has been issued by the court of the place where the person must be subject to proceedings.

2. The district prosecutor, after obtaining the acts from the Ministry of Justice, submits a request to the court, within five days of the submission of acts by the Ministry of Justice.

3.The court rules on the execution of the letter rogatory by decision, within 10 days from the submission of the request.

4. The execution of the letter rogatory shall not be accepted:

- a) in the cases when the Ministry of Justice does not proceed with the letter rogatory, pursuant to the provisions of international acts in which the Republic of Albania is a party and relevant reservations and legal declarations [made by it].
- b) when the fact for which the foreign authority proceeds is not provided as a criminal offence by the Albanian law.

Article 507

Execution of letters rogatory

(Amended by Law no. 35/2017, dated 30.03.2017, Article 281)

1. The court accepting the request for the execution of a letter rogatory, shall perform the requested action or authorise to this purpose the prosecutor, in cases allowed by the law.
2. For the performance of the requested actions the provisions of this Code shall apply, except in the cases when special rules requested by the foreign judicial authority must be observed, and which are not contrary to the principles of the Albanian judicial order.

Article 508

Summoning of witnesses requested by a foreign authority

1. The summoning of the witnesses, who have their residence or domicile in Albania, to appear before the foreign judicial authority, are sent to the prosecutor of the relevant district, who takes measures for the notification, acting in the same way as for the notification of the defendant in free state.

SECTION II

LETTERS ROGATORY FOR ABROAD

Article 509

Delivery of letters rogatory to foreign authorities

1. The letters rogatory of courts and prosecution offices, addressed to foreign authorities for notifications and obtaining of evidence, shall be sent to the Ministry of Justice, which takes the measures to deliver them.
2. When ascertaining that the security or other important interests of the State might be at risk, the Ministry, within thirty days from the receipt of the letter rogatory, decides not to proceed.
3. The Ministry communicates to the proceeding authority that has presented the request, the date of its reception and delivery of the letter rogatory or the order not to proceed with the letter rogatory.
4. In cases of urgency, the proceeding authority may order the direct delivery of the letter rogatory, informing the Ministry of Justice.

Article 510

Inviolability of the person summoned

1. The person summoned on basis of the letterrogatory, when appearing, may not be subjected to restrictions of personal freedom due to facts occurred before the summons notification.
2. The inviolability provided for by paragraph 1 shall cease when the witness, the expert or the defendant, having had the possibility, has not left the territory of the Albanian State, after the expiration of fifteen days from the moment when his presence was no longer requested by the judicial authority or when, after having left, he/she has turned back voluntarily.

Article 511

Value of the documents obtained by means of letterrogatory

1. When the foreign country has imposed conditions for the use of the requested acts, the Albanian proceeding authority is obliged to respect them, provided they are not contrary to the prohibitions provided by law.

CHAPTER III

EXECUTION OF THE CRIMINAL DECISIONS

SECTION I

EXECUTION OF FOREIGN CRIMINAL DECISIONS

Article 512

Recognition of foreign criminal decisions

1. The Ministry of Justice, when receiving a criminal decision issued abroad for Albanian or foreign citizens or persons without citizenship, but residing in the Albania or for persons proceeded criminally in the Albania shall send to the prosecutor at the district court of the person's domicile or residence a copy of the decision and of the relevant documents, along with the translations in Albanian language.
2. The Ministry of Justice requests the recognition of a foreign criminal decision when it deems that pursuant to an international agreement, such decision must be executed or recognised for other effects in the Albania.
3. The prosecutor shall submit a request to the district court for the recognition of the foreign decision. He may request the necessary information from foreign authorities, through the Ministry of Justice.

Article 513

Recognition of criminal decisions of foreign courts on civil liabilities

1. Upon request of the interested person, in the same proceedings and by the same decision, may be declared valid the civil rulings of the foreign decision in relation to the obligation to restitute the property or to compensate the damage.
2. In the other cases, the request is presented, by the one who has an interest, to the court where the civil rulings of the foreign decision would be executed.

Article 514
Conditions for recognition

1. The foreign court decision may not be recognized when:
 - a) the decision has not become final pursuant to the laws of the State in which it has been issued;
 - b) the decision contains rulings which are contrary to the principles of the Albanian judicial order;
 - c) the decision has not been issued by an independent and impartial court or the defendant has not been summoned to appear to trial or he /she has not been granted the right to be questioned in a language he understands and to be assisted by a defence lawyer;
 - (ç there are grounded reasons to believe that the proceedings have been influenced by considerations regarding race, religion, sex, language or political beliefs;
 - d) the fact for which is issued the decision is not provided as a criminal offence by the Albanian law;
 - dh) for the same fact and against the same person in the Albanian State a final decision has been issued or a criminal proceeding is ongoing.

Article 515
Coercive measures

(Amended by Law no. 35/2017, dated 30.03.2017, Article 282)

1. Upon request of the prosecutor, the court that is competent for the recognition of a foreign decision may impose a coercive measure to the convicted person who is in the Albanian territory. When imposing coercive measures, the provisions of title V of this Code shall apply, to the extent applicable.
2. The Court, within three days from the execution of the coercive measure, takes measures for the identification of the person and notifies him immediately about the right to have a defence lawyer.
3. The coercive measure imposed under this Article shall be revoked when from the start of its execution three months have passed without a decision of recognition is issued by the district court or six months without such decision has become final. If an appeal is filed with the Court of Appeal or the High Court, the coercive measure shall be revoked if trial has not been finalized within 3 months from the receipt of acts respectively from each court.
4. Revocation and replacement of the coercive measure is decided by the district court.
5. Copy of the decision issued by the court is notified, after the execution, to the prosecutor, the person convicted by a foreign court and to his defence lawyer, who may file an appeal to the court of appeal.

Article 516
Determining the sanction

(Amended by Law no. 35/2017, dated 30.03.2017, Article 283)

1. When recognising a foreign decision, the court determines the punishment to be served in the Albanian state. It converts the punishment imposed in the foreign decision into one of the punishments provided for the same fact by the Albanian law. This punishment must correspond, by nature, to the one which has been established in the foreign decision. The length of the punishment may not exceed the maximum term provided for the same fact by the Albanian law.

2. When the foreign decision does not specify the length of the punishment, the court establishes it based on the criteria indicated in the Criminal Code. In no case the imposed punishment may be higher than the one imposed by the recognized criminal decision.

3. When the execution of the punishment rendered in a foreign State has been conditionally suspended, the court, with the decision of recognition, in addition to other issues, rules also on the conditional suspension of the punishment. The court does the same when the defendant has been conditionally released in the foreign country.

4. In order to establish a punishment by fine, the amount indicated in the foreign decision shall be converted in equal value into Albanian currency, applying the exchange rate of the day on which the recognition was decided.

5. The decision of recognition regarding the execution of a confiscation shall also order the execution of the confiscation.

Article 517 **Sequestration**

1. Upon request of the prosecutor, the competent court may impose the sequestration of the items that can be confiscated.

2. The decision is subject to appeal.

3. Provisions regulating the preventive sequestration shall apply, to the extent applicable.

Article 518 **Execution of the foreign decision**

1. After being recognised, the criminal decisions of foreign courts are enforced in conformity to Albanian law.

2. The prosecutor in the court that has made the recognition of a decision takes the measures for its execution.

3. The imprisonment sentence served in the foreign country is calculated for the effects of the execution.

4. The monetary proceeds of the execution of a fine decision are deposited into the bank of Albania. It may be deposited with the State where the decision was issued, upon its request, when that State, under the same circumstances would have decided the deposit in favour of the Albanian State.

5. The confiscated items shall be delivered to the Albanian state. They are delivered, upon its request, to the State where the decision subject to recognition is issued, when the latter, under the same circumstances would have decided the delivery in the Albanian State.

SECTION II **EXECUTION ABROAD OF THE ALBANIAN CRIMINAL DECISIONS**

Article 519 **Requirements for executing abroad**

1. In cases provided by international conventions or by Article 501, paragraph 2, the Ministry of justice requests the execution abroad of the criminal decisions or gives the consent when it is requested by a foreign State.

2. The execution abroad of a criminal conviction decision with restriction of the personal freedom may be requested or permitted only if the convicted person has become informed of the consequences, has declared freely that he gives his consent and when the execution in the foreign State is appropriate to his social rehabilitation.

3. The execution abroad is also allowed when there are conditions provided by paragraph 2, if the convicted person is in the territory of the State to whom the request has been addressed and the extradition has been rejected or anyway is not possible.

Article 520

Court decision

1. Before requesting the execution of a decision abroad the Ministry of Justice shall send the acts to the prosecutor, who shall submit a request to the court.

2. The consent of the convicted person should be given before the Albanian court. In case he is abroad the consent may be given before the Albanian consular authority or before the foreign court.

Article 521

Cases when execution of the sentence abroad is not allowed

1. The Minister of Justice cannot request the execution abroad of a criminal decision by restriction of personal freedom when there are grounds to believe that the convicted person shall be subject to persecution or discrimination acts by reason of race, religion, nationality, language or political opinions or inhuman, cruel or degrading punishment and treatment.

Article 522

Request for precautionary detention in prison abroad

1. When it is requested the enforcement of a decision restricting the personal freedom and the convicted person is abroad, the Ministry of Justice shall request his precautionary detention in prison.

2. With the request for the execution of a confiscation the Ministry of Justice has the right to request the sequestration of items which can be confiscated.

Article 523

Suspension of execution in the Albanian State

1. The execution of the sentence in the Albanian State is suspended once the execution in the foreign State has started.

2. The sentence may no longer be enforced in the Albanian State when, pursuant to the foreign countries laws, it has been entirely served.

Article 524

Final Provisions

1. Criminal Procedure Code of the People's Socialist Republic of Albania, approved by the law number 6069, dated 25.12.1979, along with amendments and ulterior modifications as well as any other provision running against this Code are repealed.

Article 525

*(Paragraph 2 added by Law no. 7977, dated 26.07.1995;
paragraph 2 amended by Law no. 8027, dated 15.11.1995)*

This Code shall enter into force on August 1, 1995.

For criminal cases which on the date of entry into force of this Code, are under investigation or at first instance court as well as at appeal court, the previous Criminal Procedure Code provisions shall be applied, but at any case not later than March 1, 1996.

Transitional provision added by Law no. 8813, dated 13.06.2002

Procedural provisions pertaining to serious crime courts will be applied after coming into force of the law that sets the operating date of their activity.

Transitional provision added by Law no. 21/2014

Criminal cases for which the adjudication has started or has been requested to start, before the date this law enters into force, shall continue to be adjudicated at the district court or court of appeal.

Transitional provision added by Law no. Nr.35/2017

1. Until the establishment of the Court against Corruption and Organised Crime, the criminal cases under its substantive jurisdiction according to the article 75/a of the Code amended by this law, shall be tried respectively by the Court of Serious Crimes and judicial district courts.

2. After the establishment of the Court against Corruption and Organised Crime, the cases pending trial before the courts of general jurisdiction, as well cases over which re-adjudication may be decided, shall be completed by the latter.

3. Acts and evidence obtained until the entry into force of this law, shall be valid and usable even when the law provides for different regulations.

4. Until the establishment of the Special Prosecution Office, the cases under investigation for criminal offences or subjects under Article 75/a of the Code amended by this law, shall be investigated respectively by the Prosecution Office attached to the Court of First Instance for Serious Crimes and prosecution offices attached to the judicial district courts, according to the jurisdiction defined before the entry into force of this law.

5. After the establishment of the Special Prosecution Office, the cases being investigated by the prosecution offices attached to the First Instance Court of Serious Crimes shall be transferred according to the jurisdiction, to the Special Prosecution Office, pursuant to article 75/a of the Code amended by this law and to the prosecution offices attached to the judicial district courts. The same rule shall apply even to the cases being investigated by the prosecution offices attached to the judicial district courts which are transferred to the jurisdiction of the Special Prosecution Office.

6. Paragraphs 6, 7 and 8 of Article 57 of the Law no. 95/2016 “On organisation and functioning of institutions fighting corruption and organised crime”, shall be repealed.

7. The composition of the panel of judges shall be regulated by the provisions of this law irrespective of the different provisions in other laws.

This law enters into force on 1 August 2017.

Promulgated by the decree no. 1059 dated 05.04.1995 of the President of the Republic of Albania, Sali Berisha.

LAW

No. 7895, dated 27 January 1995

CRIMINAL CODE OF THE REPUBLIC OF ALBANIA

*(Amended by Law no. 8175, dated 23.12.1996;
amended by Law no. 8204, dated 10.4.1997;
amended by Constitutional Court Decision no. 13, dated 29.5.1997;
amended by Constitutional Court Decision no. 46, dated 28.8.1997;
amended by Constitutional Court Decision no. 58, dated 5.12.1997;
amended by Law no. 8279, dated 15.1.1998;
amended by Constitutional Court Decision no. 65, dated 10.12.1999;
amended by Law no. 8733, dated 24.1.2001;
amended by Law no. 9017, dated 6.3.2003;
amended by Law no. 9030, dated 13.3.2003;
amended by Law no. 9086, dated 19.6.2003;
amended by Law no. 9188, dated 12.2.2004;
amended by Law no. 9275, dated 16.9.2004;
amended by Law no. 9686, dated 26.2.2007;
amended by Law no. 9859, dated 21.1.2008;
amended by Constitutional Court Decision no. 11, dated 2.4.2008;
amended by Law no. 10 023, dated 27.11.2008;
amended by Constitutional Court Decision no. 19, dated 1.6.2011;
amended by Law no. 23/2012, dated 1.3.2012;
amended by Constitutional Court Decision no. 47, dated 26.7.2012;
amended by Law no. 144, dated 2.5.2013;
amended by Law no. 98, dated 31.7.2014;
amended by Law no. 176/2014, dated 18.12.2014;
amended by Law no. 135/ 2015, dated 5.12.2015;
amended by Law no. 82/2016, dated 25.7.2016;
amended by Constitutional Court Decision no. 9, dated 26.2.2016;
amended by Law no. 36/2017, dated 30.3.2017;
amended by Law no. 89/ 2017, dated 22.5.2017)*

In reliance on Article 16 of the Law no. 7491, dated 29/04/1991 “On the main constitutional provisions”,
upon the proposal of the Council of Ministers

**THE ASSEMBLY
OF THE REPUBLIC OF ALBANIA**

DECIDED:

I

GENERAL PART

CHAPTER I

CRIMINAL LAW AND ITS APPLICATION

Article 1

Criminal Law and classification of criminal acts

Criminal law defines the criminal offences, sentencing and other measures taken against the perpetrators. Criminal offences are classified into crimes and contraventions. The distinction between them is always drawn in the provisions of the Special Part of the present Code.

Article 1/a

Basics of the criminal legislation

(Added by Law no. 8733, dated 24.01.2001, Article 1)

The Criminal Code is based on the Constitution of the Republic of Albania, general principles of the international criminal law, and international treaties ratified by the Albanian state.

The criminal legislation is composed of this Code and other laws providing for criminal offences.

Article 1/b

Tasks of the criminal legislation

(Added by Law no. 8733, dated 24.01.2001, Article 1)

The criminal legislation of the Republic of Albania is in charge of protecting the state's dependence and the entirety of its territory, human's dignity, human rights and freedoms, constitutional order, property, environment, Albanians' cohabitation and well-understanding of Albanians with national minorities, and religious co-habitation against the criminal offences, as well as of the latter's prevention.

Article 1/c

Principles of the Criminal Code

*(Added by Law no. 8733, dated 24.01.2001, Article 1;
phrases added by Law no. 144, dated 02.05.2013, Article 1)*

The Criminal Code is based on the constitutional principles of rule of law, equality under the law, fairness in determining the guilt and sentence, protecting the highest interest of children, and the humanism.

The implementation of the criminal law by analogy shall not be allowed.

Article 2

No penalty without a law

No one shall be criminally punished for an offence, which is not already explicitly provided for by law as a crime or a criminal contravention.

No one shall be sentenced to a type and extent of penalty that is not provided for by law.

Article 3

Operation of the criminal law in time

No one shall be sentenced for an offence, which, according to the law at the time it was committed, did not constitute a criminal offence.

A new law not incriminating an offence has retroactive effect. If the person has been sentenced, the enforcement of the sentence shall not commence and, if it has commenced, it shall cease.

If the law in force at the time when the criminal offence was committed and the subsequent law are different, the law, the provisions of which are more favourable to the person having committed the criminal offence, shall apply.

Article 4

Ignorance of law

Ignorance of the law that punishes a criminal offence does not constitute a cause for exclusion from criminal liability, unless the ignorance is objectively unavoidable.

Article 5

Territory of the Republic of Albania

The territory of the Republic of Albania shall, in the sense of criminal law, be the land space, the width of the territorial and internal maritime waters, the air space extending over the land space and over the territorial and internal maritime waters space, as well as over any other place under the sovereignty of the Albanian State, such as the seats of the Albanian diplomatic and consular missions, the ships flying the flag of the Republic of Albania, the ships belonging to the military navy and civil and military aviation wherever they are.

Article 6

Application of the criminal law to criminal offences committed by Albanian citizens

(Amended by Law no. 23, dated 01.03.2012)

Concerning criminal offences committed by Albanian citizens within the territory of the Republic of Albania, the criminal law of the Republic of Albania shall apply.

The criminal law of the Republic of Albania shall also be applicable to the Albanian citizen committing a crime within the territory of another country, as long as that crime is concurrently punishable, unless a foreign court has rendered a final decision. The condition of concurrent punishment in the territory of the

other state shall not apply in the cases of corruption-related crimes in public or private sectors and illicit trading in influence.

In the sense of this Article, the Albanian citizens shall also be considered those persons holding another citizenship apart from the Albanian.

Article 7

The applicable law on criminal offences committed by foreign citizens

*(Letter “d” amended by Law no. 8733, dated 24.01.2001, Article 2;
letter “h” added by Law no. 9086, dated 19.06.2003, Article 1;
letter added “i” by Law no. 9275, dated 16.09.2004, Article 1;
letter “c” amended by Law no. 9686, dated 26.02.2007, Article 1;
letter “j” added by Law no. 10 023, dated 27.11.2008, Article 1;
letter “e” deleted and letter “h” and “i” amended
by Law no. 23/2012, dated 01.03.2012, Article 2)*

The foreign citizen, committing a criminal offence within the territory of the Republic of Albania, shall be held liable under the criminal law of the Republic of Albania.

The criminal law of the Republic of Albania shall also be applicable to a foreign citizen committing one of the following crimes against the interests of the Albanian State or citizen outside the territory of the Republic of Albania:

- a) crimes against humanity;
- b) crimes against the independence and constitutional order;
- c) crimes with terrorist purposes;
- ç) organization of prostitution, illegal trafficking of human beings, children and women, illegal manufacturing and trafficking weapons, drugs, other narcotic and psychotropic substances, nuclear substances, pornographic materials, and illegal traffic of art works, and things of historic, cultural, and archaeological value;
- d) counterfeiting the Albanian state seal, Albanian currency, or Albanian securities;
- dh) crimes affecting the life or health of Albanian citizens, whereof the law provides for a punishment by imprisonment of five years or any other more severe punishment;
- e) laundering the proceeds of a criminal offence or criminal activity;
- ë) corruption-related crimes in public or private sectors, and illicit trading in influence;
- f) criminal offences in the area of information technology.

Article 7/a

Universal jurisdiction

*(Added by Law no. 9686, dated 26.02.2007, Article 2;
letter ‘dh’ added by Law no. 23, dated 01.03.2012, Article 3)*

The criminal law of the Republic of Albania is also applicable to the foreign citizen, being in the territory of the Republic of Albania and not being extradited, and having committed one of the following offences outside of the territory of the Republic of Albania:

- a) crimes against humanity;
- b) war crimes;
- c) genocide;
- (ç) offences for terrorist purposes;
- d) torture;
- dh)financing of terrorism

The criminal law of the Republic of Albania is also applicable to the foreign citizen committing one of the criminal offenses outside of the territory of the Republic of Albania, for which specific laws or international agreements, where Republic of Albania is a party, provide for the applicability of Albanian criminal law.

Article 8

Applicable law on criminal offences committed by a stateless person

(Added by Law no. 9686, dated 26.02.2007, Article 3)

In connection with a stateless person committing a criminal offence within the territory of the Republic of Albania or a crime abroad, the provisions of Articles 7 and 7/a of this Code shall apply.

Article 9

Internationally Protected Persons

(Added by Law no. 23, dated 01.03.2012, Article 4)

The provisions of this Code shall also apply to criminal offences committed against internationally protected persons.

An internationally protected person shall, unless international agreements ratified by the Albanian state provide for otherwise, include:

- a) the head of a state, including a member of the collegial body performing the functions of the head of state, under the constitution of that state, the head of the government or the minister for foreign affairs, where the latter are in another state, and the family members accompanying them;
- b) a representative or official of a state, or an official or agent of an international organisation having an intergovernmental character, who, at the time and venue of the commission of the offence against him, his office, private residence or means of transport, enjoys, in accordance with the international law, special protection against any assault on his person, freedom and dignity, as well as on the members of his family.

Article 9/a

Liability of foreign persons enjoying immunity

(Amended by Law no. 23/2012)

The issues of liability of a foreign citizen committing a criminal offence within the territory of the Republic of Albania and enjoying immunity under the international law shall be resolved through diplomatic channels.

Article 10

Validity of criminal decisions of foreign courts

The criminal decisions entered by foreign courts against the Albanian citizens establishing the commission of a criminal offence shall, unless provided for differently by bilateral or multilateral agreements, be valid in Albania within the scope of the Albanian law, even with regard to the following:

- a) to the effect of qualifying the person having committed the criminal offence as recidivist;
- b) for enforcing the decisions containing ancillary sanctions;
- c) for implementing security measures;
- d) for the recovery of damages or other civil law effects.

Article 11

Extradition

Extradition may be granted only when explicitly provided for by international agreements where the Republic of Albania is a party.

Extradition shall be granted when Albanian law and foreign law concurrently provide for the criminal offence, constituting the subject matter of the extradition request.

Extradition shall not be granted:

- a) if the person to be extradited is an Albanian citizen, unless otherwise provided for by the agreement;
- b) if the criminal offence constituting the subject matter of the extradition request is of a political or military nature;
- c) when there is reasonable ground to believe that the person requested to be extradited will be persecuted, punished or wanted because of his political, religious, national, racial or ethnic beliefs;
- d) if the person requested to be extradited has been tried by a competent Albanian court for the criminal offence whereof extradition is requested.

CHAPTER II

CRIMINAL LIABILITY

Article 12

Age for criminal liability

A person shall be held criminally liable if, at the time of committing the crime, he has reached the age of fourteen.

A person committing a criminal contravention shall be held liable if he has reached the age of sixteen.

Article 13

Causal connection

No one shall be held criminally liable if there is no causal connection between his action or omission and the actual consequences or probability of their emergence.

Article 14

Guilt

No one shall be sentenced for an action or omission that is provided for by law as a criminal offence, as long as the offence has not been committed due to his guilt.

A person shall be guilty if he commits the criminal offence intentionally or negligently.

Article 15

Intention

A criminal offence is committed intentionally when the person foresees the consequences of the criminal offence and wishes their occurrence or, although he foresees and does not wish them, consciously allows them to occur.

Article 16

Negligence

A criminal offence is committed negligently when the person, although he does not wish the consequences, foresees the probability of their occurrence and recklessly hopes to avoid them, or does not foresee them, but referring to the circumstances, he should and could have foreseen them.

Article 17

Mental incapacity

No one shall be held criminally liable who at the time of committing the offence suffered from psychic or neuropsychiatric disorders ruining his mental balance entirely and, consequently, was unable either to control his actions or omissions, or to be aware of committing a criminal offence.

A person, at the time of committing the criminal offence, suffering from psychic or neuropsychiatric disorders, having lowered his mental capacity to be aware and fully control his actions or omissions, shall be liable, however, this circumstance shall be considered by the court in determining the extent and the kind of punishment.

Article 18

Criminal offence committed while drunk

A person shall not be excluded from criminal liability if he commits the offence while drunk.

Where inebriation was caused due to accidental circumstances and it has lowered the mental capacity, this circumstance shall be taken into account for mitigating the sentence.

Where inebriation was caused with intent to commit a criminal offence, this circumstance shall be taken into account for aggravating the sentence.

The above-mentioned rules are also applied when the criminal offence is committed under the effect of narcotics or other substances.

Article 19

Self-defence

No one shall be held criminally liable having committed the criminal offence while being obliged to defend his own or another's life, health, rights and interests against an unfair, real and imminent attack, provided that the defence is proportionate to the danger posed by the attack.

The obvious disproportion between them amounts to exceeding the limits of self-defence.

Article 20

Extreme necessity

No one shall be held criminally liable having committed the criminal offence due to the necessity to confront a real and imminent danger threatening him, another person or the property against a serious damage, not avoidable by other means, provided that it has not been instigated by him and the damage incurred is greater than the damage avoided.

Article 21

Exercising a right or fulfilling the duty

No one shall be held criminally liable while acting to exercise rights or fulfil duties determined by law or an order issued by a competent authority, unless the order is obviously unlawful.

Where the criminal offence was committed as a consequence of an unlawful order, then the person issuing the order shall be held liable.

CHAPTER III

ATTEMPT

Article 22

Meaning of attempt

A criminal offence is deemed to remain an attempt where, although the person undertakes straightforward actions to commit it, it is hindered and not completed due to circumstances independent of his will.

Article 23

Liability for the attempt

The person attempting to commit a crime shall be held liable for it.

The court shall, depending on the degree of imminence of the consequence, as well as on the causes due to which the crime remained an attempt, mitigate the sentence, and may lower it below the minimum provided for by law, or may determine a more lenient sentence than the one provided for by law.

Article 24

Relinquishing committing a criminal offence

No one shall be held criminally liable who, on his own will and conclusively, relinquishes to commit a criminal offence, despite the opportunity to commit it.

Where the actions performed so far contain elements of another criminal offence, the person shall be held liable for the offence committed.

CHAPTER IV

COMPLICITY OF PERSONS IN COMMITTING CRIMINAL OFFENCES

Article 25

Meaning of complicity

Complicity shall be the commission of the criminal offence by two or more persons in agreement with each other.

Article 26

Accomplices

The accomplices in committing a criminal offence shall be: the organizers, executors, instigators, and helpers.

Organizers are those persons who organize and manage the activity to commit the criminal offence.

Executors are those persons who carry out direct actions to carry out the criminal offence.

Instigators are those persons who instigate the other accomplices to commit a criminal offence.

Helpers are those persons who, through advice, instructions, provision of means, abolition of obstacles, promises to hide the accomplices, traces or proceeds stemming from the criminal offence, help to carry it out.

Article 27

Liability of accomplices

Organizers, instigators, and helpers shall be liable same as the executors for the criminal offence committed by them.

In determining the sentence for the collaborators, the court should consider the extent of participation and the role assumed in committing the criminal offence.

Article 28

Special forms of collaboration

(Amended by Law no. 9275, dated 16.9.2004, article 2; point 2 of paragraph 1 repealed, paragraph 2 repealed by Law no. 9686, dated 26.2.2007, article 4)

1. The criminal organization is the highest form of cooperation that is composed of three or more persons being distinguished by the specific level of organization, structure, stability, duration, as well as by the purpose of committing one or more criminal offences to gain material or non-material benefits.
2. The terrorist organization is a specific form of the criminal organization, composed of two or more persons that have a steady collaboration extended over time, with the purpose of committing offences with terrorist purposes.
3. The armed gang is a specific form of cooperation that, by possessing military weapons and ammunition and other necessary means, aims at the commission of criminal offences provided for in Chapter V, VI and VII of the Special Part of this Code.
4. The structured criminal group is a special form of cooperation, composed of three or more persons, which have the purpose of committing one or more criminal offences, and which aim at achieving material and non-material benefits.

The structured criminal group for the commission of a criminal offence is not established spontaneously and it is not necessary to distinguish it for consistent membership, assignment of duties, elaborated structure and organization.

5. The creation and participation in a criminal organization, terrorist organization, armed gang, or structured criminal group constitute criminal offences and are punished according to the provisions of the special part of this Code or other special criminal provisions.
6. Members of the criminal organization, terrorist organization, armed gang, or structured criminal group are liable for all the criminal offences committed by them in fulfilling the aims of their criminal activity.
7. The member of the criminal organization, terrorist organization, armed gang, or structured criminal group benefits exemption from sentencing or a reduction of the sentence, as long as he makes a contribution that is deemed as decisive for obtaining information on their activity, other accomplices, on properties possessed directly or not directly by them, as well as on the investigative activities, conducted on the criminal organizations, terrorist organizations, armed gangs and structured criminal groups.

CHAPTER V PUNISHMENTS

Article 29

Principal punishments

(Amended by Law no. 8733, dated 24.01.2001, Article 79; last paragraph added by Law no. 9086, dated 19/06/2003, Article 2; last paragraph repealed by the Constitutional Court Decision no. 47, dated 26.07.2012)

The following principal punishments shall apply to persons having committed crimes:

1. Life imprisonment;
2. Imprisonment;
3. Fine.

The following principal punishments shall apply to persons having committed criminal contraventions:

1. Imprisonment;
2. Fine.

Article 30

Ancillary punishments

(Paragraph 2 amended by Law no. 9086, dated 19.06.2003, Article 3;

paragraph 1 amended by Law no. 9275, dated 16.09.2004, Article 3;

paragraph 10 added by Law no. 23, dated 01.03.2012, Article 6)

Besides the principal punishment, a person having committed crimes or criminal contraventions may also be subject to one or some of the following ancillary punishments:

1. Banning the right to exercise public functions;
2. Confiscation of instruments committing the criminal offence and criminal offence proceeds;
3. Prohibition to drive;
4. Deprivation of decorations, honorary titles;
5. Deprivation of the right to practice a profession or craft;
6. Deprivation of the right to assume leading positions at legal entities;
7. Prohibition of the right to stay in one or some administrative units;
8. Expulsion from the territory;
9. Compulsion to make public the court sentence;
10. Loss of Parental Responsibility.

In particular cases, when the imposition of principal punishment is deemed to be inappropriate and where the law provides for imprisonment up to three years or other more lenient punishments for the committed offence, the court may decide to apply only the ancillary punishment.

Article 31

Life imprisonment

(Paragraph 1, 2 and the title amended by Law no. 8733, dated 24.01.2001, Article 79;

last paragraph repealed by Law no. 9686, dated 26.02.2007, Article 5)

The punishment to life imprisonment shall be entered upon the court decision in connection with the commission of a serious crime.

Life imprisonment shall not be applied to persons being at the time of committing the crime younger than eighteen years old, or to women.

Article 32

Punishment to imprisonment

(Paragraph 1 amended by Law no. 144, dated 02.05.2013, Article 2)

The imprisonment sentence for crimes shall be imposed for a period ranging from five days to thirty-five years.

The imprisonment sentences for criminal contraventions shall be imposed for a period ranging from five days to two years.

Article 33

Way of serving life imprisonment and imprisonment

Life imprisonment and imprisonment are served at special institutions set up specifically for this purpose.

The rules concerning the way of serving the sentences and the prisoner's rights and duties are defined by law.

Juveniles shall serve imprisonment sentences in locations separated from adults.

Women serve imprisonment sentences in locations separated from men.

Article 34

Punishment to fine

*(Paragraph 3 and 4 amended, paragraph 5 added, paragraph 7 amended by Law no. 8733, dated 24.01.2001, Article 3;
paragraph 4 amended by Law no. 9275, dated 16.09.2004, Article 4;
paragraph 8 repealed by the Constitutional Court Decision no. 19, dated 01.06.2011;
amended by Law no. 23/2012, dated 1.3.2012, Article 8;
paragraph 5 amended by Law no. 144, dated 02.05.2013, Article 3)*

The punishment to a fine consists in paying an amount of money to the benefit of the state within the range provided for by law.

The punishment to a fine shall be imposed on persons committing crimes or criminal contraventions.

Persons committing crimes shall be subject to a fine ranging from 100 000 up to ten million ALL.

Persons committing criminal contraventions shall be subject to a fine ranging from 50 000 up to three million ALL.

For the persons committing crimes with the motive of obtaining assets or any other material benefit, the Court shall, pursuant to Article 36 of this Code, decide to confiscate the instruments of the commission of the criminal offence and the proceeds of the criminal offence or, in their absence, a punishment to a fine ranging from 100 000 up to five million ALL.

The court shall impose the sentence to a fine, after having investigated about the solvency of a person. The solvency shall be determined based on a person's personal and property situation, and other circumstances related thereto. The fine must be paid within the deadline set out in the court decision.

The court may, taking into account the economic situation of the defendant, allow him to pay his fine by instalments, setting out the instalment amounts and the payment deadlines.

If a convicted person fails to pay a fine, and that fine cannot be collected through compulsory execution, the court shall decide to replace the fine with imprisonment, where five thousand ALLs shall be equal to one day of imprisonment.

Where a convicted person fails to pay the fine in due time for no fault of his and if the criteria on which the fine was determined have changed after the decision was issued, and do not obviously justify payment of the fine, the convicted person may request:

- a) postponement of the deadline for the payment of the fine for a period of up to six months;
- b) performance of work in public interest.

If the court orders performance of work in public interest, the rules of Article 63 of this Code shall apply.

If the fine is not paid even after the postponement, or if the convicted person fails to perform work in public interest, the court shall decide to replace the fine with imprisonment.

When the fine is not paid in due time, the court decides on replacing the fine with imprisonment, calculating 5 000 ALL per one day of imprisonment.

When the fine is imposed for a crime committed, its replacement with imprisonment cannot exceed three years, whereas when is imposed for a criminal contravention, the replacement cannot exceed one year of imprisonment, but always without exceeding the maximum of imprisonment provided for by the relevant provision. If no imprisonment is provided for by the criminal provision, the maximum prison sentence shall be considered six months.

When the person convicted, as above, pays off his fine during the imprisonment term, the court revokes the sentence and makes the calculations under the criteria of paragraph 8 of this Article.

Article 35

Deprivation of the right to assume public functions

The deprivation of the right to assume public functions for a period of no less than five years is obligatorily imposed on a person, who has committed an office-related crime by abusing with his public function, or has committed a crime, which the courts punishes with an imprisonment sentence of no less than ten years.

The deprivation of the right to assume public functions can be applied for a period from three to five years, if the court has entered a sentence of five to ten years of imprisonment, and from one to three years, when the sentence imposed is up to three years of imprisonment.

Article 36

Confiscation of instruments for committing the criminal offence and criminal offence proceeds

(Amended by Law no. 9086, dated 19.06.2003, Article 4)

1. Confiscation is mandatorily imposed by the court and pertains to obtaining and transferring to the benefit of the state:

- a) assets that have been used or specified as instruments for committing the criminal offence;

- b) the criminal offence proceeds, including any kind of assets, as well as legal documents or instruments establishing other titles or interests in the assets stemming from or obtained directly or indirectly from the commission of the criminal offence;
 - c) the promised or given remuneration for committing the criminal offence;
 - (ç any other assets, the value of which corresponds to the criminal offence proceeds;
 - d) the assets, the production, use, possession or alienation of which consist a criminal offence, even if no conviction decision was entered.
2. If the criminal offence proceeds have been transformed or partly or fully converted into other assets, the latter shall be subject to confiscation.
3. If criminal offence proceeds are merged with assets gained legally, the latter shall be confiscated up to the value of the criminal offence proceeds.
4. Subject to confiscation shall also be other income or proceeds out of the criminal offence, out of assets that criminal offence proceeds have been transformed or altered to, or out of assets with which these proceeds have been merged, to the same amount and manner as the criminal offence proceeds.

Article 37

Ban on driving

Ban on driving is imposed by the court for a period within the range of one to five years on persons who have committed a criminal offence, when it is deemed that it will have a preventive effect or it matches the nature of the offence committed.

Article 38

Revocation of decorations and titles

The revocation of decorations and honorary titles shall be imposed by the court on persons having committed a criminal offence punishable by imprisonment and it is deemed that maintaining them does not comply with the nature of the criminal offence committed.

The revocation of decorations and honorary titles shall be permanent if the person is sentenced for a crime for more than ten years of imprisonment, and from one to five years, if he is sentenced up to ten years of imprisonment.

Article 39

Deprivation of the right to practice a profession or activity

(Amended by Law no. 144, dated 02.05.2013)

The deprivation of the right to practice a profession or activity shall prevent the detainee from practicing the profession or activity for which a special permit, certificate, authorisation or licence has been issued by the competent body.

Deprivation of the right to practice an activity or profession shall be imposed from one month to five years and is a result of any sentence for criminal offences committed by abusing them, or when it is estimated

that the further practicing of the activity or profession goes against the legal relation which the respective provision of the criminal offence aims to protect.

Article 40

Deprivation of the right to hold leading positions

(Last paragraph added by Law no. 9275, dated 16.09.2004, Article 6)

Deprivation of the right to hold leading positions within the legal entities deprives the convict of the right to assume the duty of the director, administrator, entrepreneur, liquidator, or any other duty relevant to the capacity of the representative of a legal person.

Deprivation of the right to hold leading positions within the legal entity is a result of any punishment for criminal offences and it is imposed for a period of time ranging from one month to five years, as long as the convict has abused his functions or has acted in violation of the rules and regulations related to his duty.

When the sentence imposed by the court is no less than five-year imprisonment, this right could be removed for a period of five to ten years.

Article 41

Prohibition to stay in one or more administrative units

The prohibition to stay in one or more administrative units is imposed by the court for a period of time from one to five years, as long as it is deemed that the stay of the convict in those locations constitutes a danger for the public safety.

Article 42

Expulsion from the territory

Expulsion from the territory of the Republic of Albania is imposed by the court on a foreign or stateless citizen having committed a crime and it is deemed that his further stay in the territory of the Republic of Albania should no longer continue.

The court shall revoke the decision upon the request of the convict, if the foreign or stateless citizen obtains Albanian citizenship.

Article 43

Publication of court decision

The publication of the decision shall be ruled by the court sentence when it deems that the announcement of the decision content is of interest to legal and physical persons.

The publication of the court sentence consists in compelling the convict to publish the court decision, at his own expenses, in one or some newspapers or RTV stations, in its entirety or partially, according to the ruling of the court.

The court decides the publication date and duration.

The press and mass media are obliged to publish the court decision sent by the court.

The publication of court decision shall not be granted as long as it endangers the divulgence of a state secret, the violation of the privacy of people or sanctity of public moral.

Article 43/a

Revocation of Parental Responsibility

(Added by Law no. 23, dated 01.03.2012, Article 7)

Revocation of parental responsibility shall be ruled by a court against a person assuming parental responsibility when that person has been sentenced as perpetrator or accomplice in a criminal offence against the child, or as an accomplice with the child in the commission of a criminal offence.

Article 44

Way of serving ancillary punishments

If the court, in addition to the imprisonment punishment, imposes one or more ancillary punishments provided for in Article 30 of this Code, their implementation commences simultaneously with the main punishment.

As for the numbers 1, 3, 5, 6, 7 and 8 of Article 30 of this Code, their implementation commences after the completion of imprisonment. The rights of the convicted affected by the ancillary punishments shall not be assumed during the period of serving the imprisonment.

Article 45

The Application of the criminal law on legal persons/entities

(Repealed by Law no. 8733, dated 21.01.2001, Article 4;

added by Law no. 9275, dated 16.09.2004, Article 7)

The legal entities shall, with the exception of the state institutions, be held criminally responsible for criminal offences committed on their behalf or to their benefit by their bodies or representatives.

The local government units shall be held criminally responsible only for the actions performed during the exercise of their activity that may be exercised by delegating public services.

The criminal liability of the legal entities does not exclude that of the natural persons having committed criminal offences or being accomplices in the commission for the committal of the same criminal offences.

The criminal offences and the respective punishing measures taken against the legal entities, as well as the procedures for imposing and enforcing these measures are regulated by a special law.

Article 46

Medical and educational measures

(Amended by Law no. 36/2017)

The court may impose medical sanctions on mentally incapable persons having committed criminal offences, whereas educational measures may be imposed on minors being excluded from punishment or, because of their age, not being criminally liable.

Medical measures are the following:

1. Compulsory outpatient medical treatment;

2. Compulsory medical treatment in a medical institution;

The decision on medical or educational measures can any time be revoked if the circumstances under which they were imposed cease to exist, but, in any case, the court is obliged to reconsider its decision after one year since the date of the entrance of the court sentence.

The rules revoking the court sentence containing the medical measures are foreseen in the Code of Criminal Procedure. The rules imposing or revoking medical and educational measures in relation to the child are foreseen in the Justice Code for Children.

CHAPTER VI DETERMINATION OF PUNISHMENT

Article 47

Way of determining the punishment

The court determines the punishment in compliance with the provisions of the general part of this code and the margins of punishment on criminal offences provided for by law.

In determining the punishment against a person, the court considers the dangerousness of the criminal offence, its perpetrator, the level of guilt, as well as both mitigating and aggravating circumstances.

Article 48

Mitigating circumstances

(Two paragraphs added by Law no. 144, dated 02.05.2013, Article 5)

The following circumstances mitigate the punishment:

- a) Where the offence is committed due to motivations of positive moral and social values;
- b) Where the offence is committed under the effect of a psychiatric distress caused by provocation or the unfair actions of the victim or some other person;
- c) Where the offence is committed under the influence of wrong actions or instructions of a superior;
- (ç) Where the person who has committed the offence shows deep repentance;
- d) Where the person has recovered the damage caused by the criminal offence or has actively helped to eliminate or reduce its consequences;
- dh) Where the person surrenders to the competent authorities after committing the criminal offence;
- e) Where the relationship between the person having committed the criminal offence and the victim has gone to normal.

The mitigating circumstance envisaged in letter “a” of the first paragraph of this Article shall not mitigate the sentence in the event the criminal offence is committed under the circumstances envisaged in letter “j” of Article 50 of this Code.

The mitigating circumstance envisaged in letter “e” of the first paragraph of this Article, shall not mitigate the sentence of a person who commits a criminal offence against children or a criminal offence related to domestic violence.

Article 49

Regardless of the circumstances mentioned in Article 48 of this Code, the court may also consider other circumstances as long as it deems them as such to justify the mitigation of the sentence.

Article 50

Aggravating circumstances

(Letter “b” amended, letter “h” and “i” added by Law no. 8733, dated 24.01.2001, Article 5;

letter “dh” amended by Law no. 9275, dated 16.09.2004, Article 8;

letter “j” added by Law no. 9686, dated 26.02.2007, Article 6;

letter “ç/1” and “e/1” added and letter “g” and “j” amended by Law no. 144, dated 02.05.2013, Article 6)

The following circumstances aggravate the punishment:

- a) When the offence committed is based upon futile motives;
- b) When the offence is committed for rendering criminally liable or hiding the criminal liability of a third person, or for avoiding the conviction for another criminal offence, or for gaining or providing wealth benefits for oneself or for third parties, or any other material benefit;
- c) When the criminal offence is committed savagely and ruthlessly;
- (ç When a crime is committed after a conviction was decided for a previously committed crime;
- ;ç/1) commission of a criminal offence after subjecting the person under electronic monitoring
- d) When actions that aggravate or increase the consequences of a criminal offence are committed;
- dh) The commission of the criminal offence by abusing the public office or the religious service.
- e) When the offence is committed against children, pregnant women, or other people who, due to different reasons, cannot protect themselves;
- e/1) commission of a criminal offence during or after the issuing of a court order of protection against domestic violence;
- f) When the offence is directed against representatives of other states;
- g) When an offence is committed through profiting from family, cohabitation, friendship, hospitality relations;
- gj) When the offence is committed in complicity;
- h) Committing the criminal offence more than once;
- i) When the offence is committed using weapons, military ammunitions, explosives, flammable, poisonous, and radioactive substances;

- j) The commission of the offence due to motives related to gender, race, colour, ethnicity, language, gender identity, sexual orientation, political, religious, or philosophical convictions, health status, genetic predispositions or disability.

Article 51

Sentence for children

(The title, paragraph 1 reworded and addendum to paragraph 1 by Law no. 36/2017)

For minors, who at the time they committed the criminal offence were under eighteen years old, the sentence may not exceed half of the term of punishment provided for by law for the criminal offence committed.

Rules on determining sentences against children are foreseen in the Code of Criminal Justice for Children.

Article 52

Excluding minors from punishment

The court, considering the low dangerousness of the criminal offence, the specific circumstances under which it was committed, and the previous behaviour of the minor, may exclude him from punishment.

In these cases, the court may decide to place the minor to an educational institution.

Article 52/a

Exclusion or reduction of the sentence for collaborators of justice and victims

(Added by Law no. 144, dated 02.05.2013, Article 8)

The person who promises or gives rewards or other benefits, according to Articles 164/a, 244, 244/a, 245, 312, 319, 319/a, 319/b, 319/c and 328 of this Code may enjoy exclusion from serving the sentence or a reduction of the sentence, in the event the person files a criminal denunciation and gives assistance during the criminal proceedings for these offences. When issuing the decision, the court shall also consider the time when the denunciation is filed, and the occurrence, or not, of the consequences of the offence.

The aggrieved party due to criminal offences related to trafficking in human beings may benefit exclusion from the sentence for committing criminal offences during the trafficking period and to the extent the person had been obliged to commit the illegal actions or omissions.”

The person having committed one of the criminal offences related to trafficking of narcotics, weapons or ammunition, trafficking in human beings or criminal offences committed by criminal organisations, collaborating and assisting the criminal prosecution authorities in fighting against them, or, where appropriate, in identifying the other persons who commit such crimes, cannot be sentenced for a period of more than half of the sentence foreseen for the offence committed by him. In particular cases, the person may be excluded from such sentence when mitigating circumstances are in his favour.

Article 53

Reduction of sentence under the minimum provided for by law

(Phrase added by Law no. 144, dated 02.05.2013, Article 8)

In specific cases, when the court deems that both the offence and the perpetrator are of low dangerousness and there are several mitigating circumstances and no aggravating circumstance exist, the court may impose a sentence under the minimum or a more lenient punishment than the one provided for in the respective provision.

Article 53/a

Substitution of an imprisonment sentence to a monetary amount to the benefit of the state

The court may, where explicitly provided for in a provision and upon deeming that the criminal offence and its perpetrator pose a low social risk and where it imposes an imprisonment term not exceeding two years, decide to replace the imprisonment sentence to the payment of a monetary amount to the benefit of the state, calculating one imprisonment day to five thousand ALL.

This substitution may be decided upon being sought by the perpetrator of the criminal offence.

Where the monetary amount set out by the court is not paid within 10 days since the moment that the decision becomes final, the court shall, upon the request of the prosecution office, decide to revoke the decision and substitute it to an imprisonment term.

Article 54

Admitting to pay the fine

Concerns criminal contraventions for which, besides the fine, an imprisonment sentence is also imposed, the court, upon the request of the perpetrator of the criminal contravention, may admit that the latter pays an amount of money to the benefit of the state budget, equal to half of the maximum fine provided for criminal contraventions in the General Part of this Code.

The request may be presented at any stage of the trial proceeding before the rendering of the final decision of first instance.

When the court rejects such a request, it shall impose the sentence for the offence committed.

The request shall not be admitted for persons previously convicted also for criminal contraventions.

Article 55

Imposition of sentences for more than one criminal offence

(Paragraph 2 added by Law no. 144, dated 02.05.2013, Article 9)

When actions or omissions contain elements of more than one criminal offence, and when the person has committed more than one criminal offence for which no sentence has been rendered, the court first sentences every criminal offence separately, and, in the end, imposes a single sentence, which consists of the most severe and increased sentence.

The severe and increased sentence may exceed neither the total sum of the punishments determined separately nor the maximum provided for the type of the sentence rendered.

When the court deems that committing more than one crime does not demonstrate serious dangerousness of the culprit, it may impose as a final sentence the most severe punishment provided for one of the criminal offences.

While rendering its final decision, the court shall impose one or more of the ancillary punishments rendered separately for each particular offence.

Article 56

Joinder of sentences

If before serving the full sentence, the convict is sentenced for a criminal offence committed prior to the rendering of the sentence, the rules of the preceding Article shall apply and the already served portion of punishment shall be calculated into the new sentence.

When the convict commits a new criminal offence after the rendering of the sentence, but before the full term of the sentence is served, the court joins the new sentence with the remaining portion of the previous term, following the rules provided for in Article 55 of this Code.

Article 57

Calculation of pretrial detention

(Paragraph 3 amended by Law no. 8733, dated 24.01.2001, Article 1)

The pretrial detention period is calculated into the sentence of imprisonment or fine and as well as for performing community work as follows:

One day of pretrial detention equals to one day and a half of imprisonment.

One day of pretrial detention equals to five thousand ALL of fine.

One day of pretrial detention equals to eighteen hours as community work.

CHAPTER VII

ALTERNATIVES TO IMPRISONMENT SENTENCES

Article 58

Open prison

(Amended by Law no. 10 023, dated 27.11.2008, Article 2)

For sentences up to one year of imprisonment, the court may, due to the obligations of the convict in relation to work, education, qualification or professional training, essential family responsibilities or the need for medical treatment or rehabilitation, decide the execution of the sentence in open prisons.

The convict serving the sentence in open prison is obliged to return to prison, after carrying out responsibilities outside of prison, within the deadline set out by the court.

When the convict does not fulfil the obligations according to this Article, Article 62 of this Code shall apply.

Article 59

Suspension of the execution of an imprisonment sentence and placing the convict on probation

(Amended by Law no. 10 023, dated 27.11.2008, Article 3;

paragraph 3 added and paragraph 4 amended by Law no. 36/2017)

Due to the low dangerousness of the person, his age, health and mental condition, life style, and the needs especially of those related to the family, education or work, the circumstances under which the criminal offence was committed as well as the conduct after the commission of the criminal offence, the court may, while imposing an imprisonment sentence up to five years, order the convict to keep contacts with the probation service and be placed on probation, by suspending the sentence execution, provided that during the probation period, he shall not commit another criminal offence.

The court shall order the convict to fulfil one or more obligations, provided for in the Article 60 of this Code.

The probation period for imposed sentences of up to two years of imprisonment, suspended by the court, shall be double the period of imprisonment sentence imposed by the court.

The probation period, except for the rules foreseen in paragraph 3 of this Article, is from 24 months to 5 years. The probation period starts the very next day of announcement of the court decision suspending the imprisonment sentence. The probation period may be shortened or extended depending on the manner of the execution of the probation service and the personal conditions of the sentenced persons, but without prejudice to the minimum and the maximum period foreseen in this paragraph.

If the convict does not keep contact with the probation service or does not fulfil the obligations provided for in the Article 60, as ordered by the court, the latter shall decide the replacement of the first sentence with another sentence, the extension of surveillance period, within the probationary period, or revocation of the suspension of the decision execution.

Article 59/a

Home confinement

(Added by Law no. 10 023, dated 27.11.2008, Article 4;

paragraph 2 added by Law no. 144, dated 02.05.2013, Article 10)

For up to two years imprisonment sentences or when this timing is the remainder of the sentence, according to a decision pertaining to a longer time of imprisonment, the court may decide for the convict to serve the punishment at home, in another private house or a centre of public health care, when the following circumstances exist:

for pregnant women or mothers with children of under ten years of age, living with her.

for fathers, who have the parental custody over the child of under ten years of age, living with him, when the mother has died or is unable to take care of the child;

for persons, in severe health conditions, requiring continuous care from the medical service, outside of the prison;

(ç for persons of age over sixty years old, whose health situation renders them incapable;

d) for young adults, under the age of twenty-one, with established medical, study, work or family responsibilities needs.

The court, under the circumstances foreseen in letter “a” and “b” of first paragraph of this Article, cannot decide serving sentence in home confinement for persons who have committed a criminal offence against their spouse, cohabitant or child.

The court may allow the persons convicted to home confinement to leave their residing place, to fulfil their indispensable family needs, to get involved at work activities, education or rehabilitation programs, which the probation service has agreed upon.

In such case, the court defines the measures that need to be taken by the probation service.

The court shall revoke the home confinement and substitute it with another punishment, when the foreseen conditions provided for in the first paragraph of this Article do not exist. If the convict leaves its residence without the authorization of the court or violates obligations assigned in the court decision, Article 62 of the Code shall apply.

Article 60

Obligations of the convict on probation

*(Amended by Law no. 10 023, dated 27.11.2008, Article 3;
point 12 of paragraph 1 amended and paragraph 3 added by Law no. 36/2017)*

The convict placed on probation may be obligated by the court to fulfil one or more of the following obligations:

1. To exercise a professional activity or to receive an education or a professional training;
2. To use its wage and other income, or other assets to pay for the family obligation fulfilment;
3. To compensate for the incurred civil damage;
4. To be banned on driving specific vehicles;
5. To not exercise professional activities when the criminal offence is related to such activity;
6. To not visit specific places;
7. To not visit bars serving alcoholic beverages;
8. To remain in his residence during specified hours;
9. To not associate with specific individuals, mainly convicts or accomplices in the criminal offence;
10. To not possess, carry or use weapons;
11. To be medicated or rehabilitated in a medical institution or to be subject to a treatment, medical or rehabilitation program;
12. To undergo a treatment or medical programme or rehabilitation in order to refrain from using alcoholic drinks or narcotic substances.

In imposing the obligations on the convict, the court takes into consideration the age of the convict, his mental condition, life style and needs, especially the ones related with his family, education or work, the motives for committing the criminal offence, his attitude after the commission of the criminal offence, as

well as other circumstances that influence imposition of obligations according to this Article and their surveillance. The obligation foreseen in subparagraph 11 and 12 of paragraph 1 of this Article shall be determined only upon consent of the sentenced person.

The period for fulfilment of an obligation foreseen in paragraph 1 of this Article shall be set by the court within the defined probation period.

Article 60/a

Obligation to quit the use of alcohol or drugs

*(Amended by Law no. 10 023, dated 27.11.2008, Article 11;
paragraph 3 added by Law no. 36/2017)*

The court shall impose on a convict placed on probation and being addicted to alcohol or narcotics the obligation to undergo medical treatment to abstain from alcohol or drugs.

The medical treatment to the effect of abstaining from alcohol or drugs shall be taking place in the specialised medical institution, as decided by the Ministry of Health upon request from the Probation Service.

The Probation Service shall survey the execution of the court decision and report immediately to the prosecutor in the event the convict does not fulfil the imposed obligation according to the provisions of Article 60 of this Code.

Article 61

The convict's obligations during probation

(Amended by Law no. 10 023, dated 27.11.2008, Article 6)

During the probation period, the convict shall be obliged:

- a) To appear regularly and inform continuously the probation service on the fulfilment of the conditions and obligations defined by the court.
- b) To obtain consent from the probation service to relocate his residence, work location or for frequent movement within the country.

Article 62

Violation of the conditions and obligations during the probation period

(Amended by Law no. 10 023, dated 27.11.2008, Article 7)

If the convict, during the term of probation, commits another criminal offence, the court may change the imposed obligations, replace the sentence rendered with another one or revoke fully or partly the suspension decision.

If the convict, during the probation term, violates the conditions or obligations that were set, the probation services shall report immediately to the prosecutor.

Due to minor violations of conditions and obligation decided by the court, which were committed for the first time, the prosecutor has the right to give a warning, which is registered in the personal file of the convict.

For severe and repeated violations, the prosecutor shall request the court to change the imposed obligation, add up other obligations, replace them with other sanctions or revoke the decision for the suspension of the sentence and get the remainder of the sentence to be served in jail.

Article 63

Suspension of enforcement of imprisonment sentence and compulsion to perform community work

(Amended by Law no. 10 023, dated 27.11.2008, Article 8)

The court may, due to low dangerousness of the person and circumstances under which the criminal offence was committed and as long as it has imposed a punishment of up to one year, decide to suspend the enforcement of imprisonment sentence and replace it with the obligation for the convict to perform community work.

Community work means the performance of work by the convicted person upon his consent and without reward in the public interest or in the interest of the association set out in the court verdict for a period ranging from forty to two hundred and forty hours.

This obligation may not be imposed if the convict refuses the suspension during the court hearing.

Community work is performed within a six-month term.

The court shall, in its sentence, determine the number of working hours and the obligation for the convict to keep contact with the probation service. The probation service decides on the kind of work which will be performed, the place and the week days when the work will be performed, keeping in mind, to the extent possible, his regular employment or his family obligations. The duration of community work shall not exceed eight hours a day.

Following the completion of the work, the punishment shall be remitted.

If the convict does not perform community work, does not keep contact with the probation service, or violates the conditions or other obligations decided by the court, the prosecutor shall forthwith inform the court. The court shall, in such a case, follow the rules provided for in the Article 62 of this Code.

Article 64

Release on parole

(Amended by Law no. 8733, dated 24.01.2001, Article 7;

amended by Law no. 10 023, dated 27.11.2008, Article 9;

words added to paragraph 3 of the Law no. 144, dated 02.05.2013, Article 12

paragraph 1, 3 amended and paragraph 5 added by Law no. 36/2017)

The convict may be released from serving the sentence earlier on parole only for specific reasons, if his behaviour and work demonstrate that, referring to the time served, the purpose of his education has been fulfilled, and he has served:

- no less than half of punishment time imposed for criminal contraventions;
- no less than two third of the punishment given for crimes punishable to imprisonment up to five years;
- no less than three fourth of the sentence imposed for crimes punished by over 5 years up to the maximum foreseen by the law, with the exemption of provisions of paragraph 3 of this Article.

The time benefited based on an amnesty or pardon shall not be calculated into the served punishment.

It shall not be allowed to release on parole a recidivist for a crime committed with intent as well as a convict due to the commission of criminal offences provided for in Articles 78/a, 79/a, 79/b, 79/c or the third paragraph of Article 100.

Release on parole shall be revoked by the court, when the convict sentenced for an intentionally committed criminal offence, commits another intentional criminal offence during the parole period, applying the provisions on joining the punishments.

The court shall order the sentenced person to keep contact with the Probation Service during the probation period and fulfil one or some of the obligations foreseen in Article 60 of the Code. When the sentenced person fails to contact the Probation Service, or fulfil the obligations foreseen in Article 60, ordered by the court, the latter shall decide replacing the first sentence with another sentence, extending the period of monitoring during probation or revoking the decision on early conditional release.

Article 65

*(Paragraph 1, 2 amended by Law no. 10 023, dated 27.11.2008, Article 10;
paragraph 2 amended and paragraph 3 added by Law no. 36/2017)*

A convict serving life imprisonment shall not be allowed to be released on parole.

Only under extraordinary circumstances may the convict serving life imprisonment be released on parole, if:

He has served no less than thirty-five years imprisonment and during the period serving his sentence has shown excellent behaviour and it is deemed that the educational aim of the sentence has been achieved.

Persons sentenced for criminal offences foreseen in Articles 78/a, 79/a, 79/b, 79/c and Article 100 paragraph 3 shall be exempt from this rule.

Article 65/a

Security Period

(Added by Law no. 23, dated 01.03.2012, Article 9)

The court may, when rendering a decision, also decide to impose a security period, during which Article 64 of this Code is not applicable, in cases where one of the following circumstances exists:

- a) the criminal offence, the punishment of which is over five years;
- b) the criminal offence has been committed in a cruel and brutal manner;
- c) the offence has been committed against children, pregnant women or persons who, for various reasons, cannot be protected;

- (ç) the offence has been committed by taking advantage of family or cohabitation relationships;
- d) the commission of the offence has been driven by motives related to gender, race, religion, nationality, language, political, religious or social beliefs.

The security period shall range between three-quarters of the sentence imposed by the court and entire duration of the criminal sentence.

CHAPTER VIII

LAPSE OF CRIMINAL PROSECUTION, PUNISHMENTS AND THEIR NONEXECUTION

Article 66

Statute of limitations for criminal prosecution

(Amended by the Law no. 36/2017)

Criminal prosecution shall not be conducted when from the moment the offence was committed until the moment that the person is held defendant:

- a) forty years have lapsed in the case of crimes which punishment is foreseen to be life imprisonment;
- b) twenty years have lapsed for crimes foreseen to be punished by not less than ten years of imprisonment or another more severe punishment;
- c) ten years have lapsed for crimes, foreseen to be punished by five to ten years of imprisonment;
- (ç) five years have lapsed for crimes, foreseen to be punished by up to five years of imprisonment or fine;
- d) three years have lapsed for misdemeanours foreseen to be punished by up to two years of imprisonment;
- dh) two years have lapsed for misdemeanours foreseen to be punished by fine.

Statute of limitations shall not apply to criminal offences of Chapter II, Section I, Articles 76-79/c.

Article 67

Non-applicability of statute of limitations to criminal prosecution

Not subject to the statute of limitation shall be the war crimes and crimes against humanity.

Article 68

Statute of limitations for the execution of the sentence

The sentence shall not be executed if from the day it became final have elapsed:

- a) twenty years for sentences containing between fifteen to twenty-five years imprisonment;
- b) ten years for sentences containing between five to fifteen years imprisonment;
- c) five years for sentences containing up to five years imprisonment or other lower sentences.

Article 69

Rehabilitation

Without criminal record shall be:

- a) those who are sentenced to imprisonment for less than six months or with any other lower sentence, who have not committed any other criminal offence for two years since the day of their served sentence;
- b) those who are sentenced to imprisonment ranging from six months up to five years and who have not committed other criminal offence for five years since the day of their served sentence;
- c) those who are sentenced to imprisonment ranging from five to ten years and who have not committed any other criminal offence for seven years since the day of their served sentence;
- (ç) those who are sentenced to imprisonment ranging from ten to twenty-five years and who have not committed any other criminal offence for ten years since the day of their served sentence.

Article 70

Pardon

The competent authority shall, through the act of pardoning, either exclude the person completely or partially from serving the court sentence or shall substitute the sentence with a more lenient one.

Article 71

Amnesty

The competent authority shall, through the act of amnesty, affect the exclusion from criminal prosecution, from serving the sentence completely or partially, or shall substitute the sentence with a more lenient one.

Amnesty includes all those criminal offences committed up to one day prior to its announcement unless otherwise provided for by the respective act.

Article 72

Applicability of provisions of the General Part

The provisions of the General Part of this Code shall also apply to other criminal offences provided for as such by special laws.

SPECIAL PART

CHAPTER I

CRIMES AGAINST HUMANITY

Article 73

Genocide

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

The execution of a premeditated plan aiming at the total or partial destruction of a national, ethnic, racial or religious group directed towards its members, and combined with the following offences, such as: intentionally killing group's members, serious physical and psychological harm, placement in difficult living conditions which cause physical destruction, applying birth preventing measures, as well as the obligatory transfer of children from one group to another, is sentenced with no less than ten years, or with life imprisonment.

Article 74

Crimes against humanity

(Amended by Law no. 8733, dated 24.01.2001, Article 8;

amended by Law no. 144, dated 02.05.2013, Article 13)

Murder, enforced disappearance, extermination, enslaving, internment and expulsion and any other kind of human torture or violence committed according to a concrete premeditated plan or systematically, against a group of the civil population for political, ideological, racial, ethnical and religious motives, shall be punishable to not less than fifteen years of or life imprisonment.

Article 74/a

Computer dissemination of materials favouring genocide or crimes against humanity

(Added by Law no. 10 023, dated 27.11.2008, Article 11)

Offering in public or deliberately disseminating to the public through computer systems materials that deny, minimize significantly, approve of or justify acts that are genocide or crimes against humanity are punishable to three to six years imprisonment.

Article 75

War crimes

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

Offences committed by different persons at war time, such as murder, maltreatment or deportation for slave labour, as well as any other inhuman exploitation to the detriment of civil population or in occupied territory, the killing or maltreatment of war prisoners, the killing of hostages, destruction of private or public property, destruction of towns, commons or villages, which are not ordained from military necessity, are sentenced with no less than fifteen years, or life imprisonment.

CHAPTER II

CRIMINAL OFFENCES AGAINST THE PERSON

CRIMES AGAINST LIFE

SECTION I

CRIMES AGAINST LIFE COMMITTED INTENTIONALLY

Article 76

Murder with intent

Murder committed with intent shall be punishable to a term of ten to twenty years imprisonment.

Article 77

Murder with intent connected to another crime

(Amended by Law no. 8733, dated 24.01.2001, Article 9)

The offence of murder, preceding, concurring or ensuring another crime, shall be punishable by imprisonment for not less than twenty years.

Article 78

Premeditated murder

*(Amended by Law no. 8733, dated 24.01.2001, Article 10;
addendum to paragraph 2 by Law no. 9686, dated 26.02.2007, Article 7;
paragraph 2 amended by Law no. 144, dated 02.05.2013, Article 14)*

Pre-meditated murder is punished to imprisonment from fifteen to twenty-five years.

Murder committed for interests or revenge shall be punished to not less than twenty years or life imprisonment.

Article 78/a

Murder due to blood feud

(Added by Law no. 144, dated 02.05.2013, Article 15)

Murder committed due blood feud shall be punishable to not less than 30 years or life imprisonment.

Article 79

Murder committed under other qualifying circumstances

*(Amended by Law no. 8733, dated 24.01.2001, Article 11;
letter 'c' amended by Law no. 9275, dated 16.09.2004, Article 9;
Articles 79/a, 79/b, 79/c added by Law no. 144, dated 02.05.2013, Article 16;
letter 'c' repealed by Law no. 144, dated 02.05.2013, Article 48)*

Murder committed:

- a) against minors;
- b) against physical or mental disabled persons, seriously ill or pregnant persons, as long as the situation of the victim is evident or known;
- c) Repealed
- (ç against the denouncer, witnesses, impaired persons or other judicial parties;

d) more than once;
dh) against two or more persons;
e) in such a manner that causes particular suffering to the victim;
(ë in a dangerous way regarding the life of many persons,
shall be punished to not less than twenty years or life imprisonment.

Article 79/a

Murder of public officials

(Added by Law no. 144/2013)

Murder of a member of parliament, judge, prosecutor, lawyer, military, or other public officials in line of their duty or because of their duty, when the capacities of the victim are evident or known, shall be punished to not less than 30 years or life imprisonment.

Article 79/b

Murder of the state police officers

(Added by Law no. 144/2013)

Murder of state police officers in line of duty or because of duty, when the capacities of the victim are evident or known, shall be punished to not less than 30 years or life imprisonment.

Article 79/c

Murder because of family relations

(Added by Law no. 144/2013)

Murder of the person who is the spouse, former spouse, cohabitant, or former cohabitant, close kin or close kin of the spouse of the offender, shall be punished to less than twenty years or life imprisonment.

Article 80

Providing for the material conditions and means for committing the murder shall be punished up to five years imprisonment.

Article 81

Infanticide

(Wording amended by Law no. 144, dated 02.05.2013, Article 17)

The infanticide committed voluntarily by the mother immediately after birth shall be punished up to five years imprisonment.

Article 82

Homicide committed in profound psychiatric distress

Murder committed in a sudden state of profound psychiatric distress caused by violence or serious insult of the victim shall be sentenced up to eight years imprisonment.

Article 83

Homicide committed in excess of the necessary self-defence limits

Murder committed under the circumstances of exceeding self-defence limits shall be sentenced up to seven years imprisonment.

Article 83/a

Serious threat to retaliation or blood revenge

(Added by Law no. 8733, dated 24.01.2001, Article 12)

amended by Law no. 9686, dated 26.02.2007, Article 8; the part foreseeing the punishment to a fine, as the main punishment, along with the imprisonment punishment, repealed by Law no. 144, dated 02.05.2013, Article 48)

Serious threat to retaliation or blood revenge, against a person for him to be locked up at home, shall be punished up to three years imprisonment.

Article 83/b

Incitement to blood feud

(Amended by Law no. 9686, dated 26.02.2007, Article 9; the part foreseeing the punishment to a fine, as the main punishment, along with the imprisonment punishment, repealed by Law no. 144, dated 02.05.2013, Article 48)

Inciting other persons to retaliation or blood revenge, when it does not constitute other criminal offence, shall be punished up to three years imprisonment.

Article 84

Threat

Serious threat to murder or serious injury to someone shall constitute criminal contravention and shall be punished up to one year imprisonment.

Article 84/a

Threat due to racist and xenophobic motives through the computer system

(Added by Law no. 10 023, dated 27.11.2008, Article 12)

Serious threat to murder or serious injury to someone, through computer systems, because of their ethnicity, nationality, race or religion affiliation shall be punished to a fine or up to three years imprisonment.

SECTION II

CRIMES AGAINST LIFE CAUSED BY NEGLIGENCE

Article 85
Manslaughter

Homicide because of negligence shall be punished to a fine or up to five years imprisonment.

SECTION III
CRIMINAL OFFENCES COMMITTED INTENTIONALLY AGAINST HEALTH

Article 86
Torture

*(Amended by Law no. 9686, dated 26.02.2007, Article 10;
amended by Law no. 23/2012, dated 01.03.2012, Article 56)*

Intentional commission of actions, as a result of which a person was subjected to severe physical or mental suffering, by a person who exercises a public function or incited or approved by him, openly or in silence, with the purpose of:

- a) obtaining from him or from another person information or confessions;
- b) punishing him for an action committed or suspected to have been committed by him or another person;
- c) intimidating or pressuring him or another person;
- (ç any other purpose based in any form of discrimination;
- d) any other inhuman or degrading action;

shall be punished from four up to ten years imprisonment.

Article 87
Torture resulting into serious consequences

Torture, like any other inhuman treatment, as long as it has inflicted handicap, mutilation or any permanent harm to the health of a person, or his death, shall be punished from ten to twenty years of imprisonment.

Article 88
Serious intentional injury

(Paragraph 2 amended by Law no. 144, dated 02.05.2013, Article 18)

The intentional injury inflicting handicap, mutilation or any other permanent detriment to the health, termination of pregnancy, or which has been dangerous to the life at the moment of its inducement, shall be punished from three to ten years imprisonment.

The same offence, when committed against several persons, against the person who is the spouse, former spouse, cohabitant, or former cohabitant, close kin or close in-law relationship with the offender, or when it results in death, shall be punished from five to fifteen years of imprisonment.

Article 88/a

Serious wounding under the conditions of strong psychic distress

(Added by Law no. 8733, dated 24.01.2001, Article 13)

Serious wounding, committed under the conditions of momentary strong psychic distress, caused by the victim's violence or serious insult, shall be punished up to five years imprisonment.

Article 88/b

Serious wounding in excess of the limits of necessary defence

(Added by Law no. 8733, dated 24.01.2001, Article 13)

Serious wounding, surpassing the limits of necessary defence, shall be punished up to three years imprisonment.

Article 89

Non-serious intentional injury

Intentional injury, inflicting temporary work incapacity of longer than nine days, constitutes criminal contravention and shall be punished to a fine or up to two years imprisonment.

Article 89/a

Illegal selling of organs

*(Added by Law no. 8204, dated 10.04.1997, Article 1;
amended by the Law no. 36/2017)*

Selling of transplants as well as any other activity related to the illegal removal and implantation of organs shall be punished by three to seven years of imprisonment.

This offence committed by the person who abuses of his/her position in relation to a child or another vulnerable person, shall be punished by seven to ten years of imprisonment.

This offence, when committed more than once or in collaboration shall be punished by ten to fifteen years of imprisonment.

Where the above-mentioned offence causes the death of the victim, or is committed by a structured criminal group or criminal organization, it shall be punished by fifteen to twenty-five years of imprisonment.

Article 90

Other intentional harm

Battering, as well as any other violent offence, shall constitute criminal contravention and shall be punished to a fine.

The same offence, when causing temporary work incapacity of up to nine days, constitutes criminal contravention and it shall be punished to a fine or up to six months imprisonment.

SECTION IV

CRIMINAL OFFENCES AGAINST HEALTH COMMITTED DUE TO NEGLIGENCE

Article 91

Serious injury due to negligence

Serious injury due to negligence constitutes criminal contravention and shall be punished to a fine or up to one year imprisonment.

Article 92

Non-serious injury due to negligence

Non-serious injury due to negligence constitutes criminal contravention and shall be punished to a fine.

SECTION V

CRIMINAL OFFENCES ENDANGERING THE LIFE AND HEALTH BECAUSE OF INTERRUPTION OF PREGNANCY OR REFRAINING FROM PROVIDING HELP

Article 93

Interruption of pregnancy without the woman's consent

Interruption of pregnancy without the woman's consent, except those cases when interruption is imposed because of a justified health-related cause, shall be punished to a fine or up to five years imprisonment.

Article 94

Interruption of pregnancy conducted in unauthorized places by unlicensed persons

Interruption of pregnancy which is not conducted in public hospitals or specifically licensed private clinics, or by a person who is not doctor, or after the time allowed for the interruption except in the case when this is imposed because of a justified health-related cause, constitutes criminal contravention and shall be punished to a fine or up to two years imprisonment.

If the offence has caused danger to the life or resulted to death, it shall be punished to a fine or to up to five years imprisonment.

Article 95

Providing the utensils for interruption of pregnancy

Providing the utensils which serve for interruption of pregnancy of a woman in order to have either herself or with the help of somebody else interrupt the pregnancy, constitutes criminal contravention and shall be punished to a fine or to up to one year imprisonment.

Article 96

Reckless medication

(Paragraph 2 added by Law no. 8733, dated 24.01.2001, Article 14)

Reckless medication of patients from the doctor or other medical staff, as well as non-implementation of the therapy or the orders of the doctor from the medical staff or pharmacist, when it has caused serious harm to the health, has endangered the life of the person or has caused his death, shall be punished to a fine or up to five years imprisonment.

This very offence, when it has caused the patients' infection by HIV/AIDS, shall be punished from three to seven years imprisonment.

Article 97

Refraining from providing help

Refraining from providing help without reasonable cause by the person who either legally or because of his capacity was obliged to provide, is considered criminal contravention and shall be punished a fine or to up to two years imprisonment when, as its consequence resulted into serious harm to the health, endangerment to life or death.

Article 98

Refraining from providing help by the captain of a ship

Refraining from providing help by the captain of a ship to the people who are drowning in the sea or in other waters, when this help could have been provided without causing serious danger to the ship, crew and passengers, shall be punished to a fine or up to four years imprisonment.

Article 99

Causing suicide

(Wording amended by Law no. 144/2013, Article 19)

Causing suicide or a suicide attempt to a person because of the systematic maltreatment or other systematic misbehaviours which seriously affect the dignity, committed by another person being the superior, or by the person having family or cohabitation relation shall be punished three up to seven years imprisonment

SECTION VI
SEXUAL CRIMES

Article 100

Sexual or homosexual relations with minors

(Amended by Law no. 8733, dated 24.01.2001, Article 15;

words in paragraph 2 and 3 amended by Law no. 144, dated 02.05.2013, Article 20)

Having sexual or homosexual relations with minor children, or with a female minor, who is not sexually matured, shall be punished from seven to fifteen years imprisonment.

When the sexual or homosexual intercourse was committed in complicity, more than once or by violence, or when the child victim had serious health consequences shall be punished to not less than twenty-five years of imprisonment.

When that offence brought as a consequence the minor's death or suicide, it shall be punished to not less than thirty years or life imprisonment.

Article 101

Violent sexual or homosexual intercourse with a minor who is fourteen to eighteen years old

(Amended by Law no. 8733, dated 24.01.2001, Article 16)

Having sexual or homosexual relations by violence with children that are fourteen to eighteen years old, who is sexually matured, shall be punished from five to fifteen years imprisonment.

When the sexual or homosexual intercourse by violence was done in complicity, more than once, or when the child victim had serious health consequences; this shall be punished from ten to twenty years imprisonment.

When that offence brought as a consequence the minor's death or suicide, this is sentenced to not less than twenty years imprisonment

Article 102

Sexual assault by use of force with mature/adult women

*(Paragraph 1, 2 amended by Law no. 8733, dated 24.01.2001 and Article 17;
paragraph 1 amended by Law no. 144, dated 02.05.2013, Article 21)*

Engagement in sexual activity by use of force with adult females or between spouses or cohabitants, without the consent of either of them, shall be punishable by three to ten years imprisonment.

When the engagement in sexual activity is done by use of force and with accomplices, more than once, or when the victim had serious health consequences; this is punishable by imprisonment from five to fifteen years.

When the act has caused the death or suicide of the victim, it is punished with imprisonment for a term of from ten to twenty years.

Article 102/a

Homosexual activity by use of force with adult males

*(Added by Law no. 8733, dated 24.01.2001, Article 18;
amended by law 23/2012, dated 01.03.2012, Article 10)*

Engagement in homosexual activity by use of force with adult males is punished by imprisonment from three to seven years.

When the engagement in homosexual activity is done by use of force in complicity, or more than once, or when the victim had serious health consequences; it is punishable by imprisonment from five to ten years. When that act resulted in the death or suicide of the victim, it is punished by imprisonment from ten to twenty years.

Article 103

Sexual or homosexual activity with persons who are incapable of resistance

(Amended by Law no. 8733, dated 24.01.2001, Article 19)

Engagement in sexual or homosexual activity by exploiting the physical or mental disability of the aggrieved person, or because of a profound consciousness disorder, is punishable by imprisonment from five to ten years.

When the engagement in sexual or homosexual intercourse is done in complicity, or more than once, or when the victim had serious health consequences; this is sentenced by imprisonment from seven to fifteen years.

When that act resulted in the death or suicide of the victim, this is punishable by imprisonment from ten to twenty years.

Article 104

Sexual or homosexual assault by use of weapon

(Amended by Law no. 8733, dated 24.01.2001, Article 20)

Sexual or homosexual intercourse by intimidating the person with the immediate/ instant use of a weapon is punishable by imprisonment from five to fifteen years.

Article 105

Sexual or homosexual activity by abuse of official position

(Amended by Law no. 8733, dated 24.01.2001, Article 21)

Engagement in sexual or homosexual activity by abusing the relations of dependency and job position, is punishable by imprisonment up to three years.

Article 106

Sexual or homosexual activity with consanguine persons and persons in the position of trust

(Amended by Law no. 8733, dated 24.01.2001, Article 22)

Engagement in the act of sexual or homosexual intercourse between parents and children, brother and sister, between brothers, sisters, between consanguine relatives in an ascending line or with persons in the position of trust or adoption, is sentenced by imprisonment up to seven years

Article 107

Sexual or homosexual activity in public places

(Added by Law no. 8733, dated 24.01.2001, Article 23;

Article 107/a added by Law no. 144, dated 02.05.2013, Article 22)

Engagement in the act of sexual or homosexual intercourse in public places or in places exposed to the sight of people constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 107/a

Sexual violence

Exercising sexual violence by performing actions of a sexual nature on the body of another person using objects shall constitute a criminal offence and is punishable by imprisonment of from three to seven years.

When this action is committed with accomplices, against several persons, more than once or against children fourteen to eighteen years of age, it is punishable by imprisonment of from five to fifteen years.

When this action is committed against a child under fourteen years of age or a child who is not sexually matured, regardless of whether it is committed by use of violence or not, it shall be punishable with no less than twenty years of imprisonment.

When this action as a consequence has brought the death or suicide of the victim, it shall be punishable by not less than twenty-five years of imprisonment.

Article 108

Immoral acts

(Amended by Law no. 8733, dated 24.01.2001, Article 24;

amended by Law no. 23/2012, dated 01.03.2012, Article 11;

paragraphs added by Law no. 144, dated 02.05.2013, Article 23)

Commitment of immoral acts with minors under the age of fourteen are punishable by imprisonment of from three to seven years.

The same offence, when committed against a minor who has not reached the age of fourteen, with whom the offender has family relations, shall be punishable by five to ten years of imprisonment."

Intentional involvement as a witness, in actions of a sexual nature, of a minor who has not reached the age of fourteen, or a minor who is not sexually mature yet, shall constitute a criminal offence and is punishable with one to five years of imprisonment.

The proposal made by an adult person, by any means or form, to meet with a minor who has not reached the age of fourteen or a minor who is not sexually mature yet, with the aim of committing any of the criminal offences foreseen in this Section or in Section VIII, Chapter II of this Code, shall constitute a criminal offence and is punishable with one to five years of imprisonment.

Article 108/a
Sexual harassment

(Article 108/a is added by Law no. 144, dated 02.05.2013, Article 24)

Commitment of actions of a sexual nature which infringe the dignity of a person, by any means or form, by creating a threatening, hostile, degrading, humiliating or offensive environment, shall constitute a criminal offence and is punishable with one to five years of imprisonment.

When this offence is committed in complicity, against several persons, more than once, or against children, it shall be punishable by three to seven years of imprisonment."

SECTION VII
CRIMINAL ACTS AGAINST PERSON'S FREEDOM

Article 109
Kidnapping or holding a person hostage

(Amended by Law no. 8733, dated 24.01.2001, Article 25;

added by Law no. 9275, dated 16.09.2004, Article 10;

*The part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Kidnapping or holding a person hostage in order to gain wealth or any other benefit, to facilitate the preparation of conditions for committing a crime, helping in hiding or departure of perpetrators or collaborators of a crime, avoiding the punishment, forcing the realization of certain requests or circumstances, for political or other reasons, is punishable by imprisonment of from ten to twenty years.

This very act, committed against a minor under the age of fourteen, is punishable by imprisonment of not less than fifteen years.

Kidnapping or holding hostage a person or a minor under the age of fourteen, preceded or accompanied with physical or psychic tortures, when it is committed against several persons or more than once, is punishable by imprisonment of not less than twenty years, and when it resulted in death, is punishable by life imprisonment.

Article 109/a
Kidnapping or holding hostage a person in lenitive circumstances

(Added by Law no. 8733, dated 24.01.2001, Article 26)

When the person being kidnapped or held hostage is voluntarily allowed to go before the expiry of seven days from the day he was kidnapped or held hostage, without achieving the outcome of the crime and,

when against the person is not wielded any torture or there are no health damages, is sentenced by imprisonment from three to five years.

Article 109/b

Forcing through blackmail or violence to give out the property

(Added by Law no. 9275, dated 16.09.2004, Article 11;

The part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Causing a person, through blackmail or violence, to do or not do a certain action, in order to unjustly gain wealth or any other benefit, for themselves or for third persons, is sentenced with imprisonment from two to eight years.

The same act, when committed by using or by threatening to use the gun, torture, inhuman and humiliating acts which have caused harm to the health, are sentenced by imprisonment of from seven to fifteen years.

When the crime as a consequence has caused the death of the person, it is sentenced by life imprisonment.

Article 109/c

Enforced disappearance

(Added by Law no. 144, dated 02.05.2013, Article 25)

Enforced disappearance through arrest, detention, abduction or any other form of deprivation of liberty of the person by public officials or persons acting upon their authorisation, support or approval, followed by the non-acceptance of the deprivation of liberty or by concealment of the fate or whereabouts of the person, by denying the assistance and necessary protection in compliance with the law, shall constitute criminal offence and it shall be punishable by imprisonment from seven to fifteen years.

The superior who:

- a) Is aware that the dependents under his authority and effective control are or are about to commit the enforced disappearance, or who does not take into account data and information which clearly point to this fact;
- b) Exercises his effective responsibility and control over the activities to which the enforced disappearance is linked with; or
- c) Does not take all the necessary and reasonable measures under his/her competence to prevent or punish the person who issues the authorisation, support, and approval of the enforced disappearance or to send the case to the competent bodies of criminal prosecution; shall be punished by three to seven years of imprisonment.

When such offence is committed against children, pregnant women, or persons who because of different reasons cannot protect themselves, or when such offence causes serious physical suffering, it is committed

in complicity, against several persons or more than once, it shall be punishable by imprisonment from ten to twenty years.

When such offence causes the death of a person it shall be punishable by imprisonment of not less than thirty years or with life imprisonment.

Illegal taking of children who are subjects of enforced disappearance or of children whose father, mother or legal representative is the subject of enforced disappearance, or of children born during the period of enforced disappearance, shall constitute criminal offence and shall be punishable by imprisonment of from five to ten years.

Article 110

Unlawful detention

(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 27)

Unlawful detention of a person constitutes criminal contravention and is punishable by fine or imprisonment of up to one year.

When this act is accompanied by severe physical suffering, committed in complicity against several persons or more than once, is punished by imprisonment of from three to seven years.

Article 110/a

Trafficking in adult persons

(Added by Law no. 8733, dated 24.01.2001, Article 28;

amended by Law no. 9188, dated 12.02.2004, Article 1;

title, the wording in paragraph 1 and 3 amended and paragraph 2 added by Law no. 144, dated 02.05.2013, Article 26;

The part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

The recruitment, transport, transfer, hiding or reception of persons through threat or the use of force or other forms of compulsion, kidnapping, fraud, abuse of office or taking advantage of social, physical or psychological condition or the giving or receipt of payments or benefits in order to get the consent of a person who controls another person, with the purpose of exploitation of prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or forms similar to slavery, putting in use or transplanting organs, as well as other forms of exploitation, both within and beyond the territory of the Republic of Albania, shall be punishable by imprisonment from eight to fifteen years.

When such offence is committed against an adult female person, it shall be punishable by imprisonment of from ten to fifteen years.

The organization, management and financing of the trafficking of persons is punished with imprisonment of from seven to fifteen years.

When such offence is committed in collaboration, more than once, accompanied with maltreatment and forcing the victim to commit various actions using physical or psychological violence, causing serious

consequences to the health or threatening his life, is punishable by imprisonment of no less than fifteen years.

When the offence as a consequence has caused the death of the victim, it is punished by imprisonment of no less than twenty years or with life imprisonment.

When the criminal offence is committed through the utilization of a state function or public service, the punishment of imprisonment is increased by ($\frac{1}{4}$) one fourth of the punishment given.

Article 110/b

Benefit from or use of services provided by trafficked persons

(Added by Law no. 144, dated 02.05.2013)

The benefit from or use of services provided by trafficked persons, or services which are subject to exploitation by trafficking, being aware that the person is trafficked, shall be punishable by imprisonment of from two to five years.

When this offence is committed against a minor, it shall be punishable by imprisonment of from three to seven years.

Article 110/c

Actions facilitating trafficking

(Added by Law no. 144, dated 02.05.2013)

Forgery, possession, or provision of identity cards, passports, visas or other travel documents, or their retaining, removal, hiding, damaging or destruction which have served for the trafficking of adult persons, but having no knowledge of this fact, shall constitute criminal offence and shall be punishable by two to five years of imprisonment.

The same offence, when committed in complicity, more than once, or is committed by the person who has the task to issue the ID card, passport, visa, or the travel document, or has enabled trafficking of children, shall be punishable by four to eight years of imprisonment.

The same offence, when it results in serious consequences, shall be punishable by not less than five years of imprisonment.

Article 111

Hijacking of planes, ships and other means

Hijacking of planes, ships and other means of transportation that carry people through violence or by threatening with arms or other means is punishable by ten to twenty years of imprisonment.

Article 112

Breaking and entering into someone's house

Breaking and entering into someone's house without his consent constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

When the act is committed by force or by threat of gunpoint constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

SECTION VIII CRIMINAL ACTS AGAINST MORALITY AND DIGNITY

Article 113 **Prostitution**

(Added by Law no. 23/2012, dated 01.03.2012, Article 12)

Exercise of prostitution is punishable by a fine or up to three years of imprisonment.

Giving a payment for personal benefit of prostitution shall be punished by a fine or imprisonment of up to three years.

Article 114 **Exploitation of prostitution**

*(Title amended and paragraph 2 repealed by Law no. 8279, dated 15.01.1998, Article 2;
amended by Law no. 144, dated 02.05.2013, Article 28)*

Encouragement, mediation, or receipt of compensation for exercising prostitution shall be punishable by two to five years of imprisonment.

When the same offence is committed with minors, against several persons, with persons who are close kin, close kin of the spouse, who have custodial relationships or availing themselves of their official relationship, or when committed in complicity or more than once, or by state and public officials, shall be punishable by seven to fifteen years of imprisonment.

Article 114/a **Exploitation of prostitution with aggravated circumstances**

*(Added by Law no. 8279, dated 15.01.1998, Article 2;
paragraph 6 and the last paragraph amended by Law no. 8733, dated 24.01.2001, Article 29;
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Article 114/b **Trafficking of Women**

*(Amended by Law no. 9188, dated 12.02.2004, Article 2;
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Article 115

Use of premises for prostitution

Managing, utilizing, financing, renting the premises for purposes of prostitution, is punishable by a fine or up to ten years of imprisonment.

Article 116

Homosexuality

(Repealed by Law no. 8733 dated 24.01.2001, Article 31)

Article 117

Pornography

(Paragraph 2 added by Law no. 9859, dated 21.01.2008, Article 1;

amended by Law no. 144, dated 02.05.2013, Article 29)

Production, distribution, advertisement, export, import, sale, and publication of pornographic materials in environments with children, by any means or form, shall constitute criminal contravention and shall be punishable by imprisonment of up to two years.

Production, import, offering, making available, distribution, broadcasting, use, or possession of child pornography, as well as the conscious creation of access in it, by any means or form, shall be punishable by three to ten years of imprisonment.

Recruitment, exploitation, compulsion, or the persuasion of a child to participate in pornographic shows, as well as the participation in such shows which involve the participation of children, shall be punishable by five to ten years of imprisonment.

Article 118

Desecration of graves

Desecration of cemeteries, graves, exhumations, as well as theft of items found there in, as well as every other act of disrespect towards the dead, is punishable by a fine or up to five years of imprisonment.

Article 119

Insulting

(Paragraph II is amended by Law no. 8733, dated 24.01.2001, Article 32;

amended by Law no. 23/2012, dated 01.03.2012, Article 13)

Intentional insult of a person shall constitute a criminal misdemeanour, and is punished by a fine of fifty thousand to one million ALL.

The same act, when committed in public, to the detriment of several persons, or more than once, constitutes a criminal misdemeanour and shall be punished by a fine of fifty thousand to three million ALL.

Article 119/a

Dissemination of racist or xenophobic materials through the computer system

(Added by Law no. 10 023, dated 27.11.2008, Article 13)

Offering in public or deliberately disseminating to the public through computer systems materials with racist or xenophobic content constitutes a criminal misdemeanour and is punishable by a fine or imprisonment of up to two years.

Article 119/b

Insulting due to racist or xenophobic motives through the computer system

(Added by Law no. 10 023, dated 27.11.2008, Article 13)

Intentional insulting of a person in public, through a computer system, because of ethnicity, nationality, race or religion constitutes a criminal misdemeanour and is punishable by fine or imprisonment of up to two years.

Article 120

Libel

*(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 33;
amended by Law no. 23/2012, dated 01.03.2012, Article 14)*

Intentional dissemination of statements, and any other pieces of information, with the knowledge that they are false, affect a person's honour and dignity, shall constitute criminal misdemeanour, and is punished by a fine of fifty thousand to one million five hundred thousand ALL.

Where that act is committed in public, to the detriment of several persons, or more than once, it shall be punished by a fine of fifty thousand to three million ALL.

Article 121

Intruding into someone's privacy

Installing appliances which serve for hearing or recording words or images, the hearing, recording or airing words, fixing, taping or transmitting images, as well as their preserving for publication or the publication of the data which exposes an aspect of the private life of the person without his consent, constitutes criminal misdemeanour and is punishable by a fine or up to two years of imprisonment.

Article 121/a

Stalking

(Added by Law no. 23/2012, dated 01.03.2012, Article 15)

Intimidation or harassment of a person through repetitive actions, with the intent to cause a state of constant and severe anxiety to or fear for personal safety, of a relative or person with whom that person has a spiritual connection, or to force him or her to change his or her way of living, shall be punished by imprisonment of six months to four years.

Where that offence is committed by an ex-spouse, former cohabitant, or person who had a spiritual connection with the injured party, the punishment shall increase by (1/3) one third of the sentence imposed.

Where that offence is committed against a minor, pregnant woman or person unable to defend himself or herself, and where it has been committed by a person in disguise or accompanied with the carrying or use of weapons, the punishment shall increase by one-half of the sentence imposed.

Article 122

Spreading personal secrets

Spreading a secret that belongs to someone's private life, by the person who obtains that [secret] because of his duty or profession, when he is compelled not to spread it without prior authorization, constitutes criminal misdemeanour and is punishable by a fine or up to one year of imprisonment.

The same act committed with the intent of embezzlement or of damaging another person, constitutes criminal misdemeanour and is punishable by a fine or up to two years of imprisonment.

Article 123

Obstruction or violation of the privacy of correspondence

Intentional commitment of acts such as destruction, non-delivery, opening and reading of letters or any other correspondence, as well as the interruption, placement under control or tapping of telephones, telegraphs, or any other means of communication, constitutes criminal misdemeanour and is punishable by a fine or up to two years of imprisonment.

SECTION IX

CRIMINAL ACTS AGAINST CHILDREN, MARRIAGE AND FAMILY

Article 124

Abandonment of minor children

(Paragraph 1 amended by Law no. 8733, dated 24.01.2001, Article 34)

Abandonment of a child under the age of sixteen by a parent or by a person compelled to guard over him, is punishable by a fine or up to three years of imprisonment.

When from the offence is caused serious harm to the health or the death of the child, it is punishable by three up to ten years of imprisonment.

Article 124/a

Asking or reception of remuneration for adoption procedures

(Added by Law no. 9086, dated 19.06.2003, Article 5;

*The part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Asking, proposal, giving or acceptance of remunerations and other benefits, to commit or not to commit an action, related to the adoption process of a minor, are punished with imprisonment of up to seven years.

Article 124/b

Maltreatment of minors

(Added by Law no. 9859, dated 21.01.2008, Article 2;

amended by Law no. 23/2012, dated 01.03.2012, Article 16;

paragraph 2 amended by Law no. 144, dated 02.05.2013, Article 30)

Physical or psychological abuse of a minor by his or her parents, sister, brother, grandfather, grandmother, legal guardian or any person who is obliged to take care of the minor, shall be punished by imprisonment of three months to two years.

Coercing, exploitation, encouragement, or use of a minor to work, to obtain income, to beg, or to perform actions that damage his/her mental and/or physical development, or education, shall be punishable by two to five years of imprisonment.

Where from the offence is caused severe health damage or the death of the minor, it is punishable by ten to twenty years of imprisonment.

Article 125

Denial of support

Denial of necessary support for the living of children, parents or spouse, from the person who is obliged, through a court order, to provide the support, constitutes criminal misdemeanour and is punishable by a fine or up to one year of imprisonment.

Article 126

Failing to inform on the changing of domicile

Failure to inform within one month on the changing of domicile to the interested party or to the law-enforcement agency, by the person who, according to the court order, is compelled to provide the necessary living support means to children, parents or his/her spouse, or by the person who is taking care of children after divorce, constitutes criminal misdemeanour and is punishable by a fine or up to three months of imprisonment.

Article 127

Taking the child unlawfully

Taking the child unlawfully away from the person exercising parental authority or entrusted to raise and educate him, as well as not giving the child to the other parent in breach of the court order, constitutes criminal misdemeanour and is punishable by a fine or up to six months of imprisonment.

Article 128

Child swapping

Babies switched because of negligence committed by the staff at the place where they are raised, cured, or at the maternity hospital, constitutes criminal misdemeanour and is punishable by a fine or up to two years of imprisonment.

Article 128/a

Deliberately hiding or swapping a child

(Added by Law no. 8733, dated 24.01.2001, Article 35)

Deliberately hiding or swapping a baby with another one, committed by the medical personnel, is punishable by imprisonment from three to eight years.

Article 128/b

Trafficking of Minors

(Amended by Law no. 9188, dated 12.02.2004, Article 3;

added by Law no. 9859, dated 21.01.2008, Article 3;

wording in paragraph 1 amended by Law no. 144, dated 02.05.2013, Article 31;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Recruitment, sale, transport, transfer, hiding or reception of minors with the purpose of exploitation for prostitution or other forms of sexual exploitation, forced labour of service, slavery or forms similar to slavery, putting in use or transplanting organs, as well as other forms of exploitation, shall be punishable by ten to twenty years of imprisonment.

Organization, management and financing of the trafficking of minors is punished with imprisonment of from ten to twenty years.

When this crime is committed in collaboration or more than once, or is accompanied with the maltreatment and forcing of the victim through physical or psychological violence to commit various actions, or bring serious consequences to health, it is punished with imprisonment of no less than fifteen years.

When the offence as a consequence has brought about the death of the victim it is punished with imprisonment of no less than twenty years or with life imprisonment.

When the criminal offence is committed through the utilization of a state function or public service, the punishment of imprisonment is increased by one fourth of the punishment given.

Article 129

Inducing minors to criminality

Inducing or encouraging minors under the age of fourteen to criminality is sentenced up to five years of imprisonment.

Article 130

Coercion or obstruction of cohabitating, concluding or dissolving a marriage

(Amended by Law no. 144, dated 02.05.2013, Article 32)

Coercing or obstructing the initiation or continuation of cohabitation, or coercion to enter into or dissolve the marriage, shall constitute a criminal misdemeanour and is punishable with a fine or imprisonment up to three months.

Intentional request to an adult or child to leave the territory of the Republic of Albania for purposes of obliging him to enter into marriage, shall constitute a criminal misdemeanour and is punishable with a fine or imprisonment up to three months

Article 130/a

Domestic Violence

(Added by Law no. 23/2012, dated 01.03.2012, Article 17;

last paragraph amended by Law no. 144, dated 02.05.2013, Article 33)

Battering and any other act of violence against a person who is a spouse, former spouse, cohabitant or former cohabitant, close relative or close relative in-law to the perpetrator of the criminal offence, resulting in violation of his or her physical, psycho-social and economic integrity, shall be punished by imprisonment of up to two years.

A serious death threat or serious injury, against a person who is a spouse, former spouse, cohabitant or former cohabitant, close relative or close relative in-law to the perpetrator of the criminal offence, resulting in violation of his or her physical, psycho-social and economic integrity, shall be punished by imprisonment of up to three years.

Intentional injury committed against a person who is a spouse, former spouse, cohabitant or former cohabitant, close relative or close relative in-law to the perpetrator of the criminal offence, resulting in a temporary disability for work for more than nine days, shall be punished by imprisonment of up to five years.

The same offences which are committed repeatedly or in the presence of minors, shall be punishable by one to five years of imprisonment.

SECTION X
CRIMINAL ACTS AGAINST FREEDOM OF RELIGION

Article 131

Obstructing the activities of religious organizations

Ban on the activity of religious organizations, or creating obstacles for the free exercise of their activities, is punishable by a fine or to up to three years of imprisonment.

Article 132

Destructing or damaging places of worship

Voluntarily destructing or damaging places of worship, when it has inflicted the partial or total loss of their values, is punishable by a fine or up to three years of imprisonment.

Article 133

Obstructing religious ceremonies

Ban or creating obstacles to persons for participating in religious ceremonies, as well as for freely expressing religious beliefs, constitutes criminal misdemeanour and is punishable by a fine or up to one year of imprisonment.

CHAPTER III
CRIMINAL ACTS RELATED TO PROPERTY OR IN THE ECONOMIC AREA

SECTION I
THEFT OF PROPERTY

Article 134

Theft

*(Amended by Law no. 9275, dated 16.09.2004, Article 12;
amended by Law no. 23/2012, dated 01.03.2012, Article 18)*

Property theft is punished by fine or imprisonment of up to three years.

The same offence, when committed in complicity or more than once, is punished with an imprisonment term of six months to five years.

The same offence, when it has brought about serious consequences, is punished with imprisonment of four to ten years.

Article 135

Theft through abuse of office

*(Amended by Law no. 23/2012, dated 01.03.2012, Article 19;
the part that provides Fine as main punishment in addition to imprisonment*

repealed by Law no. 144, dated 02.05.2013, Article 48)

Theft of property, committed by the person whose duty is to protect and administer it, or through abuse of office, is sentenced up to ten years of imprisonment.

Article 136

Bank robbery and robbery of savings bank branches

(Paragraph 2 added by Law no. 8733, dated 24.01.2001, Article 37)

Bank and savings bank robbery is punishable by imprisonment of from five up to fifteen years.

This very act, when committed in complicity, more than once, or when it brought about serious consequences, is sentenced by imprisonment from ten to twenty years.

Article 137

Theft of electrical power or phone impulses

(Paragraph 1 added by Law no. 8733, dated 24.01.2001, Article 38;

Paragraph 2 amended by Law no. 10 023, dated 27.11.2008, Article 14;

Amended by Law no. 98, dated 31.07.2014, Article 2)

Theft of the electrical power or phone impulses, damage caused to the meter as well as any other illegal and unauthorised intervention with the measuring system or with the electoral or phone system, performed to the effect of an illegal benefit, shall consist a criminal offence and it shall be punished to an imprisonment term of up to three years.

This criminal offence shall, upon being committed in complicity or more than once or by the non-household users of the electoral power or the phone service system, be sentenced to imprisonment from one to five years.

Article 137/a

Theft [unauthorised use] of electronic communications network

(Added by Law no. 144, dated 02.05.2013, Article 34)

Theft of the electronic communications network shall be punishable by imprisonment of up to three years.

The same offence, when committed in complicity, more than once, or when it results in serious consequences, shall be punishable by three to seven years of imprisonment.

Article 138

Theft of works of art and culture

Stealing works of art and culture is punishable by a fine or up to five years of imprisonment.

Stealing works of art and culture that have national importance is punishable by five to ten years of imprisonment.

Article 138/a

Trafficking of works of art and culture

(Added by Law no. 8733, dated 24.01.2001, Article 39)

The illegal import, export, transit, and trade of art and culture works, in order to have material or any other benefits, is sentenced by imprisonment from three to ten years.

This very act, when committed in complicity, or more than once, or when it brings about serious consequences, is sentenced by imprisonment from five to fifteen years.

Article 139

Robbery

Stealing property through the use of force is punishable by five to fifteen years of imprisonment.

Article 140

Armed Robbery

*(Amended by Law no. 8733, dated 24.01.2001, Article 40;
amended by Law no. 9686, dated 26.02.2007, Article 11)*

Theft of property, accompanied by bearing military weapons or ammunitions, or by their use, is punished by imprisonment from ten to twenty years.

Article 141

Theft resulting in death

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

Theft of property, when accompanied with violations resulting in the death of the person, is punishable by fifteen to twenty years of imprisonment or to life imprisonment.

Article 141/a

Trafficking of motor vehicles

(Added by Law no. 8733, dated 24.01.2001, Article 41)

Illegal import, export, transit, and trade of stolen motor vehicles, in order to have material or other benefits, is punishable by imprisonment of from three to seven years.

This very act, when committed in complicity, or more than once, or when it brings about serious consequences, is punishable by imprisonment from five to fifteen years.

Article 142

Providing equipment for theft

Providing the conditions and material equipment for theft of property is punishable by a fine or up to three years of imprisonment.

SECTION II

FRAUD

Article 143

Fraud

*(Paragraph 2 is added by Law no. 8733, dated 24.01.2001, Article 42;
amended by Law no. 36/2017)*

Appropriation of private or public property for oneself or other persons, through submission of false facts or concealing of true facts, lie or abuse of trust, shall constitute the criminal offence of fraud and it shall be punished by up to five years of imprisonment.

This offence, when committed more than once or in collaboration, shall be punished by two to six years of imprisonment.

This offence, when causing serious consequences, shall be punished by five to ten years of imprisonment.

Article 143/a

Fraudulent and pyramid schemes

(Added by Law no. 8733, dated 24.01.2001, Article 43)

Organizing and putting in function fraudulent and pyramid schemes by borrowing money, in order to have material benefits, is punished by imprisonment from three to ten years.

This very act, when it brings about serious consequences, is sentenced by imprisonment from ten to twenty years.

Article 143/a/1

Manipulating the Market

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

Intentional inaccurate presentation of the value of a commodity, service or currency, with the intent to disrupt free and fair functioning of the market, shall be punishable by a fine or imprisonment of up to four years.

Article 143/a/2

Unauthorised Use and Divulgence of Privileged Information

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

A person who, in an authorised or unauthorised manner, becomes aware of privileged information, which the public is unaware of, and which he or she may use with the intent to obtain a material benefit for himself or herself or a third party, or in the detriment of the latter, in one of the following ways:

- a) Buying or selling securities traded in the territory of the Republic of Albania, or traded by an issuer based in the Republic of Albania;
- b) Aware of the nature of privileged information, communicating it, without authorisation, to a third party;
- c) Aware of the privileged nature of information, advising a third party to buy or sell securities traded in the territory of the Republic of Albania, or traded by an issuer based in the Republic of Albania, shall be punished by imprisonment of six months to three years.

Where that offence has been committed in complicity, more than once, or has resulted in serious consequences, it shall be punished by imprisonment of up to five years.

Article 143/a/3

Manipulating Price and Disseminating False Information

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

Action or omission of a person, who:

- a) Signs a fictitious contract for the sale or replacement of securities;
- b) Places an order for the purchase or sale of securities, for which an order at the same price has already been placed, or uses these securities as a counter-order;
- c) Spreads information or other false facts on an increase or decrease of the price of securities, or creation of their fictitious trading, with the intent to obtain a benefit for himself or herself, or a third party, or to the detriment of the latter, shall be punished by imprisonment of six months to three years.

Where that offence has been committed in complicity, more than once, or has resulted in serious consequences, it shall be punished by imprisonment of two to five years.

Article 143/a/4

Submitting False Data and Disseminating Data without Authorisation

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

A person who, as member of an issuer's department or supervisory board, allows or facilitates disclosure of a prospectus, other than the one specified by law, or allows or facilitates the presentation of false data or false presentation of facts of material value in a prospectus, shall be punished by imprisonment of six months to three years.

When that offence has been committed in complicity, more than once, or has resulted in serious consequences, it shall be punished by imprisonment of up to five years.

Article 143/a/5

Unauthorised Registration of Securities in the Stock Exchange

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

A person who, as member of stock exchange directorate, allows registration in quotation one, quotation of public joint stock companies or other quotations of securities, which do not meet the requirements of the Law on Securities, shall be punished by imprisonment of six months to three years.

Where that offence has been committed in complicity, more than once, or has caused serious consequences, it shall be punished by imprisonment of two to five years.

Article 143/a/6

Concealment of Property

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

A person who intentionally fails to disclose data on his or her property to the Financial Supervisory Authority, under the Law on Securities, shall be punished by a fine or imprisonment of up to one year.

Where that offence has been committed in complicity, more than once, or has caused serious consequences, it shall be punished by imprisonment of two to five years.

Article 143/a/7

Illegal Trading of Securities

(Added by Law no. 23/2012, dated 01.03.2012, Article 20)

A person who engages in unauthorised brokerage for the purchase or sale of securities shall be punished by a fine or imprisonment of up to one year.

Where that offence has been committed in complicity, more than once, or has caused serious consequences, it shall be punished by imprisonment of two to five years."

Article 143/b

Computer fraud

(Added by Law no. 10 023, dated 27.11.2008, Article 15; The part that provides fine as main punishment in addition to imprisonment is repealed by Law no. 144, dated 02.05.2013, Article 48)

Entering, modifying, deleting or omitting computer data or interfering in the operation of a computer system, in order to ensure for oneself or for other parties, through fraud, an unfair economic benefit or to cause to a third-party asset reduction, are punishable by imprisonment from six months up to six years.

This very act, when committed in complicity, or more than once, or when it has brought about serious material consequences, is punished by imprisonment from five to fifteen years.

Article 144

Fraud on subsidies

Fraud on documents presented, thus fraudulently obtaining subsidies from the state, is punishable by a fine or up to four years of imprisonment.

Article 144/a

Creation of fraudulent schemes regarding value added tax

(Added by Law no. 144, dated 02.05.2013, Article 35)

The organization and implementation of fraudulent schemes, with the purpose of material benefit for one's self or for others, by not paying, or benefiting credit or reimbursement of the value added tax, shall be punishable by three to ten years of imprisonment.

Article 145

Fraud on insurance

Presenting false circumstances [or false information] related to the object to be insured, or fabricating false circumstances and presenting them into documents thus fraudulently obtaining insurance, is punishable by a fine or up to five years of imprisonment.

Article 146

Loan fraud

Fraud on presented documents, thus fraudulently obtaining loan through fictitious registration in property registration offices of objects which do not exist, or which are over estimated, or which belong to someone else's property, committed with the intent of not paying back the loan, is punishable by a fine or up to seven years of imprisonment.

Article 147

Fraud on works of art and culture

(Amended by Law no. 8733, dated 24.01.2001, Article 44)

Theft of property through fraud by presenting a work of art or culture as being original or by an author other than the real one, is punishable by a fine or up to four years of imprisonment.

Article 148

Publication in someone's own name of the work of another person

(Amended by Law no. 8733, dated 24.01.2001, Article 45)

Publication or the partial or total use with his own name, of a work of literature, music, art or science which belongs to another, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 149

Unlawful reproduction of someone else's work

(Amended by Law no. 8733, dated 24.01.2001, Article 46)

Total or partial reproduction of a work of literature, music, art or science which belongs to another, or if their use is conducted without the author's consent, when his personal and property rights are violated, constitutes criminal contravention and is punishable by a fine or by imprisonment up to two years.

Article 149/a

Violation of Industrial Property Rights

(Added by Law no. 23/2012, dated 01.03.2012, Article 21)

Manufacturing, distributing, possessing for commercial purposes, selling, offering for sale, supplying, distributing, exporting or importing for these purposes of:

- a) A product or process protected by a patent, without the patent owner's consent;
- b) A product that is protected by an industrial design, without the consent of the owner of industrial design;
- c) Goods or services protected by a trademark, without the consent of the owner of the trademark;
- (ç) A product derived from a geographical indicator, without the consent of the owner of geographical indicator;

committed intentionally, shall constitute a criminal misdemeanour and be punished by a fine or imprisonment of up to one year.

Where that offence has been committed in complicity, or more than once, it shall be punished by a fine or imprisonment of up to two years.

Article 149/b

Violations of the Rights of the Topography of Semiconductor Circuits

(Added by Law no. 23/2012)

Production, use, possession for purposes of marketing, selling, offering for sale, supplying, distributing, exporting or importing for these purposes a product that violates the rights of registered circuit topography, semiconductor or integrated circuit, without the consent of the owner of the topography, committed intentionally, shall constitute a criminal misdemeanour and it is punished by a fine or imprisonment of up to one year.

When this act has been committed in complicity, or more than once, it shall be punished by a fine or imprisonment of up to two years.

SECTION III

DESTRUCTION OF PROPERTY

Article 150

Destruction of property

Intentionally destroying or damaging the property, when material consequences are serious, is punishable by a fine or up to three years of imprisonment.

Article 151

Destruction of property by fire

Intentionally destroying or damaging the property by fire is punishable by a fine or up to five years of imprisonment.

When the criminal act has led to serious material consequences, it is sentenced up to ten years of imprisonment.

When serious consequences to the health of people have resulted, it is punishable by five to fifteen years of imprisonment.

Article 152

Destruction of property by explosives

Intentionally destroying or damaging property by explosives is punishable by a fine or up to five years of imprisonment.

When the criminal act has led to serious material consequences, it is punishable by five to ten years of imprisonment.

When serious consequences to the health of people have resulted, it is punishable by ten to twenty years of imprisonment.

Article 153

Destruction of property by flooding

Intentionally destroying or damaging property by flooding is punishable by a fine or up to five years of imprisonment.

When the criminal act has led to serious material consequences, it is punishable by five to ten years of imprisonment.

When serious consequences to the health of people have resulted, it is punishable by five to fifteen years of imprisonment.

Article 154

Destruction of property with other means

Intentionally destroying or damaging the property with other means, which constitute danger to the environment and the health of people, is punishable by a fine or to up to five years of imprisonment.

When the criminal act has led to serious material consequences, it is punishable by five to ten years of imprisonment.

When serious consequences to the health of people have resulted, it is punishable by five to fifteen years of imprisonment.

Article 155

Destruction of roads

Intentionally destroying or damaging automobile roads, railways and works related to them, is punishable by a fine or up to seven years of imprisonment.

When the criminal act has led to serious material consequences, it is punishable by three to ten years of imprisonment.

When serious consequences to the health of people have resulted, it is punishable by five to fifteen years of imprisonment.

Article 156

Destruction of power grid networks

Intentionally destroying or damaging power, telegraphic, telephonic, radio television network or any other communication network, is punishable by a fine or up to three years of imprisonment.

This very act, when committed in complicity, more than once, or when it brought about serious consequences, is punished by imprisonment up to three years.

Article 157

Destruction of the watering system

Intentionally destroying or damaging the watering or draining systems or the works related to them, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 158

Unfair management of water, by turning or changing the waterlines, by opening the dams, by constructing or closing draining or watering channels, waterlines or other works, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 159

Destruction of water-supply system

(Amended by Law no. 10 023, dated 27.11.2008, Article 17)

Connecting, or any other intervention into the water supply system conducted without prior permission, in order to get drinking water, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Intentionally destroying the water-supply system is punishable by up to five years of imprisonment.

Article 160

Destruction of works of culture

Intentionally destroying or damaging works of culture is punishable by a fine or up to three years of imprisonment.

When the criminal act has resulted into the destruction or damaging of works of culture of national importance, it is punishable by a fine or up to eight years of imprisonment.

Article 161

Destruction of property due to negligence

Destruction or damaging of property due to negligence, when serious material consequences have resulted, is punishable by a fine or up to three years of imprisonment.

Article 162

Collision of public transportation means

Colliding of trains, ships, airplanes, due to negligence, when crashing, burning, sinking, overturning, derailment, or serious material consequences accompanying the event have resulted, is punishable by a fine or up to five years of imprisonment.

SECTION IV

CRIMINAL ACTS COMMITTED IN COMMERCIAL COMPANIES

Article 163

Drafting false statements

Drafting false statements, about the increase of capital of a company, related to the distribution of shares of initial capital to the shareholders [or] its repayment or the deposit of funds, constitutes criminal contravention and is punishable by a fine.

Article 164

Abuse of powers

Abuse of powers by members of the executive board or by managers of the company with the intent of embezzlement or favouritism of another company where they have interests, is punishable by a fine or up to five years of imprisonment.

Article 164/a

Active corruption in the private sector

(Added by Law no. 9275, dated 16.09.2004, Article 13;

amended by Law no. 23/2012, dated 01.03.2012, Article 22;

The part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

The direct or indirect promise, offer, or giving to a person, who exercises a management function in a commercial company or who works in any other position in the private sector, of any irregular benefit for himself or a third person, in order to act or not to act contrary to his duty, is punished with imprisonment of three months up to three years.

Article 164/b

Passive corruption in the private sector

(Added by Law no. 9275, dated 16.09.2004, Article 13;

amended by Law no. 23/2012, dated 01.03.2012, Article 22;

The part that provide Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Direct or indirect soliciting or taking of any irregular benefit or of any such promise, for himself or a third person, or accepting an offer or a promise that comes from the irregular benefit, of the person that exercises a managerial function or works in whatever position in the private sector, with the purpose to act or not to act contrary to his duty or function, is sentenced with imprisonment term of six months up to five years.

Article 165

Falsifying signatures

Falsifying signatures and deposits, or false statement of deposits of the company's funds, or publication of signatures and deposits of fictitious people, or assessing the contribution in kind to a bigger value than the factual one, is punishable by a fine or up to five years of imprisonment.

Article 166

Irregular issue of shares

Issuing shares irregularly before registration of the company, or when registration is made illegally, or when the formalities of the company have not yet been completed, or when the statute of the company

after its increase of capital has not been changed or has not been registered or has been drafted unlawfully, constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

Article 167

Unfairly holding two capacities at the same time

Simultaneously holding the capacities of shareholder and certified accountant constitutes criminal misdemeanour and is punishable by a fine or up to six months of imprisonment.

Article 168

Giving false information

Giving false information on the situation of a company by the certified accountant of a commercial company, or failure to report to the competent agency on commission of a crime, when cases of exclusion from criminal liability provided in Article 300 of this Code do not exist, is punishable by a fine or up to five years of imprisonment.

Article 169

Disclosure of secrets of a company

Disclosure of secrets of a company by the certified accountant of the company, except in the case when he is compelled to do so by law, constitutes a criminal misdemeanour and is punishable by a fine or up to two years of imprisonment.

Article 170

Failure to write-down mandatory notes

Failure of the administrator or liquidator of the company to write-down mandatory notes constitutes criminal misdemeanour and is punishable by a fine.

Article 170/a

Illegal employment

*(Added by Law no. 8279, dated 15.01.1998, Article 2;
amended by Law no. 8733, dated 24.01.2001, Article 47)*

Employment without registration with the competent authorities or without guaranteeing employee's insurance according to regulations, when an administrative measure has been rendered first, constitutes criminal misdemeanour and is punishable with a fine up to 10 000 ALL for each case, or with imprisonment of up to one year.

Deliberate omission or camouflage of the infringements connected with the employment or the social insurance by persons charged with the enforcement and control of the relevant provisions, constitutes a

criminal misdemeanour and is punished with a fine of up to 100 000. ALL, or imprisonment of up to two years.

Article 170/b

Illegal competition through violence

*(Added by Law no. 9275, dated 16.09.2004, Article 14;
paragraph 1 amended by Law no. 9686, dated 26.02.2007, Article 12)*

The performance, during the exercise of commercial activity, of actions of competition through threat or violence, is punished with imprisonment from one to four years.

When the acts of competition are directed towards activities financed fully or partly or in any way by the state or from the public entities, the sentence of imprisonment is added with one third.

SECTION IV/1

CRIMINAL OFFENCES RELATED TO THE CONDUCT OF BANKING AND FINANCIAL ACTIVITY

(Added by Law no. 23/2012, dated 01.03.2012, Article 25)

Article 170/c

Conducting Banking Activity without a License

(Added by Law no. 23/2012, dated 01.03.2012, Article 25)

The conduct of banking activity by a person who has not been licensed for this purpose under the banking legislation in force, shall be punished by a fine or imprisonment of up to three years.

Where that offence has caused serious consequences to state interests or those of citizens, it shall be punished by a fine or imprisonment of up to seven years.

Article 170/ç

Conducting Financial Activity without a License

(Added by Law no. 23/2012, dated 01.03.2012, Article 25)

The conduct of one or several financial activities other than banking activity, by persons who are not licensed for this purpose under the banking and/or financial legislation in force, shall be punished by a fine or imprisonment of up to three years.

Where that offence has caused serious consequences to state interests or those of citizens, it shall be punished by a fine or imprisonment of up to five years.

SECTION V

CRIMES IN THE FIELD OF CUSTOMS

Article 171

Smuggling of prohibited or restricted goods

Illegal import, export or transit of prohibited or restricted goods that enter and exit the Republic of Albania committed through any ways or means shall be punishable by up to ten years of imprisonment.

Article 172

Smuggling of goods for which excise duty apply or goods fully or partly exempted from customs or excise duty

Import, export or transit of goods to which excise duty apply, passing them outside the customs area, concealing them partially or totally, failure to declare them accurately to the customs, false declaration of the nature, kind, quality, price, destination of goods or other forms intending to avoid customs duties or obtain partial or total exemption, refund or reduction of customs duties, taxes, fees, excise or any sort of an advantage that has to do with the import or export of goods shall be punishable by up to seven years of imprisonment.

Bringing for consumption goods placed in free circulation after being imported with full or partial exemption from customs duties or excise due to their final destination or end-use in order to avoid customs duties shall be punishable by up to five years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from five up to ten years of imprisonment.

Article 173

Smuggling of goods requiring license

Import, export or transit of goods for which a license is required by the competent authority, passing them outside customs crossing points, concealing them partly or totally, failure to declare them accurately to the customs, false declaration of the nature, kind, quality, price, destination of the goods or other forms intending to avoid customs duties shall be punishable by up to five years of imprisonment.

The same offence, when committed in collaboration or more than once shall be punishable by from five up to ten years of imprisonment.

Article 174

Smuggling of other goods

Import, export or transit of goods, passing them outside the customs crossing points, concealing them partly or totally, failure to declare them accurately to the customs, false declaration of their nature, kind, quality, price, destination of the goods or other forms intending to avoid customs duties or obtain partial or total exemption, refund or reduction of customs duties, taxes, fees, excise duty or any kind of an advantage that has to do with the import or export of goods, shall be punishable by up to five years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from three up to seven years of imprisonment.

Article 175

Smuggling committed by custom officials

(Amended by Law 8733, dated 24.1.2001, Article 48)

Smuggling carried out by custom officials, or by other employees having a working relationship with the activity of customs, even when in collaboration with other persons, is punishable by three to ten years of imprisonment.

Article 176

Smuggling of goods with cultural value

Import, export or transit of national cultural values in contradiction with the legal provisions governing them, shall be punishable by up to ten years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from five up to ten years of imprisonment.

Article 177

Smuggling of intermediate goods

Import, export or transit of goods, presenting them as intermediate goods in order to avoid customs duties or obtain partial or total exemption, refund or reduction of customs duties, taxes, fees, excise duty or any other advantage that has to do with import or export of goods, shall be punishable by up to five years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from five up to ten years of imprisonment.

Article 178

Trade and transport in smuggled goods

(Amended by Law 8733 dated 24.1.2001, Article 49)

Trade, alienation or transport in goods known to have been smuggled and any other help given to persons engaged in such kind of activities, shall be punishable by a fine or up to three years of imprisonment.

The same offence, when committed for goods for which excise duty apply or are banned or restricted, shall be punishable by up to five years of imprisonment.

When the offence provided under paragraph two of this Article is committed in collaboration or more than once, it shall be punishable by from five up to ten years of imprisonment.

Article 179

Storage of smuggled goods

Storage, depositing, keeping and processing of goods known to have been smuggled, shall be punishable by fine or up to three years of imprisonment.

The same offence, when committed for goods for which excise duty apply or goods that are banned or restricted, is punishable by up to five years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from three up to seven years of imprisonment.

Article 179/a

The non-declaration of money and of valuable objects

(Added by Law 9086, date 19.6.2003, Article 6)

The non- declaration, in entrance or exit of the territory of the Republic of Albania of amounts of money, of any type of bank check, of metals or precious stones, as well as of other valuable objects, beyond the value provided by law, constitutes penal contravention and is punished by fine or imprisonment up to two years.

Article 179/b

Breaking, removal, replacement of customs safety signs

Breaking, removal of customs seal, replacement, change or falsification of other safety signs imposed by customs authorities for the purposes of supervision or control or for the suspension of commercial activity in economic facilities, or safety signs put up on the means of transport or on goods, or counterfeiting in whatever manner the identifying number of the means of transport in order to avoid customs control, shall be punishable by up to three years of imprisonment.

The same offence, when it has to do with excise goods or banned or restricted goods, shall be punishable by up to five years of imprisonment.

Article 179/c

Removal of goods from the customs area without paying customs duties

Removal of goods from customs area without the permission of the customs authorities and without paying customs duties that must be paid, or without guaranteed payment thereof, except for the cases of the exemption from the obligation of providing a guarantee as provided for by the customs legislation, shall be punishable by up to five years of imprisonment.

The same offence, when it has to do with excise goods, shall be punishable by up to seven years of imprisonment.

Article 179/ç

The captain, pilot or crew involved in smuggling

Transportation of goods without manifest, or the lack or refusal of submission of manifest and relevant documents, the loading, unloading or transport of goods, passengers and their luggage without permission of the customs authorities, staying in places where there is no customs office, or stopping in the vicinity of the port or airport without the permission of the customs authorities, the unloading or trans- boarding of goods in contradiction with customs legislation, the lack of goods on the board of the means of transport

that should be found there according to the manifest and other customs documents, conducted, as appropriate, by the captain, pilot or crew, shall be punishable by up to seven years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from five up to ten years of imprisonment.

SECTION VI CRIMINAL ACTS RELATED TO TAXATION AND TARIFFS

Article 180

Concealment of income

(Amended by Law no. 144, dated 02.05.2013, Article 36)

Concealment or avoiding payment of taxes by not submitting documents or not declaring the necessary data envisaged by the effective legislation, by submitting forged documents, statements or false information in order to have personal material gains, for one's self or for others, by miscalculating the amount of taxes, fees or contribution, shall constitute a criminal offence and shall be punishable up to three years of imprisonment.

When this offence is committed with the intention of concealing or avoiding payment of a tax above five million ALL, it shall be punishable by two to five years of imprisonment.

When this offence is done with the intention of concealing or avoiding payment of a tax above eight million ALL, it shall be punishable by four to eight years of imprisonment.

Article 180/a

Failure of a person to issue a tax coupon, tax receipt or voucher, who has the obligation to issue the tax coupon, tax receipt or voucher, if an administrative measure against him has previously been taken, shall be punishable by fine or up to one year of imprisonment.

The exercise of an illegal commercial activity, or an activity which is not registered with the tax authorities, not equipped with the cash register according to legal provisions in force, or giving orders contrary to the law in order not to issue a tax coupon, tax receipt or voucher, if an administrative measure against it has previously been taken, shall be punishable by up to three years of imprisonment.

Article 181

Failure to pay taxes and tariffs

Failure to pay taxes and tariffs within the time required by law, although having the possibility of being paid by the person against whom administrative sanctions were previously taken for the same reason, is punishable by a fine or up to three years of imprisonment.

Article 181/a

Failure of the tax authorities to perform duties

(Added by Law no. 8279, dated 15.01.1998, Article 2)

Failure to perform duties related to collection of taxes and fees within the legally defined deadlines for taxes and fees, by employees of tax authorities and other officials charged with these tasks, when it happens because of their own fault, shall be punishable by up to seven years of imprisonment.

The same offence, when committed in collaboration, shall be punishable by from five up to ten years of imprisonment.

Article 182

Modification of measurement devices

Modification or any other intervention in measurement devices and counters, or utilizing altered measurement devices and counters, or allowing the use by others of irregular measurement devices and counters, with the intent of avoiding the full payment of taxes and tariffs, constitutes criminal contravention and is punishable up to two years of imprisonment.

Article 182/a

Destruction of seals used to block or suspend a commercial activity

(Added by Law no. 144/2013, dated 02.05.2013, Article 37)

Deliberate destruction of visible signs placed by the tax administration to block or suspend the commercial activity, or the exercise of a commercial activity, after the notification of the decision of the tax administration for its blocking or suspension, shall constitute a criminal contravention and shall be punishable by imprisonment up to one year.

SECTION VII

FALSIFYING CURRENCY OR MONEY ORDERS (BOND PAPER)

Article 183

Money counterfeiting

(Added by Law no. 8733, dated 24.01.2001, Article 50)

Forging or putting in circulation counterfeit money is punishable by imprisonment up to five years.

This very act, when committed with accomplices, more than once, or when it brought about serious consequences, is punished by imprisonment from five to fifteen years.

Article 184

Forging valued papers/vouchers

(Added by Law 8733, dated 24.01.2001, Article 51)

Forging and putting in use checks, bills of exchange, credit cards, traveller's checks, or other valued papers, is punished by imprisonment up to five years.

This very act, when committed with accomplices, more than once, or when it brought about serious consequences, is punished by imprisonment from three to ten years.

Article 185

Producing instruments for forgery

(Added by Law no. 8733, dated 24.01.2001, Article 52)

Manufacturing or keeping equipment for falsifying currency, checks, bills of exchange, credit cards, traveller's checks or other financial documents, is punishable by a fine or from one to three years of imprisonment.

This very act, when committed with accomplices, more than once, or when it brought about serious consequences, is punished by imprisonment from three to ten years.

SECTION VIII

FALSIFICATION OF DOCUMENTS

Article 186

Falsification of Documents

(Amended by Law no. 9188, dated 12.02.2004, Article 4;

the part that provides fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

The falsification or use of falsified documents is punishable with imprisonment of up to three years.

When this crime is committed in collaboration or more than once or when it has brought serious consequences, it is punishable with imprisonment of from six months to four years.

When the falsification is done by a person who has the duty of issuing the document, it is punished with imprisonment of from one year to seven years.

Article 186/a

Computer falsification

(Added by Law no. 10 023, dated 27.11.2008, Article 18)

Entering, modifying, deleting or omitting computer data, unlawfully, in order to create false data aiming to submit and use them as authentic, despite of whether the created data are directly readable or understandable, are punishable by imprisonment from six months to six years.

When this very act is committed by the person whose task is to safeguard and administrate computer data, with accomplices, more than once, or has brought about serious consequence to the public interest, is punishable by imprisonment from three up to ten years.

Article 187

Falsification of school documents

Falsifying or use of falsified school documents is punishable by a fine or up to three years of imprisonment.

When the person having the duty to issue the document makes the falsification, it is punishable by a fine or up to five years of imprisonment.

Article 188

Falsification of health-related documents

Falsifying or use of falsified health-related documents is punishable by a fine or up to three years of imprisonment.

When the person having the duty to issue the document makes the falsification, it is punishable by a fine or up to five years of imprisonment.

Article 189

Falsification of Identity Documents, Passports or Visas

*(Amended by Law no. 9188, dated 12.02.2004, Article 5;
the part that provides fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

The falsification or use of falsified identity documents, passports or visas is punishable with imprisonment of from six months to four years.

When this crime is committed in collaboration or more than once or has brought serious consequences, it is punished with imprisonment of from six months to five years. When the falsification is done by a person who has the duty of issuing the identity document, passport or visa, it is punishable with imprisonment of from three to seven years.

Article 190

Falsification of Seals, Stamps or Forms

*(Amended by Law no. 9188, dated 12.02.2004, Article 6;
added by Law 9275, dated 16.09.2004, Article 15;
repealed by Constitutional Court Decision no. 47, dated 26.07.2012,
the part that provides fine as main punishment)*

The falsification or use of falsified seals, stamps or forms, or the presentation of false circumstances in the latter that are directed to state organs, is punishable with imprisonment of from six months to four years.

When this crime is committed in collaboration or more than once or has brought serious consequences, it is punishable with imprisonment of from six months to five years.

When the falsification is done by a person who has the duty of compiling them, it is punishable with imprisonment of from three to seven years.

Article 191

Falsification of Civil Status Documents

*(Amended by Law no. 9188, dated 12.02.2004, Article 7;
repealed by Constitutional Court Decision no. 47, dated 26.07.2012,
the part that provides fine as main punishment)*

The falsification or use of falsified civil status documents is punishable with imprisonment of from three months to two years.

When this crime is committed in collaboration or more than once or has brought serious consequences, it is punishable with imprisonment of from six months to four years.

When the falsification is done by a person who has the duty of issuing the document, it is punished with imprisonment of from one to five years

Article 192

Production of devices for falsification of documents

Production of, or conserving, devices to falsify documents constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 192/a

Disappearance and theft of documents

(Added by Law no. 8733, dated 24.01.2001, Article 53)

Illegal eliminating, in any way, of archive or library documents, and, disappearing and stealing documents of a particular importance, in contradiction with legal requirements, is punishable by a fine or imprisonment up to three years.

Stealing archive or library documents that are particularly important or their illegal exportation is punishable by a fine or imprisonment up to five years.

Article 192/b

Unauthorized computer interference

(Added up by Law no. 8733, dated 24.01.2001, Article 53; amended by Law no. 10 023, dated 27.11.2008, Article 19)

Unauthorized access or access in excess of the authorization to access a computer system or in a part thereof, through violation of the security measures, is punishable by fine or imprisonment up to three years.

When this very act is committed in military, national security, public order, civil protection, health computer systems or any other computer system of public importance, it is punishable by imprisonment from three up to ten years.

SECTION IX CRIMINAL ACTS IN THE AREA OF BANKRUPTCY

Article 193

Provoked bankruptcy

Intentionally provoking of bankruptcy by a legal person is punishable by a fine or up to three years of imprisonment.

Article 194

Concealment of bankruptcy status

Entering of a legal person into an economic commercial relationship with a third party with the intent of concealing bankruptcy status is punishable by a fine or up to five years of imprisonment.

Article 195

Concealment of assets after bankruptcy

Concealment of assets by a legal person upon the act of bankruptcy with the intent of avoiding its consequences is punishable by a fine or up to seven years of imprisonment.

Article 196

Failure to comply with obligations

Failure of a legal person to comply with its obligations arising under bankruptcy constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

SECTION X UNLAWFUL LOTTERIES AND GAMBLING

Article 197

Organizing unlawful lotteries

Organizing lotteries or gambling in breach of legal provisions constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

Article 197/a

Predetermining results in sports contests

*(Added by Law no. 10 023, dated 27.11.2008, Article 20;
the part that provides fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Actions or omissions for predetermining results in national and international sports contests, contrary to fair play principles, constitute criminal contravention.

This very offence, when committed for property gains, is punishable by imprisonment from two to seven years.

Article 197/b

Distortion of competition in sports contests

(Added by Law no. 10 023, dated 27.11.2008, Article 20)

Distortion of competition in sports contests by participants, through use of prohibited substances constitutes criminal contravention and is punishable by fine or imprisonment up to two years.

Article 198

Providing the premises for unlawful gambling

Providing the premises for organizing or playing a lottery or gambling in breach of the legal provisions constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

SECTION XI

CRIMINAL OFFENCES IMPACTING THE LEGAL REGIME OF LAND

Article 199

Misuse of land

Misuse of land in violation of its designated purpose constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

Article 199/a

Illegal construction

(Added by Law no. 10 023, dated 27.11.2008, article 21)

The construction carried out without permission on one's own land shall be sentenced to fine or imprisonment of up to one year.

This very offence, when committed on public or state-owned land or on another person's land, shall be sentenced to imprisonment from one up to five years.

Article 200

Occupation of land

Unlawfully taking land constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

CHAPTER IV

CRIMINAL ACTS AGAINST ENVIRONMENT

Article 201

Air pollution

Polluting the air through the emission of smoke, gasses and other toxic radioactive substances, when it increases the normal limit allowed, and when the act does not constitute administrative contravention, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

The same act, when it has caused serious consequences to the life and health of people, is sentenced up to ten years of imprisonment.

Article 202

Transportation of toxic waste

Transporting toxic and radioactive waste transit into the Albanian territory or their depositing therein is punishable by one to five years of imprisonment.

The same act, when it has caused serious consequences to the life and health of people, is punishable by five to fifteen years of imprisonment.

Article 203

Pollution of waters

Polluting the waters of the seas, rivers, lakes or the springs of the water supply system with waste either toxic or radioactive or other substances, which break the ecological balance, is sentenced up to five years of imprisonment.

The same act, when has caused serious consequences to the life and health of people, is punishable by five to ten years of imprisonment.

Article 204
Prohibited fishing

Fishing undertaken at a prohibited time, place or method constitutes criminal contravention and is punishable by a fine or to up three months of imprisonment.

Fishing undertaken through means of public danger like explosives, poisonous substances, etc., constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 205
Unlawful cutting of forests

Cutting or damaging forests without authorization or when it is undertaken at a prohibited time or place, when the act does not constitute administrative contravention, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 206
Cutting of decoration and fruit trees

Cutting decoration trees and damaging gardens and parks in the cities constitutes criminal contravention and is punishable by a fine.

Cutting trees in fruit or olive plantations and vineyards, after [the application] for cutting permit has been previously refused by the competent authority, constitutes criminal contravention and is sentenced up to three months of imprisonment.

Article 206/a
Destruction of forests and forest environment by fire
(Added by Law no. 10 023, dated 27.11.2008, Article 22;

wording in paragraph 1, 2 and 3 amended by Law no. 144, dated 02.05.2013, Article 38)

Intentionally destroying or damaging, causing serious material consequence, the forest stock, nursery – plot, forest reserve or any other unit similar to them, through fire, is punishable by imprisonment from five to ten years.

This very same act, committed aiming to change the category and destination of land is punishable by imprisonment from five to fifteen years.

The same act, when it has caused serious consequence to the property, health or life of people or causes serious damage over an extended period of time on the environment or protected areas, is punishable by imprisonment from ten to twenty years.

Article 206/b
Destruction due to negligence of forests and forest environment by fire
(Added up by Law no. 10 023, dated 27.11.2008, Article 22;

wording in paragraph 1, 2 and 3 amended by Law no. 144, dated 02.05.2013, Article 39)

Destroying or damaging from negligence, with serious material consequence, of the forest stock, nursery – plot, forest reserve or any other unit similar to them, by fire, is punishable by imprisonment from two to five years.

This very act, when it brought about serious consequence to the property, health or life of people or when it causes serious damage over an extended period of time on the environment or protected areas, is punishable by imprisonment from three to eight years.

Article 207

Breach of quarantine for plants and animals

Breach of rules of quarantine for plants or animals, when it has led to serious consequences which are either material or which bring serious danger to the life and health of people, constitutes criminal contravention and is punishable by a fine.

CHAPTER V

CRIMES AGAINST INDEPENDENCE AND CONSTITUTIONAL ORDER

SECTION I

CRIMES AGAINST INDEPENDENCE AND INTEGRITY

Article 208

The surrendering of territory

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

Total or partial transfer of territory to foreign state or power, with the intent of violating the independence and integrity of the country, is punishable by no less than fifteen years of imprisonment or to life imprisonment.

Article 209

The surrendering of the army

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

Total or partial surrendering of the army or handing over defence materials or supplying weapons and ammunition to a foreign state or power, with the intent of violating the independence and integrity of the country, is punishable by no less than fifteen years of imprisonment or to life imprisonment.

Article 210

Agreement on the surrendering of territory

Agreement with foreign powers or states for the total or partial transferring of territory or handing over of the army and defence materials, with the intent of violating the integrity of the country, is punishable by five to ten years of imprisonment.

Article 211

Provocation of war

Committing acts with the intent to provoke a war or make the Republic of Albania face the danger of an [military] intervention by foreign powers, is punishable by no less than fifteen years of imprisonment.

Article 212

Agreement for armed intervention

Agreements entered into with foreign powers or states to cause armed intervention against the territory of the Republic of Albania, is punishable by ten to fifteen years of imprisonment.

Article 213

Disclose of classified information

Handing over classified information of military or other character to a foreign power with the intent of encroaching the independence of the country, is punishable by ten to twenty years of imprisonment.

Article 214

Providing information

Providing classified information of military or other character, with the intention to hand over to foreign power in order to encroach the independence of the country, is punishable by three to ten years of imprisonment.

Article 215

Damaging of defence objects

Destroying or damaging means, equipment, appliances, weapons, military technique or objects for military defence, with the intent of reducing the country's defensive capacity, is punishable by five to fifteen years of imprisonment.

Article 216

Providing means for destroying military technique

Production or keeping means for destroying or damaging equipment, appliances, weapons, means of military technique or objects for military defence, with the intent of reducing the country's defence capacity, is sentenced up to ten years of imprisonment.

Article 217

Receiving of bonuses

Getting paid or the agreement to get paid or to receive other material benefits, in order to commit in favour of foreign states or powers one of the crimes provided for in this section, is punishable by five to ten years of imprisonment.

Article 218

Placing oneself in the service of foreign states

Placing an Albanian citizen in the service of a foreign state or power, with the intent of committing acts against the independence and integrity of the Republic of Albania, is punishable by three to ten years of imprisonment.

SECTION II

CRIMES AGAINST CONSTITUTIONAL ORDER

Article 219

Assassination

(Amended by Law no. 8733, dated 24.01.2001, Article 79)

Assassination, kidnapping, torturing or other acts of violence [committed] against the highest representatives of the state, with the intent of overturning constitutional order, is punishable by no less than fifteen years of imprisonment or to life imprisonment.

Article 220

Conspiracy

Decision-making and creating material conditions by a group of people to commit an assassination is punishable by five to fifteen years of imprisonment.

Article 221

Rioting

(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 79)

Participating in violent massive actions such as placing obstacles and barricades to stop the police, resisting them with arms or disarming them, forcibly occupying buildings, looting, gathering or placing under [one's] disposal weapons, ammunition and people, facilitating the rioters, committed with the intent of overturning constitutional order, is punishable by fifteen to twenty-five years of imprisonment.

Participation in the above-mentioned activities with the capacity of a leader or an organizer is punishable by life imprisonment.

Article 222

Calls to take up arms or take the command unlawfully

Calls for taking up arms against constitutional order, creating or organizing the armed forces in violation to the law, unlawful taking-over of the command of the armed forces in order to conduct military actions with the intent of opposing constitutional order, are punishable by five to ten years of imprisonment.

Article 223

Public calls for violence

Public calls to commit violent acts against the constitutional order, are punishable by a fine or up to three years of imprisonment.

Article 224

Founding unconstitutional parties or associations

Founding of or participating in parties, organizations or associations which intend to violently overturn the constitutional order is punishable by a fine or up to three years of imprisonment.

Re-founding a party, organization or association that was previously banned as unconstitutional or the continuation of their activity in an open or covert way is punishable by one to five years of imprisonment.

Article 225

Distribution of unconstitutional writings

Distribution of writings or use of symbols belonging to an unconstitutional party, organization or associations or to one previously banned on the same grounds, is punishable by a fine or up to three years of imprisonment.

Distributing or infiltrating materials, writings or symbols into the Republic of Albania from abroad, with the intent to overturn the constitutional order or affect the territorial integrity of the country, is punishable by a fine or up to three years of imprisonment.

CHAPTER VI

CRIMES ENCROACHING RELATIONS WITH OTHER STATES

Article 226

Violent Acts against Internationally Protected Persons

(Amended by Law no. 23/2012, dated 01.03.2012, Article 24)

Committing violent acts against Internationally Protected Persons is sentenced up to ten years of imprisonment.

Article 227

Insulting representatives of foreign countries

(Repealed by Law no. 23/2012, dated 01.03.2012, Article 57)

Article 228

Violent acts against working-places of International Protected Persons

(Repealed by Law no. 23/2012, dated 01.03.2012, Article 26)

Committing violent acts against work-places, residences, means of transportation of international protected persons constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

When the act has resulted in serious material consequences or in complications in the bilateral relations, it is sentenced up to ten years of imprisonment.

Article 229

Insulting acts against the anthem and flag

(Repealed by Law no. 23/2012, dated 01.03.2012, Article 57)

CHAPTER VII

ACTS OF TERRORIST INTENTION

(The title amended by Law no. 9686, dated 26.02.2007, Article 14)

Article 230

Acts of terrorist intention

(Amended by Law no. 9686, dated 26.02.2007, Article 15;

amended by Law no. 23/2012, dated 01.03.2012, Article 27)

Commission of the following acts, with the intent to spread panic among the population, or compel the state bodies, Albanian or foreign, to perform or not perform a certain act, or seriously destroy or destabilize substantial political, constitutional, economic or social structures of the Albanian state, another state, international institution or organisation, shall be punishable by imprisonment of no less than fifteen years, or life imprisonment.

Offences for terrorist purposes shall include:

- a) offences against a person, which can cause death or grave injury;
- b) hijacking of aircraft, vessel, other means of transport, or fixed platforms, or unlawful exercise of control over them, by force or threat to use force, or any other forms of threat;
- c) commission of acts of violence against a person on board of an aircraft in flight, aboard a ship or on board a fixed platform, where those acts might jeopardize the safety of aircraft, ship, or fixed platform;

- (ç destruction of an aircraft in operation, ship or a fixed platform, or causing such damage to aircraft, vessel or its cargo, or fixed platform, which render impossible or endanger or might endanger the safety of flight, navigation or fixed platform;
- d) planting, by any means, in an aircraft in service, ship or fixed platform, a device or substance that could destroy the aircraft, ship or fixed platform, or cause damage to aircraft, vessel or its cargo, or fixed platform, and which endangers or might endanger the safety of flight, cruise ship or fixed platform;
- dh) destruction of or damage to flight hardware or marine navigational equipment or interference with their operation, where such an act could endanger the safety of aircraft or vessel;
- e) dissemination of information that is known to be untrue, thereby risking the safety of an aircraft in flight or sailing ship;
- (ë murdering or kidnapping an internationally protected person, under Article 9 of this Code, or any other attack against him/her or his/her freedom;
- f) a violent attack against the office, private apartment or means of transport of an internationally protected person, under Article 9 of this Code, where this attack endangers his/her person or freedom;
- g) taking hostage or kidnapping a person and threatening to kill, injure or continue holding him hostage;
- gj) receipt, possession, use, transfer, disposal, disposition or proliferation of nuclear material, intentionally and without being legally authorised, that causes or could cause death or serious injury to any person, or serious damage to property;
- h) theft, misappropriation or benefit through nuclear materials fraud;
- i) soliciting nuclear materials using coercion, violence or any other form of threat;
- j) manufacture, possession, purchase, transportation or marketing of explosives, firearms, biological, chemical or nuclear weapons, and research for the production of mass destruction weapons;
- k) committing acts of violence, using any device, substance or weapon, against a person in an international civil aviation airport, where those acts cause or might cause serious injuries, or death of persons;
- l) destruction of or serious damage to facilities or equipment in an international civil aviation airport or plane located at the airport that is not in flight, or disruption of airport services, using any device or weapon, where that act endangers or could endanger the security of the airport;
- ll) proliferation, placement, discharge or setting off of explosives or other lethal ordnance in public places, offices of a state or government, public transportation system or public infrastructure, and distribution in the environment of hazardous substances causing fires, floods, explosions, for purposes of causing death or serious bodily harm or massive destruction of the above-mentioned locations, facilities or systems, where that disaster could result in major economic loss;
- m) heavy and large-scale destruction of public property, public infrastructure, transportation system, information system and private property, endangering the lives of people;
- n) causing interruption of supply with water, electricity or any other important utilities;

or any other acts intended to cause death or serious injury to civilians or any other person who is not taking an active part in hostilities in a situation of armed conflict, committed for the purposes set out in the first paragraph of this Article.

Actions that cause the disruption of an important service, system, public or private activity, as a result of protests, civil disobedience, or strike, shall not be considered offences for terrorist purposes under the meaning of this Article.

Article 230/a

Financing of terrorism

(Added by Law no. 9086, dated 19.06.2003, Article 7;

amended by Law no. 23/2012, dated 01.03.2012, Article 28;

the part that provided for punishment by fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Provision or collection of funds, by any means, directly or indirectly, with the intent to use them or knowing that they will be used, in whole or in part:

- a) to commit offences for terrorist purposes;
- b) by a terrorist organisation;
- c) by a single terrorist;

shall be punished by not less than fifteen years of imprisonment or life imprisonment.

The provisions of this Article shall apply:

- a) to all funds, including assets of any kind, tangible or intangible, movable or immovable, irrespective of the manner of their acquisition, and legal documents or instruments of any kind, even in electronic or digital form, that demonstrate rights to or interests over such assets, including bank loans, traveller's cheques, bank cheques, money orders, shares, securities, bonds, bank guaranteed cheques, credit cards, and any other financial instrument, similar to them;
- b) regardless of whether the person who commits one of the offences enlisted in the first paragraph of this Article, is located in the same country or another country where the terrorist organisation or single terrorist is located, or the country where the offence with terrorist purposes has been committed or will be committed;
- c) in the case provided for the first paragraph of this Article, regardless of whether the funds have actually been used to commit the offence or offences for which those funds were provided or collected, or whether a connection can be established between the funds and one or more of the specific offences with terrorist purposes.

Knowledge and intent, under the first paragraph of this Article, shall be derived from the objective factual circumstances.

Article 230/b

Concealing of funds and other property that finance terrorism

*(Added by Law no. 9275, dated 16.09.2004, Article 16;
the part that provides for even the punishment by fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

The transfer the conversion, the concealing, the movement or the change of property of the funds and of other goods, which are put under measures against terrorism financing, in order to avoid the discovery and their location, is sentenced with imprisonment from four to twelve years.

When this crime is committed during the exercise of a professional activity in cooperation or more than one time, it is sentenced to imprisonment from seven to fifteen years and with a fine from one to eight million ALL, whereas when it causes serious consequences, it is sentenced with imprisonment for no less than fifteen years.

Article 230/c

Disclosure of information by persons who perform public functions or persons exercising a duty or profession

*(Added by Law no. 9275, dated 16.09.2004, Article 16;
the part that provides for even the punishment by fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Getting acquainted identified persons or of other persons with data regarding the verification or the investigation of funds and other goods towards which are applied measures against terrorism financing, from persons exercising public functions or in exercise of their duty or profession, is sentenced with imprisonment from five to ten years.

Article 230/ç

Performance of services and actions with declared persons

*(Added by Law no. 9275, dated 16.09.2004, Article 16;
the part that provides for even the punishment by fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Issuing of funds and of other assets, the performance of financial services as well as of other transactions with identified persons towards whom are applied measures against terrorism financing is sentenced with imprisonment from four to ten years.

Article 230/d

Collection of funds for financing terrorism

*(Added by Law no. 9686, dated 26.02.2007, Article 16;
repealed by Law no. 23/2012, dated 01.03.2012, Article 57)*

Article 231

Recruitment of persons for committing acts with terrorist intentions or financing of terrorism

(Amended by Law no. 9686, dated 26.02.2007, Article 17)

Recruitment of one or more persons for committing acts with terrorist purposes or financing of terrorism, even when these acts are aimed at another country, international organization or institution, if it does not constitute another criminal act, is punishable by no less than ten years of imprisonment.

Article 232

Training to commit acts of terrorist intentions

(Amended by Law no. 9686, dated 26.02.2007, Article 18)

Preparation, training and giving any form of instruction even in anonymous manner or in electronic form, for producing or using explosive substances, military weapons and ammunition, other weapons and chemical, bacteriologic, nuclear or any other substance, dangerous and hazardous to people and property, as well as techniques and methodologies for committing acts with terrorist purposes and participation in such activities, even when these acts aim at another country, international organizations or institutions, if they don't constitute another criminal act, are punishable with no less than seven years of imprisonment.

Article 232/a

Incitement, public calls and propaganda for committing acts with terrorist intentions

(Added by Law no. 9686, dated 26.02.2007, Article 19)

Incitement, public call, distribution of pieces of writing or propaganda in other forms, with the aim of supporting or committing one or more acts for terrorist purposes and financing of terrorism, if they do not constitute other criminal act, are punishable by imprisonment from four up to ten years.

Article 232/b

Threatening to commit acts of terrorist intentions

(Added by Law no. 9686, dated 26.02.2007, Article 19)

Serious threat for committing acts with terrorist purposes to a public authority, even of another country, international organization or institution, is punishable by imprisonment from eight up to fifteen years.

Article 233

Creating armed crowds

Creating armed crowds to oppose public order through violent acts against the life, health, personal freedom of the individual, property, with the intent of instilling fear and uncertainty in the public, is sentenced up to ten years of imprisonment.

Article 234

Manufacturing military weapons

Manufacturing, storing, transporting of military, chemical, biological, nuclear weapons which have a poisonous or explosive base, with the intent of committing acts of terrorism, is punishable by five to fifteen years of imprisonment.

Article 234/a

Terrorist organizations

(Added by Law no. 9275, dated 16.09.2004, Article 17)

The establishment, organization, the leading and financing of the terrorist organizations is sentenced with imprisonment of no less than fifteen years.

The participation in terrorist organizations is sentenced to imprisonment from seven to fifteen years.

Article 234/b

Armed gangs

(Added by Law no. 9275, dated 16.09.2004, Article 17)

The establishment, organization, the leading and financing of the armed gangs is sentenced with imprisonment from ten to fifteen years.

The participation in armed gangs is sentenced to imprisonment from five to ten years.

CHAPTER VIII

CRIMES AGAINST THE STATE AUTHORITY

SECTION I

CRIMINAL ACTS AGAINST STATE ACTIVITY COMMITTED BY [ALBANIAN] CITIZENS

Article 235

Opposing the public official that carries out a state duty or provides a public service

(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 54)

Opposing an official on state duty or public service, with the intent of hindering his fulfilment of his duty or service in compliance with law, constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

This very act, when committed in collaboration, or by wielding physical violence, or more than once, is punishable by a fine or imprisonment up to five years.

Article 236

Opposing the official of the public order police

*(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 55;
paragraph 2 amended by Law no. 9686, dated 26.02.2007, Article 20)*

Opposing the official of the public order police with the intent of hindering his fulfilment of duty in compliance with law, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

When the same act is committed in collaboration or through physical violence, or more than once, it is punishable up to seven years of imprisonment.

Article 237

Assault because of duty

Assault or other violent acts committed against an official acting in the execution of a state duty or public service, because of his state activity or service, are punishable by a fine or up to three years of imprisonment.

Article 238

Intimidation because of duty

Serious threat of assassination or critical injury against an official acting in the execution of a state duty or public service, because of his state activity or service, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 239

Insulting because of duty

*(Amended by Law no. 8733, dated 24.01.2001, Article 56;
repealed by Law no. 23/2012, dated 01.03.2012, Article 57)*

Article 240

Defamation because of duty

*(Paragraph 2 amended by Law no. 8733, dated 24.01.2001, Article 57;
repealed by Law no. 23/2012, dated 01.03.2012, Article 57)*

Article 241

Defamation towards the President of the Republic

(Repealed by Law no. 23/2012, dated 01.03.2012, Article 57)

Article 242

Disobeying orders of the public order police employee

Disobeying the lawful orders of the public order police employee constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

Article 243

Assaulting family members of a person exercising a state duty

Assault or other violent acts committed toward the family member of a person acting in the exercise of his state duty or public service, with the intent of preventing the fulfilment of the duty or service, or which is related to this activity, is punishable by a fine or up to five years of imprisonment.

Article 244

Active corruption of persons exercising public functions

(Amended by Law no. 9275, dated 16.09.2004, Article 18;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment repealed by Law no. 144, dated 02.05.2013, Article 48)

Promising, direct or indirect proposal, offer, or giving, to a person, who exercises public functions, of any irregular benefit for himself or a third person in order to act or not act in relation to his duty, is punished by imprisonment from six months up to three years.

Article 244/a

Active Corruption of Foreign Public Official

(Added up by Law no. 23/2012, dated 01.03.2012, Article 29;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment repealed by Law no. 144, dated 02.05.2013, Article 48)

Promising, proposing or giving, directly or indirectly, any kind of improper benefit for oneself or other persons, to a foreign public official, employee of a public international organisation, member of a foreign public assembly or member of an international parliamentary assembly, to undertake or not undertake an action, that relates to his or her office, shall be punished by imprisonment of six months to three years.

Article 245

Active corruption of the high state officials and local elected representatives

(Amended by Law no. 9275, dated 16.09.2004, Article 19;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment repealed by Law no. 144, dated 02.05.2013, Article 48)

Promising, direct or indirect proposal, offer, or giving, to high state officials or to a locally elected person, of any irregular benefit for himself or a third person in order to act or not act in relation to his duty, is punished by imprisonment from one up to five years.

Article 245/1

Exercising unlawful influence on public officials

(Added by Law no. 9275, dated 16.09.2004, Article 20;

amended by Law no. 23/2012, dated 01.03.2012, Article 30;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

The direct or indirect promise, proposal, offer, of any irregular benefit, for himself or a third person, to the person who promises and guarantees that he is able to exercise illegal influence on the accomplishment of the duties and on taking of decisions by the Albanian or foreign public functionaries, no matter whether the influence has been actually exercised or not and no matter whether the desirable consequences have occurred or not, is punishable with imprisonment from six months up to three years.

The direct or indirect soliciting, receiving, or accepting whatever irregular benefit for oneself or other persons, by promising and confirming the ability to exercise illegal influence on the accomplishment of the duties and on adoption of decisions by the Albanian or foreign public functionaries, no matter whether the influence has been actually exercised or not and no matter whether the desirable consequences have occurred or not, is punishable with imprisonment from six months up to four years.

Article 245/2

The exemption from suffering the sentence

(Added by Law no. 9275, dated 16.09.2004, Article 20;

repealed by Law no. 144, dated 02.05.2013, Article 48)

Article 246

Appropriating a public title or office

Appropriating a public title or office accompanied with the actions pertinent to the holder of the title or office, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

If the act is committed for embezzlement purposes or has encroached the freedom, dignity or other fundamental rights of the citizen, it is punishable by a fine or up to five years of imprisonment.

Article 246/a

Practicing the profession of the Accounting Expert and Auditing Company without Being Registered

(Added by Law no. 23/2012, dated 01.03.2013, Article 31)

Acquisition of the professional title of certified public accountant, practicing the profession of certified public accountant or using labels such as auditing company, without being previously registered in a public registry of auditors, and using any kind of title, which aims to create a similarity or confusion with these professional titles or designations, when an administrative measure has already been imposed, shall constitute a criminal offence and is punishable by a fine or imprisonment of up to two years.

Article 247

Wearing a uniform unlawfully

Unlawfully wearing a uniform, holding a document or a distinctive sign, which shows the capacity of an official exercising a state duty or public service, accompanied with illegal acts, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

If the act is committed for embezzlement purposes or it has encroached the freedom, dignity or other fundamental rights of the citizen, it is punishable by a fine or up to five years of imprisonment.

SECTION II

CRIMINAL ACTS AGAINST THE ACTIVITY OF THE STATE COMMITTED BY STATE OR PUBLIC OFFICIALS

Article 248

Abuse of office

(Amended by Law no. 9275, dated 16.09.2004, Article 21;

amended by Law no. 9686, dated 26.02.2007, Article 21;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment repealed by Law no. 144, dated 02.05.2013, Article 48)

Deliberate accomplishment or non-accomplishment of actions or failures to act, in violation to the law and constituting the failure of a person, who carries out public functions, to do his duties regularly, in cases when it has led to bringing him or other persons unjust material or non-material benefits or when it has brought damages to the legitimate interests of the state, citizens, and other legal entities, when it does not constitute another criminal offence, is punishable with imprisonment up to seven years.

Article 248/a

Granting Pensions or Other Income from Social Insurance Contrary to the Law

(Added by Law no. 23/2012, dated 01.03.20012, Article 32;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Granting of pensions in contradiction with the law on pensions, or other income from social insurance, by an employee who has a duty to grant them, is punishable by imprisonment of from six months to seven years.

Article 249

Performing a function after its termination

The continuation of the performance of the state or public service function by a person who has been informed of a decision or circumstance terminating the exercise of this function constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 250

Committing arbitrary actions

Commitment of arbitrary actions or arbitrary order-giving, by an official performing a state or public service function while exercising his duty, which affect the freedom of citizens, is punishable by a fine or imprisonment of up to seven years.

Article 251

Failure to take measures to sever illegality

Failure of a person in charge of a state or public service function to take measures, who becomes aware of the illegality due to the function or service, or failure to request a competent person to sever illegality resulting from an arbitrary action that has affected the freedom of citizens, is punishable by a fine or up to three years of imprisonment.

Article 252

Detention in custody in absence of a decision

Detention in custody without a decision of the competent body or beyond the term determined in the decision or by law, by a person charged with the task of prison administrator, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 253

Violating equality of the citizens

(Words added by Law no. 144, dated 02.05.2013, Article 40)

Discrimination by a worker holding a state function or public service conducted because of his capacity or during its exercise, when the discrimination is based upon origin, sex, sexual orientation or gender identity, health situation, religious or political beliefs, trade-union activity or because of belonging to a particular ethnic group, nation, race or religion, which consists in creating unfair privileges or in refusing a right or benefit deriving from law, is punishable by a fine or up to five years of imprisonment.

Article 254

Infringing the inviolability of residence

Entering into premises without the consent of a person living therein, committed by a person holding a state function or public service during the exercise of his duty, except the cases when it is permitted by law, is punishable by a fine or up to five years of imprisonment.

Article 255

Obstruction and violation of the secrecy of correspondence

Giving orders or committing actions for destroying, reading and disseminating postal correspondence, or which breaks, makes it more difficult, puts under control or eavesdrops phone correspondence or any other means of communication, committed by a person holding a state function or public service during the exercise of his duty, except the cases when it is permitted by law, is punishable by a fine or up to three years of imprisonment.

Article 256

Abuse of contributions given by the state

Misusing contributions, subsidies or financing given by the state or state institutions to be used in works and activities of public interest, is punishable by a fine or up to three years of imprisonment.

Article 257

Illegal benefit of interests

Direct or indirect holding, retaining or benefiting from any sort of interest by a person holding state functions or public service in an enterprise or operation in which, at the time of conducting the act, he was holding the capacity of supervisor, administrator or liquidator, is punishable by a fine or up to four years of imprisonment.

Article 257/a

Refusal for declaration, non-declaration, concealment or false declaration of assets, private interests of elected persons and public employees, or of any other person that is legally binding for the declaration.

*(Added by Law no. 9030, dated 13.03.2003, Article 1;
paragraph 2 amended by Law no. 9686, dated 26.02.2007, Article 22;
amended by Law no. 23/2012, dated 01.03.2012, Article 33;
amended by Law no. 98, dated 31.07.2014, Article 3)*

The refusal or failure of the elected persons or public servants or any other person being subject to the legal obligation to make the declaration in accordance with the law to declare the assets shall, where disciplinary measures have previously been taken, consist a criminal offence and it shall be punished by a fine or up to 6 months imprisonment.

Hiding or false declaration of assets, private interests, by the elected persons or of the public employees is punishable by fine or imprisonment up to three years.

Article 258

Breaching the equality of participants in public bids or auctions

(Amended by Law no. 23/2012, dated 01.03.2012, Article 34)

Commitment of actions in breach of the laws which regulate the freedom of participants and the equality of citizens in bids and public auctions, by a person holding state functions or public service in order to create illegal advantage or benefits for third parties, is punishable by imprisonment of up to three years.

Article 259

Passive corruption by persons that exercise public functions

(Amended by Law no. 9275, dated 16.09.2004, Article 22;

the part that provides even the punishment by fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Soliciting or taking, directly or indirectly, by a person who exercises public functions, of any irregular benefit or of any such promise for himself or for a third person, or accepting an offer or promise deriving from an irregular benefit, in order to act or not act in the exercise of his duty, is punishable by imprisonment of from two up to eight years.

Article 259/a

Passive Corruption of Foreign Public Officials

(Added by Law no. 23/2012, dated 01.03.2012, Article 35;

the part that provides even the punishment by fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Soliciting or receiving, directly or indirectly, any improper benefits or such a promise, for oneself or others, or acceptance of an offer or promise arising from an improper benefit, from a foreign public official, employee of a public international organisation, member of a foreign public assembly, or member of an international parliamentary assembly, to perform or not perform an act that relates to his/her function, is punishable by imprisonment of from two to eight years.

Article 260

Passive corruption by high state officials or local elected officials

(Amended by Law no. 9275, dated 16.09.2004, Article 23;

the part that provides for even the punishment by a fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Soliciting or taking, directly or indirectly, by a high state official or a local elected official, of any irregular benefit or of any such promise for himself or for a third person, or accepting an offer or promise deriving from an irregular benefit, in order to act or not act in the exercise of his duty, is punishable by imprisonment of from four up to twelve years.

SECTION III

CRIMINAL ACTS AGAINST PUBLIC ORDER AND SECURITY

Article 261

Impeding the exercise of the right of expression, assembling or protest

Committing acts that impede citizens from exercising the right of expression, assembling or protest constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

When those acts are accompanied with use of physical violence, they are punishable by a fine or up to three years of imprisonment.

Article 262

Organizing or participating in illegal manifestations

(Paragraph 3 is added by Law no. 8733, dated 24.01.2001, Article 59)

Organizing the assembly of people in squares and places of public passage, without prior permission by the competent authority according to the specific provisions or when organizers breach the conditions provided in the request for permission, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Participating in an unlawful assembly even after the dispersal warning has been given, constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

This very act, when committed more than once, or when it brought about serious consequences, does constitute a criminal contravention and is punishable by a fine or imprisonment of up to two years.

Article 263

Organization of unlawful gatherings and manifestations with the participation of armed people

Organizing unlawful assembly with the participation of armed people is punishable by a fine or up to three years of imprisonment.

Participation of armed people in unlawful assembly constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 264

Obligation to participate or not-to participate in a strike

Obligation of an employee against his will to participate or not to participate in a strike or creation of obstacles and problems for the continuation of his employment when the employee wishes to do so, constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

Article 265

Incitement of hatred or disputes

(Amended by Law no. 144, dated 02.05.2013, Article 41)

Inciting hate or disputes on the grounds of race, ethnicity, religion or sexual orientation, as well as intentional preparation, dissemination or preservation for purposes of distributing writings with such content, by any means or forms, shall be punishable by imprisonment of from two to ten years of

Article 265/a

Involvement in military operations in a foreign state

(Added by Law no. 98, dated 31.07.2014)

Involvement in military formations, military or paramilitary organisations in an armed conflict taking place in the territory of a foreign state or participation at any type of training conducted by these structures, without being a citizen of the foreign country, without being a member of the armed forces of one of the parties in conflict or official military missions of the armed forces of a state that is not a party in the conflict, official military missions of an international organisation, is punishable to imprisonment of from three to eight years.

This criminal offence is committed to overthrow the constitutional order or to infringe the territorial integrity of a foreign state shall be sentenced to imprisonment from five to ten years.

Article 265/b

Organising the involvement in military operations in a foreign state

(Added by Law no. 98, dated 31.07.2014)

Incitement, recruitment, organisation, leading, training, making available equipment, establishment or the use of funds or other means for financing, material support to the persons, in any form or fashion, to commit the criminal offence provided for in Article 265/a shall be sentenced to imprisonment from eight to fifteen years.

Article 265/c

Call for involvement in violent military operations in a foreign state

(Added by Law no. 98, dated 31.07.2014)

The public call in whatever form, means or fashion to commit the criminal offence provided for in Article 265/a or 265/b shall be sentenced to imprisonment up to three years.

Article 266

Calls for national hatred

(Words added by Law no. 144, dated 02.05.2013, Article 42)

Endangering public peace by calling for national hatred against other parts of the population, by insulting or defaming them, or by requesting the use of force or arbitrary actions against them, is punishable by imprisonment of from two to eight years.

Article 267

Dissemination of false information to cause panic

Spreading false information or news, in words, in writing, or in any other manner, in order to incite a state of insecurity or panic in people, is punishable by a fine or up to five years of imprisonment.

Article 268

Humiliation of the Republic and its symbols

(Amended by Law no. 23/2012, dated 01.03.2012, Article 36)

Intentional damage to the flag or emblem of the Republic, exhibited in public institutions, shall constitute a criminal offence and is punishable by a fine or imprisonment of up to three months.

Public humiliation of the flag or national anthem, during an activity organised by state authorities, shall constitute a criminal offence and is punishable by a fine or imprisonment of up to three months.

Article 269

Obstruction by use of force of the activity of political parties

Forcible obstruction of the lawful activity of political parties, organizations or associations constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 270

Prisoner's rebellion

Use of force by prisoners against an official holding a state duty or public service, which is made in order to prevent the exercise of the duty or service or because of the activity, is punishable by a fine or up to five years of imprisonment.

When use of force is conducted by a group of persons or is accompanied with riots and disorders or threats and intimidation, it is punishable by a fine or up to ten years of imprisonment.

Article 271

Disinformation of emergency units

Intentionally providing false information to emergency units to hinder their effectiveness, committed by any means of information or communication, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 272

Providing false information to police

Providing false information to police about the commission of a criminal offence, with the intention of placing them into a state of readiness or alarm, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 273

Leaving the scene of an accident

Leaving the scene of an accident by a driver of a vehicle or of any other motorized means of transport, in order to avoid criminal, civil or administrative liability, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 274

Disturbing public peace

Throwing stones or other items into the premises of a citizen, creating disturbing loud noises such as gunshots or other blasts, illegal use of horns, or any other indecent behaviour in streets, squares and public places, which clearly disturb the peace and moral or show open disregard for environmental issues, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 275

Malevolence use of phone calls

Malevolence use of telephone calls made to disturb another's peace constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

Article 276

Unlawful use of the Red Cross emblem

Unlawful use of the emblem of the Red Cross or the Red Crescent, when it has caused serious material consequences, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

When the criminal offence has led to death or serious harm to the health of an individual, it is punishable by a fine or up to ten years of imprisonment.

Article 277

Vigilantism

The exercise of a right by a person who retains the right or he thinks he retains the right which is not recognized by the other person without addressing to the competent State body, constitutes criminal contravention and is punishable by a fine or up to three months of imprisonment.

Article 278

Illegal possession and production of weapons, explosives and ammunition

*(Paragraph 1 and 2 added by Law no. 8279, dated 15.01.1998, Article 2;
paragraph 1, 2 and 3 amended, and paragraph 4 added by Law no. 8733, dated 24.01.2001, Article 60;
amended by Law no. 144, dated 02.05.2013, Article 43;
added and amended by Law no. 98, dated 31.07.2014, Article 5)*

Possession of weapons, explosive weapons or substances in vehicles or in any other self-propelling means in public premises or premises accessible to the public without the leave of the competent state authorities shall be sentenced to imprisonment from three to seven years.

Possession of military ammunition without the leave of the competent state authorities shall consist a criminal contravention and it shall be punished to a fine or to imprisonment up to two years.

Possession of weapons in the residence without the leave of the competent state authorities shall be punished to imprisonment from one up to three years.

Possession of explosive weapons or substances in the residence without the leave of the competent state authorities shall be punished to imprisonment from one up to four years.

The production, sale, purchase, offering for sale, trading and transporting of military weapons and ammunition, explosive substances and weapons, without the leave of the competent state authorities shall be punished to imprisonment from five up to ten years.

The same offence provided for in the fifth paragraph of this Article, where committed in considerable quantities, in complicity, more than once or having incurred serious consequences, shall be punished to imprisonment from seven to fifteen ears.

Forging or deleting, displacing or illegally changing the marks on the military weapons and ammunition shall be punished to imprisonment from one to five years.

Article 278/a

Trafficking of weapons and ammunition

*(Added by Law no. 8733, dated 24.01.2001, Article 61;
words added by Law no. 144, dated 02.05.2013, Article 44)*

Importing, exporting, transiting and trading of military weapons and ammunition or their component parts in conflict with the law, with the purpose of material benefits, or any other benefits, is sentenced to imprisonment of from seven to fifteen years.

This very act, when committed in collaboration or more than once, or when it brought about serious consequences, is sentenced to imprisonment of from ten to twenty years.

Article 279

Illegal Manufacture, carrying, purchase or sale of cold weapons

(Amended by Law no. 144, dated 02.05.2013, Article 45)

Manufacture, possession, purchase or sale of cold weapons such as swords, bayonets, knives, and other means prepared and intended specifically for assaulting people or for self-defence, without the permit of the competent State bodies, is punishable by fine or imprisonment of up to three years.

Carrying, purchase or sale in vehicles or any other motorized means, in public places or places open to the public, of cold weapons such as swords, bayonets, knives and other means prepared and intended specifically for assaulting people or for self-defence, without the permit of the competent bodies punishable to imprisonment from one to five years.

Article 280

Illegal manufacture and possession of hunting and sporting rifles

Manufacture, possession, purchase and sale of hunting or sporting rifles, as well as their ammunition, without the permit of the competent State bodies, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 281

Breach of rules on poisonous substances

Breach of defined rules to keep, manufacture, use, store, transport or sale of poisonous substances with strong effect, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

When the criminal offence has led to death, serious harm to the health of people or other serious material consequences, it is punishable by a fine or up to ten years of imprisonment.

Article 282

Breach of rules on explosive, flammable or radioactive substances

(Amended by Law no. 98, dated 31.07.2014, Article 6)

Breach of defined rules to keep, manufacture, use, store, transport and trade of explosives, flammable or radioactive substances, is sentenced to imprisonment from one to five years.

When the criminal offence has led to death or has caused serious harm to the health of people or other serious material consequences, is sentenced to imprisonment from two up to ten years.

Article 282/a

Trafficking of explosive, flammable, poisonous and radioactive substances

(Added by Law no. 8733, dated 24.01.2001, Article 62)

Import, export, transit and trade of explosive, flammable, poison and radioactive substances, with the purpose of material benefits or any other benefits, is sentenced to imprisonment of from seven to fifteen years.

This very act, when committed in complicity, or more than once, or has brought serious consequences, is sentenced by imprisonment from ten to twenty years.

Article 282/b

Training on unlawful manufacturing and use of weapons and other dangerous substances

(Added by Law no. 9686, dated 26.02.2007, Article 23)

Preparation, training, providing instructions in any form, anonymously or electronically, in conflict with the law, for the production or use of explosives, firearms, and military ammunition, other weapons and biologic, bacteriologic, nuclear materials or of any other kind, hazardous or dangerous to the people and property, when it does not constitute another criminal offence, is sentenced to imprisonment of from two to seven years.

Article 282/c

Import, export, transit, trade, production, possession, transport or distribution of basic chemical substances, or what so ever other substances, technologies, equipment and materials, if it is known that they are used or will be used for the manufacture or trafficking of mass destruction, chemical and biological weapons, shall be punishable by from three up to ten years of imprisonment.

The same offence, when committed in collaboration or more than once, shall be punishable by from five up to fifteen years of imprisonment.

Organization, running and financing of this activity shall be punishable by from ten to twenty years of imprisonment.

Article 283

Production and sale of narcotics

Sale, offer for sale, giving or receiving of any form, distribution, trading, transport, sending, delivering, and keeping, besides cases when it is for personal use and in small doses, of narcotic and psychotropic substances and seeds of narcotic plants, in conflict with the law, is sentenced to imprisonment of from five to ten years.

This very offence, when committed in complicity, or more than once, is sentenced to imprisonment of from seven to fifteen years.

Organization, management or financing of this activity is sentenced to imprisonment from ten to twenty years.

Article 283/a

Trafficking of narcotics

(Added by Law no. 8279, dated 15.01.1998, Article 2;

amended by Law no. 8733, dated 24.01.2001. Article 64)

Import, export, transit and trade of narcotic and psychotropic substances and narcotic plant seeds in contradiction with the law is sentenced to imprisonment from seven to fifteen years.

This very act, when committed in complicity, or more than once, is sentenced to imprisonment from ten to twenty years.

Organization, running or financing of such activity is punishable by imprisonment of not less than fifteen years.

Article 283/b

Facilitation of drugs intake and use

(Added by Law no. 8733, dated 24.01.2001, Article 65)

Facilitation of the intake and use of narcotic or psychotropic substances in contradiction with the respective legal provisions by the persons who because of their duty administer such substances, is punishable by imprisonment from three to seven years.

Article 284

Cultivation of narcotic plants

(Paragraph 1 and 3 amended, paragraph 2 added by Law no. 8733, dated 24.01.2001, Article 66)

Cultivation of plants that serve or are known to serve for the production and extraction of narcotic and psychotropic substances, without permission and authorization by law, is punishable by imprisonment from three to seven years.

The same act, when committed in complicity, or more than once, is punishable by imprisonment from five to ten years.

Organization, running or financing of this activity is punishable by imprisonment from seven to fifteen years.

Article 284/a

Organizing and leading criminal organizations

(Added by Law no. 8279, dated 15.01.1998, Article 2)

Organizing, leading and financing criminal organizations with the goal of cultivating, producing, fabricating or illegal trafficking of the narcotics is punishable by imprisonment of ten up to twenty years.

Creation of conditions or facilities for such activities by persons holding state functions is punishable by imprisonment from five to fifteen years.

Article 284/b

Supporting the disclosure of crimes

*(Added by Law no. 8279, dated 15.01.1998, Article 2;
repealed by Law no. 144, dated 02.05.20013)*

Article 284/c

Production and manufacturing of narcotic and psychotropic substances

(Added by Law no. 8733, dated 24.01.2001, Article 67)

Production, manufacturing, extracting, refining, preparing without license or by surpassing the ingredient limits of narcotic and psychotropic substances, is punishable by imprisonment from five to ten years.

This very act, when committed in complicity, or more than once, is punishable by imprisonment from seven to fifteen years.

Organizing, running, or financing this activity is punishable by imprisonment from ten to twenty years.

Article 284/ç

Production, trade, and illegal use of precursors

(Added by Law no. 8733, dated 24.01.2001, Article 67)

Production, import, export, transit, trade and holding of precursors (that are included, based on the law, in the pertinent charts/tables) is punishable by imprisonment up to five years.

This very act, when committed in complicity, or more than once, is punishable by imprisonment from three to seven years.

Organizing, running, or financing this activity is punishable by imprisonment from five to fifteen years.

Article 284/d

Production and trade of pharmaceuticals and medical devices counterfeited or dangerous to life and health

Production, possession for commercial purposes, sale or offering for sale, supply, distribution, export, import of pharmaceuticals, active substances or auxiliary materials for their production, as well as medical products and devices, accessories, components or their materials counterfeited or dangerous to life and health, shall be punishable by from six months to five years of imprisonment.

If this offence is committed during the exercise of a professional activity, through internet, in collaboration or more than once, it shall be punishable by from three to seven years of imprisonment.

If the same offence has caused serious consequences to life and health, it shall be punishable by imprisonment of not less than ten years.

Article 285

Keeping, producing, and transporting chemical substances

(Amended by Law no. 8733, dated 24.01.2001, Article 68)

Production, keeping, transportation or distribution of basic or other kind of chemicals, equipment, materials, if it is known that they are used or will be used to illegally produce or traffic narcotic or psychotropic substances, is punishable by imprisonment from three to ten years.

Article 285/a

Adjusting of premises for drugs use

(Added by Law no. 8733, dated 24.01.2001, Article 69)

Adjusting or allowing the adaptation of premises, buildings, vehicles and any other public or private means in order to gather people; so that, they may use narcotic or psychotropic substances, is punishable by imprisonment up to five years.

Article 285/b

Throwing away or getting rid of syringes

(Added by Law no. 8733, dated 24.01.2001, Article 69)

Throwing away or leaving behind syringes used for narcotic and psychotropic substances, in public places or sites that are considered open for the public and in private premises, does constitute a criminal contravention and is punished by a fine or imprisonment up to one year.

Article 286

Inducing the use of drugs

(Amended by Law no. 8733, dated 24.01. 2001, Article 70)

Urging/ other people to use narcotic and psychotropic substances or giving them for use or injecting them to other people without their knowledge or consent, is punished by imprisonment from five to ten years.

When the inducing or forced injection is conducted upon children or in penitentiary, educational, sport or any other institutions providing social activity, it is punishable not less than fifteen years of imprisonment.

Article 286/a

Illegal use of high technology

(Added by Law no. 8733, dated 24.01.2001, Article 71)

Production and running of telematics systems, equipment, and means of high technology, in cases of criminal acts provided for in the Articles 283 until 286/a of this Code, or when this technology is used to facilitate or enable the consumption of narcotic or psychotropic substances, or broadcasting advertisements to promote their use, is punishable by imprisonment up to five years.

Article 287

Laundering the Proceeds of Criminal Offence or Criminal Activity

(Amended by Law no. 9086, dated 19.06.2003, Article 8;

letter "dh" added by Law no. 9275, dated 16.09.2004, Article 24;

letter "a" point 1, amended;

letter "ç" repealed by Law no. 9686, dated 26.02.2007, Article 24;

amended by Law no. 23/2012, Article 37;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Laundering of the proceeds of a criminal offence or criminal activity, through:

- a) Exchange or transfer of property, for purposes of concealing or disguising its illicit origin, knowing that such property is a proceed of a criminal offence or activity;
- b) Concealing or disguising the real nature, source, location, disposition, relocation, ownership or rights in relation to the property, knowing that such property is a proceed of a criminal offence or activity;
- c) Obtaining ownership, possession or use of property, knowing at the time of its acquisition, that such property is a proceed of a criminal offence or activity;
- (ç Conducting financial operations or fragmented transactions to avoid reporting, according to the legislation on the prevention of money laundering;
- d) Investing money or items in economic or financial activities, knowing that they are proceeds of a criminal offence or activity;
- dh) advising, assisting, inciting or making a public call for the commission of any of the offences defined above;

-shall be punished by imprisonment of five to ten years.

Where that offence has been committed in the exercise of a professional activity, in complicity, or more than once, it shall be punished by imprisonment of seven to fifteen years.

Where that offence has caused grave consequences, it shall be punished by imprisonment of no less than fifteen years. The provisions of this Article shall apply where:

- a) The criminal offence, the proceeds of which are laundered, has been committed by a person who cannot be prosecuted as a defendant or who cannot be punished;
- b) Criminal prosecution for the offence the proceeds of which are laundered, has reached the statute of limitations or has been amnestied;

- c) The person who performs laundering of the proceeds is the same person who committed the offence, from which the proceeds have derived;
- (ç) No criminal prosecution has been initiated, or no punishment has been imposed by a final criminal decision in relation to the criminal offence, from which the proceeds have derived;
- d) The offence, the proceeds of which are laundered, has been committed by a person, regardless of his citizenship, outside of the territory of the Republic of Albania, and is also punishable both in the foreign country and Republic of Albania.

Knowledge and intent, under the first paragraph of this Article, shall be derived from objective factual circumstances.

Article 287/a

Opening of the anonymous accounts

(Amended by Law no. 9086, dated 19.06.2003, Article 9;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Opening of deposits or bank accounts, anonymously or in fictitious names, is punished by imprisonment of up to three years.

Article 287/b

Appropriation of Money or Goods Resulting from Criminal Offence or Criminal Activity

(Added by Law no. 9686, dated 26.02.2007, Article 25;

amended by Law no. 23/2012, dated 01.03.2012, Article 38;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Whoever buys, receives, conceals or, in any way, appropriates for himself or a third party, or assists in purchasing, receiving, concealing or using money or other goods, knowing that another person has benefitted the money or goods as a result of committing a criminal offence or activity, shall be punished by imprisonment of six months to three years.

The first paragraph of this Article shall be applicable despite the legal prohibition to hold the person who has committed the criminal offence criminally liable, from which appropriation of money or other goods has resulted.

Article 288

Producing and selling food and other substances dangerous to the health

Producing, importing, storing or selling foods, drinks and other substances, or drugs which are dangerous or harmful to life or health, as well as introducing chemicals, materials or additive substances into the

production and processing of food and drinks, when those acts led to death or serious harm to the health of an individual, is punishable by fine or up to ten years of imprisonment.

When the act has caused death or serious harm to the health of more than one person, it is punishable by no less than five years of imprisonment.

Article 288/a

Illegal production of industrial and food items/commodities

(Added by Law no. 8733, dated 24.01.2001, Article 73)

Illegal production of industrial and food items/commodities constitutes a criminal contravention and is punishable by a fine or imprisonment up to two years.

This very act, when committed in complicity, or more than once, or when it brings about serious consequences, is punished by imprisonment from three to ten years.

Article 288/b

Trade and release for consumption of combustible substances contrary to legal standards of quality

Falsification, trade or release for consumption of counterfeited oil sub products, which are used as combustible substance, as provided for in the legislation in force for processing, transportation and trade of oil and sub products thereof, shall be punishable by imprisonment up to five years.

The same offence, when committed in collaboration, more than once, or has caused serious material damages and damages to health, or ecosystem destruction, shall be punishable by from three to ten years of imprisonment.

Article 289

Breach of safety rules at work

Causing death or serious harm to the health of an individual because of disregard of rules related to work, production, service, provided for by laws, acts of the Council of the Ministers or in the pertinent regulations of technical safety, technical discipline, work-related protection, hygiene and fire safety by an individual designated \to respect those rules and to implement them, is punishable by a fine or up to ten years of imprisonment.

When the criminal act has caused death or serious harm to the health of more than one person, it is punishable by no less than five years of imprisonment.

Article 290

Violation of road traffic regulations

(Amended by Law no. 144, dated 02.05.2013, Article 46)

Violation of road traffic regulations, when it causes minor injuries to more than one person, shall be punishable by a fine or up to one year of imprisonment.

Violation of road traffic regulations, when it causes the serious injury of a person shall be punishable by one to five years of imprisonment.

Violation of road traffic regulations, when it causes the death of a person shall be punishable by two to ten years of imprisonment

When the criminal offence causes the death or serious injury of more than one person, it shall be punishable by five to twenty years of imprisonment.

Article 291

Driving vehicles inappropriately

(Amended by Law no. 144, dated 02.05.2013, Article 47;

amended by Law no. 98, dated 31.07.2014, Article 7)

Driving the vehicles or the other motor-driven means under the impact of the alcohol, under the impact of narcotics or in absence of the respective driving licence shall be sentenced to imprisonment from ten days up to three years.

The court may decide the replacement of the imprisonment sentence to the payment of an amount to the benefit of the state.

Article 292

Violation of working-standards in transportation

Violation of working-standards in railway, water, or air transportation by transport employees, which has caused death or serious harm to the health of an individual, is punishable by a fine or up to ten years of imprisonment.

When the criminal offence has caused death or serious injury to more than one person, it is punishable by no less than five years of imprisonment.

Article 293

Obstructing the movement of transport vehicles

Placing obstacles in the way of, or blocking by any means, the movement of any means of transportation, whether automobile, railway, water or air transport is punishable by a fine or up to three years of imprisonment.

Article 293/a

Unlawful wiring of computer data

(Added by Law no. 10023, dated 27.11.2008, Article 23)

Unlawful wiring through technical equipment of non-public transmissions of the computer data from/or within a computer system including electromagnetic emissions from one computer system that contains such computer data is punishable by imprisonment from three to seven years.

When this very act is committed from/or within military, national security, public order, civil protection computer systems or in any other computer system of public importance, it is punishable by imprisonment from seven to fifteen years.

Article 293/b

Interference in computer data

(Added by Law no. 10023, dated 27.11.2008, Article 23;

added by the Law no. 36/2017)

Unauthorized damaging, distorting, modifying, deleting or suppressing of computer data is punishable with imprisonment from six months to three years.

When this very act is committed on military, national security, public order, civil protection and healthcare computer data or on any other computer data of public importance, it is punishable by imprisonment from three to ten years.

When the actions foreseen in paragraph 1 are committed by a child, the provisions of the Code of Justice for Children shall apply in relation to the child.

Article 293/c

Interference in computer systems

(Added by Law no. 10023, dated 27.11.2008, Article 23;

added by the Law no. 36/2017)

Creating serious and unauthorized obstacles in order to harm the operation of a computer system, through entering, damaging, distorting, modifying, deleting or suppressing the data is punishable by imprisonment from three to seven years.

When this very act is carried out in military, national security, public order, civil protection and healthcare computer systems or in any other computer system of public importance, it is punishable by imprisonment from five to fifteen years.

When the actions foreseen in paragraph 1 are committed by a child, the provisions of the Code of Justice for Children shall apply in relation to the child.

Article 293/ç

Misuse of equipment

(Added by Law no. 10023, dated 27.11.2008, Article 23)

Manufacturing, keeping, giving for use, disseminating or any other action to place at disposal an equipment including a computer software, computer password, access code or another similar data that have been created or adjusted to access a computer system or a part thereof, aiming to commit a criminal

offence envisaged by Articles 192/b, 293/a, 293/b and 293/c of this Code is punishable by imprisonment from six months to five years.

Article 293/d

Unauthorised sale of SIM cards

(Added by Law no. 98, dated 31.07.2014, Article 8)

The infringement of the rules set out for the distribution, sale and provision with products/SIM cards shall consist a criminal contravention and shall be punished to a term of thirty days up to six months of imprisonment.

SECTION IV

CRIMINAL ACTS AGAINST STATE SECRETS AND STATE BORDERS

Article 294

Disclosure of state secrets by a person entrusted with the information

Disclosure, dissemination and informing of facts, figures and contents of documents or materials which, according to a publicly known law, constitute state secrets, by the person entrusted with it or who became aware of such information because of his capacity, is punishable by a fine or up to five years of imprisonment.

When the same act is committed publicly, it is punishable by a fine or up to ten years of imprisonment.

Article 295

Disclosure of state secrets by citizens

Disclosure, dissemination and informing of facts, figures, and contents of documents or materials that, according to a publicly known law, constitute state secrets, by any person who becomes informed of them, is punishable by a fine or up to three years of imprisonment.

When the same act is committed publicly, it is punishable by a fine or up to five years of imprisonment.

Article 295/a

Disclosure of secret documents or data

(Added by Law no. 9686, dated 26.02.2007, Article 26;

amended by Law no. 23/2012, dated 01.03.2012, Article 56)

Disclosing to third parties the data or assisting to disclose the data that the law provides for as secret, by a public official or a person in charge of a public service, contrary to the regular exercise of duties or abusing with official capacities, is punishable by fine or imprisonment up to five years.

Disclosing to third parties of data, that constitute industrial or professional commercial secret, by public persons that have the duty to preserve them, is punishable by fine or imprisonment up to three years.

Disclosing of secret documents or data contained in secret documents by the prosecutor of the judicial police officer, as well as the failure to comply with the obligations defined in Article 103 of the Criminal Procedure Code, is punishable by imprisonment from one up to five years.

Disclosing of secret documents or data contained in secret documents by other persons that have information about a criminal proceeding and are warned by the prosecutor or the judicial police officer on the obligation not to disclose information, is punishable by imprisonment up to three years.

Disclosing of secret data related to the identity, collaboration or protection process, or location of witnesses and justice collaborators, who benefit special protection according to legislation in force, is punishable by imprisonment from two to six years.

Disclosing of a secret that resulted in death, serious injury or serious danger to life and health of witnesses or justice collaborators, their family members or police officers in charge of their protection, is punishable by imprisonment from three up to eight years.

Article 295/b

Illicit Use of Trade Data

(Added by Law no. 23/2012, dated 01.03.2012, Article 39)

Trading a product or providing a service through the use of information or data that constitute a trade secret or privileged information by persons who have or should have the information or data, shall be punished by a fine or imprisonment of up to four years.

Article 296

Loss of secret documents

Loss of documents or other materials, which, according to a publicly known law, constitute state secrets, by the person in charge of their protection and use, is punishable by a fine or up to three years of imprisonment.

Article 297

Illegal crossing of the state borders

*(Added by Law no. 8279, dated 15.01.1998, Article 2;
amended by Law no. 9188, dated 12.02.2004, Article 8)*

Illegally crossing the state borders constitutes a criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 298

Assistance for illegal crossing of borders

*(Amended by Law no. 9188, dated 12.02.2004, Article 9;
title and paragraph 1 amended by Law no. 9686, dated 26.02.2007, Article 27;
amended by Law no. 23/2012, dated 01.03.2012, Article 56;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48/2013)*

Sheltering, accompanying, putting at the disposition or use of means of sea transport, air transport or other means of transport, with the purpose of assisting in the illegal crossing of the borders of the Republic of Albania or in the illegal entrance of a person in another country without being its citizen or without residence permit for that country, is punished with imprisonment of from one to four years.

When the assistance is given for purposes of profit, it is punished with imprisonment of from three to seven years.

When this offence is committed in collaboration or more than once or has brought serious consequences, it is punished with imprisonment of from five to ten years.

When the offence has led to the death of the victim as a consequence, it is punishable with imprisonment of no less than fifteen years or with life imprisonment. When the criminal offence is committed through the utilization of a state function or public service, the punishment is increased by one fourth of the punishment given.

Article 299

Breach of flight rules

Breach of international flight rules such as entering or leaving the territory of the Republic of Albania without a flight permit, ignoring flight lanes, landing places, flight corridors or designated flying altitude, is punishable by a fine or up to five years of imprisonment.

CHAPTER IX

CRIMINAL ACTS AGAINST JUSTICE

Article 300

Failure to report a crime

Failure to report, to the criminal prosecution bodies, to the court, to the public order bodies, [or to the appropriate] authorities or administration, a crime that is being committed or which has been committed, is punishable by a fine or up to three years of imprisonment.

Lineal ascendants and descendants, brothers and sisters, spouses, stepparents and stepchildren, as well as persons obliged to keep secrecy because of their capacity or profession, are excluded from the obligation to report.

Article 301

Obstruction of justice

Committing actions to change the crime scene by spoiling, changing or removing traces or by moving, hiding, annihilating, stealing, falsifying an item or document with the intent of increasing the difficulty on preventing the discovery of a criminal act and its perpetrator, is punishable by a fine or up to three years of imprisonment.

Article 302

Supporting the Perpetrator

(Paragraph 2 added by Law no. 9275, dated 16.09 2004, Article 25;

paragraph 2 added by Law no. 9686, dated 26.02.2007, Article 28)

Supplying the perpetrator of a crime with food, other means of living, or providing him housing, lodging or with any other assistance with the intent of preventing his discovery from search, apprehension or arrest, is punishable by a fine or up to five years of imprisonment.

The same crime when committed in association to criminal crimes provided in Articles 73, 74, 75, 79, 219, 220, 221, 230, 230/a, 230/b, 231, 232, 232/a, 234/a, 234/b, 284/a, 333, 333/a, of this Code, it is punishable with imprisonment for a term of from two to seven years.

Lineal ascendants and descendants, brothers and sisters, spouses, stepparents and stepchildren are excluded from criminal responsibility.

Article 303

Hiding or disposing of a corpse

Hiding or disposing of the corpse of a murder victim, or other violent acts, committed with the intent of assisting the perpetrator to evade from a search, apprehension and arrest, is punishable by a fine or up to five years of imprisonment.

Article 304

Obligation to report the evidence

Failing to appear promptly to report or testify before the prosecutor, court or public order bodies about the known evidence which exculpates an accused or convicted person from a criminal offence, is punishable by a fine or up to five years of imprisonment.

The perpetrator of the criminal act, as well as the individuals who become aware of the evidence because of their capacity and profession and due to this reason are compelled not to report or testify, are excluded from the obligation to report.

Article 305

False reporting

Falsely reporting a crime that has not been committed, or falsely reporting a person who is known that has not committed a crime, as well as fabricating false evidence with the intent of commencing criminal proceedings, is punishable by a fine or up to five years of imprisonment.

Article 305/a

False declarations before the prosecutor

(Added by Law no. 9686, dated 26.02.2007, Article 29)

Whoever that, during investigations or criminal proceedings, is interrogated by a prosecutor to give appropriate information on the investigation, gives oral or written information knowing that this information is, completely or partially, false or hides facts or evidence is punishable by fine or imprisonment up to one year.

The provisions of this Article are not applicable if the act was committed at any stage of the criminal proceedings by a suspect or defendant for the criminal offence or by a person that should have been exempted of the obligation to give information or testimony for any legal ground, or by a person that was not warned for the right not to testify or answer questions.

Article 305/b

False declarations before the judicial police officer

(Added by Law no. 9686, dated 26.02.2007, Article 29)

Whoever that, during an investigation is interrogated by a judicial police officer to provide appropriate information, gives verbal or written information knowing that this information is completely or partially false, or hides facts or evidence, commits a criminal contravention which is punishable by fine or imprisonment of up to six months.

The provisions of this Article are not applicable if the act was committed at any stage of the criminal proceedings by a suspect or defendant for the criminal act or by a person that should have been exempted by the obligation to give information or testimony for any legal ground, or who was not warned for the right not to testify or to answer questions.

Article 306

Perjury

*(Paragraph 1 amended by Law no. 8733, dated 24.01. 2001, Article 75;
paragraph 3 added by Law no. 9275, dated 16.09.2004, Article 26;*

paragraph 3 amended by Law no. 9686, dated 26.02.2007, Article 30)

Perjury in front of the court constitutes a penal contravention punishable by a fine or imprisonment up to two years.

When the false testimony is given for purposes of profit or any other interest given or promised, it is punishable by a fine or up to three years of imprisonment.

When this offence is committed in relation to criminal offences provided by Articles 234/a, 234/b, 284/a, 333, 333/a, of this Code, it is punishable with imprisonment for a term of two to six years.

Article 307

Refusing to testify

(Paragraph 2 amended, last paragraph added by Law no. 9686, dated 26.02.2007, Article 31)

Refusing to answer questions concerning knowledge of a criminal offence or its perpetrator, constitutes criminal contravention and is punishable by a fine or up to one year of imprisonment.

When the refusal to testify is made for purposes of profit or any other interest given or promised, it is punishable by imprisonment from one up to four years.

The provisions of this Article are not applicable if the act was committed at any stage of the criminal proceedings by a suspect or defendant for the criminal act or by a person that should have been exempted by the obligation to give information or testimony for any legal ground, or by a person that was not warned for the right not to testify or to answer questions.

Article 308

False translation

Intentional distortion of the content of a document or writing offered for translation by the criminal prosecution bodies or by the court, or false translation committed in front of them constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

When the false translation is made for purposes of profit or any other interest given or promised, it is punishable by a fine or up to three years of imprisonment.

Article 309

False expertise

Intentional provision of false results of reports conducted by an expert, in writing or verbally before criminal prosecution body or before the court is punishable by a fine or up to three years of imprisonment.

When false expertise is provided for purposes of profit or any other interest given or promised, it is punishable by a fine or up to five years of imprisonment.

Article 310

Failure to appear as a witness, expert or translator

Failure to appear as a witness, expert or translator, without reasonable cause, or refusal to carry out duties assigned by the criminal prosecution body or the court, constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

Article 311

Intimidation not to report

(Amended by Law no. 9686, dated 26.02.2007, Article 32;

amended by Law no. 23/2012, dated 01.03.20012, Article 56)

Intimidation of the person aggrieved by the criminal offence, with the intention to make him not denounce, complain or to withdraw the lawsuit or complaint filed, is punishable by imprisonment from one up to four years.

Article 312

Active corruption of the witness, expert or interpreter

(Amended by Law no. 9275, dated 16.09.2004, Article 27;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Direct or indirect proposal, offer, or giving to a witness, expert or translator any irregular benefit for himself or a third party in order to secure false declarations or testimony, expertise or translation or to reject carrying out their obligation to the criminal prosecution bodies and the court is punished with a prison term of up to four years.

Article 312/a

Intimidation to issue false statements, testimonies, expertise or interpretation

(Added by Law no. 9275, dated 16.09.2004, Article 28;

amended by Law no. 9686, dated 26.02.2007, Article 33)

Intimidation or other violent acts to a person to secure false declarations or testimony, expertise or translation or to reject carrying out their obligation to the criminal prosecution bodies and the court is punished with a prison term of one up to four years.

Article 313

Unlawful commencement of prosecution

Unlawful commencement of prosecution by the prosecutor against a person who is known to be innocent is punishable by a fine or up to five years of imprisonment.

Article 313/a

Disappearance or loss of files

(Added by Law no. 8733, dated 24.01.2001, Article 77)

Disappearance or loss of any kind of investigation files and court case files, or removing parts of documents, or other data attached to them, when they brought about serious consequences at the detriment of citizens or the state, is punishable by a fine or imprisonment up to five years.

Article 313/b

Prohibition on providing and publishing data contrary to the law

(Added by Law no. 9275, dated 16.09.2004, Article 29;

amended by Law no. 23/2012, dated 01.03.2012, Article 56;

Amended by the Law no. 36/2017)

1. Disclosure or publication, in whatever form and contrary to the law, of classified and confidential data that endanger life, physical integrity or freedom of the protected persons, according to the legislation in force on the protection of witnesses and justice collaborators, in order to detect these persons, shall be punished by fine or up to two years of imprisonment.
2. When commission of this criminal offence results in serious consequences on their health the punishment shall be imprisonment from 6 months to three years.
3. When this offence is committed by one of the persons who are entitled to protect the classified and confidential character of the information, it is punishable with fine or imprisonment for a term of up to three years and, when from the commitment of this offence have come serious consequences to their health, it is punishable with an imprisonment term of two to five years.
4. When the offence has caused the death as a consequence, it is punishable with imprisonment from three to ten years.

Article 314

Use of violence during investigation

Use of violence by the person in charge of an investigation to force a citizen to make a statement, give testimony or confess his guilt or someone else's guilt, is punishable by three to ten years of imprisonment.

Article 315

Unfair sentencing

(Repealed by the Constitutional Court Decision no.11, dated 02.04.2008)

Article 316

Opposing and assaulting a judge

Violently opposing, assaulting or committing other violent acts against a judge or other members of the judicial panel, a prosecutor, defence lawyer, experts, any arbitrator assigned to a case, with the intent to prevent him from carrying out his duty or because of it, is punishable by a fine or up to seven years of imprisonment.

Article 317

Threat to a judge

A threat to a judge, other members of a judicial panel, prosecutor, defence lawyer, experts, or every arbitrator assigned to a case because of their activity, is punishable by a fine or up to three years of imprisonment.

Article 318

Insulting a Judge

(Amended by Law no. 23/2012, dated 01.03.2012, Article 40)

Insulting a judge or members of a judicial panel, prosecutor, defence lawyer or member of the arbitration, because of their activity in a case, constitutes criminal offence and is punishable by a fine or imprisonment of up to three months.

Article 319

Active corruption of judges, prosecutors and other justice officials

(Amended by Law no. 9275, dated 16.09.2004, Article 30;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Direct or indirect promising, proposal or offering of any irregular profit, for oneself or a third party, to a judge, prosecutor or any other employee of the judicial bodies in order to perform or omitting to perform an action relating to their duty, is punishable with a prison term of one to four years.

Article 319/a

Active Corruption of a Judge or Official of International Courts

(Added by Law no. 23/2012, dated 01.03.2012, Article 42;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Promising, proposing or offering, directly or indirectly, any kind of improper benefit for oneself or other persons, to a judge or official of international courts, for performing or omitting to perform an action relating to his/her duty or function is punishable by imprisonment of one to four years.

Article 319/b

Active Corruption of a Domestic and Foreign Arbitrator

*(Added by Law no. 23/2012, dated 01.03.2012, Article 42;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Promising, proposing or giving, directly or indirectly, any kind of improper benefit for oneself or other persons, to a foreign or domestic arbiter, for performing or omitting to perform an action that relates to his/her duty, is punishable by imprisonment of one to four years.

Article 319/c

Active Corruption of Members of the Foreign Courts Juries

*(Added by Law no. 23/2012, dated 01.03.2012, Article 42;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Promising, proposing or giving, directly or indirectly, any kind of improper benefit for oneself or other persons, to members of foreign courts juries, for performing or omitting to perform an action that relates to their duties, shall be punished by imprisonment of one to four years.

Article 319/ç

Passive corruption of the judges, prosecutors and other justice officials

*(Added by Law no. 9275, dated 16.09.2004, Article 31;
numbered by Law no. 23/2012, dated 01.03.2012, Article 41;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Direct or indirect solicitation or reception of any irregular benefit or any such offer for oneself or a third person, by a judge, prosecutor, or other employees of the judicial bodies, or acceptance of an offer or promise deriving from an irregular benefit by the judge, prosecutor or other officials of the judicial bodies for performing or omitting to perform an action relating to their duty or function is punishable with a prison term of three up to ten years.

Article 319/d

Passive Corruption of a Judge or Official of International Courts

*(Added by Law no. 23/2012, dated 01.03.2012, Article 43;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Soliciting or receiving, directly or indirectly, of any kind of improper benefit or promise for oneself or other persons, or acceptance of an offer or promise of an improper benefit, by a judge or official of an

international court, for performing or omitting to perform an action relating to his/her duty or function, is punishable by imprisonment of three to ten years.

Article 319/dh

Passive Corruption of a Domestic and Foreign Arbitrator

*(The part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Solicitation or receiving, directly or indirectly, of any kind of improper benefit or promise, for oneself or other persons, or acceptance of an offer or promise deriving from an improper benefit, by a domestic or foreign arbitrator for performing or omitting to perform an action related to his/her duty or function, is punishable by imprisonment of two to eight years.

Article 319/e

Passive Corruption of Members of the Foreign Court Juries

*(Added by Law no. 23/2012, dated 01.03.2012, Article 43;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Solicitation or receiving, directly or indirectly, of any kind of improper benefit or promise, for oneself or other persons, or acceptance of an offer or promise deriving from an improper benefit, by a member of foreign court juries, for performing or omitting to perform an action related to his/her duty or function, is punishable by imprisonment of two to eight years.

Article 320

Preventing the enforcement of court decisions

Hiding, altering, using, damaging or destroying the possessions which have been the subject of a court decision, or carrying out other acts with the intent to not execute or impede the enforcement of the court's decision, constitutes criminal contravention and is punishable by a fine or up to two years of imprisonment.

Article 320/a

The failure to execute the court decision without grounded reasons

(Added by Law no. 8733, dated 24.01.2001, Article 78)

The failure to execute the criminal or civil decision of the court, with no grounded reasons, by the employee charged with the execution of the decisions, constitutes a criminal contravention and is punishable by a fine or imprisonment up to two years.

When this act is committed in order to obtain/solicit benefits or any other interests, given or promised, and when it favours persons that are interested not to see the decision being executed, it is punishable by a fine or imprisonment up to three years.

Article 321

Acts contrary to the decisions of the court

(Paragraph added by Law no. 23/2012, dated 01.03.2012, Article 44)

Committing acts contrary to a court decision, in connection with duties arising from protection orders issued by it, shall constitute a criminal offence and is punishable by imprisonment of up to two years.

Article 322

Destruction of seals and signs

Intentional destruction of seals and other signs placed on different objects by the criminal prosecution and judicial bodies constitutes criminal contravention and is punishable by a fine or up to six months of imprisonment.

Article 323

Escape of the prisoner from the place of detention

Escape of a person under arrest, custody, or of a person sentenced to imprisonment from the place of (mandatory) detention or during his transportation from one place to the other, is sentenced up to five years of imprisonment.

When the criminal offence is committed violently or through the use of firearms, inflammable material, explosives or poisonous material, it is punishable by five to fifteen years of imprisonment.

Article 324

Assisting a prisoner to escape

Providing advice, information, tools for a detained, arrested or imprisoned person in order to escape from the place of mandatory detention, shall be punishable by from three to seven years of imprisonment.

When the assistance is given by a person in charge of guarding, supervising or transporting, or who, because of his capacity has the right to enter in penitentiary institutions or make contacts with detainees, arrested or imprisoned persons, it is punishable by five to ten years of imprisonment.

Article 324/a

Introduction or possession of prohibited items into institutions for enforcement of sentences of imprisonment

Introduction or possession of prohibited items into institutions for enforcement of sentences of imprisonment, which according to legislation in force are prohibited, shall be punishable by from one to three years of imprisonment.

The same offence, when committed in collaboration, more than once, or by the person whose task is to safeguard or to ensure physical safety, or because of his duty or profession has the right to enter in penitentiary institutions, shall be punishable by from five to ten years of imprisonment.

CHAPTER X

CRIMINAL ACTS AFFECTING FREE ELECTIONS AND THE DEMOCRATIC SYSTEM OF ELECTIONS

Article 325

Obstructing Electoral Subjects

(Amended by Law no. 23/2012, dated 01.03.2012, Article 45;

amended by Law no. 89/2017, Article 1)

Obstruction by means of threat, violence, or any other means, of electoral subjects or candidates to conduct their activities in accordance with the law during the election campaign, is punishable by imprisonment of one year up to five years.

Article 326

Falsification of Election Material and Election Results

(Amended by Law no. 23/2012, dated 01.03.2012, Article 46;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Counterfeiting, distributing or using voting ballots, election documents and material, for purposes of changing the election result, by presenting in them data which are known to be inaccurate, replacing accurate data with inaccurate data, or through unlawful ballot casting in the box, is punishable by imprisonment of one to five years.

Where that offence has been committed by persons who have a duty to administer the electoral process, or has caused serious consequences in the voting process, has adversely affected the integrity of election result, and caused them to be invalid, is punishable by imprisonment of three to seven years.

Article 326/a

Intentional Damaging of Electoral Material

(Added by Law by Law no. 23/2012, dated 01.03.2012, Article 47;

the part that provides Fine as main punishment in addition to imprisonment

repealed by Law no. 144, dated 02.05.2013, Article 48)

Intentional damaging, deteriorating, destroying, or replacing contrary to the law equipment, seals, security codes or any other election material as provided for by law, is punishable by imprisonment of six months to five years.

Where those offences have been committed by persons responsible for electoral administration, or in complicity, or more than once, or where those offences have caused serious consequences in the elections progress, and caused them to be invalid or adversely affected voting result, they are punishable by imprisonment of three to eight years.

Article 327

Violating voting secrecy

(Amended by Law no. 23/2012, dated 01.03.2012, Article 48;

amended by Law no. 89/2017, Article 2)

The violation of the rules that guarantee the voting secrecy by the voter, through photographing the voting ballot or filming it or through the documentation by any means and form of the voting way, displaying them to other people, constitutes a criminal offence and is punishable by imprisonment of three months up to three years.

The violation of the rules which guarantee the voting secrecy by the people in charge of the elections constitutes a criminal offence and is punishable by imprisonment of six months up to three years.

The encouragement with or without a compensation or the constraining of the elector to violate the rules which guarantee the voting secrecy according to the first paragraph of this Article constitutes a criminal offence and is punishable by imprisonment of one year up to four years.

Article 327/a

Voting More Than Once or without Being Identified

(Added by Law no. 23/2012, dated 01.03.2012, Article 49;

amended by Law no. 89/2017, Article 3)

Voting more than once in the same elections, voting for other persons, presenting false identification documents, or using documents of other voters is punishable by imprisonment of one to three years.

Intentional allowing by election commissioners of the commission of that offence is punishable by imprisonment of one to five years.

Intentional allowing by election commissioners of voting without identifying the citizens in compliance with the law constitutes a criminal offence and is punishable by imprisonment of six months to three years.

Article 328

Active corruption in elections

(Amended by Law no. 89/2017, Article 4)

Offering or giving money or material goods, making promises for employment or other favours in any form, in contradiction with the law, for the voter or other persons in order to get signatures to field a candidate in elections, to vote in a certain way, to participate or not to participate in voting, or to get engaged into an illegal activity to support a candidate or political party, constitutes a criminal offence and is punishable by imprisonment of one year up to five years.

Article 328/a

Using the public function for public or electoral activities

(Amended by Law no. 89/2017, Article 5)

The participation of an employee who carries out a state duty in the civil service or in a non-political function in the state administration, in contradiction with the law, in the electoral activities or campaign of one political party or of a candidate in elections, constitutes a criminal offence and is punishable by imprisonment of 6 months to three years.

The obligation or the organization of the pupils of the pre-university education, by employees who carry out a state duty in the public education, or a task or function in the private education, to participate in the electoral activities of an electoral subject constitutes a criminal offence and is punishable by imprisonment of six months to three years.

The obligation or the request addressed to the citizens by an employee who carries out a state task, to participate or not to participate in the elections, to support or not a political party or one candidate in the elections, or to vote in a certain way, against their will or under the threat of exercising administrative or disciplinary measures constitutes a criminal offence and is punishable by imprisonment of one year to three years.

The use of the public goods, the function or the state activity or of the financial or human resources by an employee, who carries out a state duty, to favour a political party or a candidate in the elections, in contradiction with the law and the purpose of the duty constitutes a criminal offence and is punishable by imprisonment of one year to three years.

Article 328/b

Passive corruption in elections

(Added by Law no. 89/2017, Article 6)

The request or the acceptance by the voter of money, material goods or other favours in any form in contradiction with the law, for one's own self or for the others, to provide the signature to field a candidate in the elections, to vote in a certain way, to participate or not in the elections or to get engaged in illegal activities in support of a candidate or political party constitutes a criminal offence and is punishable by imprisonment of one year to five years.

Article 329

Intimidation or Abuse against Participants in Election

*(Amended by Law no. 23/2012, dated 01.03.2012, Article 52;
amended by Law no. 89/2017, Article 7)*

Intimidating a voter to vote in a certain way, or to participate or not participate in voting, constitutes criminal offence and is punishable by imprisonment of six months to three years.

Intimidating or using violence against a commissioner, observer, vote-counting staff, and any other official in charge of election, in order to prevent him or her from performing his or her duty, or due to his or her activity in electoral administration, is punishable by imprisonment of one year to four years.

When this offence is committed in complicity, or more than once, it is punishable by imprisonment of two to five years.

Article 330

Obstructing Voters

*(Amended by Law no. 23/2012, dated 01.03.2012, Article 53;
amended by Law no. 89/2017, Article 8)*

Obstructing a voter to vote at his or her polling centre, in violation of the voting rules, by taking or damaging his or her identification document, or in any other form, is punishable by imprisonment of one year to five years.

Where that offence is committed more than once, against more than one voter, or by the election commissioners, it is punishable by imprisonment of three to seven years.

Article 330/a

Abandonment of Duty by Election Commission Members

*(Added by Law no. 23/2012, dated 01.03.2012, Article 54;
amended by Law no. 89/2017, Article 9)*

Abandonment of duty or refusal to perform duties by persons responsible for managing the voting and counting process, constitutes criminal offence and is punishable by imprisonment of six months to three years.

Where those offences have been committed by taking with oneself or removing election materials, or caused serious consequences in the voting process, or caused the elections be invalid, it is punishable by imprisonment of two to seven years.

Article 331

Violating the Voting Rights

*(Amended by Law no. 23/2012, dated 01.03.2012, Article 55;
the part that provides Fine as main punishment in addition to imprisonment
repealed by Law no. 144, dated 02.05.2013, Article 48)*

Intentional exclusion from the voter list of persons who have the right to vote, or intentional registration in the voter list of persons who do not have this right, is punishable by imprisonment of one to five years.

Where that offence has been committed in complicity, and has caused grave consequences to voter interests and the election process, it is punishable by imprisonment of two to five years.

Article 331/a

Obtaining or using the identification documents illegally

(Added by Law no. 89/2017, Article 11)

The provision of the identification document to use it illegally for elections, to guarantee the non-participation in elections, to influence on the voting way, or for any other illegal purpose that is related with the elections constitutes a criminal offence and is punishable by imprisonment of one year to three years.

Obtaining the identification document of other citizens, to use it illegally for elections, to prohibit them from voting, to influence on the voting way or for any other illegal purpose that is related with the elections constitutes a criminal offence and is punishable by imprisonment of one up to five years.

Article 332

Abuse of military authority

(Amended by Law no. 89/2017, Article 10)

Abuse of military authority by a military official of any rank in order to influence the voting of the other military members under his command, through orders, advice or any other propaganda, constitutes criminal offence and is punishable by imprisonment of six months to three years.

Article 332/a

Abuse of police authority

(Added by Law no. 89/2017, Article 12)

The abuse of police authority by the employee of the State Police or of the Police of Prisons to influence supporting a political party or a candidate in elections, through the failure to exercise the function unbiasedly according to the law, the participation in the political activity of a political party or candidate in elections, with the conduction of every action or giving orders, advice or any other type of propaganda which favours a political party or a candidate in elections constitutes a criminal offence and is punishable by imprisonment from one year up to five years.

CHAPTER XI
CRIMINAL ACTS COMMITTED BY AN ARMED GANG OR CRIMINAL ORGANIZATION

Article 333
Criminal organizations

(Amended by Law no. 9275, dated 16.09.2004, Article 32)

The establishment, organization or leading of the criminal organizations is sentenced with imprisonment of five to fifteen years.

Participation in a criminal organization is punished with imprisonment for a term of from four to eight years

If the criminal organization is armed and its members possess weapons, explosive materials for the purpose of fulfilling its criminal activity, even if they are hidden or kept in special places, the imprisonment sentence is added with one third.

When the economic activities undertaken or controlled by the members of the criminal organization are fully or partially financed by proceeds of criminal acts, the sentence according to the above-mentioned paragraphs in this Article is increased by one third to one half.

Article 333/a
The structured criminal group

(Added by Law no. 9275, dated 16.09.2004, Article 33)

The establishment, the organization or the leading of a structured criminal group with the purpose of committing crimes, is sentenced with imprisonment for a term of from three to eight years.

Participation in the structured criminal group is punished with imprisonment for a term of from two to five years.

Article 334
Commission of criminal offences by criminal organizations and structured criminal groups

*(Amended by Law no. 8733, dated 24.01.2001, Article 79;
amended by Law no. 9275, dated 16.09.2004, Article 34)*

I. Commission of criminal offences by the members of the criminal organization and structured criminal group is sentenced according to the respective criminal provisions by augmenting the sentence for the offence committed with five years of imprisonment, as well as the fine in the measure of one third but without exceeding the maximum limit of the imprisonment sentence.

II. When the respective referring criminal provision contains imprisonment or life imprisonment, it is punishable by twenty-five years of imprisonment or to life imprisonment.

III. When the respective referring criminal provision contains only life imprisonment, it is punishable by life imprisonment.

Article 334/1

(Added by Law no. 9017, dated 06.03.2003, Article 1)

Regardless of Article 278, the persons, who will voluntarily hand over the weapons till 5.31.2005, are excluded from the criminal prosecution for illicit possession of military weapons and munitions in accordance with the legislation in power.

In any case, the persons who have committed a criminal offence using military weapons and munitions as a tool for this purpose are not excluded from the criminal prosecution for illicit possession of military weapons.

The persons who, after this law comes into force, declare that they do not possess military weapons or munitions and from the controls exercised in accordance with the respective provisions of the Criminal Procedure Code are found hidden weapons and munitions are not excluded from the criminal prosecution.

Article 335

The code enters into force on June 1, 1995. The legal acts that are repealed as well as the effects and the mode this code enters into force, shall be designated by a separate law.

Transitional provisions

(Provided by Law no. 23/2012, dated 01.03.2012)

Criminal prosecution of cases under investigation, court pending cases and criminal charges submitted to these bodies and to the public order bodies for criminal offences which are nullified by the entry into force of this Law, are dismissed.

LAW

No. 37/2017

CODE OF CRIMINAL JUSTICE FOR CHILDREN

Based on Article 81, paragraph 2 and 83 paragraph 1 of the Constitution, on the proposal of a member of parliament,

THE PARLIAMENT

OF THE REPUBLIC OF ALBANIA

D E C I D E D:

CHAPTER I

GENERAL PROVISIONS

Article 1

Object

1. The Code of Criminal Justice for Children (hereinafter referred to as the Code) contains special provisions on criminal liability of children; procedural rules relating to investigation, criminal prosecution, court proceedings, execution of criminal sentences, rehabilitation or other measures involving a child in conflict with the law, as well as a child victim and/or witness of the criminal offence.
2. This Code contains provisions applicable even to young adults from 18 to 21 years of age as foreseen in its individual Articles.

Article 2

Purpose

The purpose of this Code is to:

1. Guarantee a legal framework on criminal justice for children which is in line with the Constitution, United Nations Organisation (UN) Convention on the Rights of the Child and other international standards and norms which aim at protecting children and the best interest of child effectively.
2. Promote reintegration of the child in conflict with the criminal law and the assuming by the child of a constructive role in society.
3. Ensure re-socialization and rehabilitation of the child who has committed the criminal offence.
4. Protect the rights of child victim and/or witness of the criminal offence.
5. Prevent re-victimization and secondary victimization of the child who has been earlier a victim of a criminal offence.

6. Prevent the re-commission of criminal offences by the child.
7. Protect public order principles in the process of administering of criminal justice for children.
8. Enhance accountability and professionalism of the competent bodies administering cases of criminal justice for children.
9. Ensure educational and prevention measures against children who commit criminal offences and ensure establishment of mechanisms to supervise their enforcement.

Article 3 **Definitions**

These terms in this Code shall have the following meaning:

1. “Alternatives to imprisonment” is any measure that does not amount to a deprivation/restriction of liberty, which the body competent for criminal justice system may impose against the child at any stage.
2. “Criminal justice for children” means proceedings related to criminal offences, including investigation, criminal prosecution, court proceedings, execution of sentences, any other measures involving a child in conflict with the law, victim or witness of a criminal offence;
3. “Child” is any person under 18 years of age.
4. “Child in conflict with the law” is any person who has reached the age of criminal responsibility up to 18 years of age, against whom there is a reasonable doubt to believe that the child has committed a criminal offence, has been summoned as a defendant and/or the child has been sentenced by a final court decision for the commission of a criminal offence.
5. “Child victim” is any person under 18 years of age who has suffered moral, physical or material damage due to a criminal offence.
6. “Child witness” is any person under 18 years of age who may have information about a criminal offence.
7. “Young adult” is any person from 18 to 21 years of age who is accused of the commission of a criminal offence, when he was a child.
8. “Relative” is the person who has close family, blood or marriage relationship with the child.
9. “Best interest of a child” means the right of the child to a healthy physical, mental, moral, spiritual, social development and the right to enjoy family and social life suitable to the child.
10. “Information” means any data which are appropriate to the age and maturity of the child and which is given to the child to exercise his rights fully, unless the provision of such information is contrary to the best interest of the child.
11. “Minimum age of criminal responsibility” is 14 years of age in case of commission of a felony and 16 years of age in case of commission of misdemeanours foreseen by the Criminal Code;
12. “Restorative justice measure” is any measure allowing the child in conflict with the law to understand the responsibility and redress the consequences of a criminal offence, compensate damage and/or reconcile with the victim/injured party and other persons affected by the criminal offence, in which the child who has committed the criminal offence and the injured party participate jointly and actively to redress the consequences of a criminal offence, usually with the assistance of an independent third party.

13. "Mediation" is the process of extra-judicial and dialogue-based settlement between a child who has committed the criminal offence and the victim led by the mediator and aiming at settling the dispute between them and the consequences emerging from the criminal offence as well as improving relations between them whether it is applied as a diversion measure or not.
14. "Unit for Protection of Rights of the Child" is the structure for the protection of the child at local level under the law in force on the rights and protection of the child.
15. "Competent body/participant in administering of criminal justice for children" is, when appropriate, any judge, prosecutor, judicial police officer, state police officer, defence counsel, psychologist, social worker, mediator, employee of the Unit for Protection of Rights of the Child and probation service, employee of rehabilitation institution for children and detention and prison employee, as well as any other structure/official involved in this process who exercise the responsibilities and competences foreseen in this Code and who are trained and specialised in criminal cases involving children and young adults.
16. "Legal representative" is the parent, relative or child's guardian, who participate in criminal justice proceedings involving children to protect interests of the child.
17. "Procedural representative" is the person as per the meaning defined in the law in force on the rights and protection of the child who represents the child procedurally, according to the provisions of this Code.
18. "Trusted person" is the adult person indicated by the child and accepted by the competent body who accompanies the child throughout the stages of criminal prosecution.
19. "Rehabilitation Centre/Institution for children" is a structure or programme where children whether sentenced or not, are placed or involved, which is equipped with the appropriate infrastructure and staff to meet the special needs of the child and execute the court decision.
20. "Re-victimization" is inflicting harm on a child victim of a criminal offence due to a new criminal offence linked to the previous one.
21. "Re-socialization/rehabilitation" is encouraging and developing in children of a sense of responsibility and respect for the rights of others, the facilitation of physical, mental, spiritual, moral and social development of children and preparing them to reintegrate into society.
22. "Incentive" means several additional benefits in addition to those the child is entitled to on regular basis, because of good behaviour and implementation of the rehabilitation and reintegration program.
23. "Diversion" is the alternative measure for non-initiation, suspension or dismissal of criminal proceedings against the child in conflict with the law, according to the provisions of this Code;
24. "Secondary/repeated victimization" is the situation where a child victim of a criminal offence may suffer damage because of involvement in criminal justice proceedings.

Article 4

Scope of application

1. This Code shall apply only to the procedure of administering of justice for the child in conflict with the law, and child victim and/or witness of criminal offences.

2. This Code, in the cases foreseen by Article 27 paragraph 5 therein, shall apply to a person from 18 to 21 years of age, if he/she is a defendant for a criminal offence committed when he was a child.

3. The provisions foreseen in the Code do not apply to children who commit criminal offences under the age of criminal responsibility, as criminal proceedings against them may not be initiated or if initiated, they shall be dismissed immediately. In such case, the child protection structures shall act and all the measures foreseen by the law on the rights and protection of children shall apply to provide them with procedural rights, assistance and service similar to the child in conflict with the law/victim or witness concerning the cross-examination process and contact with the police and prosecution bodies.

Article 5

Relation to other laws

The provisions of the Criminal Code, Criminal Procedure Code and other laws shall apply to the criminal justice process for children only in issues which are not governed by this Code, or if they contain regulations that are more favourable to children.

Article 6

Applicable legislation

1. This Code is based on principles embodied in the Constitution of the Republic of Albania, the UN Convention on the Rights of the Child, other international acts ratified by the Republic of Albania and universally recognized principles regarding criminal justice for children.

2. The provisions of this Code may not be construed or applied in ways limiting the guarantees and Minimum Standard Rules related to criminal justice for children and the explicit rights in international acts ratified by the Republic of Albania, European Union *Acquis* and the UN Convention on the Rights of the Child.

Article 7

Age of the child

1. A child, for purposes of criminal responsibility for crimes, is the person who has reached the age of 14 years, but who has not reached the age of 18 years, at the time of commission of the crime.

2. A child, for purposes of criminal responsibility for misdemeanours, is the person who has reached the age of 16 years, but who has not reached the age of 18 years, at the time of commission of the misdemeanour.

3. If it is impossible to determine exactly the age of the person, but there are reasons to believe that he/she is a child, he/she shall be considered a child, in the sense of this Code, until age is determined.

4. The provisions of paragraph 2 of this Article shall apply even to the child victim or/and witness of the criminal offence.

CHAPTER II

PRINCIPLES OF CRIMINAL JUSTICE FOR CHILDREN

Article 8

Guiding principles of criminal justice for children

1. The principles of this Code shall have an impact on its entire content and they shall be applied by every person and competent body in every action and decision related to the child in conflict with the law, child victim and/or witness of the criminal offence.
2. The principles of this Code shall be applied even to administrative actions of the police and other bodies performing administrative activity in the context of criminal justice for children.

Article 9

Presumption of innocence

1. Every child in conflict with the law shall be presumed innocent until guilt is established by a final court decision.
2. Any doubt on the charges against the child shall be deemed in his/her favour.

Article 10

Principle of the best interest of the child

1. The best interest of the child shall be a primary consideration by the competent bodies in any decision taken and activity performed under this Code.
2. In implementing this principle, the following shall be considered:
 - a) needs of the child for physical and psychological development, education and health, security and sustainability as well as the child upbringing/belonging to a family;
 - b) views of the child, in accordance with the age and maturity of the child;
 - c) history of the child, considering the special situations of abuse, neglect, exploitation or other forms of child violence, and the potential risk that similar situations may occur in the future;
 - (ç capacity of the parents or persons in charge of child upbringing to respond to the needs of the child;
 - d) continuity of personal relations between the child and the parents, with whom the child has gender, social and/or spiritual relations.
3. Decisions and acts of the competent bodies must contain a special reasoning related to how the best interest of the child is analysed and how it will be ensured.

Article 11

Principle of protection from discrimination

1. The rights deriving from this Code shall be guaranteed, without any discrimination, to any child in conflict with the law, victim or witness, irrespective of gender, race, colour, ethnic origin, language, gender identity, sexual orientation, political beliefs, religious or philosophical, economic condition, educational or social, pregnancy, parental affiliation, parental responsibility, family or marital status, civil status,

residence, health condition, genetic predisposition, disability, belonging to a particular group and any situation of the child, parents or legal representatives of the child.

2. Rights of the child, foreseen in this Code, are protected from all forms of discrimination on one of the grounds foreseen in paragraph 1 of this Article.

Article 12

Right to harmonious development of the child

1. The right of the child to physical, mental, spiritual, moral and social development shall be considered in any decision and proceedings related to criminal justice for children.

2. Decisions and acts of the competent bodies must contain a special reasoning related to how the right of the child to this development will be assessed and how paragraph 1 of this Article will be applied.

Article 13

Principle of proportionality

Every measure taken against a child in conflict with the law must be proportionate to the circumstances of commission of the criminal offence, personality of the child, in accordance with the age, background and education, personal, family, social and environmental conditions, developmental and other needs of the child, including, where appropriate, even special needs.

Article 14

Prevalence of alternative measures of diversion

1. In criminal justice proceedings, in order to achieve the purposes of this Code and other justice for children-related laws, priority shall be given to the alternative measures of diversion from criminal prosecution.

2. Alternative measures aiming at diversion from criminal prosecution of the child or enforcement of restorative justice measures shall be considered the first option. Each competent body when making such an assessment shall reflect in the respective acts the fact that alternative measure of diversion serves better the purpose of re-socialization, rehabilitation of the child and prevention of violation of the law than the holding of the child criminally liable and enforcing criminal law.

3. Approach to criminal proceedings against a child in conflict with the law, where appropriate, feasible and necessary, shall be diverted, provided that the rights and protection of the child are fully respected.

4. Any measure used against a child as alternative measure of diversion from criminal prosecution shall contribute to the protection of the rights and legal guarantees of the child.

Article 15

Restriction or deprivation of liberty as a measure of last resort

1. Arrest, detention or imprisonment of a child shall not be imposed if the aim may be achieved through a more lenient measure.

2. Arrest, detention or imprisonment of a child shall apply in accordance with the provisions of this Code, as well as the criminal procedural law, to the extent this Code does not foresee otherwise.

3. The measures foreseen in paragraph 2 of this Article shall be used only as a last resort, for a shortest time possible, and they shall be subject to periodic review by the court.

Article 16

Child participation in the process

1. The right of participation in the process includes the right of the child to be heard and express own views which are given due weight in accordance with the age and maturity of the child. Where a child seeks to be heard, the request shall be accepted, except for important reasons which are reasoned in the respective decision. If the child is unable to exercise this right, he/she may do so through the parent as a legal representative.
2. The child has the right to participate, directly and/or through the legal representative, in any decision-making process affecting the child.
3. The child may not be obliged to participate in the process in person. Non-participation may not aggravate his/her position or/and be used at his/her disadvantage.
4. The prosecutor and the court create all the conditions and take any measures to encourage the child to participate in criminal proceedings against him/her, if so required for the best interest of the child.
5. Any actions taken by the competent body during the proceedings conducted in the presence of the child must be appropriate to the age and maturity of the child.
6. Necessary adaptation and support is ensured through the manners foreseen in ratified international acts concerning disabled persons and the law in force on inclusion and accessibility of disabled persons.
7. If the claims of a child and his legal/procedural representative are contradictory, the competent body shall consider the claim that serves the best interest of the child.

Article 17

Examination done promptly and with preference

1. All decisions and actions under this Code from the start of the criminal proceedings until the execution of the court decision, shall be taken promptly, with preference and without unjustified delay based on the best interest of the child and respecting the rights of the child.
2. Any competent body shall, promptly, within the time limits defined in this Code, and with preference, examine cases of the child in conflict with the law and the cases of the child victim and witness, by making sure that the criminal process, in each stage, does not aggravate the trauma experienced by the child and that the criminal justice system for children provides, where appropriate, proper assistance to the child.

Article 18

Mandatory presence of the psychologist

1. The presence of the psychologist shall be mandatory in any stage of criminal proceedings with the child in conflict with the law, as well as during questioning of the child victim or witness, irrespective of the age over or under 14 years of age.

2. The psychologist, where appropriate, shall guarantee psychological support of the child and assess his statements, in accordance with the mental development of the child.
3. The presence of the psychologist makes sure that the child in conflict with the law, the child victim and/or witness is questioned in a proper manner and testimony-giving is facilitated with due care to avoid intimidation from or reluctance of the child during the process.
4. The competent bodies, where appropriate and if necessary, make sure to provide for the presence of the same psychologist throughout the criminal justice process involving children and only if this serves to the best interest of the child.
5. The psychologist, who assumes the role of the emotional supporter of the child during investigation and trial proceedings may not be assigned by the court to assume the role of the expert, by preparing the psychological assessment for the same child.

CHAPTER III

PROCEDURAL RIGHTS AND GUARANTEES OF THE CHILD IN CONFLICT WITH THE LAW

Article 19

Rights of the child in conflict with the law

1. The child in conflict with the law enjoys the rights foreseen in the Code of Criminal Procedure and the special rights foreseen in this Code.
2. The child is entitled to protection and special procedures at all stages of the criminal justice process involving children.
3. The child shall be entitled to the following rights at any stage of criminal proceedings:
 - a) the right to free legal and psychological aid or any other appropriate assistance necessary for their preparation and submission of the defence;
 - b) the right to be informed immediately in a way that is appropriate to their individual development;
 - c) the right to be provided with a free of charge translator/interpreter unless they understand or speak the language used or use the sign language;
 - ;ç) the right to have the parents present and/or the right to be accompanied by a trusted person
 - d) the right not to be forced to give testimony or admit guilt;
 - dh) the right to cross-examine witnesses of the accusation body and ensure participation and questioning of witnesses of the defence, under equal terms;
 - e) the right to assistance from the consular service;
 - (ë the right to appeal, in any stage of criminal proceedings or during execution of the criminal sentence;
3. The court in the case foreseen in paragraph 3 letter “ç” of this Article concerning the trusted person has the right to refuse the trusted person if the presence of the latter will have a negative impact on

rehabilitation and reintegration of the child. In this case the court must issue a reasoned decision on the grounds of refusal.

Article 20

Legal and psychological assistance to the child

1. The child in conflict with the law, the child victim or witness at any stage of criminal justice for children, are entitled to free legal and psychological assistance provided by the state according to the respective legislation.
2. The child witness is provided free psychological assistance when needed by the child.

Article 21

Protection of privacy of the child

1. The right of the child to privacy shall be fully respected at any stage of criminal justice for children, with due care to avoid harming the child.
2. No information that may disclose the identity of the child in conflict with the law, child victim or witness of a criminal offence shall be published.
3. Information on previous sentences against the child shall not be made public.
4. Identification or publication, in any form, of personal data of the child, unless foreseen by law on the personal data protection, shall be prohibited.
5. Personal data over a criminal offence committed by a child under 18 years of age may be identified or published only upon the consent of the child unless otherwise foreseen by the law on personal data protection.
6. Child-related information shall be processed in accordance with the legislation on personal data protection.
7. Violation of paragraph 4 of this Article shall constitute a criminal offence according to the provisions of the Criminal Code.

Article 22

Individual assessment of the child

1. The body administering the process shall treat a child with special attention and care throughout any stages of criminal justice for children.
2. When making decisions related to the child, account shall be taken of their individual characteristics including: age, level of development, living conditions, upbringing and development, education, health conditions, family situation, and other circumstances which allow individual assessment.
3. The court/the prosecutor, before taking any decision on a child, shall summon, where appropriate, an expert or group of experts of various disciplines to assess the individual, health, family, social and environmental circumstances of the child, in order to understand their personality and accountability and the extent of their responsibility.

4. If the court/prosecutor upon completion of the individual assessment find that a child suffers mental disorders making the child irresponsible, the child shall be exempt from criminal liability and, where necessary, placed to a specialized and independent medical institution according to the provisions of the Code of Criminal Procedure.

Article 23

Free services for the child in the criminal justice system

1. Children in conflict with the law or victims are provided with free of charge services according to this Code and the legislation in force.
2. The fees for these services are covered by the budget of institutions and executed by the respective institutions where the service is provided in line with the legislation in force.
3. The procedure of provision of services to the child in the criminal justice system is regulated by the provisions of this Code and the legislation in force, unless otherwise provided for by this Code.

Article 24

Rights of child victim and/or witness of the criminal offence

The child victim and/or witness of the criminal offence shall, to the greatest possible extent, enjoy the same rights foreseen for the child in conflict with the law under this Chapter and the rights foreseen in Chapter V of this Code.

CHAPTER IV

TRAINING AND SPECIALISATION OF COMPETENT BODIES IN CRIMINAL JUSTICE PROCESS INVOLVING CHILDREN

Article 25

Specialization of persons administering and assisting the criminal justice process involving children

1. The competent bodies take all the relevant measures to make sure that the persons dealing with the children have the necessary knowledge, highest professional awareness for the protection of rights of the child in conflict with the law, child victim or witness and take the necessary measures for their irremovability from these positions.
2. The competent bodies, according to this Code guarantee and make sure that any person who has been sentenced by a final court decision for a criminal offence committed intentionally against the child or domestic violence offence shall be prohibited from working and providing any services to the child.
3. The competent bodies and non-profit organisations providing services to the child take all the adequate measures to make sure that the persons sentenced for criminal offences against children will have no contact with the child.
4. Persons administering the criminal justice process involving children must be specialised and trained specifically in the field of protection of rights of the child. Exemption is made only to those cases where the

act or omissions of the child endanger public security and in foreseen cases of the situation of flagrancy under the provisions of the Criminal Procedure Code. In such event, the non-specialized person, after the preliminary measures are taken, shall immediately notify the specialized person/structures to resume this process.

5. The competent bodies, in proceedings involving children, shall make sure that the specialised employees may assist the child in the criminal justice process.

6. Violation of paragraph 3 of this Article shall constitute a criminal offence according to the Criminal Code.

Article 26

Training topics

1. Any person assigned by the competent body administering criminal justice for children shall be trained and gain specific knowledge mainly related to:

- a) methodology of communication with the child in conflict with the law and communication with the child victim and/or witness of the criminal offence;
- b) standards and principles guaranteeing the rights of the child;
- c) principles and ethical obligations related to their functions;
- ;ç) signs and symptoms indicating that a criminal offence has been committed against a child
- d) skills and techniques related to the assessment of critical situations, risk assessment, referral of cases and guaranteeing of the principle of confidentiality;
- dh) skills related to the technique of cross-examination of children, child psychology and communication with the child in a language convenient to the child;
- e) dynamics and nature of violence against the child, effect and consequences including the physical and psychological as well as that of the incitement to commit the criminal offence;
- (ë techniques and special measures for the support and protection of the child victim and witness;
- f) methods of mandatory work for the professionals working with the children; as well as
- g) other similar fields related to criminal justice for children.

2. The training topics are specific depending on the tasks of the professionals of the competent bodies and the position of the child in criminal justice for children. Their training is mandatory and continuous.

Article 27

Court jurisdiction over juvenile justice cases

1. The child in conflict with the law shall be tried by the sections for children established in the judicial district courts, according to the provisions of the legislation in force on organisation of the judicial power in the Republic of Albania.

2. Moreover the sections are competent to try adult defendants charged with commission of criminal offences against the child victim.

3. The judge assigned to try the child in these sections must be specialised and trained on criminal justice for children.
4. Where a child commits a criminal offence together with an adult person, the former shall be tried by the sections for children of the judicial district courts, according to the provisions of this Code, except for cases foreseen in Article 80, paragraph 1 of the Code of Criminal Procedure.
5. A person over the age of 18 years, but younger than 21 years, who is accused of commission of a criminal offence, at the time the person was a child, he/she shall be tried by the section for children.
6. The jurisdiction of the section for children in the judicial district courts applies no longer when the child reaches the age of 23 years.

Article 28

Judicial examination of cases involving a child

1. When the victim is a child and tried by a panel of judges in judicial district courts and appeal courts, at least one judge must be specialised and trained in criminal justice for children.
2. In judicial district courts where because of the number of judges it is impossible to set up the section for children, at least one of the judges, when the case is tried by three judges, must be a judge specialised and trained in criminal justice for children.

Article 29

Training and specialisation of prosecutors and judicial police officers

1. Criminal prosecution in criminal justice cases involving children shall be conducted by prosecutors trained and specialized in this field.
2. The judicial police officers handling criminal justice cases involving children shall be trained and specialized in criminal justice for children

Article 30

Training and specialisation of State Police employees

An employee specialised and trained in criminal justice for children shall perform the actions foreseen by the law on the State Police in relation to the child.

Article 31

Defence counsel

1. The child in conflict with the law or the victim shall be defended by defence counsels specialised in justice for children, except when the child or legal representative of the child choose another defence counsel.
2. The National Chamber of Advocacy makes available a list of lawyers specialised in juvenile justice to the free legal aid institutions.

3. The institution administering free legal aid, in cases foreseen by law, provides immediately legal assistance upon the request of the child or any competent body. When the request is made by the child, it may be submitted in any form and before the competent body according to the rules foreseen by the legislation in force.

Article 32

Other persons specialized in juvenile justice

1. The justice system for children includes the employee of the Unit for Protection of Rights of the Child, psychologist, procedural representative, mediator, probation officer, the employee of rehabilitation and detention centre for children, who are specialized in justice for children.
2. The School of Magistrates, the Academy of Security, the Order of the Psychologist/Social Worker, the National Chamber of Advocacy, National Chamber of Mediators, Probation Service and State Agency for the Rights and Protection of the Child and other institutions take measures and draft training programmes.
3. The competent bodies, foreseen in paragraph 2 of this Article, shall draft and update the register of those who are trained in criminal justice for children.

CHAPTER V

CHILD VICTIM AND WITNESS OF THE CRIMINAL OFFENCE

Article 33

General principles

1. The competent bodies in cases involving the child victim and/or witness, shall be particularly careful in order:
 - a) to treat the child victim or witness of the criminal offence with care, kindness and sensitivity which respect their dignity throughout the process, considering their personal situation and immediate and special needs, age, gender, disabilities, where applicable, and maturity;
 - b) to protect privacy of the child victim or witness. Interference in the private life of the child, if necessary, must be at the lowest possible level defined by the law in order to ensure the necessary evidence of the criminal process;
 - c) to take all the measures to bind any participant administering justice for children, who has information concerning the child victim or witness, to maintain confidentiality of the entire information obtained in the course of duty and/or during performance of duty;(ç to publish information about the identity of the child witness or victim only upon permission of the court.
2. The rules concerning intimate and medical check-up of the child victim or witness are foreseen in Article 82 of this Code and the Code of Criminal Procedure, provided it does not contradict this Code.
3. Violation of paragraph 1, letter “c” of this Article shall constitute a criminal offence according to the Criminal Code.

Article 34

Right of the child victim to be informed

1. In order to prevent the risk of re-victimisation and secondary victimisation, the legal representative, the defence counsel and the psychologist as well as, where appropriate, and if possible, the trusted person of the child shall participate in the procedural actions involving the child victim.
2. The competent body informs immediately and during the entire process the child victim, his legal or procedural representative and the defence counsel of:
 - a) criminal justice proceedings involving adults and children including the importance and role of the child victim, time of testimony and manner to be used for the cross-examination during investigation and trial;
 - b) support mechanisms for the child victim when filing a complaint, participation in investigation and judicial proceedings, including the provision of a defence counsel to the child;
 - c) place and time of cross-examination;
 - ç) protective measures available to the child
 - d) existing legal means for revision of decisions entailing consequences on the child victim;
 - dh) rights of the child victim applicable in the national and international legislation ratified by the Republic of Albania;
 - e) possibility to request damages from the offender of the criminal offence, according to the respective legislation;
 - (ë available restorative justice programmes and their functioning;
 - f) possibility of respective services including health, psychological, social, financial and legal services as well as the manner of their provision;
3. In relation to the cases foreseen in paragraph 2 of this Article, if the child has not been informed directly by the competent body, this obligation shall be fulfilled, where appropriate, by the procedural representative or the defence counsel of the child. The child shall be notified in such a way so that the information will be appropriate and understandable by the child.
4. At any stage of proceedings, the legal representative of a child witness/victim shall be entitled to:
 - a) express his/her views on the needs of the child before the prosecuting body;
 - b) be informed of the charges brought against the defendant;
 - c) be informed of the relationship between the child and the defendant;
 - ç) obtain information about the progress of the process and decisions concerning the security measure imposed against the defendant, as well as the release of the defendant or sentenced persons from prison or detention facilities, unless this poses a real danger to the defendant or the sentenced person;
 - d) complain against a court decision issued by the court, irrespective of whether this right is exercised or not by the case prosecutor.

5. The judge during trial and the prosecutor during investigation may preclude the legal representative of a child witness/victim from participating in procedural actions only if this is indispensable for the best interest of the child.

Article 35

Tasks of the Unit for Protection of the rights of the child concerning the child witness and victim

1. The representative of the Unit for Protection of Rights of the Child is the support person in cases involving the child victim and witness and, inter alia, it has the duty to:

- a) support the child emotionally;
- b) provide support during the entire criminal process. Such support may include measures to minimise the negative consequences of the criminal offence, measures to assist the child during the daily activity, and measures in relation to administrative cases over circumstances of the concrete case;
- c) advise in case the following of a therapy or professional consultancy is necessary;
- ;ç) be in contact with relatives, friends and defence counsel of the child
- d) inform the child of health care, psychological or social services, and the available means of receiving such services;
- dh) keep the child informed of their procedural status, the importance of testimony giving, duration, form, as well as the procedural rules of cross-examination;
- e) inform the child of the time and place of cross-examination and execution of other procedural actions;
- (ë inform the child of their right to appeal against procedural actions foreseen by law;
- f) avoid, where appropriate, improper and/or unpleasant contact with the child by placing the child in a separate room in between the hearings, or taking other measures to protect the best interest of the child, in cooperation with the defence counsel or in absence of the latter, in cooperation with the child and legal representative;
- g) ask the court to take protective measures, when necessary, in cooperation with the defence counsel or in his/her absence, in cooperation with the child and the legal representative;
- gj) request the taking of special measures if they are necessary considering the circumstances of the child.

2. The representative of the Unit for Protection of the rights of the child, if assigned in the capacity of the procedural representative, in cases of the child victim and witness under 14 years of age, shall give the consent as well for child's testimony giving.

Article 36

Legal aid to the child victim

1. The child victim, throughout the justice process, has the right to free defence by a defence counsel chosen from the respective list compiled by the National Chamber of Advocacy.

2. The provisions of Article 51 of this Code shall apply to the foreign child victim and witness.

Article 37

Protective measures for the child victim or witness

1. At any stage of criminal proceedings, when the safety of the child victim or witness is at risk, where appropriate, the prosecutor, the judicial police or the Unit for Protection of the Rights of the child shall take protective measures including:

- a) avoid direct contact between a child victim or witness and the accused person at any stage in the proceedings;
- b) file a request for the issuing of the “restriction order” by the court. In this case the request shall be recorded in a special register and it shall be recorded on the day of its filing. In such case the provisions of the legislation in force on measures against violence in family relations;
- c) file a request imposition of the security measure of “imprisonment” or “house arrest” against the accused under the condition of having no contact with the child;
- c) file a request for the protective measures to be taken in relation to the child victim or witness by the police or other structures and for the keeping of the secret of the location of the child
- d) make or request from the competent authorities other protective measures that are deemed appropriate.

2. Where the court finds the risk against the child victim or witness it may impose even ex officio protective measures foreseen in paragraph 1 letter “b”, “c” and “ç” of this Article.

Article 38

Notification of the child victim or witness

1. If the child is a victim or witness, the prosecuting body shall take all the measures for the child to be notified:

- a) in such a way, so that information will be appropriate and understandable by the child even in case of disability of the child;
- b) directly or through the legal/procedural representative.

2. In case of a conflict of interest with the legal representative or when because of the very young age of the child, direct notification of the child is impossible, the child shall be notified through the procedural representative, defence counsel or psychologist.

3. A copy of the notification shall be served or where appropriate delivered to the defence counsel or legal representative of the child.

Article 39

Special rules of questioning the child victim or witness

1. The judge, when giving testimony may put the child victim or witness at serious risk of life or health, in accordance with the age, during trial shall ensure:

- a) cross-examination of the child witness/victim by using devices that alter the image and/or voice of a witness/victim, cross-examination behind a non-transparent screen, or distant cross-examination;

- b) cross-examination of the child witness/victim before a court hearing starts in the presence of the defence counsel of the child and video recording of the cross-examination of the child;
 - c) follow up of the process and cross-examination of the child witness or victim, when possible and appropriate by the same persons and the limitation, as much as possible of the number of cross-examinations.
2. The competent bodies shall make sure that in any case confrontation of the child victim with the accused person in the premises where the process takes place shall be avoided.
3. The court proceedings shall be held in camera when a child victim or witness is involved.
4. The court, concerning the child victim or witness, according to the provisions of paragraph 1 of this Article, shall make sure that:
- a) the child is questioned in friendly premises and outside the court premises;
 - b) evidence is secured within the shortest possible period after initiation of criminal proceedings in order to avoid the negative effects deriving from a lengthy process;
 - c) questioning is not repeated at other trial instances in order to avoid re-victimization of the child, unless otherwise foreseen in the law;
- (ç other measures deemed appropriate shall be taken.
5. The child victim and witness shall be cross-examined without delay after the reporting of facts to the respective bodies.
6. The same rules shall be applied by other competent bodies even during the cross-examination of the child victim and witness.

Article 40

Special rules for cross-examining the child 14-18 years of age

1. In addition to the rules foreseen in Article 361/a of the Code of Criminal Procedure, the child over the age of 14 years give testimony when the defendant is not present. In such case, the judge orders the temporary removal of the defendant from the courtroom ensuring the mandatory presence of the defence counsel of the defendant in court proceedings.
2. The court, where appropriate, in case of application of paragraph 1 of this Article, shall inform the child of the right to request the defendant to be present. If so requested by the child, the court assesses the request immediately, given the concrete circumstances, maturity of the child, risk of re-victimisation and secondary victimization and decides on the request.

Article 41

Special rules of cross-examination of the child victim and/or witness of sexual exploitation or sexual violence

1. In addition to the rules foreseen in Article 58/b of the Code of Criminal Procedure, the rules foreseen in Article 40 of this Code shall apply to the cross-examination of the child victim and/or witness of sexual

exploitation or sexual violence. Audio and video recording of these children during cross-examination shall be mandatory.

2. The audio and video recorded testimony given by the child may be used during the court hearing.
3. The testimony of the child victim of sexual exploitation and/or sexual abuse may be heard in the courtroom without the child being present, through the use of the necessary communication technology.
4. No child witness or victim of domestic violence is questioned in the presence of abusive parent or relative, during the procedure issuing the protection order, emergency protection order.
5. In cases involving child victim or witness of sexual exploitation and/or sexual abuse, the court proceedings is held in-camera.

Article 42

Special rules for cross-examination of the child victim/witness under 14 years of age

1. All the guarantees and rights foreseen by this Code and Article 361/a of the Code of Criminal Procedure shall apply, to the greatest possible extent, for the child victim and witness, under 14 years of age, in addition to the provisions of this Article.
2. Children under 14 years of age may be cross-examined only with the consent and in the presence of their legal/procedural representative, psychologist and defence counsel. The legal/procedural representative is entitled to express his/her views on the questions addressed to the child.
3. The legal representative shall not be allowed to participate if this conflicts with the best interest of the child and he is suspected of commission of unlawful act and/or omissions.
4. The child under 14 years of age shall be explained in a clear and understandable way and through examples, the importance of telling the truth and the consequences deriving on third persons from failure to tell the truth. The child is explained that he has no criminal liability for the criminal offence, for refusal to give testimony or giving false testimony.
5. The prosecuting body shall preliminarily consult the psychologist on the content of questions to be made to the child in order to make the question properly, facilitate the giving of testimony, avoid intimidation or reluctance from the process.

Article 43

Measures to protect the privacy and well-being of the child victim and witness

The court shall, ex officio, at the request of a child victim or witness, child's legal/procedural representative and/or child's defence counsel, considering the best interest of the child, order, where appropriate, the taking of one or several adequate and appropriate measures to protect the privacy and physical and mental well-being of the child and to prevent suffering and secondary victimization including:

- a) expunging from the public record any names, addresses, educational institutions, and/or workplaces, professions or any other information that could be used to identify the child;
- b) prohibiting the defence counsel of the defendant and the child victim/witness from disclosing the identity of the child or any materials or information that could lead to identifying the child;

- c) ordering the non-disclosure of any records that identify the child to the extent deemed necessary by the court;
- ç) assigning a number to the child for the purpose of preparing the defence of the accused, date of birth ;and the full name of the child, where appropriate, shall be disclosed within a reasonable period
- d) taking measures not to disclose the identity of the child including: alteration of the image/appearance/presentation or voice; testifying behind an opaque shield; cross-examination in another place and simultaneous transmission to the courtroom by means of closed-circuit television;videotaping (audio and video recording) cross-examination of the child witness prior to the hearing, in which case the defence counsel of the accused attends examination and is given the opportunity to examine the child witness or victim; communication through a qualified and suitable mediator, including the translator/interpreter for children with hearing, sight, speech or other disabilities, but not limited only to these;
- dh) holding in-camera hearings;
- e) giving orders to temporarily remove the accused from the courtroom if the child refuses to give testimony in the presence of the accused or if circumstances show that the child may be inhibited from speaking the truth in that person's presence. In such cases, the defence counsel of the child shall remain in the courtroom and question the child, and the accused's right of confrontation shall thus be guaranteed;
- (ë allowing recesses during the child's testimony;
- f) taking any other measures that the court may deem necessary, including, where applicable, anonymity, taking into account the best interests of the child and the rights of the accused.

Article 44

Restorative justice measures

1. The competent body shall inform of the restorative justice programmes the child in conflict with the law and the victim, the legal or procedural representative, and where appropriate, the defence counsel of the child.
2. The competent body shall inform the child in conflict with the law, the legal representative or the procedural representative and, where appropriate, the defence counsel of the child, of the possibility to request restitution and compensation of damage in the court if the programme of restorative justice is not completed.

Article 45

Right to compensation for damage

1. The child victim of the criminal offence and the child's legal representative shall be informed and explained the decision of the court concerning the respective criminal offence, in the most appropriate way for the age and maturity of the child.
2. The court, where appropriate, shall inform the child victim of the criminal offence and child's legal representative of the right to compensation for damage.

CHAPTER VI
**GENERAL RULES OF COURT PROCEEDINGS
INVOLVING CHILDREN IN CONFLICT WITH THE LAW**

Article 46

Determining the age of the child

1. If there is uncertainty about the age of a person, the prosecuting body, pursuant to a motion of a party or on own initiative, shall issue immediately a ruling determining the age of the child.
2. The age shall be determined on the basis of the complete evaluation of any available information, including official documents such as birth certificates, school data, medical data, declaration of parents for the age, or the self-declaration of the child and a report based on a medical examination.
3. If, even after verification and expertise, the age of the child is again uncertain, it shall be presumed that the person is a child.
4. If the age of the child has been determined roughly, the younger age of the child shall be taken into account when deciding on criminal liability.

Article 47

Individual assessment report

1. The prosecutor/court in the process of individual assessment shall rely on the level of development, living conditions, upbringing and development, education, health status, family situation and other circumstances of the child which allow an assessment of the characteristics of personality of the child, behaviour and needs of the child, including even the special needs.
2. The individual characteristics of the child foreseen in Article 22 of this Code shall be reflected in the individual assessment report.
3. An individual assessment report describes the special needs of a child, risk of committing a criminal offence and other elements depending on the case, as well as the proper measures recommended to facilitate development and integration of the child into society.
4. The prosecutor/court shall request as mandatory the preparation and consideration of the individual assessment report when:
 - a) the alternative measure of diversion is imposed;
 - b) the type of punishment is set;
 - c) the sentence decision is executed; as well as
 - .ç) the request for conditional release is examined
5. The prosecutor/court must observe that the time limit of preparation of the report does not preclude the progress and time limit of the concrete criminal case.

6. In the stages foreseen in letter “a” and “b” paragraph 4 of this Article, the individual assessment report is prepared by the expert/group of experts or the Probation Service according to the provisions of Article 22 of this Code. In the cases foreseen in letter “c” and “ç” paragraph 4 of this Article, this report is prepared by the Juvenile Institution of Execution of Criminal Sentences (JIECS) and/or Probation service. Where appropriate, the above-mentioned bodies take the opinion of the Unit for Protection of the rights of the child when preparing the individual assessment report.

7. During the preparation of the individual assessment of the child, the expert or the group of experts, representative of the Probation Service, Institution of Execution of Criminal Sentences or where appropriate the Unit for Protection of the rights of the child shall meet, freely, the child defendant and obtain the necessary information from any natural or/and legal person, public and/or private considered to be a facilitator in this process.

8. The individual assessment report shall be taken into account at any stage of criminal proceedings. When preparing an individual assessment report in each subsequent stage of criminal proceedings, information contained in a previous individual assessment report shall be taken into account.

9. The methodology, rules and standards for the preparation of the individual assessment report foreseen by this Article shall be determined according to the legislation in the respective areas.

Article 48

Child protection

1. The legal representative of a child may choose and assign, independently, a defence counsel, taking into account the best interest of the child.

2. If a child in conflict with the law fails to choose a defence counsel, the competent body performing the respective procedural action shall assign immediately the defence counsel according to the provisions of the Code and special laws on legal aid, to the extent it does not contradict this Code.

3. The request for assignment of a defence counsel, notification of the child and consent of the child and, in the absence of such consent, the consent of the procedural or legal representative, are recorded in a special record. The record, where appropriate, shall be signed by the child or legal/procedural representative of the child and defence lawyer.

4. In any case, participation of the defence counsel is mandatory.

5. The statements of the suspected child that are not made in the presence of the defence counsel may not be used as evidence.

Article 49

Mandatory presence in procedural actions involving the child

1. Any procedural actions with respect to a child shall be attended by child’s defence counsel, legal representative and psychologist. An exemption shall be made only if the act or omissions of the child

endanger public security and/or in foreseen cases regarding the situation of flagrancy, according to the provisions of the Code of Criminal Procedure.

2. The judge during trial, and the prosecutor at the stage of investigation, may prohibit the legal representative of a child in conflict with law from attending procedural actions only if this is necessary for the best interest of the child.

Article 50

Right of the child to communicate in a language they understand

1. A child shall be assisted by a free of charge interpreter who shall be present in each procedural action if the child does not understand, does not understand properly, partially or fully, or cannot speak the language of the proceedings against the child. An exemption shall be made only if the act or omissions of the child endanger public security and in foreseen cases regarding the situation of flagrancy according to the provisions of the Code of Criminal Procedure.

2. The interpreter shall meet the child before the trial or procedural action to determine whether they can understand each-other.

3. The disabled child has the right to free of charge services required to be informed of and communicate about the case and participate in the proceedings.

Article 51

Right to consular assistance

1. A foreign child in conflict with the law shall have the right to assistance from the representative of diplomatic missions or consular posts of their country at any stage of the proceedings.

2. If the child, arrested or detained, is a foreign citizen, the ministry responsible for foreign affairs shall be notified in shortest time and in any case before the cross-examination and it shall notify thereof the diplomatic mission or consular post of the respective state.

3. If a child is citizen of a country that has no diplomatic mission or consular post in Albania, is a refugee or a stateless person, they shall be given the opportunity, through the ministry responsible for foreign affairs, to contact the diplomatic mission of the country that assumes the responsibility over interests of the child or any national or international organization in the field of human rights, which mission is to protect the child.

4. The provisions of this Article shall apply even in case the child, foreign citizen, is a victim of trafficking, kidnapping or wrongful retention.

Article 52

Splitting cases involving a child from the common case involving an adult

1. If the child is accused of a criminal offence in relation to which an adult has been accused as well, the case shall be tried according to Article 27 paragraph 4 of this Code.

2. Where possible, the cases involving a child shall be tried separately from those involving adults, provided this does not preclude the complete, objective and quick examination of the case.

3. In any event, the child shall enjoy the rights and guarantees foreseen by this Code and the Code of Criminal Procedure.

Article 53

Child notification

1. The child in conflict with the law shall be notified according to the rules foreseen in the Code of Criminal Procedure.
2. The child in conflict with the law shall be notified in such a way so that the information will be appropriate and understandable by the child including the cases of children with special needs because of disability.
3. The child in conflict with the law shall be notified, where appropriate, through the legal/procedural representative or the director of the institution where the child has been placed.
4. A copy of the notification to summon the child defendant shall be served or sent to defence counsel of the child or child's legal representative.

Article 54

Prohibition of use of force, other means and firearms

1. No force and other coercive means shall be used during arrest, movement outside the institution, enforcement of security measures or punishment of a child, except for exceptional/extraordinary cases, when all the other means to arrest the child, prevent self-harm or harm to others have been exhausted and ineffective, and unless the purpose foreseen in the law may not be attained through other less harmful means.
2. Force and other coercive means may, in no case, be used on a pregnant child unless the child has the intention to harm herself.
3. In the case provided for by paragraph 1 of this Article, the only form of force and other means that are allowed shall be physical restraint, handcuffs and other stringent means. In order to prevent group disobedience and/or mass disorder, repel an attack and arrest an armed person other stringent means may be used including rubber batons, restraining nets, tear gas and/or water cannons.
4. In any event, physical restraint and other means:
 - a) shall be applied for the shortest time possible;
 - b) shall be applied to attain an objective stipulated by law, and shall be proportionate to the circumstances;
 - c) shall not be applied in a degrading or humiliating manner and shall not constitute torture or maltreatment.
5. Firearms may not be used against a child, unless the child is armed and immediately poses a direct and imminent threat to the life or health of a third person and if it is impossible to prevent such threat through other means.
6. Firearms shall not be used when the child is escaping prison or detention facilities.

7. The person who uses force and/or other means, according to this Article, shall notify immediately thereof the superior and, if necessary, the head of the institution concerning such use, by providing the reasons why other measures could not have been used.
8. The direct superior shall ensure immediately the medical examination of the child. A person who uses force and/ or other means shall prepare a written report thereon. The report shall contain information on the use of force and/or other means, the justification for using them and other related information.
9. Each case of use of force and other means shall be recorded in the respective registry-book.
10. The registry-book and its data shall be made available to children, their legal representative and/or lawyer, court and authorities that, according to the legislation in force, inspect and/or supervise this activity.
11. The right to use the means under paragraph 3 of this Article shall be entitled only to the persons who are specifically trained for their use, according to the rules in force on the use of firearms.

CHAPTER VII

DIVERSION FROM CRIMINAL PROSECUTION AND PUNISHMENT THROUGH ALTERNATIVE MEASURES

Article 55

Criteria and conditions for application of diversion from criminal prosecution

1. The competent body in any case shall assess the taking of the measure of diversion against the child in conflict with the law.
2. The competent body, when taking the decision to apply diversion from criminal prosecution shall assess the best interest of the child, the severity of the committed criminal offence and respective punishment foreseen, the age of the child, level of guilt, suffered damage, intimidating effect of criminal prosecution, behaviour of the child after committing the criminal offence and the individual assessment report prepared according to Article 47 of this Code.
3. In particular, diversion by the competent body shall be applied if:
 - a) there is sufficient evidence for a reasonable doubt that the child has committed a criminal offence punished by a maximum of 5 years of imprisonment or fine;
 - b) the child confesses and explains the criminal offence in the presence of the lawyer;
 - c) the child is not criminally reported over commission of a criminal offence or the child is not a recidivist;
 - (ç the child and, where appropriate, child's legal/procedural representative give written consent to the application of diversion
 - d) the child failed to participate earlier in a programme of application of the measure of diversion from criminal prosecution and/or mediation;
 - dh) punishment of the child for those offences does not serve to improving their behaviour;

- e) considering the best interest of the child, it is considered whether there is any public interest in instituting criminal proceedings or resuming the already instituted criminal proceedings.

4. The competent body, after taking the decision to apply diversion, may request information from the parents, legal guardians, institutions that are familiar with the activity of the child, including where appropriate, even the Unit for Protection of the rights of the child, as well as the opinion of the expert, according to the needs of the child and the process.

Article 56

Procedure for application of the measure of diversion by the prosecutor

1. The prosecutor may decide applying diversion before the judicial examination of the case starts.
2. Diversion against the child in conflict with the law may be applied upon initiative of the prosecutor or upon request of the child in conflict with the law or child's representative.
3. If the measure of diversion is taken upon initiative of the prosecutor, the latter shall propose to the child in conflict with the law the measure of diversion from criminal prosecution and in case the child gives consents to this measure, the prosecutor shall decide its application definitively.
4. If the request/proposal of the prosecutor on application of diversion is not accepted by the child in conflict with the law, a record shall be kept indicating the reasons of rejection by the child. The record shall be signed by the prosecutor and the child or where appropriate, child's legal or procedural representative.
5. The child in conflict with the law or child's representative, upon a reasoned request, shall request the prosecutor to apply the measure of diversion. In such case, the prosecutor through a reasoned decision shall decide whether to apply diversion or not.
6. If the prosecutor refuses the request for application of diversion, the child in conflict with the law or child's representative shall have the right to request application of diversion from criminal prosecution before a court within 15 days from notification of the refusal decision.

Article 57

Procedure and application of the measure of diversion by the court

1. The court as well may decide, where appropriate, on the application of the measure of diversion.
2. The court, on its own initiative or upon a reasoned request of parties, social worker or psychologist may decide to remand the case to the prosecutor to proceed with the application of diversion. The court, before taking this decision, shall hear the child and obtain the child's consent.
3. The court may apply the measure of diversion in the stage of adjudication before a final decision is taken.

Article 58

Consequences of application of the measure of diversion

1. Application of the measure of diversion by the prosecutor is a circumstance for non-initiation of criminal proceedings, if criminal proceedings havenot been initiated and a circumstance for its dismissal if criminal proceedings has been initiated.
2. This decision shall be notified to the head of the prosecutor's office and the victim in order for the latter to have the possibility to claim compensation where appropriate. This decision shall be notified even to the defence counsel, legal and/or procedural representative where appropriate.
3. If diversion measure is taken, the prosecutor shall decide non-initiating criminal proceedings or dismissing the criminal case and shall conclude an agreement with the child on the type of the diversion measure and/or mediation.
4. The elements of the agreement concluded between the parties on the measure of diversion and/or mediation, as well as rules of application of the respective programme, foreseen in this agreement, shall be determined by an order of the Minister of Justice.

Article 59

Consent to the diversion measure

1. Diversion from criminal prosecution shall be applied only upon written consent of the child and when appropriate of the legal representative as well.
2. In the absence of the legal representative of the child, either when he is not found or the child has no contact with him, or the legal representative is in a conflict of interest with the child, the competent body shall assign a procedural representative who may give consent to the diversion measure.
3. Prior to obtaining the consent, the child shall be provided with counselling and free legal aid service in order to understand the proposed diversion measure and whether it is appropriate to and acceptable by them.
4. During negotiation of the agreement on the diversion measure, the child shall be assisted by the defence counsel.
5. The agreement according to paragraph 4 of this Article shall be signed by the child and child's defence counsel.

Article 60

Guarantees of the child concerning application of the diversion measure

1. Before applying a measure of diversion from criminal prosecution, the child and child's defence counsel and, where appropriate, legal representative, shall have the right to be provided with detailed information about the nature of diversion from criminal prosecution, its duration, conditions and manner of application as well as the consequences for failure to fulfil the measures of diversion.
2. It shall be explained to the child verbally and in writing or in the proper forms of communication based on the special capacity of the child that consent to diversion is voluntary and that the child has the right to waiver at any stage.
3. If the child does not have a defence counsel, the child and child's legal representative shall be informed on the right to have a defence counsel.

4. Admission of a criminal offence by a child and information collected on the child during the process of diversion may not be used in court against the child.

Article 61

Conditionality on the decision to apply the measure of diversion

1. The prosecutor may decide suspending investigation in order to apply diversion conditionally, if the child in conflict with the law requests and guarantees fulfilment of the following obligations:
 - a) remedy or compensation of damage caused by the criminal offence according to child's skills and where appropriate;
 - b) involvement into restorative justice and mediation programme;
 - c) involvement in the actions of a humanitarian organisation or community activities or environmental protection;
 - .ç) treatment for drug addiction or other addictions
2. If the child fulfils the obligations according to paragraph 1 of this Article, the prosecutor shall decide dismissing criminal proceedings against the child definitively.

Article 62

Possible alternative measures of diversion from criminal prosecution

1. Alternative measures of diversion from criminal prosecution may include:
 - a) restorative justice and mediation programmes;
 - b) advising the child and family;
 - c) verbal warning;
 - ;ç) written warning
 - d) mandatory measures;
 - dh) placement in foster care;
2. Several measures foreseen in paragraph 1 of this Article may be applied to the child simultaneously. These measures shall be determined based on the individual assessment report, according to the rules foreseen in Article 47 of this Code.
3. Diversion measures shall be reasonable and proportionate to the needs of the child in conflict with the law and the victim. No obligation may be imposed on the child during diversion which may cause loss of dignity, humiliation, or exclusion from the regular educational processes and/or primary employment, as well as harm to the child's physical and/or mental health.
4. Imposition of a diversion measure more severe than the minimum punishment provided for by law for the committed criminal offence shall not be allowed.
5. Alternative measures of diversion foreseen in paragraph 1 of this Article shall be taken, where appropriate, by the prosecutor's office or the court.

Article 63

Restorative justice and/or mediation programmes

1. The prosecuting body shall decide on the application of the restorative justice programme in compliance with the legislation on mediation, in order to give to the child the possibility to redress the consequences of the criminal offence committed against the victim, community and/or society.
2. The restorative justice programme, according to paragraph 1 of this Article, may be applied if:
 - a) the child, defence counsel and where appropriate the legal representative give freely the consent to such a decision; and
 - b) any agreement to redress the consequences of the criminal offence committed by the child is reasonable or appropriate.
3. When the child has no parents or a conflict of interest exists between the parents and the child, consent under paragraph 2, letter “a” of this Article may be given by one of the procedural representatives according to the provisions of Article 3, paragraph 17 of this Code.
4. Restorative justice programme foreseen in paragraph 1 of this Article may foresee that the child be asked to:
 - a) accept and show understanding of the liability for the criminal offence and the consequences on the victim;
 - b) compensate the damage caused to the victim, community and/or society;
 - c) ask forgiveness to the victim; and
 - .ç) undertake actions acceptable by the victim or/and community
5. Restorative justice measures taken in compliance with the provisions of this Article, may include involvement in a diversion and mediation programme, public works, and/or any other programmes that lead to redressing consequences of the criminal offence committed by a child.
6. Family and group mediation is an alternative measure for diversion from criminal prosecution that brings together the victim and the child in conflict with the law, their relatives, persons from their social group, representatives from public agencies for the child protection, supervision and prevention of juvenile delinquency. The accused and his family in this process are expected to conclude an agreement with the victim that includes damage compensation, fulfilment of obligations undertaken by the victim and intended to keep the accused person away from similar future situations.

Article 64

Mediation procedure

1. Mediation as an extra-judicial proceedings is conducted by the mediator according to the provisions of this Code and the law in force on mediation.
2. Mediation may be developed only upon free consent to mediation expressed by both the child accused of the criminal offence and the injured party. The consent given must be written in a record of the prosecuting body.

3. Mediation may be organised only in the presence of the child, offender of the criminal offence and the injured party.
4. The legal representative of the child, the psychologist, the employee of the Unit for Protection of the rights of the child, the prosecutor, and/or other persons assigned by him may participate in the mediation process upon consent of the parties. The prosecutor, where necessary, may participate in the mediation process.
5. Mediation to settle disputes, where appropriate, may be applied as a diversion measure and a possibility that leads to the improvement of relations between the child offender and victim of the criminal offence.
6. The prosecutor during investigation and the judge during trial, where appropriate, may propose mediation if they deem that this is the most adequate alternative considering the nature of the criminal offence, the circumstances of commission of the criminal offence, the past of the child, the possibility of restoration of normal relations between the child and the injured party, the possibility of reducing harm to the injured party, the possibility to rehabilitate and re-integrate the child in the society.
7. If the proposal of the prosecutor/judge on mediation is accepted by the parties, then the prosecutor/judge shall decide to suspend the criminal process for a period of no longer than 45 days. If the mediation agreement is concluded, the prosecutor/judge decides to dismiss the case. If the mediation agreement is not concluded after 45 days, suspension shall become invalid and the case investigation/trial shall be resumed.
8. The costs of the mediation procedure shall be incurred according to the legislation in force.

Article 65

Advising the child and the family

1. Advising consists in informing the child and/or family of the commission of a harmful, dangerous offence, that constitutes a criminal offence and has negative consequences on the victim and the community.
2. The competent body shall advise the child and/or child's family when this measure is considered adequate and in the interest of the child and that it will have a positive impact on the child's behaviour.
3. The competent body, where appropriate, shall entrust the Unit for Protection of the rights of the child or social and/or psychological services with the drafting of a plan concerning the advisory service and the measurement of its effects on a step by step basis.

Article 66

Verbal warning

1. Verbal warning includes all the explanations given to the child by the competent bodies on the damage caused by his/her actions and the consequences deriving from re-commission of a criminal offence.
2. In such case, verbal warning given to the child shall be kept in a special register which form shall be determined by order of the Minister of Justice.

Article 67

Written warning

1. A written warning includes the recording in a record of all explanations, according to Article 65 of this Code, which are given to the child by the competent bodies.
2. A copy of the record is given to the child and child's legal representative.
3. The form of the written warning and information to be included therein shall be determined by order of the Minister of Justice.

Article 68

Mandatory measures

1. The mandatory measures against the child may be taken to prohibit him/her from:
 - a) contacting/meeting a given person;
 - b) going to/visiting a certain place;
 - c) changing the place of residence;
 - ;ç) leaving home during a specific period/time
 - d) leaving a location or a given administrative unit without permission;
 - dh) performing other actions which are an obstacle to their re-socialization and rehabilitation.
2. The mandatory measures on a child include:
 - a) starting or resuming studies in an educational institution;
 - b) starting work taking into account and applying the provisions of the Labour Code;
 - c) participating in educational, correctional and/or medical treatment programmes;
 - ç) fulfilling other obligations that facilitate their re-socialization and rehabilitation and prevent them from .re-commission of a criminal offence
3. The mandatory measure, imposed according to paragraph 2 letter "a", "b" and "c" of this Article, shall be notified not only to the child and child's legal/procedural representative but also to the responsible authority in education and/or vocational training, employment, health, Probation Service and Unit for Protection of the rights of the child.
4. The competent body shall determine, where appropriate, that the Probation Service or the Unit for Protection of the rights of the child shall enforce and monitor the mandatory measures foreseen under this Article.

Article 69

Placing a child in foster care

1. A child shall be placed in foster care in an educational and/or correctional programme if the care of the parent or guardian of the child in conflict with the law for the upbringing, behaviour and personality development of the child is inadequate to fulfil the aim of the mandatory measures and if constant care and supervision by a person or specialised service is necessary.
2. The educational and/or correctional programme shall be provided, where appropriate, by the responsible institutions defined by the legislation in force on the rights and protection of children. The responsible

authorities under this legislation shall assign persons specialised for the application of constant care. The latter in cooperation with the child, the parent, guardian, social welfare and educational institutions, doctors and other professionals, shall influence on constant basis on the personality and behaviour of the child, take care of their treatment and monitor the fulfilment of obligations, according to an individual plan.

3. Placement in foster care is decided, where appropriate, by the prosecutor or the court for a period from six months to two years.

4. Constant care and supervision may be carried out without the need to separate the child completely and permanently from the previous premises. In this way, the child may be committed to the specialised service for 24 hours or partial duration which varies from 4 to 8 hours.

5. When deciding placement in foster care, the prosecuting body shall consider that execution does not preclude the regular education and employment of the child as well as their involvement in effective activities. The activities shall be appropriate to the age, development, skills and interests of the child aiming at development of the sense of responsibility.

6. The parents of a child placed in foster care may be involved in the process of application of this measure provided that it does not contradict the interests of the child. The prosecuting body, by imposing this measure, shall give to the parents or the guardian special instructions and impose on them the obligation to collaborate with the specialised person in relation to the issues that may arise.

7. When the prosecuting deems the effective enforcement of the given measure to be necessary, may order as well that the child fulfils one or several mandatory measures, foreseen in Article 68 of this Code.

8. The service specialised for the application of the measure of placement in foster care shall inform the prosecutor in case of failure to fulfil the obligations according to this Article.

9. Specialised service shall be provided by the disciplinary/educational centre set up according to the legislation on the protection of the rights of the child.

10. In case of a disabled child, the provisions of this Article shall be applied by the specialised professionals according to the disability and according to the legislation on inclusion and accessibility.

Article 70

Fulfilment of alternative measures of diversion from criminal prosecution

1. If the alternative measure of diversion from criminal prosecution is taken against the child who has committed a criminal offence, and this measure is fulfilled, no charges over the same criminal offence may be brought against the child.

2. If the child fulfils the obligations under the diversion agreement, the prosecutor shall decide to dismiss the proceedings immediately.

3. The child who has fulfilled the alternative measure of diversion from criminal prosecution shall neither be considered sentenced for a criminal offence and not be treated as a person with a criminal record.

4. Fulfilment of the measure of diversion from criminal prosecution is carried out and monitored by the Probation Service in cooperation with the mediation service.

Article 71

Failure to fulfil the alternative measures of diversion from criminal prosecution

1. If the child intentionally fails to fulfil the measure of diversion from criminal prosecution, the Probation Service shall inform in writing the prosecutor by explaining in detail the time, place, manner and circumstances of non-fulfilment and the personal situation of the child.
2. The child, the parents or, where appropriate, the legal representatives are informed by the Probation Service of the consequences of failure to fulfil the requirements and obligations of the diversion measure and rules of examination in case of such failure.
3. Failure to fulfil the conditions and obligations deriving from the measure of diversion from criminal prosecution shall not constitute a criminal offence and shall not automatically result in restriction or deprivation of liberty of the child. Even in this case, deprivation of freedom shall be considered the last resort by the competent bodies.

Article 72

Procedure in case of failure to fulfil the alternative measure of diversion from criminal prosecution

1. The prosecutor, in cases foreseen by Article 71 of this Code, may decide changing or revoking, partially or fully, the measure of diversion after a detailed examination of the reported facts.
2. The prosecutor, in any case, shall set a special hearing, hear the views of the child providing reasons for failure to fulfil the measure by applying even the provisions of Article 59 of this Code related to the consent of the child.
3. The prosecutor, where necessary, may request a new psychological, psychiatric assessment or an opinion on the previous reports of the experts.
4. The prosecutor after examining this measure and other measures shall contact the child, the legal representative and hear the opinion of the employee of the Probation Service and may decide:
 - a) revoking or upholding the decision for diversion from criminal prosecution;
 - b) altering the type of measure of diversion;
 - c) extending the duration of the agreement.
5. Where the prosecuting body decides to re-initiate proceedings against the child, it shall consider the part of the measure that is already fulfilled by the child during the enforcement of the alternative measure of diversion.
6. In the event of revocation of the diversion decision, the prosecutor, by a reasoned decision, shall decide to repeal the decision for non-initiation of investigation or the decision for dismissal of the case already initiated and, decide re-initiating a new investigation.
7. In the event of revocation of the diversion decision, the acts performed by the child to fulfil the measure of diversion from criminal prosecution shall be examined during the trial.

8. Accepting the responsibility for a criminal offence in order to apply an alternative measure of diversion from criminal prosecution shall not be used during trial against the child.
9. If the child does not fulfil the special obligations that have been ordered, or the child refuses, or in other ways, interferes in the enforcement of the constant supervisory measure, the court may decide, where possible, for this reason, to commit the child to an educational/disciplinary institution/centre for an uninterrupted stay of not more than one month.
10. The procedure applied by the Probation Service when it deems non-fulfilment of the diversion measure shall be determined by the decision of the Council of Ministers.

CHAPTER VIII

ELEMENTS OF THE PROCESS OF INVESTIGATION OF THE CHILD IN CONFLICT WITH THE LAW

Article 73

Notification of arrest or detention of a child

1. The prosecuting body, upon the child's arrest, shall inform the latter of the right to notify the parent and in his/her absence, another adult person indicated and accepted by the child.
2. The prosecuting body shall take immediately all the necessary measures to notify, where appropriate, the legal or procedural representative of the child in accordance with the rules foreseen in this Code.
3. The prosecuting body, once committing the child to the premises of the respective institution, shall notify the child's legal representative or the person indicated by the child of the arrest, the location of the detention centre and explain the reasons of arrest and shall make available to him/her a copy of the Letter of Rights.

Article 74

Assignment and notification of a legal/procedural representative

1. The prosecuting body shall notify immediately the Unit for Protection of the rights of the child if:
 - a) it is impossible to locate the legal representative;
 - b) it is obvious that the legal representative of the child has abused with the child or in the case of a domestic crime;
 - c) there are doubts over impartiality of the legal representative of the child concerning the nature of their relations with the family member who has been injured;
 - .c) one of the types of conflict of interests is in place
2. The above-mentioned persons foreseen in paragraph 1 of this Article shall not be allowed to be informed of the child-related documents.
3. The prosecuting body shall assign a person from the list submitted by Unit for Protection of the rights of the child to make the procedural representation, if:

- a) it is impossible to local the child's legal representative, within an hour from accompanying of the child to the premises of a prosecuting body;
 - b) the child does not live with the legal representative and/or refuses to contact him/her;
 - c) the legal representative acts contrary to the interests of the child;
 - ;ç) the child is a victim of or witness to a criminal offence committed by the child's legal representative
 - d) the legal representative is accused of the same criminal offence as the child;
 - dh) the legal representative is not available.
4. In any case, when assigning the procedural representative, the views of the child must be taken into consideration.
5. The provisions on the legal representative are fully applicable, where appropriate, even to the procedural representative concerning the criminal process.

Article 75

Conditions of the child in detention facilities

1. The child in detention facilities shall be entitled to all the rights entitled to by the child in prison.
2. The child in detention facilities shall be placed in premises separated from adults.
3. Children are placed in separate premises by gender.
4. The child, when in detention, where appropriate and in accordance with the age, sex and personality, shall be provided with social, educational, psychological, medical and physical assistance.

Article 76

Cross-examination of the child in conflict with the law

1. The prosecuting body, during the stages of criminal proceedings, shall guarantee the application of rights of the child in order to protecting the child from self-incrimination by guaranteeing the right to remain silent and not to testify.
2. The prosecuting body, during cross-examination of the child shall guarantee decent treatment in compliance with the international standards of human rights and rights of the child.
3. The physical and/or psychological maltreatment of a child during cross-examination or with the intent to obtain any information from the child shall be prohibited.
4. The prosecuting body shall preliminarily consult the psychologist on the content of questions to be made to the child in order to make the question properly, facilitate the giving of testimony, avoid intimidation or reluctance from the process.
5. The child shall be questioned in the presence of the defence counsel and psychologist. The legal/procedural representative may participate during interrogation if the child so consents.
6. The language used during the cross-examination of the child must be as friendly as possible and communication must be as clearly as possible.

7. When questioning the child in conflict with the law, in addition to the provisions of this Article, where appropriate, the provisions of the Code of Criminal Procedure shall apply to the extent they do not contradict this Code.

Article 77

Procedural guarantees of cross-examination of the child in conflict with the law

1. The child, the legal representative or the psychologist have the right to request breaks during the cross-examination of the child.
2. The competent body, when cross-examining the child, shall arrange the time for break in accordance with the age, development level and other circumstances of the child.
3. Cross-examination of the child during the night, from 22⁰⁰ - 8⁰⁰ shall be prohibited.
4. The child shall be provided with food at least once in every 4 hours from 8⁰⁰-22⁰⁰ and water without any limits. The child shall be guaranteed the right to use the toilet at any time.
5. The prosecutor and the judicial police officer, during investigation, have the right to prohibit the participation of the legal representative during procedural actions, only if this serves to the best interest of the child.
6. The competent bodies, during cross-examination of the child in justice proceedings involving the child in conflict with the law shall limit to the greatest possible extent the number of cross-examinations.
7. The child under 14 years of age who has committed a criminal offence shall be cross-examined after the child is explained in a clear and understandable way that the child has no criminal responsibility because of the age. Moreover, the child shall be explained that the child has no criminal liability if the child refuses to testify or gives false testimony.
8. The rules set forth in this Article shall apply even to the administrative actions of the police and other bodies performing administrative activity in the context of criminal justice for children.

Article 78

Strip search of a child

1. The prosecuting bodies, during the strip search, shall guarantee protection of privacy and dignity of the child.
2. The prosecuting bodies, in any case, shall explain to the child the reasons of the strip search, in a language understood by the child.
3. The judicial police officer shall inform the child of the act based on which strip search is decided.
4. The strip search shall be carried out by persons of the same sex or as per the choice of the child.
5. The presence of the defence counsel is mandatory in each case of strip search of a child.

Article 79

Intimate search/medical examination of a child

1. An intimate search consists of the actions related to the physical search/examination of a child's body orifices other than the mouth.
2. Intimate search of the child may take place only upon a court decision unless health and life of the child is at stake, in emergency cases, and there are reasonable grounds to believe that information to be obtained may be lost, become void or the obtained evidence may be destroyed.
3. In all cases, an item and/or material is taken from the child's body in premises provided with a licence to perform a medical activity, in the presence of a certified physician and nurse of the same sex as the child, and in the presence of the legal representative and defence counsel.
4. Search and other procedural actions to take off, fully or partially, the child's clothing, shall take place only upon a court decision taken after hearing the views of the child and in the presence of a legal representative and defence counsel, except for the cases which pose a threat to public security and in the foreseen cases of flagrancy, under the provisions of the Code of Criminal Procedure.
5. The intimate search shall be carried out by persons of the same sex as the child or of the sex of the child's choice.
6. In cases provided for under paragraph 2 and 4 of this Article, the Court shall decide within 12 hours from the depositing of the request, without participation of the parties.
7. If the child does not agree with the participation of the legal representative during the search foreseen under paragraph 2 and 4 of this Article, or if the legal representative cannot participate, the procedural actions shall be carried out in the presence of the procedural representative assigned according to the provisions of this Code.
8. The presence of the defence counsel of the child is mandatory in each case of strip search/intimate search and medical examination of a child.
9. Mandatory taking of biological samples from the child or mandatory medical procedures shall be made according to the rules foreseen in Article 201 letter "a" of the Code of Criminal Procedure.

Article 80

Content of the decision of intimate search and medical examination

The decision of the court concerning the request for intimate search and medical examination, in addition to the provisions of Article 383 of the Code of Criminal Procedure, shall contain:

- a) the subject who has filed the request to the court;
- b) the identity of the child against whom the action is taken;
- c) the reasonable grounds for carrying out such procedural action;
- ;ç) the object, item or substance and related data which may result during the search
- d) the time period of execution of decision;
- dh) the body executing the decision.

SECURITY MEASURES

Article 81

Imposition of a security measure

1. A more severe security measure shall not be imposed against a child, if the same purpose can be achieved through a more lenient measure.
2. When a security measure against a child is requested to be imposed, the prosecutor in the request, and the Court in its decision shall consider and provide reasons related to the best interest of the child, the child's specific needs and the request not to interrupt the educational process, upbringing and normal development of a child.
3. The judge when determining the security measure shall hear the child in person and take the decision immediately thereafter.

Article 82

Special security measures against the child

In addition to the security measures foreseen in the Code of Criminal Procedure against the child in conflict with the law, the following measures may be imposed:

- a) placing a child under supervision;
- b) placing a child to a specialised service.

Article 83

Placing a child under supervision

1. A child is placed under supervision in order to make sure the child's presence whenever required before the judicial police officer, the prosecutor or the court. This measure is implemented by the parent, relative, specialised institution or person who undertake to guarantee the behaviour of the child and supervise whether the behaviour of the child is adequate or not.
2. A child shall be placed under supervision, according to paragraph 1 of this Article, only upon the consent of the child and of supervisor.
3. The supervisor may waive the supervision of the child, at any time, if he/she considers that he/she may not make sure the presence of the child whenever required by the competent body and the respectable behaviour of the child. The supervisor shall notify the court thereof immediately.
4. The supervisor may be substituted in case of waiver or failure to supervise.
5. If supervision of the child fails due to objective reasons unrelated to the supervisor, the court shall decide substituting him/her.
6. When failure is due to acts or omissions of the supervisor, the court orders punishing the latter by a fine of up to ALL 20 000.

7. The court order shall not be subject to appeal.

8. The Court, where appropriate, shall decide substituting the supervisor or the security measure against the child.

Article 84

Placing a child to a specialised service

1. Placing a child to a specialised service shall be imposed against a child whose interests require special attention and supervision, and which because of the concrete circumstances cannot be realized by a parent or close relatives.

2. Specialised service is provided by institutions or legal persons licensed even for this purpose and in compliance with the law on the rights and protection of the child.

3. The rules on manner of organisation, functioning of specialised service, programmes and manner of their funding shall be approved by decision of the Council of Ministers.

Article 85

Duration and validation of arrest or detention of the child

1. A child may be arrested or detained in compliance with the provisions of the Code of Criminal Procedure and this Code.

2. The prosecutor shall, without delay, when forthwith release is not ordered, but however, within 48 hours from arrest or detention, request their validation by the competent court.

3. Failure to meet this deadline shall make the arrest or detention powerless and the child shall be released immediately, unless the court assesses them and imposes a security measure.

4. The judge, when examining the validation of arrest or detention shall hear the child directly and take the decision immediately thereafter.

Article 86

Criteria for imposition of arrest against a child

In addition to the provisions of Article 228 of the Code of Criminal Procedure, the measure of arrest in prison may be imposed against a child as a last alternative and only upon fulfilment of one of the following criteria:

- a) the sanction foreseen for the criminal offence of which the child is accused is imprisonment and the minimum sentence is over 7 years;
- b) the measure is indispensable, because the child:
 - i) is a threat to himself/herself and/or to others and such threat may not be avoided by any other way;
 - ii) tries to flee justice.

Article 87

Enforcement of the measure of arrest against the child

1. The court even on its own initiation, after hearing the parties shall decide continuation, replacement or revocation of the measure every month following the enforcement of the arrest decision.
2. The prosecutor has the burden of proof to provide reasons on the continuation of the measure of arrest in prison.
3. The provisions of the Code of Criminal Procedure shall apply, to the greatest possible extent to the detention of the child in conflict with the law.
4. The child, irrespective of the provision in paragraph 3 of this Article may not be detained for a period longer than half the period of detention set for the adult, according to the Code of Criminal Procedure.

CHAPTER X
**ELEMENTS OF THE TRIAL PROCESS OF THE CHILD
IN CONFLICT WITH THE LAW**

Article 88

Fair and speedy trial

1. The trial involving a child in conflict with the law shall be conducted considering respect for the principle provided for in Article 17 of this Code on the examination without delay and with priority.
2. The case of a child in conflict with the law shall be sent to court not later than 3 months from the recording of the name in the register, except for the cases when during such period the child is accused of another criminal offence or in cases of criminal offences tried by the Court Against Corruption and Organised Crime. The time limits foreseen in the Code of Criminal Procedure shall apply to these cases.
3. The Court of First Instance shall conclude the examination of the case within the shortest possible time period but not later than 6 months from the date of depositing of the documents with the Court.
4. The Court of Appeal shall conclude the review of the case within the shortest possible time period but not later than 2 months from the date of depositing of the documents with the Court.
5. The High Court shall examine admissibility of recourse and try the case as quickly as possible.

Article 89

Trial in camera

The trial of a child in conflict with the law shall be held in camera.

Article 90

Child participation in trial

1. The child may not be tried in absentia.
2. The Court shall guarantee child participation in trial through:
 - a) conduction of a process appropriate for the understanding ability of the child;

- b) frequent consecutive breaks and within a reasonable time, in accordance with the age, health conditions, special needs, including the needs related to disability and other circumstances of the child.

Article 91

Trial in the presence of a child and restrictions

1. Trial shall be held only in the presence of the child.
2. The court, ex officio or upon the request of the party may take a decision concerning the removal of the child from the courtroom during examination of one or more evidence, if this serves to the best interest of the child.
3. The child shall be absent during the judicial process for the shortest time possible.
4. The judge during trial shall have the right to prohibit participation of the legal representative during procedural actions, only for the best interest of the child.
5. The court, once the decision under paragraph 2 of this Article is taken, shall explain to the parties the right to object such decision in the same hearing, by presenting their arguments to the court. In case of objection, the court shall suspend examination of evidence until a decision is taken. The decision accepting or refusing objection shall be taken immediately.
6. Once the child returns to the courtroom, the Court shall explain to the child, to the extent it is necessary and understandable, the content of evidence examined during child's absence.
7. In all cases when the court examines evidence in absence of the child, the defence counsel or legal representative shall be present.

Article 92

Admission of guilt by the child

1. During investigation and trial, the child defendant may not be compelled to make statements of self-criminal liability.
2. The silence of the child during the investigation and trial may not be considered as an admission of guilt.
3. If the child admits guilt, the Court, in any case, shall make sure that such admission is not for reasons related to the age, development and ability of the child to perceive and understand fear of a possible conviction or prolongation of the duration of cross-examination.

CHAPTER XI

PURPOSE AND TYPES OF PUNISHMENTS AGAINST THE CHILD

Article 93

Purpose of punishment

The purpose of punishment imposed against a child is re-socialisation, rehabilitation and prevention of recidivism or commission of another criminal offence, by providing care, assistance to and supervision of the child.

Article 94

General principles of punishment

1. During the decision-making process, the court shall consider that imprisonment of the child is the last possible resort that is considered only if the measures of diversion foreseen in Chapter VII of this Code are inappropriate.
2. The court, when taking the decision, shall consider primarily the best interest of the child and the individual assessment report.
3. The court, when taking the decision against a child who has been declared guilty of a criminal offence, shall consider as well:
 - a) treatment of a child in an appropriate manner to ensure child's well-being;
 - b) adaptation to the circumstances and seriousness of the criminal offence, as well as the age, individual circumstances and special needs of the child;
 - c) promotion of reintegration of the child and child's involvement, as much as possible, in a constructive role in the society;
 - ç) provision of an individual plan concerning the above-said
 - d) imposition of the most appropriate sentence to correct the behaviour of the child.
4. The penalty order foreseen in Article 406/a to 406/f of the Code of Criminal Procedure shall not apply in the case of the child in conflict with the law.
5. Judgement upon agreement, foreseen in Article 406/d to 406/f of the Code of Criminal Procedure, shall apply in the case of application of diversion measure against the child in conflict with the law.

Article 95

Types of punishment against the child

1. Punishment imposed against a child shall be non-imprisonment punishment and punishment to imprisonment.
2. Non-imprisonment punishment shall comprise:
 - a) restriction of liberty;
 - b) house arrest;
 - c) fine;
 - (ç ;community work
 - d) prohibition to performing an activity;
 - dh) fulfilment of certain obligations.

Article 96

Classifying and imposing punishment against the child

1. Punishment against a child shall be classified into main and supplementary punishment.
2. Main punishment shall consist in:
 - a) imprisonment;
 - b) restriction of liberty;
 - c) fine.
3. Supplementary punishment shall consist in:
 - a) prohibition to performing an activity;
 - b) community work;
 - c) fulfilment of certain obligations;
 - .ç) house arrest
4. Only one main punishment may be imposed against the child.
5. The main punishment may be imposed along with no more than two supplementary punishments.
6. One or several measures, foreseen in Chapter VII of this Code may be imposed along with the punishment.

Article 97

Imprisonment

1. A child may be imprisoned only if he has committed a criminal offence which the minimum of the punishment is foreseen to be 7 years and such punishment is necessary because of the nature, high social risk of the criminal offence and level of guilt.
2. Imprisonment punishment against the child may not be more than half the punishment foreseen by the law for the committed criminal offence, but not more than 12 years.
3. The court, when setting the extent of punishment against the child, shall consider and pay special attention to all the circumstances related to the maturity of the child and the time required for the education and vocational training of the child. However, depending on the level of guilt, punishment may be imposed for a shorter period when it is considered adequate to achieve its aim.

Article 98

Restriction of liberty

1. Restriction of liberty is the placement of a child in a certain institution/centre under supervision without isolation from the society and community aiming at education and rehabilitation through special programmes.
2. In facilities where restriction of liberty is enforced:

- a) the level of security measures is low;
 - b) the number of children placed in these facilities is lower in order to enable their individual treatment;
 - c) the dimensions of these premises are such that they facilitate access and contact of the child with the family members.
3. Facilities where restriction of liberty is enforced:
- a) are distributed geographically in the entire territory of the country in order to ensure contact of children with their family members;
 - b) are integrated with the social, economic and cultural environment of the community.
4. The child's liberty shall not be restricted for a period of over three years.
5. Special regulations related to the operation of facilities and setting of their security level, standards of educational and rehabilitation programmes, in case of restriction of liberty, shall be set forth in a decision of the Council of Ministers.

Article 99

Fine

1. A fine may be imposed on a child if the child possesses monetary incomes from a legitimate source.
2. If the fine is imposed on a child, the amount shall be half the amount of the fine imposed against an adult under similar conditions according to the provisions of the Criminal Code.

Article 100

Prohibition to performing an activity

1. The child may be prohibited from performing a certain activity for a period from one to three years, if the courts deems it irrelevant for the rehabilitation of the child and prevention of commission by the child of other criminal offences.
2. A child may be prohibited from performing a given activity according to paragraph 1 of this Article up to 18 years of age.

Article 101

Community service

1. Community service shall be imposed on a child for a period of 40 to 300 hours. The daily duration of community service may not exceed 4 hours per day.
2. If imprisonment is substituted with community work, the duration of community work may be longer in time. In such case, conversion shall be made according to Article 109 of this Code.
3. In case of enforcement of a decision for community work as a supplementary decision, community work may be imposed for a shorter duration than the minimum hours foreseen in paragraph 1 of this Article.

4. Community service is decided in such a way that it does not preclude the educational process of the child and it may be followed by the obligation to follow a vocational course.
5. In cases when a decision imposing community work is taken, it is necessary that the child be assigned to a work place which experience thereto will serve to the child to become a respectable person.
6. Community service, as a supplementary decision, may be imposed on a child even in the cases when the respective Article of the Criminal Code does not foresee it as a type of punishment.

Article 102

Fulfilment of certain obligations

1. The court may order the child in conflict with the criminal law to fulfil one or more obligations including:
 - a) attend mandatory education, or where appropriate, an educational programme;
 - b) attend a vocational training programme under the law on vocational training;
 - c) fulfil the obligations deriving from the employment relations provided because of the social employment programmes;
 - (ç ;redress the civil damage caused
 - d) follow a rehabilitation programme, psychological or medical treatment, including, where appropriate, detoxification treatment because of use of alcohol or drugs;
 - dh) refrain from going to certain places;
 - e) refrain from staying with certain persons who may have a negative influence on their behaviour and education;
2. The court, where appropriate, may order, to the extent applicable, even the obligations foreseen by Article 60 of the Criminal Code or other obligations deemed to be in the best interest of the child.
3. The Decision of the Council of Ministers shall define the competent authorities and procedure to be followed by them in case of orders of the court, according to paragraph 1 of this Article.

Article 103

House arrest

1. House arrest foresees the obligation of the child not to leave, for a given period of time, their permanent or temporary residence, or a given place where the child stays or is treated temporarily.
2. House arrest may last for a period from 6 months to 1 year.
3. House arrest shall apply in the case of criminal offences which are punished by not more than 5 years of imprisonment.
4. House arrest shall be imposed in such a way so as not to preclude the educational process and/or employment of the child.
5. House arrest may be monitored electronically.

Article 104

Suspension of execution of imprisonment sentence

1. If the court orders imprisonment for up to five years, and the child has not been convicted in the past for the intentional commission of a criminal offence, the court may decide to suspend the execution of the imprisonment sentence and order the sentenced person to contact the Probation Service and to be placed under probation, provided that during the probation period the child does not commit another criminal offence.
2. When the court decides according to paragraph 1 of this Article, it shall apply the provisions of Article 59 of the Criminal Code.

Article 105

Rules on non-imprisonment sentence

The court, when imposing a non-imprisonment sentence against the child, may set one or several mandatory measures as provided under Article 68 of this Code. In such cases, no mandatory measure shall be imposed against a child if they are impossible to be fulfilled by the child or exceed the mental and physical capacities of the child.

Article 106

Punishment below the minimum punishment foreseen by the law

The court, given the low dangerousness of the child and the criminal offence, the concrete circumstances of its commission, the previous behaviour of the child, the fact that the child has no criminal record, the presence of several mitigating circumstances and absence of aggravating circumstances, may impose a punishment below the minimum punishment or a lenient type of punishment than the one foreseen by the relevant provisions.

CHAPTER XII

EXECUTION OF SENTENCES

Article 107

Execution of non-imprisonment sentences

1. Non-imprisonment sentences foreseen by this Code shall be executed by the General Directorate of Probation Services.
2. The child shall continue serving a non-imprisonment sentence or conditional punishment, as determined in the decision against a child even if the child has reached 18 years of age before execution or during execution of this decision. In such case, the relevant provisions of this Code shall apply.

3. In case of violation of the regimen defined for execution of the non-imprisonment sentence against a child, the Probation Service shall draft a warning note, which, where appropriate, shall be handed to or sent via registered mail to the sentenced child against receipt of acknowledgement.
4. If the child departs from serving the non-imprisonment sentence, conditional punishment or fulfilment of an obligation, the Probation Service after verifying the facts and the circumstances, shall report to the prosecutor and where appropriate, propose changing the decision.
5. The prosecutor, where appropriate, may request the court to change the decision.
6. The court, when examining the request, shall hear the prosecutor, the child, the defence counsel and take the opinion of the representative of the Probation Service and legal representative of the child.
7. The Court, upon request of the parties, may examine even other evidence.
8. In this case, the Court shall take a decision within one week from the submission of the request.

Article 108

Commission of a criminal offence during execution of non-imprisonment sentence

1. If within the period that the non-imprisonment sentence or conditional punishment is served, the child commits a criminal offence, the Probation Service shall notify the prosecutor who, where appropriate, shall approach the court.
2. If within the period that the non-imprisonment sentence or conditional punishment is served the child commits another minor offence or offence committed due to negligence and the child is declared guilty, the Court, where appropriate, may decide whether to change the respective decision or not.
3. If the child commits an intentional crime or a crime which punishment is foreseen to be over 8 years of imprisonment, and the child is declared guilty, the court upon the request of the prosecutor may revoke the non-imprisonment sentence and take a decision to enforce the imprisonment sentence for the remaining part of the sentence considering that imprisonment is the last resort.

Article 109

Calculations for the purpose of converting the sentence

The court when changing the punishment decision for purposes of converting the punishment shall make a calculation by considering the following as equal to one another:

- a) 10 hours of community service, to;
- b) a fine of five thousand ALL, to;
- c) three days of house arrest, to;
- ;ç) two days of restriction of liberty, to
- d) one day of imprisonment.

Article 110

Placing a child in detention and prison facilities

1. A child defendant, against whom the security measure of detention is taken, shall be placed only in the juvenile section of detention facilities, whereas the child sentenced to imprisonment shall be placed in the institution of execution of criminal sentences for children.
2. The services in detention and prison institutions where the child defendant/sentenced is placed must be in compliance with the requirements of respect for health and dignity of the child and serve to re-socialisation, re-integration, rehabilitation and prevention of recidivism or commission of another criminal offence by providing care, assistance and supervision to the child.
3. To guarantee the best interest of the child, the respective detention or prison facility shall be provided with sufficient number of staff, qualified and trained on constant basis.
4. The staff of detention and prison facilities for children shall consist of at least a doctor, a nurse, a psychologist, a social worker. The institution, where appropriate must provide the assistance of a paediatrician, psychiatric doctor or other specialists according to the needs and the defined inspection regime.
5. Children in Institutions of Execution of Criminal Sentences for children or sections for children shall be under visual and/or electronic monitoring and control. Special rules concerning monitoring and control shall be defined in the General Regulation of Prisons.

Article 111

Special rules of execution of the imprisonment sentence

1. Special measures which guarantee standards defined in the Constitution, ratified international agreements and provisions of this Code shall be taken to serve to the special interests of protection of and care for the child.
2. The General Regulation of Prisons specifically provides for rules on:
 - a) structure and functioning of the Institutions of Execution of Criminal Sentences for children;
 - b) individual planning of execution of sentence by the child;
 - c) implementation of forms of incentives and other measures for sentenced children;
 - ;ç) imposing of disciplinary measures against sentenced children
 - d) procedure of processing the requests and complaints of sentenced children;
 - dh) organization of rehabilitation process for sentenced children;
 - e) conditions for implementation of security measures and the use of special means in relation to sentenced children;
 - (ë) functioning of record-books and personal files of sentenced children;
 - f) visual and/or electronic monitoring and control of sentenced children;
 - g) detailed conditions for execution of the imprisonment sentence against the sentenced children.

Article 112

Defence counsel of the child during execution

1. In order to enforce the rights in the process of execution of criminal sentences, the child shall be assigned an ex officio defence counsel according to the provisions of this Code and the legislation in force.
2. The defence counsel, upon the consent of the child and based on the best interest of the child, may be the same defence counsel who represented the child in the previous stages of the process.

CHAPTER XIII

CONDITIONS OF AND RULES ON CHILDREN IN DETENTION AND PRISON FACILITIES

Article 113

Special places for the child defendant/sentenced

1. The child defendant/sentenced shall be placed in premises separated from the detainee/sentenced adult.
2. The placement, keeping or movement of the child outside an institution together with an adult shall be prohibited.
3. The detainee/sentenced female child shall be placed in premises separated from the detainee/sentenced male child.
4. Paragraph 2 and 3 of this Article shall be an exemption to the rule where the children, irrespective of the gender, and the children participate together with the adults in the rehabilitation, educational, cultural, sports and other activities of cultural and educational nature.
5. In order to ensure a safe environment for the children in respective institution/section, children shall be separated by age-group, type and seriousness of the criminal offence, physical and mental development, and other characteristics taking into account the best interest of the child.
6. Detailed rules on the detention and prison facilities of children in conflict with the law shall be defined in the General Regulation of Prisons.

Article 114

Medical, psychological examination and relevant placement in facilities

1. A child, immediately after admission with the prison or detention facility must be examined by a doctor, in order to identify and record any marks/information or previous maltreatment or any physical or mental harm requiring medical care. The doctor, after examining the child, shall prepare a report describing the fact whether the marks/information are found in relation to the child, maltreatment or injury as described above or not.
2. Every child must be interviewed not later than 24 hours from the moment of admission, by a psychologist or social worker and a psychological and social report must be prepared to identify and describe any factors related to the type and level of care and programme needed for the treatment of the child.
3. The reports mentioned in paragraph 1 and 2 of this Article shall be submitted to the head of the Institution of Execution of Criminal Sentences for children in order to establish the most appropriate

placement of the child within the premises and the type and level of care and programme to be followed. When special treatment and rehabilitation is necessary and the duration of stay in the premises allows, the staff trained for this purpose shall prepare an individual treatment plan indicating the objectives and the period, the means, stages and steps to be taken to deal with those objectives.

Article 115

Medical care and treatment of children

1. A detainee/sentenced child shall be provided with medical care and treatment, including but not limited to:
 - a) psychiatric/psychological and mental health services;
 - b) drug and alcohol rehabilitation services;
 - c) dental and ophthalmologic care;
 - ;ç) sexual and reproduction health care service
 - d) HIV/AIDS treatment;
 - dh) services related to premature childbirth in the case of pregnant girls; and
 - e) regular medical check-ups including, where appropriate, gynaeco-logical examination;(ë care to discovering any other situation which may hinder integration of the child in the society.
2. Any prison or detention facilities for children must ensure immediate access to the adequate medical objects/facilities and equipment in relation to the number and requests of the prisoners and staff trained for the preventive medical care and treatment of medical emergencies.
3. If necessary medical care may not be provided within the prison/detention institution, the child shall have the right to obtain a permit and in an emergency case, to be given permission to undergo medical check-up and receive the necessary medical treatment.
4. A child who is sick or complaints of a sickness or shows symptoms of physical or mental problems must be immediately examined/checked by the doctor.
5. Consent of the child to any medical treatment must be obtained once the child is informed thereof.
6. When life of the child may be at risk or the child may suffer permanent health injury and refuses to give consent to medical treatment, such consent must be obtained by the parent or legal representative of the child and in their absence by the court.
7. When according to the doctor urgent treatment is required to protect the health or life of the child and/or health of others, treatment shall be provided without obtaining first the consent of the parent or legal representative of the child.
8. The child shall be examined and treated by a doctor of the same gender or gender of the child's choice.
9. Each medical treatment period shall be calculated as part of the period of the sentence of the child.
10. If, following medical examination, it is found that the child has suffered physical abuse or sexual abuse before placement or during stay in an Institution of Execution of Criminal Sentences for children, the doctor shall immediately notify the competent prosecutor's office. Following such notification, the

prosecutor's office shall take measures, immediately, to provide free legal advice in order to support the child in any claim.

11. The medical report and the treatment data shall be recorded and kept in the personal file of the child. Such data shall be transferred to any other institution of execution of criminal sentences where the child may be placed.

Article 116

Living conditions and nutrition of children

1. Special care shall be shown to the living conditions and nutrition of the defendant/sentenced child as compared to the conditions of other defendants and sentenced persons.
2. The living conditions and nutrition must be in accordance with their age, situation and special needs of the child.
3. The Institution of Execution of Criminal Sentence for children shall make sure that the sentenced children exercise their right to move independently inside the institution's territory, under the rules defined in the daily schedule and individual programme for serving the sentence.
4. The child sentenced to imprisonment shall have the right to facilities and services that meet all the conditions for the human health and dignity. Facilities and services include:
 - a) the sleeping area which consists of an individual bed in a separate room, unless it is necessary that the child shares the bedroom which may be monitored without causing any stress to the child;
 - b) adequate and clean individual bed that is suitable for the climate;
 - c) a shelf where to keep personal items; and
 - c) adequate clean sanitary premises which observe the need for privacy and special needs of child's .gender
5. The sentenced child shall be allowed to wear own clothes provided they are suitable and in compliance with the respective rules. If the child has permission to leave the premises where sentence is being served, the child shall not wear any clothing that identifies the child as a sentenced person.
6. The sentenced child shall have the right to be provided with adequate water and food with nutritional values relevant to the age and special needs of the child.

Article 117

Organization of educational and rehabilitation programmes

1. The defendant/sentenced child/young adult must be provided basic compulsory education, and where appropriate, even secondary or high education.
2. The education process in prisons and detention facilities must be in compliance with the standards of education in the Republic of Albania.
3. The education and rehabilitation process shall be organised during detention and imprisonment so that the defendant/sentenced child will be provided general and/or vocational education possibly outside the

prison and detention facilities. The education process, in exceptional cases, must take place in the prison/detention facilities where the child shall attend vocational education/training.

4. The young adult/child prisoner shall have access to vocational training, according to their interests and skills, which will be useful to them for employment after leaving the institution.

5. The documentation proving education of the defendant/sentenced young adult/child during the time they were defendants or serving sentence shall not contain any information identifying the child as former-sentenced persons or identifying a previous conviction.

6. Special and individual educational programmes shall be organized for the sentenced child who has learning difficulty because of any disabilities and the child who has not attended school.

7. The educational process in institutions of execution of criminal sentences for children shall be regulated by a joint order of the Minister of Justice and the minister in charge of education.

Article 118

Possibilities for employment and housing

1. A child is entitled to remunerated work. The Institution of Execution of Criminal Sentences for children shall encourage remunerated work. Where possible, the defendant/sentenced child may work even outside this institution in accordance with the provisions of the Labour Code related to employment of children.

2. A child shall work after the study schedule.

3. It shall be prohibited employing persons who serve a sentence, persons awaiting trial in detention facilities or persons who have been sentenced in the past to perform maintenance work in the Institution of Execution of Criminal Sentences for children.

4. A defendant/sentenced child may work only if such activity facilitates vocational education, employment after release and provided that it does not impede child's education.

5. The child's work and education shall not exceed 8 hours per day.

6. The child and young adults shall avail themselves of the social programmes foreseen by the law on social housing.

Article 119

Sports and recovery

1. A child in conflict with the law is provided access to daily walking, sports and recovery activities, through the use of adequate sports equipment in an appropriate area.

2. Children, including disabled children, are provided with physical and recovery training programmes.

Article 120

Contact with the family and friends

1. For the purpose of re-integration into society and reduction of negative social consequences of restriction of liberty, the child sentenced to imprisonment and the detainee child shall enjoy same rights related to the establishment of contact with the family and the social group.
2. The child sentenced to imprisonment and the detainee child shall be effectively guaranteed the right to regular and frequent relations with the family, the person of their choice and social group as well as the right to receive correspondence, unless this goes contrary to the best interest of the child.
3. The child shall have the right to:
 - a) 8 visits per month by family members/friends and, as an incentive, 2 bonus visits per month. If the family members and the friends are unable to visit the child within the scheduled time period, the competent body shall ensure the right to visit the child at a time convenient to them and the child;
 - b) 4 visits per year to the family and bonus visits as an incentive;
 - c) at least 1 visit due to health or emotional problems;
(çnot less than 4 phone calls per month, free of charge, where each phone call shall not last more than 15 minutes, and, as an incentive, unlimited phone calls at one's own expenses; If the child lacks financial means, this right shall be guaranteed free of charge by the competent body where the child is placed;
 - d) 4 video-conferences per month and, as an incentive, 2 additional video-conferences per month;
 - dh) unlimited number of letters and parcels;
 - e) personal TV and radio;
(ë spending from own personal account, on monthly basis, to buy food, personal equipment and other goods, from a store inside the territory of the rehabilitation premise.
4. The child entitled to the rights foreseen by this Article shall be guaranteed the right to privacy.
5. The manner of fulfilment of the rights according to this Article shall be foreseen in the General Regulation of Prisons.

Article 121

Leave for the child punished by imprisonment

1. The child punished by imprisonment shall have the right to a short leave, three times a year, from the facility where sentence is being served. The duration of such leave shall not exceed 15 days. Such duration shall include even the time required for the journey to the child's family or destination.
2. A child punished by imprisonment shall have the right to a short leave from the premise where sentence is being served, if the child:
 - a) has served not less than one third of the punishment, in case the child is punished by up to three years of imprisonment;
 - b) has served not less than half of the punishment, in case the child is punished by up to eight years of imprisonment;
 - c) has served not less than two thirds of the punishment, in case the child is punished by over eight years of imprisonment;

Article 122

Temporary transfer of the child to another facility

1. A child arrested/sentenced may be temporarily transferred to another facility for children if such measure is indispensable for the child's safety or the safety of other children. In such case, the rules on transfer shall be foreseen in the General Regulation of Prisons.
2. Once the child is transferred to another facility:
 - a) the child's legal representative shall be informed of the child's location;
 - b) the child shall undergo medical examination;
 - c) the child shall be entitled to a phone call not longer than 15 minutes.

Article 123

Keeping the convict in the rehabilitation facility or transferring to another penitentiary institution

1. A child shall serve punishment according to an individual plan. A multi-disciplinary group at the institution of execution of criminal sentences for children shall make the initial assessment based on which the Individual Plan shall be prepared. A social worker shall be assigned as case manager and shall be responsible for the implementation of the Individual Plan. The child shall be questioned and give consent to the Individual Plan.
2. The sentenced person who reaches the age of 18 years shall not be allowed to stay in the Institutions of Execution of Criminal Sentences for children and he/she shall be transferred to an adults' institution to serve the punishment.

Article 124

Forms of incentives to a sentenced child

1. In case the child shows a good and respectable behaviour, involvement in educational programmes and activities carried out in the juvenile penitentiary institution, the competent body shall implement the following form of incentives to the child:
 - a) releasing a statement of gratitude;
 - b) early removal of a disciplinary sanction;
 - c) granting the right to an additional visit;
 - ;ç) granting the right to an additional video-conference conversation
 - d) granting the right to an additional telephone call;
 - dh) consenting objects that are not banned to be received by the sentenced persons inside the juvenile penitentiary institution;
 - e) granting the right to use a computer;
 - (ë fulfilling a wish that is deemed feasible and proportional.

2. The types and nature of items that children are entitled to receive under letter “dh”, paragraph 1 of this Article, shall be foreseen in the General Regulation of Prisons.

Article 125

Limits to enforcing disciplinary measures

1. The administration of the juvenile penitentiary institution shall be authorized to use disciplinary measures against the child in case of a disciplinary misconduct committed by the latter.
2. A disciplinary measure must be the last resort taken in relation to the behaviour of the child.
3. Work may not be a disciplinary measure.
4. The imposed disciplinary measures shall not result in violation or threat to the dignity of the child, violent, inhuman, degrading treatment or physical or mental health damage. It shall be prohibited taking as disciplinary measures the following actions, but not limited thereto:
 - a) physical or corporal sanctions;
 - b) placement in isolation;
 - c) food deprivation or limitation;
 - ;ç) medical care deprivation or restriction
 - d) prohibition or restriction to meeting or contacting family members.
5. Special rules on enforcement of this Article shall be foreseen in the General Regulation of Prisons.

Article 126

Types of disciplinary measures

1. The administration of a juvenile penitentiary institution shall be authorized to use the following disciplinary measures:
 - a) notice of caution in the form of warning;
 - b) limitation for up to one month of the right to use the allowed items, except for food and medication given by the doctor;
 - c) limitation for up to one month of the right to buy from the shop located in the premises of the Institution of Execution of Criminal Sentences for children, except for items which guarantee the rights foreseen in Article 116 of this Code;
 - .ç) limitation for up to one month of the right to receive parcels
2. Placing the child serving sentence in special/isolated premises shall be prohibited.
3. The disciplinary measures provided under letters “c” and “ç” of paragraph 1 herein, shall not exceed 3 months within one year.
4. Special rules on enforcement of this Article shall be foreseen in the General Regulation of Prisons.

Article 127

Proceedings for the imposition of disciplinary measures

1. The disciplinary misconduct committed by a child arrested/sentenced shall be examined in a hearing, unless the child breaches the order, or hinders the hearing, fails to appear at the hearing or refuses to participate therein. Such fact shall be recorded in the minutes kept during the hearing.
2. During the hearing, the child arrested/sentenced shall have the right to remain seated, take notes and give verbal explanations.
3. The child arrested/sentenced has the right to a defence counsel in the hearing where the disciplinary misconduct is examined. Before a hearing starts, the child shall be informed of the right to have a defence counsel. Such right shall be exercised within 6 hours from the provision of information, if the child so consents. If the defence counsel fails to appear on time, an ex officio lawyer shall be assigned to the child. The child shall consent to the ex officio lawyer. Expenses for the ex officio lawyer shall be covered according to the provisions of the legislation on legal aid.
4. Special rules on the proceedings related to the disciplinary measure against the child and the respective authorities shall be defined in the General Regulation of Prisons.

Article 128

Information on the right to complaint

1. The child arrested/sentenced has the right to appeal against any decision or other measure taken by the authorities of detention, prison staff or other sentences.
2. The respective staff of the Institution of Execution of Criminal Sentences for children where the child arrested/sentenced is placed shall give immediately to the child the possibility to be informed in writing of his rights and duties, including the right to appeal and the rules of appeal foreseen by law.
3. A child who cannot read and write shall take the above-mentioned information verbally, in the presence of a person who keeps the records and the child shall confirm by signing.
4. Information shall be given to the child in a form that the child understands. The same shall apply to the disabled child.

Article 129

Conditional release

1. A sentenced child may be granted conditional release from serving the sentence only if the child has served:
 - a) not less than one third of the imprisonment sentence in case the child has been punished by up to three years of imprisonment;
 - b) not less than one half of the imprisonment sentence in case the child has been punished by up to eight years of imprisonment;
 - c) not less than two thirds of the imprisonment sentence in case the child has been punished by over eight years of imprisonment.

2. In the cases provided under paragraph 1 of this Article, the imprisonment term served by the child shall not be less than three months.
3. The Institution of Execution of Criminal Sentences for children not later than three months from the date closest to the conditional release, shall notify the Probation Service of the possible release of the child. The Probation Service shall analyse the behaviour of the child during the serving of the sentence, the facts and data of previous criminal acts, the child's personality, the family situation, nature of crime committed by the child and other circumstances that may affect the taking of a decision on early release.
4. When a child is granted conditional release from a community work, the imprisonment term already served in the form of community work shall be included in the period foreseen under paragraph 1 of this Article according to the calculation which equals 10 hours of community work to one day imprisonment.
5. When a child is granted conditional release from serving a sentence of restriction of liberty, the imprisonment term already served in the form of restriction of liberty shall be included in the period foreseen under paragraph 1 of this Article, according to the calculation which equal one day of restricted liberty to one day of imprisonment.
6. In case a decision refusing conditional release is taken, the court must indicate measures to be taken in the future by the child and the staff of the Institution of Execution of Criminal Sentences for children in order to be granted conditional release in the future.

Article 130

Decision on conditional release

1. The court upon a reasoned decision shall decide admitting or refusing the request for conditional release of the child. The decision shall contain a full assessment of the progress towards the re-socialization, rehabilitation and willingness of the child for release, along with the views expressed by the child, the staff of the Institution of Execution of Criminal Sentences for children and the Probation Service.
2. The decision on conditional release shall contain the conditions imposed on the child, which fulfilment aims at supporting the child in the course of reintegration and re-socialization.
3. The conditions must be created to the child and the child must be assisted to fulfil the obligations imposed under the release decision.
4. If a child violates the conditions set in the release decision, the court shall have the right to revoke the release decision.
5. The decision to return the child back to the penitentiary institution may be taken even if the child constitutes a risk to himself/herself or other which may not be avoided in the community or if the child is sentenced for another criminal offence.
6. The child shall have the right to appeal against the decision according to the legislation in force.

Article 131

Replacing the remainder of the sentence

The remainder of imprisonment sentence may be replaced with community work or restriction of liberty, only if the child has served:

- a) not less than one fourth of the imprisonment sentence in case the child has been punished by to up to three years of imprisonment;
- b) not less than one third of the imprisonment sentence in case the child has been punished by up to eight years of imprisonment;
- c) not less than one half of the imprisonment sentence in case the child has been punished by over eight years of imprisonment.

Article 132

Periodical review of conditional release

1. The review of the possibility for conditional release of a child shall be made every three months by the court upon request of the sentenced child.
2. A periodic review shall:
 - a) include a full assessment of the rehabilitation process and the time when the child will be ready for release;
 - b) take into account the opinion of the child and the possibilities to leave the child under supervision;
 - c) include a written recommendation on release or continuation of serving punishment by the child.

CHAPTER XIV

PREPARATION FOR RELEASE FROM IECS, CARE, REHABILITATION AND RESOCIALISATION

Article 133

Preparing for release after serving the sentence

1. The main aim of the rehabilitation activity in the penitentiary facility for children is to prepare the child for release in order to ensure rehabilitation and return of the child in the society.
2. The administration of the Institution of Execution of Criminal Sentences for children, for the purposes of paragraph 1 of this Article shall take measures, from the very beginning and through daily updating, to draft a special plan together with the child, family and in cooperation with the child protection structures.
3. The administration of the Institution of Execution of Criminal Sentences for children, shall make sure that the child understands the content of the plan.
4. For the performance of rehabilitation activities, the Crime Prevention Centre for children and young adults shall be set up at the Ministry of Justice to monitor and protect children/young adults after serving sentence according to the provisions of this Article. Specific rules concerning the structure and organisational structure of the Crime Prevention Centre for Children and Young Adults shall be determined by decision of the Council of Ministers.
5. After serving two thirds of imprisonment term, but not less than three months before the date the punishment ends, the staff of the Institution of Execution of Criminal Sentences for children, shall:

- a) inform of the date the punishment of the child ends, the child's legal representative and the Crime Prevention Centre for Children and Young Adults and the Unit for Protection of the rights of the child;
 - b) provide the child with psychological and educational support to be prepared for release;
 - c) give the child the possibility to make short visits at home;
 - c) prepare a file with data on social situation of the child, with the purpose to strengthen the child's re-socialization
 - d) provide the child with information understandable by the child in order to have appropriate access to aftercare and support after serving sentence;
 - dh) collaborate with health care institution in the place of residence of the child in order to implement the reintegration programme for the aspects related to the child's health.
6. The representatives of the Crime Prevention Centre for Children and Young Adults in cooperation with the Unit for Protection of the rights of the child shall:
- a) take all the necessary measures in order for the child to understand the terms and conditions of rehabilitation and re-socialization programs;
 - b) become familiar with the file containing data on social inclusion of children in detention or prison facilities;
 - c) meet the child in adequate premises;
 - c) approve the rehabilitation and re-socialization programmes not later than three months from the submission of the request, if the child so requests;
 - d) ensure compliance with and review of programmes in prison facilities, if necessary.
7. Not earlier than three months before the lapse of the time limit for conditional release and not earlier than three months from serving the imprisonment sentence, the staff of the Institution of Execution of Criminal Sentences for children shall:
- a) inform the child, child's legal representative and the Probation Service of the date the punishment ends;
 - b) inform in writing the Crime Prevention Centre for Children and Young Adults, the Probation Service, the Unit for Protection of the rights of the child, of the family risk and social/environmental risk and of the needs of children outside IECS.
8. The representative of the Probation Service shall:
- a) make an assessment of family and social/environmental risks and the needs of the child outside IESC;
 - b) issue the required documentation for the conditional release of the child, based on the assessment of the family and social/environmental risk of the child outside IECS.
9. The forms and rules for drafting the documentation on conditional release and the assessment of risk and the family and social/environmental needs foreseen in this Article shall be defined by instruction of the Minister of Justice.
10. In order to prepare the rehabilitation and re-socialization programme, for a period not exceeding three months from the release of children from IECS, where appropriate, the Probation Service and the staff of

the Institution of Execution of Criminal Sentences for children shall cooperate with the Crime Prevention Centre for Children and Young adults, the Probation Service, local government bodies of the administrative unit and Unit for Protection of the rights of the child of the place of residence or intended place of residence of the child.

Article 134

Support after release

1. The competent bodies shall support the child after release in order to enable their successful re-integration.
2. In order to support the re-integration process, the local government bodies in cooperation with the child protection structures at local level shall provide, according to the legislation in force, shelter appropriate to the child who is homeless.
3. The body competent for the protection of the rights of children shall coordinate the implementation of the reintegration and supervision of services to the child, at least up to 6 months after release.
4. The child must be supported to have, at least:
 - a) adequate clothing;
 - b) psychological support;
 - c) travel costs to the place of residence;
 - .ç) possibility to attend vocational training courses, unless the child is supported by the family

Article 135

Supervision after serving punishment and conditional sentence

1. After release, the child, where appropriate, placed again with the parents or legal guardian and they shall be guaranteed protection according to the legislation on protection of rights of the child.
2. The Crime Prevention Centre for Children and Young adults in cooperation with the Unit for Protection of the rights of the child shall coordinate and implement the rehabilitation and re-socialization programme for at least six months after punishment is served or conditional release and it shall monitor the progress of the implementation of the plan for re-socialisation of the child.

CHAPTER XV

KEEPING AND STORAGE OF DATA IN THE SYSTEM OF JUSTICE FOR CHILDREN

Article 136

Database of criminal justice for children

1. In order to keep the data of criminal cases involving a child in conflict with the law, child victim and witness of criminal offences, the Integrated Data System of Criminal Justice for Children shall be created.

2. The system shall contain only information that is necessary for this purpose.
3. The system shall include entry and update of data related to criminal justice for children and its aim is to:
 - a) collect data and arrange them as well as follow them on real time basis;
 - b) improve justice access to children subjects of this Code and ensure good-administration of justice for children;
 - c) coordinate inter-institutional efforts in order to enable provision of quick solutions when the child is denied justice access, is subject to abuse or violation of rights, or the procedural guarantees foreseen by the legislation in force are not observed;
 - ç) unify and digitalise data collection in order to create a statistical database that will be useful for the .analysis and direction of improvement of policy related to criminal justice for children
4. The system shall contain updated electronic data on each stage of criminal proceedings including the execution of the criminal decision involving children subjects of this Code.

Article 137

Responsible institutions

1. The system shall be administered by the Ministry of Justice.
2. The Ministry of Justice, police, prosecutor's offices, courts, institutions of execution of criminal sentences and probation service offices shall enter and update data in the system and access this system according to the rules defined by the respective institutions for use and updating of data as well as the access levels.
3. The Ministry of Justice after establishment and full operation of the electronic case management system in the justice system shall cooperate with the Information Technology Centre of the Justice System for the electronic dissemination of data related to the indexing of files of children by the prosecutor's offices and courts, upon completion of respective processes.
4. Creation, organisation, functioning and characteristics on the use and access to the data system, primary and secondary data and information provider shall be defined by decision of the Council of Ministers.
5. The responsible institutions according to this Article, by the areas of activity, based on this law and the decision of the Council of Ministers, shall issue orders for the approval of detailed rules on the use of the system by their subordinate institutions.

Article 138

Informing and destruction of the personal file

1. The identity of children and their family members must not be communicated to any person who is not authorised by law to be informed thereof.
2. The legal authorisation to obtain information must be strictly limited to persons and institutions requesting special information about a particular case by avoiding public disclosure of all the names of subjects according to this Code.
3. A sentenced child may be informed of their personal file until the file is destroyed.

4. After release of the child, the rules on the storage and destruction of the files foreseen by the law on archives in the Republic of Albania shall apply to the personal file of the child.

Article 139

Retaining the file of the child punished by non-imprisonment

The rules on the retention and destruction of the file, foreseen by the law on archives in the Republic of Albania, shall apply to the complete file of execution of sentence against the child who has been punished by non-imprisonment or conditional punishment.

CHAPTER XVI

TRANSITIONAL AND FINAL PROVISIONS

Article 140

Enforcement of provisions of this Code and retroactive effect

1. The provisions of this Code shall start to apply as of 1st January 2018 to all the cases being investigated, tried or executed.
2. The provisions of this Code shall have retroactive effect only if this improves the condition and position of the child and it is in the best interest of the child.
3. The provisions of this Code, which enforcement requires the establishment of institutions or provisions of several and specialised services, shall become effective progressively according to the provisions of this Article.
4. The Ministry of Justice and the ministry responsible for public order and security, within 6 months from the entry into force of this Code, shall adapt and equip the premises for cross-examination of the child, according to the provisions of Article 39 of this Code;
5. Within 6 months from the entry into force of this Code, each competent body, according to this Code, shall prepare the list of persons who will be specialised in justice for children cases, approve the training programme and organise their training, in accordance with Chapter IV of this Code.
6. Within the 1st of January 2019, the provisions related to the activity of the competent institutions and authorities performing the functions related to the placement of the child under supervision, according to provisions of Article 83 and 84 of this Code; providing specialised service for the placement in foster care according to Article 69 of this Code; seeing to the fulfilment of obligations by the child, according to Article 102, paragraph 3 of this Code; restricting liberty according to Article 98 of this Code; providing services that guarantee sports and recovery of disabled persons, according to the provisions of Article 119 of this Code shall start to be applied and enter into force; as well as it shall be established the Crime Prevention Centre for Children and Young Adults, according to the provisions of Article 133, paragraph 4 of this Code.

Article 141

Sub-legal acts

1. The Council of Ministers within 6 months from the entry into force of this Code shall be in charge of issuing new sub-legal acts or amending the existing ones according to the provisions of this Code and they shall make possible fulfilment of obligations foreseen in Article 72, paragraph 10; 84, paragraph 3; 98, paragraph 5; 102, paragraph 3; 110, paragraph 5; 111, paragraph 2; 113, paragraph 6; 120, paragraph 5; 122, paragraph 1; 124, paragraph 2; 125, paragraph 5; 126, paragraph 4; 127, paragraph 4; 133, paragraph 4; 137, paragraph 4 and 137, paragraph 5.

2. The respective ministers within 6 months from the entry into force of this Code shall be in charge of issuing new sub-legal acts according to the provisions of this Code and they shall make possible fulfilment of obligations foreseen in Article 59, paragraph 4; 66 paragraph 2, 67 paragraph 2 and 117 paragraph 7.

Article 142

Repeals

1. All other provisions contained in legal and sub-legal acts which are contrary to the provisions of this Code shall be repealed upon entry into force of this Code.

2. The sub-legal acts concerning criminal justice for children shall apply to the extent they do not contradict the principles and provisions of this Code until the new sub-legal acts implementing this law are issued.

Article 143

Entry into force

This Code enters into force on 1 January 2018.

SPEAKER

ILIR META

Adopted on 30.3.2017

LAW

No. 10 192, dated 3.12.2009

ON PREVENTING AND STRIKING AT ORGANISED CRIME, TRAFFICKING CORRUPTION AND OTHER CRIMES THROUGH PREVENTIVE MEASURES AGAINST ASSETS

*(Amended by Law no. 24/2014;
amended by Law no. 70/2017;
title amended by Law no. 70/2017, Article 1)*

In reliance on Articles 78 and 83, point 1, of the Constitution, on the proposal of the Council of Ministers,

THE ASSEMBLY
OF THE REPUBLIC OF ALBANIA

D E C I D E D:

CHAPTER I GENERAL PRINCIPLES AND PROVISIONS

Article 1

Object

(Words added by Law no. 70/2017, Article 2)

This law defines the procedures, competences and criteria for the implementation of preventive measures against the assets of persons who are subject to this law as suspected of participation in organised crime, trafficking, corruption and in committing other crimes pursuant to the provisions of this law.

Article 2

Purpose

(Words added by Law no. 70/2017, Article 3)

The purpose of this law is preventing and striking at organised crime, trafficking corruption and other crimes pursuant to the provisions of this law, through the confiscation of the assets of persons who have an unjustified economic level as a result of suspected criminal activity.

Article 3

Field of application

(Amended by Law no. 70/2017, Article 4)

1. The provisions of this law are applicable for the assets of people, which are possessed completely or partially, directly or indirectly, as provided for in point 2 of this Article, for whom there is a reasonable doubt based on indicia for:

- a) the participation and the committing of crimes by armed gangs, criminal organizations and structured criminal group, provided for by Chapter XI of the Criminal Code;
 - b) the participation and the committing of crimes by terrorist organizations and crimes for terrorist purposes, provided for by chapter VII of the Criminal Code;
 - c) the committing of crimes provided for by Articles 109, 109/b, 110/a, 128/b, 278/a, 282/a, 283, 283/a and 284/a of the Criminal Code;
 - (çthe laundering of the proceeds of the criminal offence or of the criminal activity, provided for by Article 287 of the Criminal Code;
 - d) the committing of the crimes provided for in Articles 164/a, 164/b, 183, 244, 244/a, 245, 245/1, 256, 257, 257/a, 258, 259, 259/a, 260, 312, 319, 319/a, 319/b, 319/c, 319/ç, 319/d, 319/dh and 319/e of the Criminal Code, in the cases when there are indicia regarding the illegal asset profit.
2. The provisions of this law are applicable even regarding the assets of the people mentioned in paragraph 1 of this Article, in the ownership or possessed indirectly by:
- a) relatives (husband, children, the antecedents, the descendants, brothers, sisters, cohabitant) for whom the false registration is presumed, unless proved otherwise;
 - b) natural or legal persons, for whom there is sufficient data that their assets or activities are possessed, completely or partially, indirectly by the people mentioned in paragraph 1 of this Article or are used, have facilitated or have influenced in a certain form the realization of the illegal activities by them.
3. The presumption of the false registration of the assets and of the economic activities of the persons mentioned in paragraph 1 of this Article, in the name of the relatives mentioned in letter a) of paragraph 2 of this Article shall apply, when there are useful data, obtained in a lawful way, which create the reasonable doubt on the illegality of the origin of the assets.
4. The sufficient data that the assets or the activities of a natural or legal person referred to in the letter “b” of point 2 of this Article, are owned completely or partially, indirectly, by the persons referred to in paragraph 1 of this Article, are coming from the relationship between the natural and legal persons with the persons referred to in paragraph 1 of this Article and from the useful data, obtained in a lawful way, which create the reasonable doubt on the illegality of the origin of assets.
5. The preventive measures may be requested even against the heirs of the person who is the subject of the application of this law, but in any case, no later than 5 years from the date of death.
6. This law is applied even for the assets of the people, which have been gained before it entered into force, providing that there are significant indicia for their inclusion in criminal activities at the moment they obtain the asset.

Article 4

Preventive measure

(Amended by Law no. 70/2017, Article 5)

In the meaning of this law, a “preventive measure” is any measure of a property nature that the court orders in judicial proceedings through the sequestration of assets, the economic, commercial and professional activities of persons, as well as through their confiscation.

Article 5

Relation to the criminal proceedings

(Paragraph 2 amended by Law no. 70/2017, Article 6)

1. The procedure of setting out and implementing preventive measures according to this law depends on the condition, level or conclusion of criminal proceedings being conducted against the persons who are subject to this law.
2. The verification, investigation and the adjudication according to this law, are based on the procedural rules of this law and are completed with rules stipulated in the Criminal Procedure Code, pursuant to the case. The data received from the criminal process are used in the procedure provided for by this law.
3. In cases when the assets sequestered or confiscated according to this law are also subject to sequestration or confiscation according to the Criminal Code and the Code of Criminal Procedure, the court orders the suspension of the consequences of the implementation of the measures of sequestration and confiscation according to this law. The suspension ends with the rendering of a criminal judicial decision for the revocation or lapse of those measures.

Article 6

Subject of the investigations

(Title amended by Law no. 70/2017, Article 7;

paragraph 1 amended by Law no. 70/2017, Article 7;

paragraph 3 added by Law no. 70/2017, Article 7)

1. The prosecutor undertakes, even through the judicial police, the necessary investigations against the people mentioned in Article 3, paragraphs 1 and 2, of this law, on the financial means, assets, economic, trading and professional activities, the economic level and their income resources, as well as the questioning of the people who have information on the facts which are the subject of this law and the conduct of the necessary expertise. When the international judicial assistance is necessary, the international agreements ratified by the Republic of Albania and the relevant procedural provisions are applicable.
2. The verifications are, in particular, done if these persons have permits, licenses, authorisations, concessions and other rights to conduct economic, commercial and professional activity, as well as to verify whether they benefit contributions, financing or credit of any kind, given by or benefitted from the state, public legal persons or entities, international institutions or bodies, as well as to verify whether the assets, activities or property rights are justified.
3. The investigations mentioned in paragraphs 1 and 2 of this Article may be ordered by the prosecutor until the end of the hearing for confiscation.

Article 7

Competence and composition of the court

(Amended by Law no. 70/2017, Article 8)

1. The request for the preventive measures to be taken pursuant to this law, shall be reviewed in the first instance by the Courts of the Judicial Districts or by the Anti-Corruption and Organized Crime First Instance Court, respectively, according to the subject competence for the criminal offence committed according to the Article 75/a of the Criminal Procedure Code.
2. The request for the preventive measures to be taken shall be reviewed in the second instance by the courts of appeal or the Anti-Corruption and Organized Crime Appeal Court, according to the rule established in the paragraph 1 of this Article.
3. The provisions of the paragraph 1 of the Article 80 of the Criminal Procedure Code shall be applicable for as long as they are compatible
4. The request for taking the preventive measures under this law shall be reviewed at first instance, by a judge. The appeal against the decision to take preventive measures shall be reviewed by the courts of appeal or the Anti-Corruption and Organized Crime Appeal Court with a panel of three judges.

Article 8

Preliminary verifications

(Words amended in paragraph 2 by Law no. 70/2017, Article 9)

1. The prosecutor's office and the judicial police shall be informed about the assets due to be verified according to this law on their own initiative or upon a notification made by third parties.
2. Upon being informed about assets that are to be verified according to this law, the judicial police shall, without delay, refer the fundamental elements of the fact and the data provided by it to the prosecutor in writing.
3. The prosecutor carries out actions himself and through the Judicial Police for the investigation of the financial resources, assets, economic, commercial and professional activities, way of living, as well as the sources of income of the persons being subject to the implementation of this law.

Article 9

Obligation to hand over information and documents

1. The prosecutor may, directly or through the Judicial Police, ask any office of the state administration, public legal person or entity, and other natural and legal persons for data and copies of documents deemed indispensable for purposes of verifying the assets of the persons provided for in Article 3 of this law.
2. With an authorisation issued by the prosecutor or the court, the officers of the Judicial Police may order the sequestration of the documents examined, according to the rules provided in Articles 208, 209, 210 and 211 of the Code of Criminal Procedure.

Article 10

Competences of the court

*(Title amended by Law no. 70/2017, Article 10;
paragraph 1 amended by Law no. 70/2017, Article 10)*

1. Upon the request of the prosecutor, parties or ex officio, the Court orders the necessary investigations to solve the case and may approve the measures determined by special laws.
2. If during the adjudication, the need for international legal assistance arises, the international agreements accepted by the Albanian state, as well as respective procedural provisions, shall be applicable.

CHAPTER II

SEQUESTRATION OF ASSETS

Article 11

Criteria for sequestration of assets

(Entering part of paragraph 1 amended by Law no. 70/2017, Article 11)

1. Upon the motivated request of the prosecutor, the court decides on the sequestration of the assets, possessed directly or indirectly, in the full or partial ownership of the people, pursuant to Article 3, paragraph 1 of this law, when there is a reasonable doubt, based on indicia which indicates that the person has been involved in a criminal activity and possesses disproportional assets or incomes in proportion with the level of incomes or of the profits from declared legal activities and are not justified by them, and when:
 - a) there is a real danger of the loss, taking or alienation of the funds, assets or other rights over which the implementation of the measure of confiscation according to the provisions of this law is provided; or
 - b) there are reasonable suspicions indicating that the possession of the assets and the exercise of the particular economic, commercial and professional activities are in a state of danger or influence by a criminal organisation or that may facilitate criminal activities.
2. The request of the prosecutor for the sequestration of assets contains the indicia on which the reasonable suspicion is based, as well as the reasoning for at least one of the conditions of paragraph 1 of this Article.

Article 12

Sequestration procedure

(Amended by Law no. 70/2017, Article 12)

1. The request for the sequestration of the asset shall be reviewed by the court in the counselling chamber, within five days from the date of submission, on the basis of the documents and acts submitted by the prosecutor.
2. The decision for a sequestration measure shall be executed upon its announcement. The sequestration measure is valid for a six-month period, starting after the moment of its implementation.

3. In the case of complex verifications, upon the request of the prosecutor or ex officio, the court may decide to extend the time period of implementation of the sequestration measure for six-month periods, but not more than two years from the date of the beginning of the time period stipulated pursuant to paragraph 2 of this Article. An appeal against this decision may be filed with the Appeal Court, which decides within 15 days after receiving the acts.

4. No later than 5 days before the end of the time period of the sequestration measure provided for in paragraph 2 or 3 of this Article, the court determines a special hearing, notifying the prosecutor, the people mentioned in Article 3, paragraphs 1 and 2, of this law and the selected defence lawyer. The request of the prosecutor for the revocation of the sequestration does not hinder the court from confiscating the asset when it deems that the criteria provided for in this law have been fulfilled.

5. When the special hearing, according to paragraph 4 of this Article, is not established the court lapses the sequestration measure upon the request of the parties or ex officio. The lapse of the sequestration measure does not hinder the submission and admissibility of a new request for confiscation of the assets.

Article 12/a

Sequestration or confiscation of the equivalent asset

(Added by Law no. 70/2017, Article 13)

1. The sequestration or the confiscation is decided on monetary means or any other assets in the ownership of the people referred to in Article 3 of this law, when after being informed on the investigation against him, the person, against whom the measure is requested, delivers, transfers, abuses with, hides or devaluates the assets to avoid the execution of the measure of its sequestration or confiscation.

2. In the cases provided for in paragraph 1 of this Article, when a third person is in bad faith the assets shall be sequestered or confiscated.

3. The rules provided for in paragraphs 1 and 2 of this Article, shall apply to the extent of the value of the assets for which the sequestration or confiscation is imposed, even when it appears that it has been joined with other assets.

4. The rules of the above paragraphs of this Article shall apply even if the illegal assets has been incorporated with a legitimate one and cannot be separated from it without causing a substantial damage

Article 12/b

Revocation of the sequestration

(Added by Law no. 70/2017, Article 13)

1. The court upon the request of the parties, decides on the revocation of the sequestration of assets even before the time limits provided for in paragraphs 2 and 3 of Article 12 of this law,

2. The court decides on the revocation of the sequestration of assets replacing it with equivalent assets, when the parties give the consent and the court considers it appropriate.

Article 13

Court decisions when the sequestration measure is revoked

(Amended by Law no. 70/2017, Article 14)

1. The decision of the court which settles the revocation of the sequestration pursuant to Article 12/b of this law, is transmitted to the Agency of the Administration of the Sequestered and Confiscated of Assets, which notifies the owner of the sequestered assets.
2. The assets are handed over to the owner in compliance with the provisions of the Civil Procedure Code, accompanied with the relevant documentation, which is handed to the owner by the administrator of the assets.
3. The Agency of Sequestered and Confiscated Assets and the administrator of the assets are freed of any responsibility if the owner of the assets having no justified reason fails to appear within 30 days from the date of the notification of the decision for revocation of the sequestration.
4. The revocation of the sequestration measure does not hinder the use of the data and evidence ensured during the investigation for tax purposes.
5. Upon decision of the revocation of the sequestration, the court may decide the obligation on the owner of the assets or on the person, who owns or administers the assets or its parts, to notify the tax administration for a period not less than 5 years from the date when the decision was notified, for the acts of the possession, the buying or the payments that have been received, the professional tasks of the administration or the custody, as well as for other acts or contracts, according to the type and the value determined by the court, depending on the asset and the incomes of the person in any case for a value not less than 2 million ALL.
6. The notifications provided for in paragraph 5 of this Article shall be carried out within 10 days from the performance of the act, meanwhile for other acts carried out in the preceding year, within January 31 of every year.
7. The profited objects and the payments that have been received, for which the obligation of notification has not been respected, shall be confiscated to the person who does not respect the notification obligations within the time limits stipulated in paragraph 6 of this Article, without submitting reasonable grounds.

Article 14

Execution of the sequestration measure

(Amended by Law no. 70/2017, Article 15)

1. The sequestration decision shall be enforced immediately. The secretary of the court sends without delays to the prosecutor who submitted the request, two copies of the decision. The prosecutor takes measures for the execution of the decision through the judicial police officer and the administrator of the assets.
2. The sequestration is executed:
 - a) for the movable assets and the monetary amounts, according to the rules stipulated by the Civil Procedure Code in the cases of the repossession of the assets by the debtor or the third party;
 - b) for the movable or immovable assets in the competent offices for their registration;

- c) for the assets of the commercial companies, apart from the mode provided for by this law for any other attached asset even through the registration of the decision in the register of the commercial companies;
- (ç for the quotas and the shares, through the publication in the register of the commercial companies and the record in the accounting registers of the company;
3. After the execution order issued by the prosecutor, the judicial police proceeds with the collection of the assets and its delivery to its administrator, even when the people who are impacted by the measure have real or personal rights to enjoy them.
4. The judicial police notifies the sequestration measure of the assets to the people mentioned in Article 3, paragraphs 1 and 2 of this law. Also, the judicial police notifies the above people about the decision of the court for delaying the timeframe of the sequestration measure
5. When the sequestration measure is imposed against the immovable assets or the assets registered in the public registers, the appointed administrator notifies immediately this measure to the offices where these registers are kept.
6. When the item is kept without an ownership title or based on a title which dates back before the date of the sequestration decision and the owner of the item does not accept to submit it voluntarily, the court orders the eviction of the object. The court order is executed by the judicial police.
7. The inventory and the description of the sequestered assets is carried out by the judicial police and is documented in a report, which is signed by the people who are present. This report includes the elements provided for by Article 524 of the Civil Procedure Code.
8. As the administrator receives the sequestered assets, the judicial police submits a copy of the report mentioned in paragraph 7 to the people who were present in the moment of the inventory.
9. The judicial police hands over the sequestered asset to the administrator accompanied with the respective legal documentation, and if it has any, even with the registers of the accounts of the commercial companies.
10. For administration purposes and in the absence of the documentation provided for in paragraph 9 of this Article, the administrator makes available the necessary data for the administration of the assets to the legal auditor appointed by the Agency for the Administration of the Sequestered and Confiscated Assets, requesting the drafting of a report. The report is made available for the Agency.

CHAPTER III

ADMINISTRATION OF SEQUESTERED ASSETS

Article 15

Administrator of sequestered assets

(Last part of the sentence repealed by Law no. 70/2017, Article 16)

1. In the decision of sequestration of assets, the court also nominates, from the list of experts of the Agency of Administration of Sequestered and Confiscated Assets, one or more administrators. The Agency puts at

the disposition of the court, at least once a year, a list of administrators with persons employed or authorised by it, and indicates the criteria of nominating them.

2. Upon request of the administrator, the Agency of Administration of Sequestered and Confiscated Assets may authorise him to ask for the assistance of specialists or other persons, who are compensated for the work done.

Article 16

Duties of the administrator

(Words repealed in paragraph 2 by Law no. 70/2017, Article 17)

1. The administrator has the duty of preserving and administering the sequestered assets. In addition, he has the duty of increasing, if possible, the value of those assets.

2. The administrator appointed by decision of the court for the execution of the sequestration measure and for the administration of the object submits every necessary request to the prosecutor's office, or any other state institution.

3. Even on its own initiative, the court may discharge the administrator from duty, at any time, for incompetence or for failure to fulfil his duty. The request is submitted at the court by the prosecutor on his own initiative or with a motivated proposal of the Agency of Administration of Sequestered and Confiscated Assets.

Article 17

Prohibitions for the administrator

*(Paragraph 1 amended by Law no. 70/2017, Article 18;
paragraph 2 and 3 added by Law no. 70/2017, Article 18)*

1. Except for cases when he receives prior authorisation from the court, the administrator is not permitted to take part in the adjudication, to take loans, to sign agreements of conciliation, arbitration, promise, pledge, mortgaging or alienation of the sequestered assets or to perform other legal actions beyond the actions of the ordinary administration.

2. Through the Administration of Sequestered and Confiscated Assets, the administrator submits to the prosecutor, the argued request when he considers that legal actions provided for in paragraph 1 of this Article shall be carried out.

3. Upon the request of the prosecutor, the court authorizes the requested actions when it deems it necessary for the preservation of the value of the asset.

Article 18

Reporting of the administrator

(Paragraph 4 added by Law no. 70/2017, Article 19)

1. Within 15 days of his appointment, the administrator is obliged to submit to the court a detailed report on the basic elements of the existence and condition in which the sequestered assets are. Subsequently, according to the time periods set by the court, the administrator submits periodic reports to it about the administration of the sequestered assets, accompanied by the respective documentation if requested.
2. The administrator is also obliged to notify the court about other assets that might be subject to the sequestration measure, on the existence of which he becomes aware during the administration.
3. The administrator is obliged to send the reports specified in paragraphs 1 and 2 of this Article at the same time to the prosecutor and the Agency of Administration of Sequestered and Confiscated Assets.
4. The court summons ex officio the Chief administrator of the Agency of the Sequestered and Confiscated Assets, to get information about the administration of the sequestered assets and about any other data which is considered useful for the confiscation decision. The Chief administrator of the Agency may delegate an official, under his subordination to be present in front of the court.

Article 19

Transfer of the real rights for the sequestered assets

(Amended by Law no. 70/2017, Article 20)

1. For the assets that are damaged, whose value falls considerably or are out of use, ex officio or upon the request of the parties, the court decides to transfer the real rights to the third parties based upon the principles of the well-administration of the assets. The real rights are not delegated to the people provided for in Article 3, paragraph 1 and 2 of this law. The court decides after having heard the parties and the evaluating expert.
2. When deciding on the revocation of the sequestration, the court orders the restitution of sequestered property, or its counter-value to the owner, according to the provisions of this law.

Article 20

Paying the expenses of administration

(Amended by Law no. 70/2017, Article 21)

1. The expenses that are necessary or beneficial for the safekeeping and administration of the sequestered assets are paid out of the funds made available by the administrator, from any legitimate source.
2. If, by administering the sequestered assets, sufficient funds are not gained to cover the expenses under paragraph 1 of this Article, they are prepaid by the State through the Agency for the Administration of Sequestered and Confiscated Assets, having the right to return them by the person whose property is sequestered, also in the case of revocation of the sequestration or confiscation.
3. In cases of imposing the measure of confiscation of assets, the expenses incurred in the course of administering those assets by the administrator or the Agency of Administration of Sequestered and Confiscated Properties are included in the accounts of their administration. If the funds of the accounts of

administration are not sufficient to meet the payment of these expenses, they are paid, in whole or in part, by the state, without the right to compensation.

3/1The Agency of Administration of Sequestered and Confiscated Assets is not responsible for the payment of liabilities of the subjects referred to in Article 3, paragraphs 1 and 2 of this law, matured before the sequestration decision, concerning:

- a. costs of maintenance and common administration of the assets;
- b. outstanding payments of electricity, water and phone etc.; and
- c. outstanding taxes or tax obligations.

4. When the court orders the revocation of the sequestration measure, the possessor of the assets has the right to ask for the fruits of the assets realized during the administration. He has the right to ask for compensation in the amount of the reduction of the value of the assets or the damage being caused to it.

CHAPTER IV CONFISCATION OF SEQUESTERED ASSETS

Article 21

Request for the confiscation of assets and burden of proof

(Amended by Law no. 70/2017, Article 22)

1. The confiscation of assets shall be decided upon the request of the prosecutor who presents to the court the grounds where the request is based on. The court decides after carrying out the judicial investigation and hearing the final discussion of the parties.

The court may decide the confiscation even at the end of the special hearing, provided for in Article 12, paragraph 4 of this law.

2. The confiscation of assets is also sought and ordered in cases when a sequestration measure has not been sought and ordered against the assets.

3. The people mentioned in Article 3, paragraph 1 of this law have the burden to prove that the activities and the sequestered assets, possessed completely or partially by them, have been gained in a legal way.

4. The persons mentioned in Article 3, paragraph 2, letter a) of this law have the burden to prove that the assets for which confiscation is requested, are possessed with an ownership title only by them, have been benefited through legal resources and are not in indirect ownership of the people mentioned in Article 3, paragraph 1, of this law.”

5. The persons mentioned in Article 3, paragraph 2, letter b) of this law have the burden to prove that the evidence collected during the assets proceeding are insufficient to verify that their activities or assets:

- a) are possessed completely or partially, indirectly, by the people mentioned in Article 3, paragraph 1 of this law, or
- b) have been used, have facilitated or have impacted in a certain way in the realization of the illegal activities by the people mentioned in Article 3, paragraph 1 of this law.

Article 22

Judicial procedure of confiscation

(Amended by Law no. 70/2017, Article 23)

1. During the adjudication of a request for confiscation, the provisions of the Code of Criminal Procedure are applied to the extent possible.
2. Upon request of the prosecutor, the court may also proceed with the adjudication in cases when the person does not have a known residence within the country, has left the country or, despite all the searches made, is not found. In this case, the court orders the failure of finding the person, designating a defence lawyer for him. The defence lawyer may be designated by the court on its own initiative or be selected by the relatives of the person.
3. When during the judicial examination it comes out that the sequestered assets belong to third persons, the court, even on its own initiative, by a reasoned decision, calls them to intervene in the proceedings.
4. Within the time period designated by the court, the third person has the right to present his claims in the hearing, as well as to seek that other necessary data be received. The prosecutor shall carry out any necessary investigation to the effect of verifying these allegations.
5. When it is verified that the assets have been transferred or registered in the name of third parties by fictitious or simulated legal actions, the court finds their invalidity. For this purpose, when the contrary is not proven, the following are also presumed to be fictitious or simulated.
 - a) transfers and registrations in the name of third parties and with an encumbered title done within two years before the submission of the request to take a preventive measure against the related persons;
 - b) transfers and registrations in the name of third parties and with a title being free of charge or obviously below the market value done within two years before the submission of the request to take the preventive measure.

Article 23

Duration of the trial of a request for confiscation

(Amended by Law no. 70/2017, Article 24)

1. Within 3 months from the date of the confiscation request being submitted by the prosecutor or from the initiation of the special hearing under Article 12, paragraph 4 of this Article, the court shall decide on the confiscation.
2. In complex cases, the court may, even ex officio, decide at a later date, however, in any case within one year from the time period provided for in the paragraph 1 of this Article.

Article 24

Acceptance of the request for confiscation

(Amended by Law no. 70/2017, Article 25)

1. The court decides on the confiscation of assets when all the following conditions are fulfilled:
 - a) there are reasonable doubts based on indicia for the participation of the person in the criminal activities provided for in Article 3, paragraph 1 of this law;
 - b) it results that the assets are in full or partial possession, directly or indirectly, of the persons referred to in Article 3, paragraph 1 of this law;
 - c) it is not proven that the assets have a legal origin or the persons referred to in Article 3 of this law, do not manage to justify the possession of the assets or of the incomes which are disproportionate with the level of incomes or of the profits gained through legal resources declared by them.
2. In any case, the person cannot justify the asset declaring as its resource incomes or reinvestments which originate from the non-payment of the taxes.
3. In the cases provided for in paragraph 1 of this Article, the court decides on the admissibility of the request for the confiscation of the assets even when the charge or the criminal proceeding against the person referred to in paragraph 1 of Article 3 of this law is dismissed or he is found innocent, except for the cases when the following is declared in the decision for dismissal or innocence:
 - a) the fact does not exist;
 - b) the fact is not provided for by law as a criminal offence;
 - c) it results that the defendant has not committed the criminal offence.

Article 24/a

Rejection of confiscation

(Added by Law no. 70/2017, Article 26)

Where the court does not decide on the confiscation of the sequestered assets, the provisions of Article 13 of this law shall apply.

Article 25

Procedural expenses

(Amended by Law no. 70/2017, Article 27;

paragraph 4 repealed by Law no. 70/2017, Article 27)

1. In the procedural expenses there are included expenses of sequestration, of administration, of confiscation, of the defence lawyer, as well as every other expense documented according to the law.
2. The expenses for sequestration according to this law are prepaid by the state and paid by the person against whose assets the sequestration of assets is ordered.
3. In its final decision to a request for confiscation, the court sets the obligation for payment of the expenses prepaid by the state.
4. *(Repealed by Law no. 70/2017, Article 27)*

5. The court that has rendered the decision decides on complaints about procedural expenses.

CHAPTER V

DECISION, APPEAL AND EXECUTION OF PREVENTIVE MEASURES

Article 26

Elements of the court decision

(Amended by Law no. 70/2017, Article 28)

The court decision for imposing the preventive measures shall contain:

the court that has rendered the decision;

time and venue of announcement of the decision;

name of prosecutor;

(ç)final allegations and demands of parties;

d)type of preventive measure and duration, as long as it has been restricted to a time limit;

dh) type of assets with all the data, serving for its identification, including the location, and any other data being instrumental to identify it;

e) summarised introduction of the fact and the legal cause of the preventive measure;

(ë)extent of procedural expenditure, their type, and data regarding the person, being imposed on.

Article 27

Appeal

(Paragraph 1 and 2 amended by Law no. 70/2017, Article 29;

paragraph 4 added by Law no. 70/2017, Article 29)

1. An appeal against a decision of the court for the sequestration of assets, the extension of the time period of the sequestration measure, the revocation or lapse of the sequestration measure may be taken to the court of a higher level, according to the time periods and conditions provided in the Code of Criminal Procedure-

2. An appeal may be taken to a court of a higher level against a decision of the court for the confiscation of assets according to the time periods and conditions provided in the Code of Criminal Procedure.

3. An appeal according to paragraph 1 or 2 of this Article does not suspend the implementation of the decision, unless the law provides otherwise.

4. When the prosecutor submits a complaint against the revocation of the sequestration or against rejection of the request of confiscation, the enforcement of the challenged measure shall be suspended until the issue of the decision by the appeal court.

Article 28

Execution of a decision of confiscation and revocation of sequestration

*(Paragraph 4 amended by Law no. 70/2017, Article 30;
paragraph 5 repealed by Law no. 70/2017, Article 30;
paragraph 6 amended by Law no. 70/2017, Article 30)*

1. A decision of the confiscation of assets shall be enforced immediately after the announcement.
2. A decision revoking the measure of the sequestration of assets shall be enforced 15 days after the notification of the interested parties.
3. During the execution of a decision of confiscation, the court that has rendered the decision may issue *in camera* orders for the performance of special actions and the taking of other necessary measures, also determining in them the time periods and manner of performance of the actions and the necessary measures that should be taken.
4. The decision and orders for carrying out special actions shall forthwith be transmitted to the proceeding prosecutor, who supervises the enforcement actions.
5. *(Repealed by Law no. 70/2017, Article 30)*
6. The judicial police shall keep minutes on the enforcement actions, which shall be sent to the court through the prosecutor.

CHAPTER VI USE OF CONFISCATED ASSETS

Article 29

Transfer of confiscated assets to the ownership of the state

*(Second sentence of paragraph 3 repealed by Law no. 70/2017, Article 31;
paragraph 4 added by Law no. 70/2017, Article 31)*

1. Assets confiscated by court decision according to this law shall be assigned to the ownership of the state.
2. A final decision for the confiscation of assets is sent immediately to the Agency of Administration of Sequestered and Confiscated Assets.
3. When a decision of confiscation becomes final, the assets shall be assigned to the ownership of the state in a non-returnable manner.

(Second sentence of paragraph 3 repealed by Law no. 70/2017, Article 31)

4. Where the final decision having determined the confiscation is quashed by the higher court and the assets have been returned to the previous possessor by final decision, the latter shall be entitled to ask for compensation under the legislation in force.

Article 30

Competence for the way of using the confiscated assets

1. The Minister of Finance decides on the way of using the assets confiscated according to this law, in conformity with the criteria of Articles 32 and 32, based on the recommendations of the Inter-Institutional Advisory Committee of Experts for the Measures against Organised crime and the technical-financial evaluation report of the Agency of Administration of Sequestered and Confiscated Assets.
2. Within 90 days from notification of the judicial decision provided in paragraph 2 of Article 29 of this law, the Agency of Administration of Sequestered and Confiscated Assets submits a report of technical-financial evaluation to the Minister of Finance for every asset confiscated.
3. The Minister of Finance, by order, determines the manner and conditions of use of the immovable assets confiscated and issues accompanying instructions of use within 30 days from the submission of the technical-financial evaluation report, but no later than 120 days from the date of notification of the judicial decision provided in paragraph 2 of Article 29 of this law.

Article 31

Duties of the administrator of confiscated assets

The administrator designated by the court during the phase of sequestration of the assets continues the exercise of duties in the name and for the account of the Agency of Administration of Sequestered and Confiscated Properties, so long as he has not been replaced by it with another person.

Article 32

Use of monetary means of confiscated assets

*(Title amended by Law no. 70/2017, Article 32;
words added to letter "a" by Law no. 70/2017, Article 32;
letter "c" amended by Law no. 70/2017, Article 32)*

The administrator carries out actions necessary to deliver to the accounts of the Agency of Administration of Sequestered and Confiscated Assets funds in monetary resources:

- a) being confiscated which will not be used for the administration of other confiscated assets or which will not be used for the indemnification of the victims of the criminal offences of organised crime and trafficking;
- b) being earned out of the sale of movable assets that are not used in the activity of the commercial legal person and of the titles, in net value, earned out of the sale of assets for the indemnification of the victims of organised crime. If the procedures of sale are not economical, the Minister of Finance orders the transfer of ownership without payment or the destruction of the confiscated assets by the administrator;
- c) which are benefited from the retaking of personal loans. If the procedure to retake them is not economical or when after the verifications conducted by the Agency of the Sequestered and Confiscated of Assets regarding the debtor's repayment capability, results that he does not have repayment capabilities, the personal loans are annulled pursuant to the procedure provided for in Article 30 of this law.

Article 33

Use of immovable assets and those serving for economic, commercial and professional activities

1. On the proposal of the Minister of Finance, the Council of Ministers determines the criteria, amount and manner of use of immovable assets and those that serve for economic, commercial and professional activities, part of the special fund, within the limits of the destination established by this law.
2. In issuing this decision, the Council of Ministers bases itself on the principles of good administration of property, the increase of effectiveness of criminal justice, as well as rehabilitation and fair indemnification.

Article 34

Agency of Administration of Sequestered and Confiscated Assets

1. The Agency of Administration of Sequestered and Confiscated Assets is the institution responsible for the administration of sequestered and confiscated assets.
2. Detailed rules about the organisation, competences and functioning of the Agency of Administration of Sequestered and Confiscated Assets are set by the Council of Ministers.
3. Detailed rules about the criteria of evaluation, the manners and procedures of giving confiscated assets in use and of their alienation are set by the Council of Ministers.

Article 35

Inter-institutional Expert Advisory Committee for Measures against Organised Crime

(Paragraph 1 and 2 amended by Law no. 70/2017, Article 33)

1. For the supervision of the administration of confiscated assets by the Agency of Administration of Sequestered and Confiscated Assets, as well as for giving recommendations for the destination of confiscated assets, the Inter-Institutional Expert Advisory Committee for Measures against Organised Crime shall be set up and be functioning. This committee meets at the Ministry of Finance.
2. The Committee consists of eight members proposed, respectively, by the Minister of Finance, Minister of Justice, Prosecutor General, the minister being responsible for the law and order issues, minister being responsible for social issues, the Agency of Administration of Sequestered and Confiscated Assets, Judicial Budget Administration Unit, the Chief Registrar of Immovable Properties of the Republic of Albania. The member proposed by the Minister of Finance is the chairman of the committee.
3. Representatives of public institutions or other organisations, local and foreign, active in fields of interest for the implementation of this law, may also be invited to take part in the activities of the committee.
4. The Agency of Administration of Sequestered and Confiscated Assets reports to the committee about its activity at least once every three months.
5. Based on the priorities defined in Article 37 of this law, the committee gives recommendations, which are addressed to the Ministry of Finance, for the effective disposition of the income within the State Budget, also including a recommendation for the payment of the operating expenses of the agency.

6. At least once every six months, the committee asks for information in writing from the central institutions administering them, as well as detailed data on the condition and manner of use of immovable assets from the local units owning confiscated immovable assets.

7. The committee meets at least once every three months. The committee approves the internal rules of its functioning.

Article 36

Periodic reporting to the Council of Ministers

At the end of every fiscal year, the Minister of Finance submits to the Council of Ministers a report about the administration of the assets sequestered and confiscated according to this law.

Article 37

Special fund for the prevention of criminality

*(Paragraph 1 amended by Law no. 70/2017, Article 33;
letter "ç" added to paragraph 2 by Law no. 70/2017, Article 34)*

1. The proceeds gained from the implementation of this law, shall serve for raising a special fund for preventing criminality and the legal education. The special fund and its amount shall be determined in the budget legislation.

2. This fund serves for:

- a) improving the functioning of criminal justice, designating assets in the administration of the General Prosecutor's Office, of the Special Prosecution Office and of the Ministry of Justice;
 - b) improving preliminary criminal investigations into organised crime and developing programmes of the protection of witnesses and justice collaborators, designating the assets in the administration of the ministry that covers issues of public order;
 - c) giving assistance to the victims of organised crime and trafficking, as well as encouraging social programmes for those categories, designating assets in the administration of the ministry that covers social issues;
- (ç compensation for the victims of organized crime and trafficking to the extent determined by judicial decision.

3. In addition to the central institutions, the beneficiaries of the financing of projects for the prevention of criminality may also be:

- a) the units of local government where the confiscated immovable assets are located;
- b) non-profit organisations that have within the scope of their activity the social, cultural and health rehabilitation of vulnerable categories of people, especially those affected or endangered by crime, including therapeutic centres and organisations, centres of re-capacitating and curing users of narcotic substances, as well as centres of assistance and rehabilitation of the victims of trafficking in human

beings, which have been conducting such activities in the last three years from submission of the request.

4. The requirements for the financing of projects according to this Article, the verification and preparation of documentation for an opinion in the Inter-Institutional Expert Committee for Measures against Organised Crime, as well as following up their implementation, are done by the structures of the Agency of Administration of Sequestered and Confiscated Assets.
5. Relying on the recommendation of the Inter-Institutional Expert Committee for Measures against Organised Crimes, the Minister of Finance, by order, determines the financing of a project and the ways of use of the fund made available to the applicant.
6. The part of the fund designated according to paragraph 2 of this Article cannot be used for compensation of functionaries of the beneficiary institutions.

CHAPTER VII FINAL PROVISIONS

Article 38

Transitional provision

Requests for taking preventive measures submitted by the prosecutor in court before the entry of this law into force continue to be adjudicated according to the rules of this law.

Transitional provision

(Provided by Law no. 70/2017, Article 35)

1. This law shall be applied to the requests for taking preventive measures being filed by the prosecutor at the competent court after its entry into force.
2. Regarding the assets-relate proceedings at the investigation stage, this law shall start to be implemented with its entry into force.
3. Regarding the assets being obtained prior to the entry of this law into force and bearing a connection to the new criminal offences being added up in Article 3, paragraph 1, the provisions of paragraph 6 of the Article 3 of this law shall apply.
4. Until the establishment of the Court against Corruption and Organised Crime, the cases for taking the preventive measures against assets shall be adjudicated by the Serious Crimes Court.
5. Upon the establishment of the Court against Corruption and Organized Crime, the cases under the trial to take preventive measures against assets, shall be transferred at this Court and at the courts of generaljurisdiction according to the subject matter competence for the criminal offence committed, according to the Article 75/a of the Criminal Procedure Code.
6. Upon the establishment of the Special Prosecution Office against Corruption and Organized Crime, the cases under the investigation to take preventive measures against assets, shall be transferred at this

prosecution office and at the prosecution offices of the general jurisdiction according to subject matter competence for the criminal offence committed, according to the Article 75/a of the Criminal Procedure Code.

Article 39

Subordinate legal acts

The Council of Ministers is tasked with issuing within three months from the entry of this law into force subordinate legal acts in implementation of Articles 14, 15 paragraphs 2, 28 paragraphs 4, 33 and 34 of this law.

Article 40

Repeals

Law no. 9284 dated 30.9.2004 "On preventing and clamping down on organised crime," as well as every other provision that is contrary to this law is repealed.

Article 41

Entry into force

This law enters into force 30 days after publication in the Official Gazette.

LAW

No. 10 173, dated 22.10.2009

ON THE PROTECTION OF WITNESSES AND JUSTICE COLLABORATORS

(Amended by Law no. 10 461/2011;

amended by Law no. 32/2017)

Pursuant to Articles 78 and 83, paragraph 1, of the Constitution, on the proposal of the Council of Ministers,

THE ASSEMBLY OF THE REPUBLIC OF ALBANIA

DECIDED:

CHAPTER I GENERAL PROVISIONS

Article 1

Object

This law regulates the special, temporary and extraordinary measures, the manner and procedures of the protection of witnesses and justice collaborators, as well as the organization, functioning, competences and relationships among the bodies charged with proposing, assessing, approving and implementing the protection program.

Article 2

Scope of application

The provisions of this law are applicable in the framework of criminal proceedings for intentionally committed crimes, regarding which the law provides for a sentence of imprisonment of no less than 4 years at a minimum. The dangerousness of these crimes and their perpetrators should be such as to justify the incurrence of expenditures necessary for protecting one or more persons.

Article 3

Definitions

In this law, the following terms have these meanings:

1. "Protection program" is the special, supporting and extraordinary measures applied by the Directorate for the Protection of Witnesses and Justice Collaborators, for the protection of the life and health of protected persons, under the conditions foreseen by this law.

2. "Justice witness" is a person, who, in the capacity of witness or aggrieved person, declares or testifies about facts and circumstances that constitute evidence in a criminal proceeding, and who is in a situation of danger, because of these declarations or testimony.
3. "Justice collaborator" is a person who serves a criminal sentence or is a defendant in criminal proceedings, with regard to crimes committed in complicity, and who is in a situation of danger, because of his collaboration with justice, declarations or testimony about facts and circumstances that constitute evidence in the same criminal proceedings or in related proceedings.
4. "Related persons" are persons who are in a situation of danger because of their kinship or marriage relations, actual cohabitation or close personal relationships with the justice witness or justice collaborator.
5. "Protected persons" are, jointly or separately, justice witnesses, justice collaborators and persons related to them, according to the definitions provided in paragraphs 2, 3 and 4 of this Article.
6. "Situation of danger" is a current, concrete and serious situation, because of which life and health are in danger, as a consequence of the testimony of the witness or justice collaborator in criminal proceedings for the criminal offences foreseen by this law.

CHAPTER II

BODIES RESPONSIBLE FOR THE PROTECTION OF JUSTICE WITNESSES AND JUSTICE COLLABORATORS

Article 4

Responsible bodies

The bodies responsible for the preparation, assessment, approval and implementation of the protection program for justice witnesses and justice collaborators are:

- a) The Commission for the Assessment of the Protection Program for Justice Witnesses and Justice Collaborators (below, "the Commission");
- b) The Directorate for the Protection of Witnesses and Justice Collaborators (below, "the Directorate").

Article 5

The Directorate for the Protection of Witnesses and Justice Collaborators

(Paragraph 1, 2 and 3 amended by Law no. 32/2017, Article 1)

1. The Directorate for the Protection of Witnesses and Justice Collaborators, as a special central structure at the State Police, is the body responsible for preparation, following and implementation of the protection programme. The Directorate extends its activity to the entire territory of the Republic of Albania.
2. The structure and personnel chart of the Directorate shall be approved by the responsible minister for order and public safety.
3. The Directorate has its own budget, as a separate expenditure item in the budget of the State Police Directorate. The administration of the assets and funds necessary for the exercise of activities by the

Directorate, the documentation of expenditures, and the supervision of the financial activity of the Directorate are done in such a way as not to allow the disclosure of secret and operational information.

4. The treatment and benefits of the employees of the Directorate are regulated by a decision of the Council of Ministers.

Article 6

Duties of the Directorate

(Words added to the letter "a" by Law no. 37/2017, Article 2)

The Directorate has the following duties:

- a) it prepares and sends for examination to the commission the proposals sent by the Prosecutor General or by the Chief Special Prosecutor for acceptance into a protection program;
- b) it conducts as assessment of the psychological and physical conditions of the person proposed to be admitted to a protection program and a comprehensive assessment of the situation of danger, in order for the commission to be informed to the highest degree possible on the suitability of the person with the protection program;
- c) it decides on the application of temporary measures of protection until the final decision is taken by the commission, in the cases and manner provided in Article 18 of this law;
- (ç) it adopts special and auxiliary protection measures that will be applied to the person or persons accepted into the program, following the taking of the decision by the commission for admission into the protection program;
- d) it prepares and signs the protection agreement with the protected persons, in accordance with Article 19 of this law;
- dh) it follows the implementation of the protection program;
- e) it administers the data base related to the activity of the Directorate and the progress of the protection program, and takes measures to safeguard and administer it in compliance with the necessary level of classification of information, according to the legal provisions in force;
- ë) it administers the assets and funds available to the Directorate for the exercise of its activity and theë(implementation of the protection program, including renting premises necessary for technical ;and operational work
- f) it proposes and takes measures for coordinating the work with other institutions for the implementation of the protection program for the protected persons;
- g) it follows issues of cooperation with international structures or other states, in the area of protection;
- gj) it prepares periodic reports on the conducted activity and makes proposals for the improvement of the legislation, the implementation of the protection program for protected persons. The reports of the Directorate contain only statistics. No legal provision on the right to information obliges the Directorate to disclose information, whether in a summary or reduced manner, to other state institutions, media or the public. Regular reports are prepared every six months and are made available to the commission.

Article 7

Special competences of the Directorate

1. The Directorate, when it considers it necessary, to the effect of the implementation of the protection measures, addresses a reasoned written request to other state institutions:
 - a) to provide necessary information;
 - b) not to disclose information to persons or entities, which, in ordinary situations, are entitled to obtain such information;
 - c) to inform, in any case, when persons or other entities attempt to obtain information about protected persons.
2. The Directorate, in implementing the protection program, has the right to use false identities and to ask other state institutions to assist in creating them:
 - a) for protected persons;
 - b) for the employees of the Directorate who perform specific duties in fulfilment of the obligations deriving from this law.
3. For the purpose of exemption from criminal liability, the persons who use false identities in implementation of paragraph 2 of this Article and the public functionaries who assist in creating these identities are considered to have acted in the exercise of a right or the implementation of a duty assigned by law, according to Article 21 of the Criminal Code.

Article 8

Appointment, release and dismissal from police of employees of the Directorate

(Amended by Law no. 37/2017, Article 3)

1. The police officers in the Directorate are selected from among employees of the police who fulfil the criteria for being appointed to the State Police Directorate according to the laws and subordinate legal acts in force.
2. The candidates for employees at the Directorate are subject to personal verification by the responsible structure on Internal Service in the responsible ministry for order and public safety.
3. The transfer of police officers of the Directorate to another position in the State Police is done in accordance with the procedure provided by law regulating the activity of the State Police, only with the prior written consent of the officer.
4. The taking of disciplinary measures against employees of the Directorate and an appeal against them are done on the basis of law regulating the activity of the State Police.

Article 9

Commission for the Assessment of the Protection Program for Witnesses and Justice Collaborators

(Paragraph 2 and 3 amended by Law no. 37/2017, Article 4)

1. The Commission for the Assessment of the Protection Program for Witnesses and Justice Collaborators is the body responsible for assessing and approving the proposals of the Directorate for:

- a) admission into the protection program;
- b) concrete protection measures;
- c) interruption of the program;
- (ç) conclusion of the program.

The Commission also has the competence to examine the complaints made in conformity with Article 26 of this law.

2. The commission is chaired by the deputy minister in the responsible ministry for order and public safety and is composed of:

- a) a judge proposed by the High Judicial Council in the capacity of deputy chairman;
- b) a prosecutor proposed by the High Prosecutorial Council in the capacity of member;
- c) a judicial police officer proposed by the Director of the State Police in the capacity of member.
- (ç) the Director of the Directorate in the capacity of the member.

3. The High Judicial Council, High Prosecutorial Council and the Director of the State Police each appoint an alternate member who will take part in the meetings of the commission, when there is a reason that prevents the respective members from taking part in meetings of the commission.

4. The members of the commission are appointed to the position for a term of three years and may be re-appointed. Membership in the commission terminates ahead of time:

- a) when the member no longer exercises a function in the institution that proposed him or because of which he was appointed;
- b) at his request, accompanied by grounded reasons;
- c) because of unjustified absence at two consecutive meetings of the commission;

(ç) for a violation of this law and rules of functioning of the commission.

5. The decision to terminate the tenure of the member of the commission is taken by the body competent for their appointment. In the case of letter "b" of paragraph 4 of this Article, the decision is taken at the request of the member himself, while in the case of letters "c" and "ç" at request of the commission.

6. The judge, prosecutor and judicial police officer who are members of the commission cannot take part in the discussion and decision-making, when they are made aware that the proposal for admission into the protection program is related to criminal proceedings or activities being investigated or tried by them. This prohibition is also valid when there is a conflict of interests or a suspicion of partiality, as provided for in the Code of Criminal Procedure and other legal provisions in force. In such cases, they are replaced by the alternate members.

7. The chairman and the commission members shall benefit financial reward at the extent and way provided for in the decision of the Council of Ministers.

CHAPTER III

THE PROTECTION PROGRAM FOR WITNESSES AND JUSTICE COLLABORATORS

Article 10

General conditions for implementing the protection program

1. When the implementation of the ordinary protection measures for a witness or justice collaborator is not sufficient and appropriate, a protection program according to this law is applied, if he, at his free will, consents to cooperate with the prosecutor's office and the court, and, to provide, through his comprehensive declarations and/or testimony, made without conditions and reservations, grounded data that constitute decisive evidence for the detection, investigation and adjudication of crimes and their perpetrators.
2. The implementation of the protection program for the witness or justice collaborator is decided only if he is in a situation of danger, is suitable for being included in the program and accepts at his free will to be part of it and to participate actively in its implementation.
3. The suitability has to do with the psychological, social and physical conditions of the witness or collaborator, which should be such as to create confidence that he will apply the rules of the protection program and will not endanger his own life and health or the life and health of other persons. If possible, the measure of relocating his residence and amending the entire program shall be taken.
4. In case of a juvenile witness or collaborator, besides the above circumstances, the consequences of admission into the program on his psychosocial development should also be evaluated.
5. Depending on the concrete circumstances, the program may, along with the witness or justice collaborator, also include related persons. The rules provided for in paragraphs 1 and 2 of this Article shall also apply in this case.
6. The protection program does not have the purpose of improving the economic condition of the protected person. Neither the Directorate nor the commission or any other state institution is responsible for the financial obligations that protected persons have at the moment of admission into the protection program.

Article 11

Duration of the protection program

1. The protection program is, as a rule, implemented for an indefinite time period and can be extended throughout the phases of the criminal proceedings, as well as after its completion.
2. The duration of the protection program depends on the existence of the situation of danger, the suitability of the protected person in relation to the special protection measure applied, as well as on the implementation of the obligations provided in the protection agreement by the protected person.

Article 12

Protection measures

(Letter "d" amended by Law no. 37/2017 Article 5)

1. In the framework of protection programs, one or more protection measures that are applied for protected persons are:

- a) change of identity;
- b) change of residence;
- c) furnishing false documents;
- (ç temporary protection of identity, data and documents;
- d) giving testimony under another identity and administration with special means for voice and image deformation, and other forms set according to law, in compliance with Article 361/b of the Code of Criminal Procedure;
- dh) physical and technical protection, in the place where the protected person resides, as well as during his movements;
- e) social rehabilitation;
- (ë provision of financial assistance;
- f) professional retraining;
- g) provision of advice and specialised legal assistance;
- gj) any other measure that is evaluated and approved as necessary in compliance with this law.

Article 13

Responsibility for implementing the protection program

1. The Directorate is responsible for the preparation, coordination of work, and following up the implementation of the protection program.
2. The Directorate cooperates with ministries and other central institutions regarding issues that have to do with following up and implementing the protection program.
3. The bodies, mentioned in paragraph 2 of this Article, coordinate their work with the Directorate, reply to the requests of this Directorate and of the prosecutor, as well as informing on issues and circumstances that have to do with the implementation of the protection program.

Article 14

Administration of acts, documents and information

1. The acts, documents and information related to the proposal, the approval and implementation of the protection program are considered "Classified information" and are kept and administered by the Directorate of the Protection of Witnesses and Justice Collaborators.
2. The acts, documents, data as well as every piece of information on the protection program that the ministries and other central institutions possess, shall be considered "Classified information".

CHAPTER IV

PROCEDURES ON THE APPROVAL AND IMPLEMENTATION OF THE PROTECTION PROGRAM

Article 15

Proposal for acceptance into the protection program

(Words added to paragraph 1 and 3 by Law no. 37/2017, Article 6)

1. The Prosecutor General or the Chief Special Prosecutor have the right to propose the admission of one or more persons into the protection program.
2. The proposal for admission of one or more persons into the protection program contains indispensably the following data:
 - a) personal data of the person who is proposed for protection;
 - b) explanations on the importance of the statements made or that might be obtained from the witness or justice collaborator, as well as the reasons why the free giving of testimony cannot be obtained in another manner;
 - c) the circumstances in which or because of which the witness or justice collaborator has become aware of the data and the statements given by him or that can be obtained from him;
(ç data and other explanations that serve to motivate and support the evaluation of the situation of ;danger that the person proposed to be protected faces or is expected to face
 - d) information on the financial condition of the witness;
 - dh) other information, in the judgment of the prosecutor.
3. In the case of a justice collaborator, the proposal is accompanied by a description of the conditions of collaboration with justice that will become part of the protection agreement, according to Article 37/a and 37/b of the Code of Criminal Procedure.

Article 16

Examination of the proposal for admission into the protection program

(Words added to paragraph 1, 2 and 3 by Law no. 37/2017, Article 7)

1. The proposal of the Prosecutor General or the Chief Special Prosecutor for acceptance of one or more persons into the protection program, together with the basic information according to Article 13 of this law, are filed with the Directorate for the Protection of Witnesses and Justice Collaborators, which also exercises the functions of a technical secretariat. This Directorate forwards the documentation to the chairman of the commission no later than 24 hours from the date of its filing.
2. The Prosecutor General or the Chief Special Prosecutor shall, as appropriate and along with the proposal, submit an argued request to the Directorate setting out the reasons according to which this Directorate, in compliance with the specific circumstances, shall implement temporary protection measures, until the commission has finished the examination of his proposal.
3. Upon receiving the proposal, the chairman of the commission tasks the Directorate to undertake an assessment of the physical and psychological conditions of the person proposed for acceptance into the protection program, a comprehensive assessment of the situation of danger, as well as the suitability of the person with the program. For the assessment of the situation of danger, the Directorate may ask the witness, justice collaborator or related persons for information on any previous violation of the law committed by him, regardless of whether he was convicted or not. In cases when statements are made

about criminal offences committed by the witness, justice collaborator or related persons, the Directorate immediately notify the Prosecutor General or the Chief Special Prosecutor to review the request only for the purpose provided in this paragraph.

Article 17

Decision-making of the commission

(Words added to paragraph 1 and 3 by Law no. 37/2017, Article 8)

1. The meetings of the commission are convened by the chairman within 5 days from the delivery of the proposal of the Prosecutor General or the Chief Special Prosecutor to the Directorate. In particular and urgent cases, the commission is convened immediately.
2. The meetings of the commission are valid when the majority of its members are present. Its decisions are valid when they are approved by three members present in the meeting.
3. The commission takes a decision no later than 10 days from the first meeting, and, in any case, no later than 15 days from the submission of the proposal from the Prosecutor General or the Chief Special Prosecutor and the respective documentation to the Directorate.
4. The rules and the procedures foreseen in this Article are also applied in cases of the interruption and conclusion of the protection program.

Article 18

Temporary protection measures

(Words added to paragraph 1 by Law no. 32/2017, Article 9)

1. In specific and urgent cases, upon the request of the proceeding prosecutor, the Directorate decides on the immediate implementation of temporary protection measures. For this purpose, the Directorate and the protected person sign a temporary protection agreement. The Prosecutor General or the Chief Special Prosecutor should submit the proposal for acceptance of the person into the protection program within 30 days from the date of the start of implementation of the temporary measures.
2. The temporary protection measures are established in compliance with the situation of danger, and in such forms that guarantee, temporarily and preliminarily, the necessary level of protection.

Article 19

The agreement with the protected person

(Words added to paragraph 2 and 3 by Law no. 32/2017, Article 10)

1. In the shortest time possible and in any case no later than 10 days from the date of approval of the acceptance into the protection program, the Directorate prepares the agreement for application of the protection program (protection agreement) and takes measures for discussing and signing it with the witness, justice collaborator and other protected persons.
2. Before the agreement is signed, the justice collaborator is obliged to inform the Directorate in detail on the kinds and quantity of assets owned by him. If any of the assets owned by the justice collaborator has

emerged as proceeds of crime, or income or a benefit from proceeds of crime, or assets mixed with those proceeds, the person should state this fact. In cases of such a declaration, the Directorate immediately informs the Prosecutor General or the Chief Special Prosecutor.

3. The Directorate informs the Prosecutor General or the Chief Special Prosecutor of the signing of the protection agreement. The contents of the agreement, the location of the person or his new identity are not made known to the Prosecutor General or the Chief Special Prosecutor or the proceeding prosecutor, while his location and new identity should not be made known even to the commission.

4. The responsibilities and effects of the protection program for the Directorate and the protected person start at the time and in the manner provided in the agreement.

5. In a case when the protected person is a juvenile or is an adult whose legal capacity to act has been limited or taken away, his opinion on acceptance into the program and on the content of the agreement is taken, in accordance with the principles of the highest interest of the child and those of legal capacity to act. In these cases, the final approval and signing of the protection agreement is done by the parent or legal guardian.

6. The protection agreement is not a contract of obligation within the meaning of the Civil Code. The protected person or his heirs cannot seek the execution of this agreement before the court, neither the compensation if the agreement has not been executed or when he alleges that he has suffered damage.

Article 20

Contents of the agreement

1. It is mandatory to provide the following issues in the protection agreement:

- a) the obligations of the protected persons;
- b) the special and supplementary measures that will be taken by the Directorate in order to offer to the protected person the proper protection according to the level and circumstances of danger;
- c) the cases and circumstances for changing and interrupting the protection program;
(ç the cases of voluntary acceptance of the protection program by the protected person.
- d) the conditions of cooperation with justice, in the case of justice collaborators.

2. The protection agreement also provides a more detailed regulation of the fulfilment of the following conditions and obligations by the protected person:

- a) to accept the conditions and guidelines set in the protection program and to collaborate actively for their implementation;
- b) to keep account of the nature of classified information and under no circumstance make known any data on the protection program and other data related to it, warning about criminal liability according to Article 295/a of the Criminal Code in case of a violation of the obligation of secrecy related to the protection program, even after its conclusion;
- c) to avoid every action or omission that might endanger the implementation of the protection program or that might bring as a result another situation of danger for the protected person;

- (ç) to inform immediately the Directorate on its requests or events or changes of his living circumstances or personal activity, and also about the contacts and relations with third parties that might endanger the implementation and guaranties offered by the protection program;
- d) to accept, without a specific court decision, if it is essential for protection purposes or the purposes of the criminal proceedings, the use of technical equipment for visual and/or audio recording, surveillance and safekeeping in his own premises;
- dh) other obligations that the Directorate considers essential, depending on the nature and circumstances of the specific case;
- e) obligations for the parent or guardian, in a case when the protected person is a juvenile or his legal capacity to act has been limited or removed.

Article 21

Exemption of employees of the Directorate from civil liability

A civil lawsuit cannot be brought against an employee of the Directorate by persons accepted into the protection program for actions and/or failures to act done in good faith during the exercise of a duty assigned by this law.

Article 22

Extraordinary protection measures

1. The State Police, pre-trial detention institutions or institutions of the execution of criminal decisions may, according to the level of the situation of danger for witnesses, justice collaborators and related persons, order and implement extraordinary protection measures, according to the definitions provided by this law or by other laws and regulations that regulate their activity. The proceeding prosecutor is notified of these measures no later than 24 hours from when they are taken.
2. With the consent of the proceeding prosecutor, the extraordinary measures may be extended until the danger motivating their taking is avoided or until the commission has taken the respective decision.

Article 23

Interruption of the protection program

1. The protection program may be interrupted by the commission in the following cases:
 - a) if during the investigation and trial of the criminal case, it is proven that the witness or justice collaborator is giving false statements or testimony or for any reason is not giving statements or testimony for which admission into the program was allowed;
 - b) if the protected person commits an intentional criminal offence;
 - c) if after the beginning of implementation of the protection program, reasonable and grounded data are obtained about the involvement of the protected person in criminal activity not declared by him;
 - (ç) if the witness, justice collaborator or other protected persons do not respect the obligations mentioned in the protection agreement and/ or the conditions of collaboration with justice;

- d) if an authority of another state seeks the termination of the protection program implemented in its territory.
2. During the examination of the circumstances of the interruption, the commission is made aware only of the reasons for interruption of the program.

Article 24

Ending of the protection program

1. The protection program ends in the following cases:
- a) if it is assessed that the situation of danger motivating the implementation of the protection program does not exist anymore;
 - b) if the protected person has died;
 - c) at the written request of the protected person or his guardian.
2. Following the end of the protection program, the protected person may choose to keep his new identity, if he has been given one, or to take back his true identity.
3. If the person under a protection program is killed or physically injured to the degree that becomes incapable of working because of the failure of protection measures implemented, at the proposal of the Directorate, the commission may designate special financial assistance for the person or his dependent family members.

Article 25

Notices of interruption or ending of the protection program

(Words added to paragraph 1 by Law no. 32/2017, Article 11)

1. The Directorate immediately notifies the Prosecutor General or the Chief Special Prosecutor in writing about the circumstances mentioned in Articles 23 and 24 of this law.
2. In the case of a request for terminating the protection program or when the protected person has died, the protection program is immediately terminated for the person requesting it or having died, but it may continue, depending on the circumstances, for other protected persons included in it.

Article 26

Appeal procedures

1. The protected person has the right of complaint to the commission and to request that the measures chosen to be applied for him by the Directorate be changed or supplemented, presenting the reasons. The time period for filing the complaint is five days starting from the day after the notification of the decision of the Directorate. The appeal does not suspend the application of the chosen measure. The decision of the commission is final.
2. During the examination of the complaint according to paragraph 1 of this Article, the commission shall not be informed of details that reveal the current identity and location of the person who is in the protection program.

CHAPTER V

FINAL PROVISIONS

Article 27

International cooperation

1. International cooperation is achieved based on the rights and obligations stemming from international agreements to which the Republic of Albania is a party or through agreements for specific cases, entered into by the director of the Directorate with similar entities in other countries.
2. The agreements on specific protection programs may provide for the mutual implementation of the protection program, including the change of residence and the stay of protected persons in the respective territories of the parties.
3. The agreements on specific cases shall be considered “Classified information”, and the general rules as in the case of international agreements foreseen by the legislation in force shall not be applied.

Article 28

Sublegal acts

Within 6 months from the entry into force of this law, the following subordinate legal acts shall be adopted:

1. A decision of the Council of Ministers on the treatment and benefits of the employees of the Directorate for the Protection of Witnesses and Justice Collaborators, in implementation of paragraph 4 of Article 5 of this law;

1/1 A decision of the Council of Ministers for the financial reward of the chairman and members of the commission, implementing paragraph 7 of the Article 9 of this law;
2. Joint instructions of the Minister of Interior, Minister of Justice and the Prosecutor General for:
 - a) detailed rules and criteria for the issues provided for in paragraphs 1, 2 and 3 of Article 10 of this law;
 - b) detailed rules on the duties, responsibilities, forms and procedures for coordinating and information among institutions, in implementation of Article 13 of this law;
 - c) criteria and procedures for safeguarding, administering and classifying the information of the protection program of witnesses and justice collaborators, in implementation of paragraph 1 of Article 14 of this law;(ç detailed rules for the cases, procedures and manners of implementing protection measures, in implementation of Articles 15, 16 and 18 of this law;
3. Joint instructions of the Minister of the Interior and the Minister of Finance on:

- a) the administration of assets and funds necessary for the exercise of the activities of the Directorate, the recording of expenditures, and the auditing of the financial activity of the Directorate, in implementation of point 3 of Article 5 of this law;
- b) the manner of setting financial assistance and its amount, in implementation of paragraph 2 of Article 12 of this law.

4. Internal rules of the Directorate on:

- a) rules of a technical and operational nature on the conditions, methodologies and procedures for the verification, preparation and implementation of the protection program, on the manner, forms and means of communication, and on the administration of documents and information related to its activity, in implementation of Article 6 of this law;
- b) detailed rules and criteria on the content, meaning, suitability, manner and procedures of setting and gradation of the measures that constitute the protection program;
- c) detailed rules on the procedures of expression of will, discussion and signature, the form and the content, as well as following up the abidance by the conditions of the protection agreement, in implementation of Articles 19 and 20 of this law.

5. The internal rules of the commission on detailed rules for the criteria and work procedures, convening and participating at the meetings, absence and impossibility to assign and perform this duty.

6. Instructions of the heads of the institutions for filing, maintaining and administering information on the protection program of witnesses and justice collaborators, in implementation of paragraph 2 of Article 14 of this law.

Article on sublegal acts

(Provided by Law no. 37/2017 Article 12)

Within 6 months from the date this law enters into force, the joint instruction of the Minister responsible for public order and security, the Minister of Justice and the High Council of Prosecutor, shall be adopted for:

- a) detailed rules and criteria for the issues provided in paragraphs 1, 2 and 3 of Article 10 of this law;
- b) detailed rules on the duties, responsibilities, forms and procedures of coordination and information, between institutions, pursuant to Article 13 of this Law;
- c) the criteria and procedures for maintaining, administering and classifying information on the program of witness protection and justice collaborators pursuant to paragraph 1 of Article 14 of this law;
- (ç detailed rules on cases, procedures and ways of implementing protection measures, pursuant to Articles 15, 16 and 18 of this law.

Article 29

Repeals

Law no. 9205, dated 15.3.2004, "On the protection of witnesses and justice collaborators" is repealed.

Article 30

Transitional provisions

1. The mandate of the members of the commission that started in conformity with Law no. 9205 dated 15.3.2004 “On the protection of witnesses and justice collaborators”, will continue until the end of their mandate.

2. Until the approval of subordinate legal acts according to Article 28 of this law, the subordinate legal acts approved in implementation of Law no. 9205, dated 15.3.2004, “On the protection of witnesses and justice collaborators” shall be applied, so long as they are not contrary to this law.

Article 31

Entry into Force

This law enters into force 15 days after its publication in the Official Gazette.

LAW

No. 9157, date 4.12.2003

ON INTERCEPTION OF ELECTRONIC COMMUNICATIONS

(Amended by Law no. 9885, dated 03.03.2008;

amended by Law no. 10172, dated 22.10.2009;

amended by Law no. 116 /2012;

amended by Law no. 69/2017)

Pursuant to Articles 78 and 83, paragraph 1, of the Constitution, upon the proposal of a group of the Council of Ministers,

THE ASSEMBLY OF THE REPUBLIC OF ALBANIA

DECIDED:

CHAPTER I GENERAL PROVISIONS

Article 1

Object

(Words added by Law no. 69/2017, Article 1)

This law establishes the procedures that shall be followed for the preventive interception of electronic communications by the state intelligence institutions established by law for the fulfilment of the duties, as well as the procedures that should be followed by the persons charged with for the conduction of interception.

Article 2

Purpose

This law aims to increase the effectiveness of the activity of intelligence state institutions for the discovery of the unconstitutional, criminal, and delinquent activity, as well as to prevent the consequences that might derive from this activity.

Article 3

Definitions

(Paragraph 1 and 2 amended by Law no. 69/2017, Article 2;

paragraph 10 added by Law no. 69/2017, Article 2)

For the purpose of application of this law, the following definitions shall mean:

1. “Core Electronic Command” is the technical device in administration of the General Prosecution Office and of the Special Prosecution Office, which allows or forbids the interception of an electronic communication device.
2. “Object of interception” are the signals, or other forms of information, to be received or transmitted by means of electronic communication devices.
3. “Electronic communication entrepreneur” is a natural or juridical person, which provides networks of electronic communication and/or services of electronic communications pursuant to prescriptions envisaged by the legislation into force on electronic communications in the Republic of Albania.
4. “Final device” is every device in use by an intercepted person, which is connected directly or indirectly to a final point of the electronic communication network in order to realize the electronic communication.
5. “Electronic communication device” is every technical means (transmitting line, communication device, and any other device necessary to ensure the functioning of the electronic communication network) which serves for the realization of the electronic communication.
6. “Interception” is the hidden interference to capture, hear and record the content of the communication and data related with it, between the starting point and arriving point
7. “Emergent situation” is the situation when from the moment for compliance with requests laid down by this law for the submission and the approval of the written request, the interception result is damaged, entailing consequences for the national security.
8. “Intercepted persons” are individuals suspected as alleged authors of serious crimes.
9. “Communication” has the same meaning with the meaning established in paragraph 13, Article 3 of the Law no. 9918, dated 19.05.2008, “On electronic communications in the Republic of Albania”, amended.
10. “Competent Prosecution Office” is the General Prosecution Office or the Special Prosecution Office according to the competences provided for according to the legislation in force.

Article 4

Principles of Interception

The core principles for interception of electronic communications are the respect for freedoms and fundamental human rights, the necessity and proportionality, secrecy and objectivity in its conduction.

Article 5

Utilization of the interception outcomes

The interception outcomes, acquired on the basis of this law, do not have evidential value, except for those taken in accordance with the Criminal Code of Procedure.

CHAPTER II

PROCEDURE FOR CONDUCTION

OF INTERCEPTION

Article 6

Bodies that may require the conduction of interception

(Paragraph 1 amended by Law no. 69/2017, Article 3)

1. National Intelligence Service, intelligence service/ police intelligence service of the responsible ministry for the order and public safety, Ministry of Defence, Ministry of Finance, Ministry of Justice, National Bureau of Investigation, as well as any other intelligence/policy service established by law, have the right to request the interception, in order to ensure the necessary data for the fulfilment of their legal duties.
2. None of the public institutions mentioned in paragraph 1 of this Article have the right to submit a request for interception for matters or activities that are not foreseen by the law as subject-matter of their informative-tracing activity.

Article 7

Interception request

(Amended by Law no. 69/2017, Article 4)

1. The interception request, submitted by the subjects mentioned in Article 6 of this law, is prepared in two copies of which one shall be deposited before the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, and the other one shall be held by the concerned institution.
2. The request shall contain:
 - a) the requesting institution, names and functions of the employee following the process of informative-tracing;
 - b) personal details and the address of the person subject to the process of informative-tracing or subject to tagging after, as well as the address/addresses of the areas/premises related to the electronic communication interception request;
 - c) description of electronic communications that shall be subjected to interception and, wherever appropriate, the data for the electronic communications operator who provides service to the subject who will be intercepted;
 - (çthe reasons for the interception, and the documentary support or informative material where the interception request relies;
 - d) the arguments attesting that the interception is necessary in the created situation and that the requested data cannot be assured by other means;
 - dh) the time limit within which the interception is sought.

Article 8

Granting of the right to interception

(Amended by Law no. 69/2017, Article 5)

The Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, after the examination of the written interception request of the responsible Minister for order and public safety, Minister of Defence, Minister of Justice, Minister of Finance, Director of the National Intelligence Service, Director of the National Bureau of Investigation, as well as of every ministry that has under his dependency intelligence/police services established by law, approves or refuses the request for interception of electronic communications.

The request for interception, shall be examined within 48 hours from the moment of its submission.

Article 9

Decision for Interception

(Amended by Law no. 69/2017, Article 6)

1. The Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence the deputy chairman, takes a written decision in reply to the request for interception, which is drawn up in three copies. A copy of the decision that approves or denies the request shall be kept in the Court of Appeal against Corruption and Organized Crime, one copy shall be kept by the institution that has made the request, and the third copy shall be kept by the core electronic command of the competent Prosecution Office.
2. The request for interception, as well as all data collected by interception is confidential. Institutions involved in the decision-making process shall keep confidential every request and data collected by interception for which they have learned, unless otherwise provided by this law.
3. Interception decisions shall apply to communications via electronic communication devices within the territory of the Republic of Albania, or abroad, where there is an international agreement to which the Republic of Albania is a party.

Article 10

Content of the Decision for interception

(Letters "b" and "c" amended by Law no. 69/2017, Article 7)

The Decision for interception shall contain these elements:

- a) requesting institution;
- b) responsible structure for interception within the National Intelligence Service, in the section of interception in the State Police or in the Internal Intelligence Control Service of the responsible ministry for order and public safety, in National Bureau of Investigation or, accordingly, the employees authorized by heads of requesting institutions to carry out the technical process of interception.
- c) personal details and the address of the subject who is to be placed under interception; the identified areas/premises for which the electronic communication interception shall be performed, final devices used by the subject under interception for performing of the electronic communication, as well as the provider of electronic communications that offers the service;

(ç the time limit or the time limits of interception, where the data and the hour of initiation and its termination is determined.

The decision shall charge for its implementation the responsible interception structure at the National Intelligence Unit and the requesting institution.

Article 11

The change of final device

(Amended by Law no. 69/2017, Article 8)

After the adoption of the interception decision, when it is acknowledged that final devices of the subject under interception have been added or changed, the request of interception shall not be repeated. In this case, the state institution requesting the interception is obliged to notify in writing for the new final device the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, who orders the respective commanding core for the change or addenda of the final device or devices which are intercepted. In this case, the time limits of interceptions shall remain unchanged.

Article 12

Interception Sector

(Amended by Law no. 69/2017, Article 9)

1. The responsible Sector for Interceptions at the National Intelligence Service performs only the technical processes of electronic communications interceptions by means of telecommunication devices on account of state intelligence institutions, after the decision on interception has been taken in accordance with this law. The technical processes of interception, on account of the State Police and Internal Service Control in the responsible ministry for order and public safety shall be performed by their interception section, attached in the responsible Structure for Interceptions at the National Intelligence Service.

The technical process of interceptions, on account of other institutions, is performed by their authorised employed agents.

Paragraph 2 repealed by Law no. 69/2017, Article 9.

3. The realization of interception by the responsible Structure for Interceptions at the National Intelligence Service and the interception section of the State Police, and of Internal Service Control in the responsible ministry for order and public safety as well as by the National Bureau of Investigation is performed through systems installed for that purpose. The interception system always shall be composed of two parts, which cannot function in independent way from each other.

Article 13

Core electronic command

(Amended by Law no. 69/2017, Article 10)

The Core electronic command is a technical device administered and installed at the General Prosecutor Office and at the Special Prosecution Office, which permits or forbids the interception of a final device. The employee of the core electronic command, after the written decision on the approval of the interception request of the Chairman of the Court of Appeal against Corruption and Organized crime, or in his absence, the deputy chairman, makes technically possible the interception process by the responsible Sector for Interceptions at National Intelligence Service, and the interception section of the State Police and of the Internal Service Control in the responsible ministry for order and public safety and by the National Bureau of Investigation, except as otherwise provided in this law.

The core electronic command employee, upon the termination of the time limit according to the decision of the Court of Appeal against Corruption and Organized Crime, automatically interrupts the interception, except when there is a request for the extension of the time limit.

Article 14

Duration of the interception decisions

(Amended by Law no. 69/2017 Article 11)

1. All interception decisions for the interception of electronic communications are valid for a period up to three months.
2. For every extension of this time limit, the respective state institution submits to the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, a written and argued request together with the clearing interception material obtained so far. The Chairman or the deputy chairman according to this Article, is authorized to request explanations or additional reasons for the extension of the time limit.
3. Any extension of this time limit cannot be more than three months.

Article 15

Cognizance of the interception results

(Amended by Law no. 69/2017 Article 12)

1. The head of the respective state institution that has requested the interception shall know the interception results, during the time limit the interception is on-going, as well as after its termination.
2. The Chief of the Special Prosecutor Office or the General Prosecutor, or the Chief of the Prosecution Office at the Court of First Instance according to their competences, have the right to be informed by the head of the respective State institution that has requested the interception with the interception results after its completion, except when the head of the respective state institution considers that they must be informed for the results of the interception even before its termination.

Article 16

Limitations on interception

(Letter "b" amended by Law no. 69/2017 Article 13)

1. Persons in charge with functions or specified duties within or for the interception process as a whole or particularly are forbidden:

- a) to diffuse or utilize the data acquired not in accordance with the requirements laid down by this law or other laws in force;
- b) to intercept without authorization or outside the procedures setup by this law.

2. The interception process, in whole or in particular, constitutes state secret, the violation of which is punished according to the criminal legislation in force.

Article 17

Emergency situations

(Amended by Law no. 69/2017 Article 14)

1. For emergency situations, upon verbal request of the head of the responsible state institution, pursuant to Article 6 of this law, the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, orders in written form for the technical realization of the interception process. The decision of the court shall be registered immediately into the records of the core electronic command within the competent Prosecution Office and into those of the specialists of the responsible Structure for Interceptions at the National Intelligence Service, or the interception section of the State Police, of the National Bureau of Investigation and of the Internal Service Control in the responsible ministry for order and public safety. After the registration of the decision, the specialists of the responsible Structure for Interceptions at the National Intelligence Service, or the interception section of the State Police, of the National Bureau of Investigation and of the Internal Service Control in the responsible ministry for order and public safety conduct the process of interception.

2. Within 8 hours from the initiation of interception, the responsible state institution that has made the request, submits to the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, the regular written request, which shall contain the reasons of emergent actions together with the intercepted communication after clearing them. On this basis, within 24 hours from the initiation of interception, the responsible decision to continue or to interrupt the interception shall be taken.

3. Failure to submit the written request within the time limit established in paragraph 2 of this Article, shall entail the immediate interruption of the interception.

Article 18

Revocation of the interception decision

(Amended by Law no. 69/2017 Article 15)

If a change occurs that leads to the conclusion that the interception is no longer necessary or practical to implement, then, upon written request of the responsible state institution to the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, to the deputy chairman, the decision is revoked.

The revocation decision shall be addressed to the responsible electronic core commands, to the requester and to the technical implementer of the interception.

CHAPTER III

SPECIAL REQUIREMENTS FOR INTERCEPTION

Article 19

Interception upon request of foreign intelligence/police services

(Amended by Law no. 69/2017 Article 16)

Upon request of the intelligence/police services and the approval of the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, the responsible Structure for Interceptions at the National Intelligence Service, or the interception section of the State Police, and of the Internal Service Control at the responsible ministry for order and public safety or National Bureau of Investigation can perform, accordingly, interception pursuant to the provision of this law, on account of the foreign intelligence/policy service.

Article 20

Destruction and preservation of the interception material

(Amended by Law no. 69/2017 Article 17)

1. The interception material obtained by the preventive interception process of the electronic communications shall be destroyed within 10 days after the expiration of the interception time limit. The interception material shall be kept only in case there are premises that it is likely to be important for the protection of life, national security, public order or the prevention of serious crimes.
2. The head of the responsible state institution, within 3 days from the expiration of the interception time limit, submits written request to the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, for the preservation of the interception material. The Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, shall take a decision to accept or to refuse the request within 72 hours from its submission.
3. If the request is refused, the interception material shall be destroyed within the time limit provided in paragraph 1 of this Article, according to the procedures [modalities] established by joint instruction of the General Prosecutor, Chief of the Special Prosecution Office, responsible minister for order and public safety, Minister of Defence, Minister of Justice and of the Director of National Intelligence Service.
4. If the request for preservation of the material is accepted, the decision shall also determine the time necessary for its preservation. Upon the completion of the deadline set in the decision, the preserved material shall be destroyed in accordance with the terms and procedures provided for in this Article.

Article 20/1

Right to information

(Added by Law no. 69/2017 Article 18)

1. The responsible state institution, within 15 days of receipt of the written request of a citizen, should inform him if any interception of electronic communication is undertaken against him/her. This information is only given after the interception has ended.
2. The citizen shall have the right to request documents on the data collected, which can be made available to him without the name of the employee who has collected them and without the data about the sources of information of the security and intelligence agencies and third parties.
3. The responsible state institution is not obliged to act according to the provisions of paragraph 1 of this Article if:
 - a) the notification could jeopardize the implementation of the tasks of the institution;
 - b) the information can lead to risk the safety of another person;
 - c) the content of the intercepted communication constitutes state secret and may lead to harmful consequences for national security or national interests.

CHAPTER IV ELECTRONIC COMMUNICATION ENTREPRENEURS

Article 21

Interception capabilities of electronic communications networks

(Paragraph 2 amended by Law no. 69/2017 Article 9)

1. The electronic communication providers realize, by their own expenses, the necessary infrastructure on their electronic communication network, up to the connecting point with the core electronic command, in order to assure, within 180 from the reception of the request by the institution that administer interceptions systems, according to this law, the interception capability towards users that utilise electronic communications services provided by them.
2. The infrastructure that is realized by the electronic communication providers assuring interception capability should be technologically compliant with the devices of electronic core commands of the interception systems.
3. Electronic communication providers are obliged to provide free of charge any service in function of the interception process.
4. When electronic communication providers adopt any kind of technological change, or increase of capacity, they are obliged to cover by their own expenses the continuity of the functioning of the interception process.
5. In case of changes in the core electronic command, that impose changes in the electronic communication infrastructure of the providers, the responsible structure for the core electronic command shall notify the electronic communication entrepreneurs, at least, 180 days before this change.

6. In case of non-fulfilment of the obligation pursuant to paragraph 1 of this Article, Electronic Communication and Postal Authority, acts in accordance with its competencies laid down in Article 18, 131 and 137 of the Law no. 9918, dated 19.05.2008, "On Electronic Communications in the Republic of Albania", amended.

Article 22

Assistance of the electronic communication providers

(Title amended by Law no. 69/2017, Article 20;

amended by Law no. 69/2017, Article 20)

1. Where the interception cannot be realized means of the interception system, the Director of the National Intelligence Service, or the responsible minister for order and public safety, accordingly, requests the assistance of every electronic communication entrepreneurs in the Republic of Albania, which are obliged to take the necessary steps.

2. In these cases, the operator is given a copy of the decision of the Chairman of the Court of Appeal against Corruption and Organized Crime, or in his absence, the deputy chairman, with an abbreviated content and without data that might impinge the intelligence-tracking process. This copy shall contain the time limit within which the operator shall provide numbers, addresses and other elements that need to be identified for the interception. When necessary, the copy of the decision shall be accompanied with an additional document, in which other technical details for the devices of the electronic communication are determined.

CHAPTER V

FINAL PROVISIONS

Article 23

Interception by court decision

(Amended by Law no. 69/2017 Article 21)

1. The technical processes of interception of electronic communications, through telecommunication equipments, for the purpose of preliminary investigations, shall be conducted according to the Articles 221 to 226 of the Criminal Procedure Code.

2. The prosecutor of the competent prosecutor's office, by an official act, accompanies and communicates the court decision to the electronic interception structure at the General Prosecution Office or Special Prosecution Office according to their competences.

3. The technical process of the listening and transcription may be conducted as well at the prosecution offices of the general jurisdiction and at the Special Prosecution Office according to their competences.

Article 24

Issuance of sub-legal acts

(Amended by Law no. 69/2017 Article 22)

The General Prosecutor, the Chief of the Special Prosecution Office, the minister responsible for public order and safety, the Minister of Defence, the Minister of Justice, the Minister of Finance, the Director of the National Information Service, the Director of the National Bureau of Investigation within 3 months of the establishment of the Special Prosecution Office, shall issue a joint instruction for:

- a) the detailed manner of conducting the interception process, in accordance with the requirements of Articles 6, 10, 13, 14 and 15 of this Law;
- b) the rules for secrecy and the documentation deriving from the interception process, pursuant to Articles 16 and 20 of this Law;
- c) the manner of preservation and destruction of the interception material, according to Article 20 of this Law.

Article 25

Transitional provision

(Provided by Law no. 69/2017, Article 23)

1. Within six months from the establishment of the Special Prosecution Office, the equipment that enables the technical processes of interception under this law, shall be installed at the premises of this prosecution office according to this law.
2. The Chief of the Special Prosecutor Office shall notify the High Judicial Council, the High Prosecutorial Council, the General Prosecution Office, and all institutions that carry out the interception of electronic communications under this law, the date when the electronic core command will start its functioning.
3. Within 10 days from the start of operation of the electronic core command, any authorized interception and that is ongoing at the General Prosecution Office for criminal offenses under the jurisdiction of the Special Prosecution Office, shall be transferred to this prosecution office. Any other interception material for the cases under the competence of the Special Prosecution Office shall be transferred upon request at this prosecution office, unless when the material is destroyed in accordance with the provisions of this law.
4. Until the commencement of the functioning of the electronic command core at the Special Prosecution Office, its competences for the preventive interception of electronic communications shall be exercised by the General Prosecutor's Office.
5. Until the commencement of the functioning of the Appeal Court against Corruption and Organized Crime, the approval or refusal of a request for interception of electronic communications shall continue to be carried out by the General Prosecutor or, in his absence, by a prosecutor authorised by him.

Article 26

Repeals

Every provision that falls in contradiction with this law shall be abrogated.

Article 27

Entry in force

This law shall enter into force 15 days after its publication into the Official Gazette.

